

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[10 NE3d 179, 986 NYS2d 870]

In the Matter of RAGHUBIR K. GUPTA, a Disbarred Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent.

Argued February 12, 2014; decided May 1, 2014

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 8, 2013. The Appellate Division, among other things, (1) granted a motion by respondent attorney to the extent of vacating a prior opinion and order of that Court (75 AD3d 245 [2010]), that struck his name from the roll of attorneys and counselors-at-law to reflect his automatic disbarment as of October 26, 2009, based on his federal felony conviction, (2) denied the remainder of respondent's motion seeking reinstatement to the practice of law, and (3) on the Court's own motion, immediately suspended respondent from the practice of law based on the acts of professional misconduct underlying the criminal allegations, continuing until further order of that Court.

On April 7, 2008, respondent was found guilty, after a jury trial, in the United States District Court for the Southern District of New York, of immigration fraud, in violation of 18 USC § 1546. On October 26, 2009, he was sentenced to a period of incarceration of 51 months, along with a fine and three years of postrelease supervision. By order of the Appellate Division, Second Department, respondent's name was stricken from the roll of attorneys and counselors-at-law to reflect his automatic disbarment as based on his felony conviction. In an amended opinion, dated November 8, 2012, the United States Court of Appeals for the Second Circuit vacated the respondent's conviction and remanded the case for further proceedings (*United*

States v Gupta, 699 F3d 682 [2011]). Respondent then moved to vacate his prior disbarment.

Matter of Gupta, 2013 NY Slip Op 66888(U), appeal dismissed.

HEADNOTE

Attorney and Client — Disciplinary Proceedings — Disbarment — Felony Conviction

In an attorney disciplinary proceeding, an appeal from an order of the Appellate Division, which vacated a prior order striking appellant's name from the roll of attorneys following the reversal of his federal felony conviction, was dismissed upon the ground that the issues presented have become moot. Appellant was automatically disbarred upon his subsequent conviction of a felony (Judiciary Law § 90 [4] [a]).

APPEARANCES OF COUNSEL

Raghubir K. Gupta, Brooklyn, pro se, and *Andrew M. Krisel*, Brooklyn, for Raghubir K. Gupta, appellant.

Mark F. DeWan, Brooklyn, and *Diana Maxfield Kearse*, for respondent.

OPINION OF THE COURT

Appeal dismissed, without costs, upon the ground that the issues presented have become moot. Appellant was automatically disbarred upon his conviction of a felony on March 14, 2014 (Judiciary Law § 90 [4] [a]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and ABDUS-SALAAM; Judge RIVERA taking no part.

[10 NE3d 179, 986 NYS2d 870]

MARIA PILAR BUSTOS et al., Appellants, v LENOX HILL HOSPITAL, Respondent, et al., Defendants.

Decided May 1, 2014

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 16, 2013. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Carol R. Edmead, J.; op 2011 NY Slip Op 32174[U] [2011]), which had denied a motion by defendant Lenox Hill Hospital to set aside a verdict in favor of plaintiffs, (2) granted the motion, and (3) directed the clerk to enter judgment in

defendants' favor dismissing the complaint. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of Supreme Court, properly made?"

In a medical malpractice action, the Appellate Division concluded that the only testimony plaintiffs' expert gave as to the alleged deviation from the accepted standard of medical care in the performance of plaintiff's birthing maneuvers was that the maneuvers "were excessive and caused [her] injuries" and deviated from the appropriate standard of care. He did not explain or in any other way support his opinion, which therefore was speculative and conclusory and without probative force. Moreover, as to plaintiffs' theory that there was a deviation from the accepted standard of care in the dosage of the epidural block given to plaintiff mother, their own expert conceded that the dosage was standard and appropriate.

Bustos v Lenox Hill Hosp., 105 AD3d 541, affirmed.

HEADNOTE

Hospitals — Malpractice

In a medical malpractice action, the Appellate Division, which set aside a verdict in favor of plaintiff and dismissed the complaint, correctly determined that plaintiff failed to submit sufficient evidence to support a finding of liability against defendant hospital.

APPEARANCES OF COUNSEL

Hill & Moin, LLP, New York City (*Cheryl R. Eisberg Moin* of counsel), for appellants.

Mauro Lilling Naparty LLP, Woodbury (*Caryn L. Lilling* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question not answered upon the ground that it is unnecessary. The Appellate Division correctly determined that plaintiff failed to submit sufficient evidence to support a finding of liability against defendant hospital.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA; Judge ABDUS-SALAAM taking no part.

In the Matter of DOUGLAS R. BERMAN, Appellant, v IMTIAZ BARAI-CHI, Respondent.

Submitted February 18, 2014; decided May 1, 2014

Reported below, 113 AD3d 607.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

COOPERSTOWN HOLSTEIN CORPORATION, Appellant, v TOWN OF MIDDLEFIELD, Respondent.

In the Matter of MARK S. WALLACH, as Chapter 7 Trustee for NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN et al., Respondents.

Submitted April 28, 2014; decided May 1, 2014

Reported below, *Cooperstown Holstein Corp. v Town of Middlefield*, 106 AD3d 1170.
Reported below, *Matter of Norse Energy Corp. USA v Town of Dryden*, 108 AD3d 25.

Motion by American Petroleum Institute et al. for leave to appear amici curiae on the appeals herein granted only to the extent that the proposed brief is accepted as filed.

COOPERSTOWN HOLSTEIN CORPORATION, Appellant, v TOWN OF MIDDLEFIELD, Respondent.

Submitted April 28, 2014; decided May 1, 2014

Reported below, 106 AD3d 1170.

Motion by Brewery Ommegang Ltd. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

COOPERSTOWN HOLSTEIN CORPORATION, Appellant, v TOWN OF MIDDLEFIELD, Respondent.

In the Matter of MARK S. WALLACH, as Chapter 7 Trustee for NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN et al., Respondents.

Submitted April 28, 2014; decided May 1, 2014

Reported below, *Cooperstown Holstein Corp. v Town of Middlefield*, 106 AD3d 1170.

Reported below, *Matter of Norse Energy Corp. USA v Town of Dryden*, 108 AD3d 25.

Motion by Joint Landowners Coalition of New York, Inc., et al. for leave to appear amici curiae on the appeals herein granted only to the extent that the proposed brief is accepted as filed.

FREDERICK INGUTTI et al., Appellants, v ROCHESTER GENERAL HOSPITAL, Respondent.

Decided May 1, 2014

Reported below, 114 AD3d 1302.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

KEYSPAN GAS EAST CORPORATION, Respondent, v MUNICH RE-INSURANCE AMERICA, INC., et al., Appellants.

Submitted April 21, 2014; decided May 1, 2014

Reported below, 104 AD3d 581.

Motion by Complex Insurance Claims Litigation Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge LIPPMAN and Judge RIVERA taking no part.

In the Matter of JOSEPH LEE, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, Respondent.

Decided May 1, 2014

Reported below, 113 AD3d 1016.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of JORGE L. LINARES, Appellant, v ANDREA W. EVANS, as Chair of the Division of Parole, Respondent.

Submitted April 28, 2014; decided May 1, 2014

Reported below, 112 AD3d 1056.

Motion for poor person relief granted.

NOREX PETROLEUM LIMITED, Appellant, v LEONARD BLAVATNIK et al., Respondents.

Submitted April 28, 2014; decided May 1, 2014

Reported below, 105 AD3d 659.

Motion by David Paul Horowitz for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v WILLIAM BROWN, Respondent.

Submitted April 7, 2014; decided May 1, 2014

Reported below, 115 AD3d 38.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MICHAEL S. BRUMFIELD, Respondent.

Submitted April 21, 2014; decided May 1, 2014

Reported below, 109 AD3d 1105.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh

Street, Rochester, New York 14614 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSHUE DEJESUS, Appellant.

Submitted April 28, 2014; decided May 1, 2014

Reported below, 105 AD3d 476.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PER-
NELL A. FLANDERS, Appellant.

Submitted March 31, 2014; decided May 1, 2014

Reported below, 111 AD3d 1263.

Motion for assignment of counsel granted and John J. Raspante, Esq., 102 Lafayette Street, Utica, New York 13502 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD GARCIA, Appellant.

Submitted April 28, 2014; decided May 1, 2014

Reported below, 113 AD3d 553.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v KHARYE JARVIS, Respondent.

Submitted April 21, 2014; decided May 1, 2014

Reported below, 113 AD3d 1058.

Motion for assignment of counsel granted and William G. Pixley, Esq., 620 Park Avenue, No. 410, Rochester, New York 14607 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SERGIO RODRIGUEZ, Appellant.

Submitted April 28, 2014; decided May 1, 2014

Reported below, 112 AD3d 488.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RASAUN SANDERS, Also Known as BOO CRACKS, Appellant.

Submitted April 7, 2014; decided May 1, 2014

Reported below, 112 AD3d 748.

Motion for assignment of counsel granted and Mark Diamond, Esq., PO Box 287356, Yorkville Station, New York, NY 10128 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAUL WILLIAMS, Appellant.

Submitted March 31, 2014; decided May 1, 2014

Reported below, 107 AD3d 1391.

Motion for assignment of counsel granted and Philip Rothschild Esq., Frank H. Hiscock Legal Aid Society, 351 South Warren Street, Syracuse, New York 13202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v SIDNEY WISDOM, Respondent.

Submitted March 24, 2014; decided May 1, 2014

Reported below, 98 AD3d 241.

Motion for reargument denied [*see* 21 NY3d 1065 (2013)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ISIAH WILLIAMS,
Appellant, v PATRICK O'FLYNN et al., Respondents.

Submitted March 31, 2014; decided May 1, 2014

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of OTES G. RODRIGUEZ, Appellant, v THOMAS LA-
VALLEY, as Superintendent of Clinton Correctional Facility,
Respondent.

Decided May 1, 2014

Reported below, 112 AD3d 1244.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge PIGOTT taking no part.

In the Matter of DAVEY SHARK, Appellant, v NEW YORK STATE
DIVISION OF PAROLE CHAIR, Respondent.

Submitted March 10, 2014; decided May 1, 2014

Reported below, 2014 NY Slip Op 61975(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of THELEN LLP

YANN GERON, as Chapter 7 Trustee of the Estate of THELEN
LLP, Appellant, v SEYFARTH SHAW LLP, Respondent.

Submitted April 21, 2014; decided May 1, 2014

See 736 F3d 213.

Motion by DLA Piper LLP (US) et al. for leave to appear amici curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of TOWN OF NORTH HEMPSTEAD, Appellant-
Respondent, v COUNTY OF NASSAU, Respondent-Appellant.

Submitted April 7, 2014; decided May 1, 2014

Reported below, 102 AD3d 800.

Motion by County of Suffolk for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of TOWN OF NORTH HEMPSTEAD, Appellant-
Respondent, v COUNTY OF NASSAU, Respondent-Appellant.

Submitted April 21, 2014; decided May 1, 2014

Reported below, 102 AD3d 800.

Motion by City of Long Beach for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

TOWN OF OYSTER BAY, Appellant, v LIZZA INDUSTRIES, INC., Re-
spondent. (And Nine Other Actions.)

Submitted February 18, 2014; decided May 1, 2014

Reported below, 94 AD3d 1094.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 22 NY3d 1024 (2013)].

ANA VEGA, Respondent, v 103 THAYER STREET, LLC, Defendant,
and CITY OF NEW YORK, Appellant.

Submitted February 24, 2014; decided May 1, 2014

Reported below, 105 AD3d 405.

Motion to vacate this Court's November 27, 2013 order of preclusion granted.

In the Matter of MARK S. WALLACH, as Chapter 7 Trustee for
NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN
et al., Respondents.

Submitted April 21, 2014; decided May 1, 2014

Reported below, 108 AD3d 25.

Motion by Vicki Been et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of MARK S. WALLACH, as Chapter 7 Trustee for
NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN
et al., Respondents.

Submitted April 28, 2014; decided May 1, 2014

Reported below, 108 AD3d 25.

Motion by Brewery Ommegang Ltd. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

[11 NE3d 194, 988 NYS2d 121]

RICHARD N. GOLDEN, Respondent, v CITIBANK, N.A., Appellant.

Argued March 25, 2014; decided May 6, 2014

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 7, 2012. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Queens County (Marguerite A. Grays, J.), which had denied, with leave to renew upon completion of disclosure, plaintiff's motion for summary judgment on his first cause of action, which was to compel payment on a cashier's check, and to sever that

cause of action; and (2) granted plaintiff's motion for summary judgment on the first cause of action and to sever that cause of action.

On December 29, 2009, defendant issued a cashier's check in the sum of \$300,000, payable to "Richard Golden as attorney." This check was deposited by plaintiff into his attorney escrow account at JP Morgan Chase Bank. Subsequently, defendant issued a stop payment order on the check, and Chase reversed the credit that had been posted to plaintiff's account. Plaintiff thereafter commenced the instant action, in which he moved for summary judgment on the first cause of action, which was to compel payment of the check, and to sever that cause of action.

Golden v Citibank, N.A., 100 AD3d 596, affirmed.

HEADNOTES

Bills, Notes and Checks — Cashier's Check — Stop Payment Order

1. When a bank has issued a cashier's check, it cannot stop payment, unless there is evidence of fraud, or the check is lost, stolen, or destroyed. To the extent *Gates v Manufacturers Hanover Trust Co./Capital Region* (98 AD2d 829 [3d Dept 1983]) holds otherwise, it was wrongly decided and should not be followed.

Bills, Notes and Checks — Cashier's Check — Compelling Payment

2. In an action to compel payment on a cashier's check, plaintiff demonstrated prima facie entitlement to judgment as a matter of law, and defendant, in opposition, failed to raise a triable issue of fact. A cashier's check—essentially, a check drawn by a bank on itself—is presumed to have been issued for value, and the issuance of such a check constitutes an acceptance by the issuing bank, which gives rise to an obligation to pay. When a bank has issued a cashier's check, it cannot stop payment, unless there is evidence of fraud, or the check is lost, stolen, or destroyed.

APPEARANCES OF COUNSEL

Zeichner Ellman & Krause LLP, New York City (*Barry J. Glickman* and *Bruce S. Goodman* of counsel), for appellant.

Richard N. Golden, Forest Hills, respondent pro se.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

[1] A cashier's check—essentially, a check drawn by a bank on itself—is presumed to have been issued for value, and the issuance of such a check constitutes an acceptance by the issuing bank, which gives rise to an obligation to pay (*see Dziurak v Chase Manhattan Bank, N. A.*, 44 NY2d 776, 777 [1978]; *Hart v*

North Fork Bank, 37 AD3d 414, 415 [2d Dept 2007]; *Matter of Bank of U.S.*, 243 App Div 287, 291 [1st Dept 1935]; *Bobrick v Second Natl. Bank of Hoboken*, 175 App Div 550, 552 [1st Dept 1916], *affd* 224 NY 637 [1918]; *Kaufman v Chase Manhattan Bank, N.A.*, 370 F Supp 276, 278 [SD NY 1973]). When a bank has issued a cashier's check, it cannot stop payment, "unless there is evidence of fraud, or the check is lost, stolen, or destroyed" (*Hart*, 37 AD3d at 415 [citations omitted]). To the extent *Gates v Manufacturers Hanover Trust Co./Capital Region* (98 AD2d 829 [3d Dept 1983]) holds otherwise, it was wrongly decided and should not be followed.

[2] Plaintiff demonstrated prima facie entitlement to judgment as a matter of law on his first cause of action, to compel payment on a cashier's check, and defendant, in opposition, failed to raise a triable issue of fact. Thus, the Appellate Division properly granted plaintiff's motion for summary judgment.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, with costs, in a memorandum.

[10 NE3d 188, 986 NYS2d 878]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAMES F. WEBB, Respondent.

Decided May 6, 2014

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered July 5, 2013. The Appellate Division modified, on the law, a judgment of the Genesee County Court (Robert C. Noonan, J.), which had convicted defendant, upon a jury verdict, of criminal contempt in the first degree and criminal contempt in the second degree (four counts). The modification consisted of reversing that part of the judgment convicting defendant of criminal contempt in the first degree and dismissing the first count of the indictment. The Appellate Division affirmed the judgment as modified.

Defendant's conviction arose from his violation of an order of protection directing him, among other things, to refrain from communicating by telephone with his former girlfriend, the mother of defendant's child. The Appellate Division concluded

that the evidence was legally insufficient to support the conviction of criminal contempt in the first degree. Even assuming that the evidence was legally sufficient to establish that defendant repeatedly made telephone calls to his ex-girlfriend, the evidence was legally insufficient to establish that he intended by those calls to harass, annoy, threaten or alarm her, with no purpose of legitimate communication. Rather, the only inference to be drawn from the evidence was that defendant made the calls with the intent to discuss issues of child support and visitation, not to harass, annoy, threaten or alarm his ex-girlfriend.

People v Webb, 108 AD3d 1064, affirmed.

HEADNOTE

Contempt — Criminal Contempt

In a prosecution arising out of defendant's violation of an order of protection by making telephone calls to his former girlfriend, the evidence, viewed in the light most favorable to the People, was legally insufficient to establish a conviction for criminal contempt in the first degree.

APPEARANCES OF COUNSEL

Lawrence Friedman, District Attorney, Batavia (*William G. Zickl* of counsel), for appellant.

Jeremy D. Schwartz, Buffalo, for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed. Viewing the evidence in the light most favorable to the People, the evidence was legally insufficient to establish a conviction for criminal contempt in the first degree.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

In the Matter of OMAN GUTIERREZ, Appellant, v BRIAN FISCHER, Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Submitted March 17, 2014; decided May 6, 2014

Reported below, 107 AD3d 1463.

Motion for reargument of motion for leave to appeal denied [see 22 NY3d 855 (2013)].

BARBARA KULIG HOCHMULLER, Appellant, v BELLWEST MANAGEMENT CORPORATION et al., Respondents.

Submitted March 10, 2014; decided May 6, 2014

Reported below, 111 AD3d 520.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JASIAH T.-V.S.J. HEART SHARE HUMAN SERVICES OF NEW YORK, Respondent; JOSHUA W., Appellant.

Submitted March 31, 2014; decided May 6, 2014

Reported below, 112 AD3d 717.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

K2 INVESTMENT GROUP, LLC, et al., Respondents-Appellants, v AMERICAN GUARANTEE & LIABILITY INSURANCE COMPANY, Appellant-Respondent.

Submitted March 31, 2014; decided May 6, 2014

Reported below, 91 AD3d 401.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 22 NY3d 578 (2014)].

Judge ABDUS-SALAAM taking no part.

LAS PALMERAS DE OSSINING RESTAURANT, INC., Appellant, v MIDWAY CENTER CORPORATION, Respondent.

Submitted March 17, 2014; decided May 6, 2014

Reported below, 107 AD3d 854.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

EFFRENY MARTINEZ et al., Respondents, v ALUBON, LTD., et al., Appellants.

Submitted March 17, 2014; decided May 6, 2014

Reported below, 111 AD3d 500.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
GUNTHER J. FLINN, Appellant.

Submitted March 31, 2014; decided May 6, 2014

Reported below, 98 AD3d 1262.

Motion for reargument denied [*see* 22 NY3d 599 (2014)].

ALEXANDER PEREIRA, Appellant, v CITY OF NEW YORK et al.,
Respondents.

Submitted March 17, 2014; decided May 6, 2014

Reported below, 113 AD3d 503.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth.*, 14 NY3d 748 [2010]).

PHH MORTGAGE CORPORATION, Respondent, v HENRY E. DAVIS
et al., Appellants, et al., Defendants. (And a Third-Party
Action.)

Submitted March 17, 2014; decided May 6, 2014

Reported below, 111 AD3d 1110.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of RICHARD SANTER, Respondent, v BOARD OF
EDUCATION OF EAST MEADOW UNION FREE SCHOOL DISTRICT,
Appellant.

Submitted November 18, 2013; decided May 6, 2014

Reported below, 101 AD3d 1026.

Motion to expand the record denied.

EKATERINA SCHOENEFELD, Respondent, v STATE OF NEW YORK et al., Defendants, and ERIC T. SCHNEIDERMAN, in His Official Capacity as Attorney General for the State of New York, et al., Appellants.

Decided May 6, 2014

See 748 F3d 464.

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

In the Matter of STATE OF NEW YORK, Respondent, v TIMOTHY BB., Appellant.

Submitted January 13, 2014; decided May 6, 2014

Reported below, 113 AD3d 18.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of VARTHOLOME K. TEKMITCHOV, Respondent. MUSIKA, LLC, Appellant; COMMISSIONER OF LABOR, Respondent.

Submitted March 3, 2014; decided May 6, 2014

Reported below, 110 AD3d 1301.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of GRIGORIY ZALTSMAN, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Submitted March 31, 2014; decided May 6, 2014

Reported below, 110 AD3d 571.

Motion for reargument of motion for leave to appeal denied [*see* 22 NY3d 861 (2014)].

In the Matter of BENJAMIN V.R.C., a Disbarred Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Decided May 8, 2014

Reported below, 2014 NY Slip Op 70291(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

COOPERSTOWN HOLSTEIN CORPORATION, Appellant, v TOWN OF MIDDLEFIELD, Respondent.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 106 AD3d 1170.

Motion by American Planning Association et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In re COUDERT BROTHERS LLP, Debtor. DEVELOPMENT SPECIALISTS, INC., Respondent-Appellant; K&L GATES LLP et al., Appellants-Respondents.

Submitted May 5, 2014; decided May 8, 2014

Motion by American Bar Association for leave to file a brief amicus curiae on consideration of the certified questions herein denied.

Judge SMITH taking no part.

ALLISON GAMMONS, Respondent, v CITY OF NEW YORK et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 109 AD3d 189.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and

the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

MARY HARRIS, Appellant, v GILBERT PITTS et al., Respondents, et al., Defendants. NORMAN DODD, Nonparty Appellant.

Submitted March 24, 2014; decided May 8, 2014

Reported below, 109 AD3d 790.

Motion, insofar as Norman Dodd seeks leave to appeal, dismissed upon the ground that he is not a party aggrieved (CPLR 5511); motion for leave to appeal otherwise denied.

HANNAH LIEBERMAN, Appellant, v ADAM LIEBERMAN, Respondent.

Submitted March 31, 2014; decided May 8, 2014

Reported below, 112 AD3d 583.

Motion for reargument of motion for leave to appeal denied [*see* 22 NY3d 1124 (2014)].

In the Matter of the Claim of DENISE MARTINEAU, Respondent, v LARRY ASHLINE et al., Doing Business as ASHLINE FARM, Appellants, et al., Respondent. WORKERS' COMPENSATION BOARD, Respondent.

Submitted March 31, 2014; decided May 8, 2014

Reported below, 114 AD3d 1009.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the Workers' Compensation Board determination denying the application for reconsideration and/or full Board review, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of NEW YORK STATEWIDE COALITION OF HISPANIC CHAMBERS OF COMMERCE et al., Respondents, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 110 AD3d 1.

Motion by Wilfredo Lopez et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

In the Matter of NEW YORK STATEWIDE COALITION OF HISPANIC CHAMBERS OF COMMERCE et al., Respondents, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 110 AD3d 1.

Motion by Gillian E. Metzger et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

In the Matter of NEW YORK STATEWIDE COALITION OF HISPANIC CHAMBERS OF COMMERCE et al., Respondents, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 110 AD3d 1.

Motion by National Association of County and City Health Officials et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

In the Matter of NEW YORK STATEWIDE COALITION OF HISPANIC CHAMBERS OF COMMERCE et al., Respondents, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 110 AD3d 1.

Motion by The Business Council of New York State, Inc. et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

Judge RIVERA taking no part.

In the Matter of NEW YORK STATEWIDE COALITION OF HISPANIC CHAMBERS OF COMMERCE et al., Respondents, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 110 AD3d 1.

Motion by Washington Legal Foundation et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

In the Matter of NEW YORK STATEWIDE COALITION OF HISPANIC CHAMBERS OF COMMERCE et al., Respondents, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 110 AD3d 1.

Motion by Maria del Carmen Arroyo et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

In the Matter of NEW YORK STATEWIDE COALITION OF HISPANIC CHAMBERS OF COMMERCE et al., Respondents, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 110 AD3d 1.

Motion by New York State Conference of the National Association for the Advancement of Colored People et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

Judge RIVERA taking no part.

In the Matter of NEW YORK STATEWIDE COALITION OF HISPANIC CHAMBERS OF COMMERCE et al., Respondents, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 110 AD3d 1.

Motion by The Chamber of Commerce of the United States of America et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

Judge RIVERA taking no part.

In the Matter of NEW YORK STATEWIDE COALITION OF HISPANIC CHAMBERS OF COMMERCE et al., Respondents, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 110 AD3d 1.

Motion by Paul A. Diller et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

In the Matter of NEW YORK STATEWIDE COALITION OF HISPANIC CHAMBERS OF COMMERCE et al., Respondents, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 110 AD3d 1.

Motion by National Alliance for Hispanic Health et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge RIVERA taking no part.

In the Matter of NEW YORK STATEWIDE COALITION OF HISPANIC CHAMBERS OF COMMERCE et al., Respondents, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE et al., Appellants.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 110 AD3d 1.

Motion by Eric Lane for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

Judge RIVERA taking no part.

MICHAEL NICHOLSON et al., Appellants, v INCORPORATED VILLAGE OF GARDEN CITY et al., Respondents.

Decided May 8, 2014

Reported below, 112 AD3d 893.

Appeal from the December 2013 Appellate Division order dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved. Appeal from the March 2014 judgment dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the judgment is not the final paper in this action (*see* CPLR 5611).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent-Appellant,
v VINCENT BARONE, Appellant-Respondent.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent-Appellant,
v V. REDDY KANCHARLA, Appellant-Respondent.

Submitted June 10, 2013; decided May 8, 2014

Reported below, 101 AD3d 585.

Motion to dismiss the People's cross appeals denied.

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MARK
GARRETT, Respondent.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 106 AD3d 929.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PHILLIP
NIEVES, Appellant.

Decided May 8, 2014

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies from the order of the Supreme Court entered in this criminal proceeding (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAUL
THOMPSON, Appellant.

Submitted April 14, 2014; decided May 8, 2014

Reported below, 81 AD3d 670.

Motion for reargument denied [*see* 22 NY3d 687 (2014)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. WALTER ROACHE,
Appellant, v DONALD SAWYER, Executive Director of Central
New York Psychiatric Center, Respondent.

Submitted April 7, 2014; decided May 8, 2014

Reported below, 112 AD3d 1386; 109 AD3d 1223.

Motion, insofar as it seeks leave to appeal from the Appellate Division order affirming the dismissal of the habeas corpus proceeding, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument, dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CARLOS RODRIGUEZ, Appellant, v JOSEPH T. SMITH, as Superintendent of Shawangunk Correctional Facility, Respondent.

Submitted March 31, 2014; decided May 8, 2014

Reported below, 114 AD3d 976.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

NANCY PEREZ et al., Respondents, v JANE M. FITZGERALD, D.C., et al., Appellants.

Submitted March 24, 2014; decided May 8, 2014

Reported below, 115 AD3d 177.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth.*, 14 NY3d 748 [2010]).

RUTH M. POLLACK, Appellant, v ARTHUR J. COOPERMAN et al., Respondents.

Decided May 8, 2014

Reported below, 109 AD3d 973.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge LIPPMAN and Judge ABDUS-SALAAM taking no part.

In the Matter of RUTH MARIE POLLACK, Appellant, v MATTHEW G. KIERNAN, Clerk of the Court, et al., Respondents.

Decided May 8, 2014

Reported below, 105 AD3d 518.

Appeal, insofar as taken from the April 2013 Appellate Division order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal, insofar as taken from the remaining five orders, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

Chief Judge LIPPMAN and Judge ABDUS-SALAAM taking no part.

In the Matter of the Claim of MARK A. STERNE, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted April 7, 2014; decided May 8, 2014

Reported below, 104 AD3d 984.

Motion for reconsideration of this Court's February 13, 2014 dismissal order denied [*see* 22 NY3d 1103 (2014)].

In the Matter of THELEN LLP.

YANN GERON, as Chapter 7 Trustee of the Estate of THELEN LLP, Appellant, v SEYFARTH SHAW LLP, Respondent.

In re COUDERT BROTHERS LLP, Debtor. DEVELOPMENT SPECIALISTS, INC., Respondent-Appellant; K&L GATES LLP et al., Appellants-Respondents.

Submitted May 5, 2014; decided May 8, 2014

See 736 F3d 213.

Motion by New York State Bar Association et al. for leave to file a brief amici curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of Thelen LLP.

YANN GERON, as Chapter 7 Trustee of the Estate of THELEN LLP, Appellant, v SEYFARTH SHAW LLP, Respondent.

Submitted May 5, 2014; decided May 8, 2014

See 736 F3d 213.

Motion by Liquidating Trustee for the Dewey & LeBoeuf Liquidation Trust et al. for leave to appear amici curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of THELEN LLP.

YANN GERON, as Chapter 7 Trustee of the Estate of THELEN LLP, Appellant, v SEYFARTH SHAW LLP, Respondent.

In re COUDERT BROTHERS LLP, Debtor. DEVELOPMENT SPECIALISTS, INC., Respondent-Appellant; K&L GATES LLP et al., Appellants-Respondents.

Submitted May 5, 2014; decided May 8, 2014

See 736 F3d 213.

Motion by Attorneys' Liability Assurance Society, Inc., A Risk Retention Group for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of MARK S. WALLACH, as Chapter 7 Trustee for NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN et al., Respondents.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 108 AD3d 25.

Motion by Community Environmental Defense Council, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of MARK S. WALLACH, as Chapter 7 Trustee for
NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN
et al., Respondents.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 108 AD3d 25.

Motion by Barbara Lifton for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of MARK S. WALLACH, as Chapter 7 Trustee for
NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN
et al., Respondents.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 108 AD3d 25.

Motion by American Planning Association et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of MARK S. WALLACH, as Chapter 7 Trustee for
NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN
et al., Respondents.

Submitted May 5, 2014; decided May 8, 2014

Reported below, 108 AD3d 25.

Motion by Dryden Resources Awareness Coalition for leave to file a brief amicus curiae on the appeal herein granted and the

proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of UDI EHUD YOHANAN, Appellant, v JOHN B. KING,
as Commissioner of Education of the State of New York, et
al., Respondents.

Decided May 8, 2014

Reported below, 113 AD3d 971.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ARC ON 4TH STREET INC., Respondent, v TONY
QUESADA, Appellant.

Submitted April 7, 2014; decided May 13, 2014

Reported below, 112 AD3d 431.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in Civil Court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

BENJAMIN J. ASHMORE, SR., Appellant, v WILMA COHEN LEWIS,
Respondent.

Decided May 13, 2014

Reported below, 112 AD3d 508.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge LIPPMAN taking no part.

BUILDING SERVICE LOCAL 32B-J PENSION FUND et al., Respondents, v 101 LIMITED PARTNERSHIP, Appellant.

Decided May 13, 2014

Reported below, 115 AD3d 469.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JUNIOR COLLINS, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, Respondent.

Submitted April 7, 2014; decided May 13, 2014

Reported below, 109 AD3d 1040; 2013 NY Slip Op 94850(U).

Motion, insofar as it seeks leave to appeal from the September 2013 Appellate Division judgment, dismissed as untimely; motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DANIEL A. EHRLING, an Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Decided May 13, 2014

Reported below, 113 AD3d 1019.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

ALEKSEY GURYEV, Respondent, v GREGORY TOMCHINSKY et al., Appellants, and 200 RIVERSIDE BOULEVARD AT TRUMP PLACE et al., Respondents.

Submitted March 31, 2014; decided May 13, 2014

Reported below, 114 AD3d 723.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROBERT JONES, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, Respondent.

Submitted April 14, 2014; decided May 13, 2014

Reported below, 110 AD3d 1295; 2014 NY Slip Op 63948(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the judgment and order appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of DAWN M. KAMINSKI, Appellant, v DONNA PIP-PEN, Respondent.

Submitted March 24, 2014; decided May 13, 2014

Reported below, 2014 NY Slip Op 65799(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of THOMAS F. LIOTTI (Admitted as THOMAS FRANCIS LIOTTI), an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted April 14, 2014; decided May 13, 2014

Reported below, 111 AD3d 98.

Motion for reargument of motion for leave to appeal denied [see 22 NY3d 862 (2014)].

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted April 7, 2014; decided May 13, 2014

Motion for reconsideration of this Court's February 25, 2014 dismissal order denied [see 22 NY3d 1134 (2014)].

MANUEL MARTINEZ, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 119899.)

Submitted April 7, 2014; decided May 13, 2014

Reported below, 111 AD3d 1445, 1446.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of JAMES P. MURPHY, Appellant, v CITY OF NEW YORK, Respondent.

Submitted March 31, 2014; decided May 13, 2014

Reported below, 113 AD3d 618.

On the Court's own motion, appeal, insofar as taken from that part of the Appellate Division order dismissing an appeal from a decision of Supreme Court, dismissed, without costs, upon the ground that no appeal lies from an Appellate Division order dismissing an appeal from a decision (*see* CPLR 5601; *Matter of Mixon v Clark*, 3 NY3d 688 [2004]); appeal otherwise dismissed, without costs, upon the ground that the remainder of the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution. Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order dismissing an appeal from a decision of Supreme Court, dismissed upon the ground that no motion for leave to appeal lies from an Appellate Division order dismissing an appeal from a decision (*see* CPLR 5602; *Matter of Mixon v Clark*, 3 NY3d 688 [2004]); motion, insofar as it seeks leave to appeal from the remainder of the Appellate Division order, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution.

CHRISTOPHER PEAT, Respondent, v FORDHAM HILL OWNERS CORPORATION, Appellant, and FORDHAM HILL LEASING COMPANY, Respondent, et al., Defendants. (And Third-Party Actions.)

Submitted April 14, 2014; decided May 13, 2014

Reported below, 110 AD3d 643.

Motion by DRI—The Voice of the Defense Bar for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

CHRISTOPHER PEAT, Respondent, v FORDHAM HILL OWNERS CORPORATION, Appellant, and FORDHAM HILL LEASING COMPANY, Respondent, et al., Defendants. (And Third-Party Actions.)

Submitted April 14, 2014; decided May 13, 2014

Reported below, 110 AD3d 643.

Motion by the Defense Association of New York, Inc. for leave to file an affirmation amicus curiae on the motion for leave to appeal herein granted and the affirmation is accepted as filed.

CHRISTOPHER PEAT, Respondent, v FORDHAM HILL OWNERS CORPORATION, Appellant, and FORDHAM HILL LEASING COMPANY, Respondent, et al., Defendants. (And Third-Party Actions.)

Submitted April 14, 2014; decided May 13, 2014

Reported below, 110 AD3d 643.

Motion by Law Reform Alliance of New York et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ROBERT JONES, Appellant, v DANIEL F. MARTUSCELLO, as Superintendent of Coxsackie Correctional Facility, Respondent.

Submitted April 14, 2014; decided May 13, 2014

Reported below, 111 AD3d 1184; 2014 NY Slip Op 65013(U).

On the Court's own motion, appeal, insofar as taken from the November 2013 Appellate Division order, dismissed, without costs, upon the ground that no substantial constitutional question is directly involved; appeal, insofar as taken from the February 2014 Appellate Division order, dismissed, without costs, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of MARY VERONICA SANTIAGO-MONTEVERDE,
Debtor.

MARY VERONICA SANTIAGO-MONTEVERDE, Appellant, v JOHN S.
PEREIRA, Chapter 7 Trustee, Respondent.

Decided May 13, 2014

See 747 F3d 153.

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

PHILIP SELDON, Appellant, v CHEYENNE CROW et al., Respondents.

Submitted April 7, 2014; decided May 13, 2014

Reported below, 112 AD3d 472; 2014 NY Slip Op 64496(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the Appellate Division order of affirmance, denied.

In the Matter of SETH G. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; WILLIAM S., Appellant.

Submitted April 7, 2014; decided May 13, 2014

Reported below, 107 AD3d 711.

Motion for leave to appeal dismissed as untimely. The prior motion made at the Appellate Division for leave to appeal was untimely (*see* Arthur Karger, Powers of the New York Court of Appeals § 12:3 at 436-437 [3d ed rev 2005]).

KEISHMA SMALLWOOD et al., Appellants, v MATTHEW M. LUPOLI et al., Respondents. (And a Third-Party Action.)

Submitted February 10, 2014; decided May 13, 2014

Reported below, 107 AD3d 782.

Motion, insofar as it seeks leave to appeal against defendants Matthew M. Lupoli, Albert Basal, Fred Basal, Tony Zadeh, Plaza Homes, LLC, Universal Development, LLC, and George J. Brucker, dismissed upon the ground that as to those defendants the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of JEFFREY B. WAGNER, Appellant, v BARBARA J. FIALA, as Commissioner of the New York State Department of Motor Vehicles, et al., Respondents.

Submitted April 21, 2014; decided May 13, 2014

Reported below, 113 AD3d 694.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of CARLTON WALKER, Appellant, v NEW YORK STATE COMMISSION ON JUDICIAL CONDUCT et al., Respondents.

Decided May 13, 2014

Reported below, 42 Misc 3d 1204(A).

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, First Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(May 1, 2014 through May 31, 2014)

Amalgamated Bank v Helmsley-Spear, Inc.	1st Dept: 109 AD3d 418	5/29/14
People v Jin Cheng Lin	2d Dept: 105 AD3d 761	5/6/14

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2014 through May 31, 2014)

People v Aguayo	2d Dept: 113 AD3d 784 (Kings)	denied 5/19/14 (Read, J.)
People v Aiken	App Div, 3d Dept: 2014 NY Slip Op 66415(U) (Ulster)	dismissed 5/13/14 (Smith, J.)
People v Albertorio	1st Dept: 115 AD3d 596 (NY)	denied 5/16/14 (Smith, J.)
People v Ali O.	4th Dept: 115 AD3d 1353 (Erie)	denied 5/28/14 (Pigott, J.)
People v Alnutt	App Div, 3d Dept: 2013 NY Slip Op 94845(U) (Fulton)	dismissed 5/9/14 (Read, J.)
People v Anderson	4th Dept: 114 AD3d 1146 (Genesee)	denied 5/2/14 (Grafteo, J.)
People v Aranda	4th Dept: 111 AD3d 1298 (Monroe)	denied 5/19/14 (Abdus-Salaam, J.)
People v Arroyo	4th Dept: 111 AD3d 1299 (Erie)	denied 5/8/14 (Rivera, J.)
People v Austin	3d Dept: 115 AD3d 1063 (Albany)	denied 5/30/14 (Grafteo, J.)
People v Barker (Derick)	4th Dept: 113 AD3d 1111 (Genesee)	denied 5/6/14 (Rivera, J.) (Appeal No. 1)
People v Barker (Derick)	4th Dept: 113 AD3d 1114 (Genesee)	denied 5/6/14 (Rivera, J.) (Appeal No. 2)
People v Barksdale	4th Dept: 114 AD3d 1170 (Monroe)	denied 5/19/14 (Read, J.)
People v Bassett	4th Dept: 112 AD3d 1321 (Onondaga)	denied 5/19/14 (Read, J.)
People v Batista	2d Dept: 114 AD3d 696 (Queens)	denied 5/6/14 (Lippman, Ch. J.)
People v Baxter	2d Dept: 102 AD3d 805 (Nassau)	denied 5/15/14 (Rivera, J.)
People v Beckford	2d Dept: 112 AD3d 646 (Queens)	denied 5/8/14 (Rivera, J.)
People v Bennett	2d Dept: 115 AD3d 973 (Suffolk)	denied 5/16/14 (Smith, J.)
People v Bishop	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 41 Misc 3d 144(A) (Kings)	denied 5/29/14 (Rivera, J.)
People v Board	1st Dept: 114 AD3d 585 (Bronx)	denied 5/30/14 (Grafteo, J.)
People v Boyd	4th Dept: 109 AD3d 1217 (Oneida)	denied 5/19/14 (Abdus-Salaam, J.)
People v Boyden (Daniel)	4th Dept: 112 AD3d 1372 (Cayuga)	denied 5/12/14 (Pigott, J.) (Appeal No. 1)

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People v Boyden (Daniel)	4th Dept: 112 AD3d 1373 (Cayuga)	denied 5/12/14 (Pigott, J.) (Appeal No. 2)
People v Boyette	App Term, 2d Dept, 9th & 10th Jud Dists: 41 Misc 3d 48 (Nassau)	denied 5/19/14 (Abdus-Salaam, J.)
People v Brand	4th Dept: 112 AD3d 1320 (Erie)	denied 5/6/14 (Rivera, J.)
People v Bridges	2d Dept: 114 AD3d 960 (Kings)	denied 5/12/14 (Smith, J.)
People v Brookins	2d Dept: 115 AD3d 870 (Kings)	denied 5/30/14 (Grafteo, J.)
People v Brown (Jarrod)	2d Dept: 115 AD3d 155 (Queens)	granted 5/9/14 (Grafteo, J.)
People v Brown (Raymond)	App Div, 1st Dept: 2013 NY Slip Op 85459(U) (Bronx)	dismissed 5/6/14 (Read, J.)
People v Burkes	App Div, 1st Dept: 2014 NY Slip Op 66118(U) (NY)	dismissed 5/16/14 (Lippman, Ch. J.)
People v Butler	3d Dept: 111 AD3d 1024 (Ulster)	denied 5/8/14 (Rivera, J.)
People v Cahill	4th Dept: 112 AD3d 1384 (Onondaga)	denied 5/6/14 (Rivera, J.)
People v Cajigas	1st Dept: 115 AD3d 505 (NY)	denied 5/14/14 (Smith, J.)
People v Caldwell	2d Dept: 115 AD3d 870 (Queens)	denied 5/21/14 (Smith, J.)
People v Card	3d Dept: 115 AD3d 1007 (Chemung)	denied 5/30/14 (Grafteo, J.)
People v Carrington	App Div, 1st Dept: 2013 NY Slip Op 89279(U) (NY)	denied 5/8/14 (Rivera, J.)
People v Case	2d Dept: 113 AD3d 872 (Kings)	denied 5/8/14 (Rivera, J.)
People v Chance	3d Dept: 114 AD3d 1001 (Broome)	denied 5/9/14 (Read, J.)
People v Cochran	3d Dept: 112 AD3d 997 (Sullivan)	denied 5/6/14 (Rivera, J.)
People v Coleman	2d Dept: 116 AD3d 708 (Kings)	denied 5/28/14 (Pigott, J.)
People v Conceicao	App Term, 1st Dept: 33 Misc 3d 132(A) (Bronx)	granted upon renewal 5/21/14 (Lippman, Ch. J.)
People v Connolly	4th Dept: 114 AD3d 1231 (Genesee)	denied 5/16/14 (Pigott, J.)
People v Cordell	1st Dept: 115 AD3d 623 (NY)	denied 5/23/14 (Grafteo, J.)
People v Cung (Van)	4th Dept: 112 AD3d 1307 (Erie)	denied 5/6/14 (Rivera, J.) (Appeal No. 1)
People v Cung (Van)	4th Dept: 112 AD3d 1310 (Erie)	denied 5/6/14 (Rivera, J.) (Appeal No. 2)

People v Davis	3d Dept: 114 AD3d 1003 (Columbia)	denied 5/6/14 (Rivera, J.)
People v Delmas	2d Dept: 115 AD3d 758 (Kings)	denied 5/20/14 (Pigott, J.)
People v Delvalle	1st Dept: 114 AD3d 612 (NY)	denied 5/21/14 (Smith, J.)
People v DeMolfetto	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 42 Misc 3d 128(A) (Richmond)	denied 5/8/14 (Rivera, J.)
People v Dias	2d Dept: 115 AD3d 759 (Queens)	denied 5/16/14 (Pigott, J.)
People v Diaz	1st Dept: 112 AD3d 553 (NY)	denied 5/6/14 (Rivera, J.)
People v Dixon	4th Dept: 113 AD3d 1104 (Erie)	denied 5/6/14 (Rivera, J.)
People v Duggins	3d Dept: 114 AD3d 1001 (Broome)	denied 5/9/14 (Read, J.)
People v Durant	4th Dept: 112 AD3d 1366 (Monroe)	granted 5/12/14 (Pigott, J.)
People v Edmunson	2d Dept: 109 AD3d 621 (Rockland)	denied 5/19/14 (Abdus-Salaam, J.)
People v Ellison	1st Dept: 112 AD3d 437 (NY)	denied 5/8/14 (Rivera, J.)
People v Febles	1st Dept: 112 AD3d 535 (Bronx)	denied 5/19/14 (Read, J.)
People v Feldman	1st Dept: 114 AD3d 603 (NY)	denied 5/20/14 (Pigott, J.)
People v Fletcher	2d Dept: 115 AD3d 675 (Queens)	denied 5/12/14 (Smith, J.)
People v Flowers	2d Dept: 102 AD3d 885 (Kings)	denied 5/8/14 (Rivera, J.)
People v Ford (Eric)	4th Dept: 114 AD3d 1221 (Monroe)	denied 5/9/14 (Read, J.)
People v Ford (Tyrell)	4th Dept: 114 AD3d 1273 (Erie)	denied 5/7/14 (Lippman, Ch. J.)
People v Franco	4th Dept: 114 AD3d 1152 (Monroe)	denied 5/6/14 (Rivera, J.)
People v Fuhrtz	2d Dept: 115 AD3d 760 (Queens)	denied 5/14/14 (Smith, J.)
People v Fuller	1st Dept: 111 AD3d 547 (NY)	denied 5/20/14 (Pigott, J.)
People v Garcia	1st Dept: 115 AD3d 415 (NY)	denied 5/21/14 (Smith, J.)
People v Gardner	1st Dept: 114 AD3d 499 (NY)	denied 5/2/14 (Graffeo, J.)
People v Geroyianis	4th Dept: 111 AD3d 1366 (Erie)	denied reconsideration 5/5/14 (Lippman, Ch. J.)
People v Gilbert	1st Dept: 114 AD3d 474 (NY)	denied 5/16/14 (Pigott, J.)

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People v Gomez	2d Dept: 114 AD3d 701 (Westchester)	denied 5/14/14 (Pigott, J.)
People v Gould	App Div, 1st Dept: 2014 NY Slip Op 63980(U) (NY)	denied 5/20/14 (Pigott, J.)
People v Graham	4th Dept: 107 AD3d 1421 (Onondaga)	granted 5/28/14 (Lippman, Ch. J.)
People v Grant	App Div, 1st Dept: 2013 NY Slip Op 84743(U) (NY)	dismissed 5/9/14 (Read, J.)
People v Gray	1st Dept: 113 AD3d 561 (NY)	denied 5/6/14 (Rivera, J.)
People v Griffin	App Div, 2d Dept: 2014 NY Slip Op 65345(U) (Orange)	dismissed 5/29/14 (Rivera, J.)
People v Grimes	1st Dept: 114 AD3d 434 (NY)	denied 5/6/14 (Rivera, J.)
People v Gunter	1st Dept: 109 AD3d 732 (Bronx)	denied 5/19/14 (Abdus-Salaam, J.)
People v Hall	App Div, 3d Dept: 2013 NY Slip Op 93280(U) (Sullivan)	denied reconsideration 5/14/14 (Pigott, J.)
People v Hamilton	1st Dept: 114 AD3d 590 (NY)	denied 5/20/14 (Pigott, J.)
People v Harris	4th Dept: 111 AD3d 1365 (Monroe)	denied 5/6/14 (Rivera, J.)
People v Hart	4th Dept: 114 AD3d 1273 (Onondaga)	denied 5/12/14 (Pigott, J.)
People v Hawley	2d Dept: 112 AD3d 968 (Kings)	denied 5/6/14 (Rivera, J.)
People v Henderson	3d Dept: 110 AD3d 1353 (Warren)	granted 5/12/14 (Smith, J.)
People v Hibbert	4th Dept: 114 AD3d 1134 (Monroe)	denied 5/12/14 (Pigott, J.)
People v Hoke	2d Dept: 111 AD3d 959 (Kings)	denied 5/8/14 (Rivera, J.)
People v Holloway	2d Dept: 113 AD3d 876 (Suffolk)	denied 5/8/14 (Rivera, J.)
People v Houghton	App Div, 1st Dept: 2014 NY Slip Op 63121(U) (NY)	withdrawn 5/30/14 (Grafteo, J.)
People v Hyson	4th Dept: 111 AD3d 1387 (Monroe)	denied 5/8/14 (Rivera, J.)
People v Iacono	App Term, 2d Dept, 9th & 10th Jud Dists: 42 Misc 3d 140(A) (Nassau)	denied 5/14/14 (Smith, J.)
People v Jackson (Constantine)	4th Dept: 112 AD3d 1384 (Onondaga)	denied reconsideration 5/2/14 (Lippman, Ch. J.)
People v Jackson (Jermaine)	1st Dept: 113 AD3d 549 (NY)	denied 5/12/14 (Read, J.)
People v Jackson (Ronald)	App Div, 1st Dept: 2014 NY Slip Op 65637(U) (NY)	dismissed 5/28/14 (Lippman, Ch. J.)

People v Jackson (Tyrone)	App Div, 1st Dept: 2013 NY Slip Op 95407(U) (NY)	denied 5/2/14 (Grafteo, J.)
People v Jamal H.	4th Dept: 109 AD3d 1087 (Monroe)	denied 5/29/14 (Rivera, J.) (Appeal No. 1)
People v Jamal H.	4th Dept: 109 AD3d 1088 (Monroe)	denied 5/29/14 (Rivera, J.) (Appeal No. 2)
People v Johnson	2d Dept: 115 AD3d 983 (Orange)	denied 5/21/14 (Lippman, Ch. J.)
People v Jones (Bruce)	4th Dept: 111 AD3d 1360 (Monroe)	denied 5/6/14 (Rivera, J.)
People v Jones (Jamie)	1st Dept: 115 AD3d 601 (NY)	denied 5/28/14 (Pigott, J.)
People v Jones (Jetone)	4th Dept: 112 AD3d 1292 (Erie)	denied reconsideration 5/16/14 (Smith, J.)
People v Jones (Lamont)	1st Dept: 115 AD3d 601 (NY)	denied 5/28/14 (Pigott, J.)
People v Jones (Rivera)	1st Dept: 116 AD3d 445 (NY)	denied 5/30/14 (Grafteo, J.)
People v Karnatz (Joseph)	App Div, 4th Dept: 2013 NY Slip Op 92520(U) (Niagara)	dismissed 5/14/14 (Pigott, J.)
People v Karnatz (Joseph)	App Div, 4th Dept: 2014 NY Slip Op 61058(U) (Niagara)	dismissed 5/14/14 (Pigott, J.)
People v Karnatz (Joseph)	App Div, 4th Dept, 1/28/14 (Niagara)	dismissed 5/14/14 (Pigott, J.)
People v Kinalis	2d Dept: 112 AD3d 739 (Nassau)	denied 5/6/14 (Rivera, J.)
People v Kirzoncic	2d Dept: 112 AD3d 651 (Dutchess)	denied 5/26/14 (Read, J.)
People v Lafrem	1st Dept: 115 AD3d 510 (NY)	denied 5/6/14 (Lippman, Ch. J.)
People v Lee	App Div, 4th Dept, 12/11/13 (Erie)	dismissed 5/8/14 (Rivera, J.)
People v Leggett	2d Dept: 107 AD3d 741 (Kings)	denied 5/16/14 (Lippman, Ch. J.)
People v Leshore	2d Dept: 106 AD3d 836 (Nassau)	denied 5/29/14 (Rivera, J.)
People v Levon	App Div, 1st Dept: 2013 NY Slip Op 94341(U) (NY)	denied 5/8/14 (Rivera, J.)
People v Lopez (Keith)	1st Dept: 115 AD3d 625 (NY)	denied 5/30/14 (Grafteo, J.)
People v Lopez (Luis)	2d Dept: 109 AD3d 1007 (Westchester)	denied 5/19/14 (Abdus-Salaam, J.)
People v Mahoney	1st Dept: 112 AD3d 556 (NY)	denied 5/19/14 (Read, J.)
People v Martin	4th Dept: 114 AD3d 1154 (Onondaga)	denied 5/2/14 (Grafteo, J.)

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People v Maxwell	2d Dept: 113 AD3d 636 (Westchester)	denied 5/6/14 (Rivera, J.)
People v McClain	4th Dept: 112 AD3d 1334 (Erie)	denied 5/16/14 (Lippman, Ch. J.)
People v McDonald	4th Dept: 114 AD3d 1281 (Monroe)	denied 5/14/14 (Pigott, J.)
People v McKinney	4th Dept: 114 AD3d 1225 (Onondaga)	denied 5/14/14 (Smith, J.)
People v McLawrence	2d Dept: 114 AD3d 964 (Kings)	denied 5/2/14 (Grafteo, J.)
People v McMillan	2d Dept: 112 AD3d 970 (Kings)	denied 5/6/14 (Rivera, J.)
People v McNair	2d Dept: 114 AD3d 881 (Westchester)	denied 5/7/14 (Lippman, Ch. J.)
People v Meyes	1st Dept: 112 AD3d 516 (NY)	denied 5/8/14 (Grafteo, J.)
People v Midgette	1st Dept: 115 AD3d 603 (NY)	denied 5/30/14 (Grafteo, J.)
People v Miller	2d Dept: 109 AD3d 842 (Queens)	denied 5/6/14 (Rivera, J.)
People v Missouri	App Term, 2d Dept, 9th & 10th Jud Dists: 43 Misc 3d 128(A) (Nassau)	denied 5/21/14 (Smith, J.)
People v Mitchell (Bobby)	1st Dept: 115 AD3d 465 (NY)	denied 5/28/14 (Pigott, J.)
People v Mitchell (William)	App Div, 2d Dept: 2014 NY Slip Op 67929(U) (Suffolk)	dismissed 5/21/14 (Smith, J.)
People v Mohabir	2d Dept: 111 AD3d 851 (Queens)	denied 5/12/14 (Pigott, J.)
People v Mohamud	4th Dept: 115 AD3d 1227 (Erie)	denied 5/30/14 (Grafteo, J.)
People v Monaghan	4th Dept: 101 AD3d 1686 (Jefferson)	denied 5/16/14 (Lippman, Ch. J.)
People v Montanye	2d Dept: 112 AD3d 971 (Orange)	denied 5/6/14 (Rivera, J.)
People v Morales	1st Dept: 113 AD3d 559 (Bronx)	denied 5/6/14 (Rivera, J.)
People v Morey	3d Dept: 110 AD3d 1378 (Albany)	denied 5/14/14 (Pigott, J.)
People v Muniz	App Div, 3d Dept: 2013 NY Slip Op 71914(U) (Chemung)	denied reconsideration 5/6/14 (Rivera, J.)
People v Murray	App Term, 2d Dept, 9th & 10th Jud Dists: 42 Misc 3d 140(A) (Orange)	denied 5/16/14 (Pigott, J.)
People v Myers	App Div, 3d Dept: 2014 NY Slip Op 61965(U) (Greene)	denied reconsideration 5/28/14 (Lippman, Ch. J.)
People v Nailor	App Div, 3d Dept: 2014 NY Slip Op 65737(U) (Warren)	denied 5/14/14 (Pigott, J.)
People v Nance	4th Dept: 114 AD3d 1225 (Erie)	denied 5/12/14 (Smith, J.)

People v Nanton	2d Dept: 116 AD3d 715 (Queens)	denied 5/30/14 (Grafteo, J.)
People v Nathan	4th Dept: 108 AD3d 1077 (Monroe)	denied 5/8/14 (Rivera, J.)
People v Nesmith	1st Dept: 116 AD3d 412 (NY)	denied 5/27/14 (Smith, J.)
People v Norcutt	4th Dept: 115 AD3d 1306 (Onondaga)	denied 5/27/14 (Smith, J.)
People v Nova	1st Dept: 116 AD3d 445 (NY)	denied 5/30/14 (Grafteo, J.)
People v Ocasio	App Div, 1st Dept: 2014 NY Slip Op 64207(U) (Bronx)	denied 5/27/14 (Pigott, J.)
People v O'Halloran	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 40 Misc 3d 133(A) (Kings)	denied 5/9/14 (Read, J.)
People v Olson	App Term, 2d Dept, 9th & 10th Jud Dists: 42 Misc 3d 128(A) (Orange)	denied 5/6/14 (Rivera, J.)
People v Ortiz	1st Dept: 114 AD3d 621 (NY)	denied 5/30/14 (Grafteo, J.)
People v Ovalle	2d Dept: 112 AD3d 971 (Suffolk)	denied 5/6/14 (Rivera, J.)
People v Pacheco	1st Dept: 112 AD3d 428 (NY)	denied 5/8/14 (Rivera, J.)
People v Page	3d Dept: 115 AD3d 1067 (Schenectady)	dismissed 5/12/14 (Read, J.)
People v Palmer	App Term, 2d Dept, 9th & 10th Jud Dists: 40 Misc 3d 141(A) (Westchester)	denied 5/16/14 (Lippman, Ch. J.)
People v Pantan	1st Dept: 114 AD3d 450 (Bronx)	denied 5/2/14 (Grafteo, J.)
People v Paulet	1st Dept: 112 AD3d 513 (NY)	denied 5/12/14 (Read, J.)
People v Pelzer	1st Dept: 115 AD3d 573 (NY)	denied 5/21/14 (Smith, J.)
People v Pemberton	1st Dept: 114 AD3d 608 (NY)	denied 5/12/14 (Smith, J.)
People v Pender	App Div, 2d Dept: 2014 NY Slip Op 61285(U) (Kings)	dismissed 5/19/14 (Read, J.)
People v Perkins	2d Dept: 116 AD3d 716 (Kings)	denied 5/28/14 (Pigott, J.)
People v Peterson (Anthony)	App Div, 1st Dept: 2013 NY Slip Op 93894(U) (NY)	denied 5/12/14 (Smith, J.)
People v Peterson (Shawn)	2d Dept: 110 AD3d 1103 (Nassau)	denied 5/19/14 (Abdus-Salaam, J.)
People v Phillip B.	2d Dept: 111 AD3d 649 (Westchester)	denied reconsideration 5/30/14 (Grafteo, J.)
People v Pitre	2d Dept: 108 AD3d 643 (Kings)	denied 5/8/14 (Rivera, J.)

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People v Pleasant	App Div, 1st Dept: 2013 NY Slip Op 86821(U) (NY)	denied reconsideration 5/6/14 (Read, J.)
People v Pokuwaah	2d Dept: 114 AD3d 967 (Queens)	denied 5/22/14 (Pigott, J.)
People v Powell	4th Dept: 114 AD3d 1131 (Niagara)	denied 5/14/14 (Pigott, J.)
People v Pratt	App Div, 1st Dept: 2013 NY Slip Op 94341(U) (NY)	denied 5/8/14 (Rivera, J.)
People v Pressley	2d Dept: 116 AD3d 794 (Kings)	denied 5/23/14 (Grafteo, J.)
People v Quiles	2d Dept: 115 AD3d 680 (Queens)	denied 5/8/14 (Lippman, Ch. J.)
People v Ramos	1st Dept: 113 AD3d 543 (Bronx)	denied 5/6/14 (Lippman, Ch. J.)
People v Ray	1st Dept: 114 AD3d 624 (NY)	denied 5/16/14 (Lippman, Ch. J.)
People v Reed	2d Dept: 112 AD3d 972 (Queens)	denied 5/12/14 (Read, J.)
People v Rhodes	2d Dept: 115 AD3d 681 (Queens)	denied 5/16/14 (Smith, J.)
People v Richardson	1st Dept: 114 AD3d 502 (Bronx)	denied 5/7/14 (Lippman, Ch. J.)
People v Rivera	1st Dept: 115 AD3d 532 (NY)	denied 5/5/14 (Lippman, Ch. J.)
People v Rivers	1st Dept: 113 AD3d 567 (NY)	denied 5/8/14 (Rivera, J.)
People v Roberts	4th Dept: 111 AD3d 1308 (Erie)	denied 5/12/14 (Read, J.)
People v Rodriguez (Nilton)	1st Dept: 115 AD3d 580 (NY)	denied 5/27/14 (Smith, J.)
People v Rodriguez (Radhames)	1st Dept: 113 AD3d 553 (NY)	denied 5/12/14 (Pigott, J.)
People v Rosario	App Div, 1st Dept: 2014 NY Slip Op 66337(U) (Bronx)	denied* 5/30/14 (Grafteo, J.)
People v Sain	2d Dept: 111 AD3d 964 (Westchester)	denied 5/6/14 (Rivera, J.)
People v Sanders	4th Dept: 114 AD3d 1260 (Monroe)	denied 5/30/14 (Grafteo, J.)
People v Seignious	2d Dept: 114 AD3d 883 (Suffolk)	denied 5/12/14 (Pigott, J.)
People v Severino	App Div, 1st Dept: 2013 NY Slip Op 91700(U) (NY)	denied 5/8/14 (Rivera, J.)
People v Sewell	2d Dept: 110 AD3d 1105 (Westchester)	denied 5/8/14 (Rivera, J.)
People v Sheskier	3d Dept: 114 AD3d 998 (Ulster)	denied 5/19/14 (Read, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Andrews* (108 AD3d 729 [2013], *lv granted* 22 NY3d 995 [2013], *aff'd* 23 NY3d 605 [2014]).

People v Simmons	1st Dept: 115 AD3d 442 (NY)	denied 5/30/14 (Grafteo, J.)
People v Slavin	App Div, 2d Dept: 2014 NY Slip Op 60507(U) (Suffolk)	dismissed 5/22/14 (Rivera, J.)
People v Smith (Andrew)	1st Dept: 115 AD3d 544 (NY)	denied 5/14/14 (Smith, J.)
People v Smith (Keith)	2d Dept: 115 AD3d 775 (Kings)	denied 5/30/14 (Grafteo, J.)
People v Snyder	2d Dept: 114 AD3d 885 (Queens)	denied 5/7/14 (Lippman, Ch. J.)
People v Sola	1st Dept: 115 AD3d 442 (NY)	denied 5/13/14 (Smith, J.)
People v Soodoo	2d Dept: 109 AD3d 1014 (Queens)	denied 5/19/14 (Abdus-Salaam, J.)
People v Stanton	4th Dept: 114 AD3d 1151 (Cayuga)	denied 5/16/14 (Lippman, Ch. J.)
People v Stapleton	App Div, 2d Dept: 2014 NY Slip Op 67271(U) (Queens)	dismissed 5/23/14 (Grafteo, J.)
People v Stepney	App Term, 2d Dept, 9th & 10th Jud Dists: 42 Misc 3d 139(A) (Westchester)	denied 5/13/14 (Smith, J.)
People v Stevens	1st Dept: 114 AD3d 483 (NY)	denied 5/8/14 (Rivera, J.)
People v Stevenson	App Div, 2d Dept: 2013 NY Slip Op 86662(U) (Suffolk)	denied reconsideration 5/8/14 (Rivera, J.)
People v Strahin	4th Dept: 114 AD3d 1284 (Erie)	denied 5/14/14 (Pigott, J.)
People v Striegel	1st Dept: 115 AD3d 510 (NY)	denied 5/2/14 (Grafteo, J.)
People v Sutera	1st Dept: 107 AD3d 556 (NY)	denied 5/19/14 (Abdus-Salaam, J.)
People v Swain	4th Dept: 109 AD3d 1090 (Erie)	denied 5/19/14 (Abdus-Salaam, J.)
People v Swank	4th Dept: 109 AD3d 1089 (Oswego)	denied 5/19/14 (Abdus-Salaam, J.)
People v Tarafa	App Div, 1st Dept: 2013 NY Slip Op 82565(U) (Bronx)	dismissed 5/12/14 (Read, J.)
People v Taro	4th Dept: 112 AD3d 1384 (Onondaga)	denied 5/19/14 (Read, J.)
People v Taylor (Eugene)	2d Dept: 114 AD3d 886 (Kings)	denied 5/30/14 (Pigott, J.)
People v Taylor (Terrell)	App Div, 1st Dept: 2014 NY Slip Op 63798(U) (NY)	dismissed 5/6/14 (Read, J.)
People v Texidor	4th Dept: 115 AD3d 1214 (Erie)	denied 5/30/14 (Grafteo, J.)
People v Theodore	2d Dept: 114 AD3d 814 (Queens)	denied 5/30/14 (Grafteo, J.)

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People v Thomas	1st Dept: 115 AD3d 496 (NY)	denied 5/16/14 (Pigott, J.)
People v Thompson	2d Dept: 110 AD3d 1014 (Suffolk)	denied 5/16/14 (Lippman, Ch. J.)
People v Torres	1st Dept: 114 AD3d 493 (Bronx)	denied 5/6/14 (Read, J.)
People v Travet	4th Dept: 115 AD3d 1234 (Onondaga)	denied 5/22/14 (Pigott, J.)
People v Tucker	1st Dept: 115 AD3d 555 (NY)	denied 5/16/14 (Lippman, Ch. J.)
People v Uribe	2d Dept: 109 AD3d 844 (Nassau)	denied 5/29/14 (Rivera, J.)
People v Vasquez	1st Dept: 115 AD3d 579 (NY)	denied 5/28/14 (Pigott, J.)
People v Vincent	4th Dept: 114 AD3d 1171 (Erie)	denied 5/13/14 (Smith, J.)
People v Vogt	3d Dept: 111 AD3d 1025 (Ulster)	denied 5/9/14 (Read, J.)
People v Vrooman	4th Dept: 115 AD3d 1189 (Monroe)	denied 5/30/14 (Grafteo, J.)
People v Waldron	3d Dept: 115 AD3d 1116 (Saratoga)	denied 5/16/14 (Lippman, Ch. J.)
People v Walker	2d Dept: 115 AD3d 889 (Kings)	denied 5/16/14 (Lippman, Ch. J.)
People v Ward	4th Dept: 112 AD3d 1358 (Cayuga)	denied 5/6/14 (Rivera, J.)
People v Wertman	4th Dept: 114 AD3d 1279 (Cayuga)	denied 5/12/14 (Pigott, J.)
People v Williams (Daryl)	4th Dept: 114 AD3d 1278 (Cayuga)	denied 5/16/14 (Pigott, J.)
People v Williams (Karsem)	App Div, 1st Dept: 2013 NY Slip Op 80990(U) (NY)	denied 5/20/14 (Pigott, J.)
People v Williams (Michael)	1st Dept: 115 AD3d 489 (Bronx)	denied 5/13/14 (Smith, J.)
People v Williams (Robert)	3d Dept: 114 AD3d 993 (Broome)	denied 5/16/14 (Lippman, Ch. J.)
People v Williams (Roger)	2d Dept: 115 AD3d 690 (Nassau)	denied 5/30/14 (Grafteo, J.)
People v Wilson (Keith)	4th Dept: 111 AD3d 1276 (Cattaraugus)	denied 5/20/14 (Pigott, J.)
People v Wilson (Njera)	4th Dept: 115 AD3d 1229 (Erie)	denied 5/30/14 (Grafteo, J.)
People v Winters	4th Dept: 112 AD3d 1384 (Cayuga)	denied 5/2/14 (Grafteo, J.)
People v Woods (Anthony)	App Div, 4th Dept, 3/4/14 (Erie)	dismissed 5/29/14 (Rivera, J.)
People v Woods (Lonnie)	2d Dept: 110 AD3d 748 (Nassau)	denied 5/8/14 (Rivera, J.)
People v Woodworth	4th Dept: 111 AD3d 1368 (Livingston)	denied 5/14/14 (Pigott, J.)

People v Worthy (Devine)	4th Dept: 109 AD3d 1140 (Erie)	denied 5/19/14 (Abdus-Salaam, J.) (Appeal No. 1)
People v Worthy (Devine)	4th Dept: 109 AD3d 1141 (Erie)	denied 5/19/14 (Abdus-Salaam, J.) (Appeal No. 2)
People v Young	2d Dept: 113 AD3d 799 (Kings)	denied 5/12/14 (Pigott, J.)
People v Zirbel	4th Dept: 114 AD3d 1162 (Cayuga)	denied 5/6/14 (Rivera, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(May 1, 2014 through May 31, 2014)

People v Heatley	4th Dept: 116 AD3d 23 (Erie)	granted 5/12/14 (Fahey, J.)
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[12 NE3d 1107, 989 NYS2d 678]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v SIDNEY
WISDOM, Respondent.

Argued May 6, 2014; decided June 5, 2014

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 11, 2012. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Kings County (Deborah A. Dowling, J.), which had convicted defendant, upon a jury verdict, of attempted murder in the second degree (two counts), burglary in the first degree, and endangering the welfare of a child, (2) granted a motion by defendant to dismiss the indictment, and (3) dismissed the indictment with leave to resubmit the charges to another grand jury.

People v Wisdom, 98 AD3d 241, reversed.

HEADNOTES

Crimes — Indictment — Timeliness of Motion to Dismiss

1. In a prosecution where a grand jury witness failed to take the required oath during her original videotaped testimony but swore to the truthfulness of

* Includes only applications that were granted.

that testimony in a second videotaped interview, defendant's motion to dismiss the indictment on the ground that the witness's initial unsworn testimony compromised the integrity of the grand jury, raised after the People presented their proof at trial, was not untimely under CPL 255.20 (1). Defendant timely challenged the indictment because he was not aware of the operative facts until after his omnibus motion had to be filed (*see* CPL 255.20 [1], [3]) and there was support in the record that he had good cause to seek dismissal after receiving the witness's videos. Even though the jury's verdict was premised on sufficient trial evidence (*see* CPL 210.30 [6]), the issue was reviewable on appeal because defendant claimed that the failure to swear the witness before her initial recorded statement caused her testimony to be legally invalid, thereby creating a fundamental defect in the grand jury proceeding.

Grand Jury — Defective Proceeding — Failure to Administer Oath to Witness Not Fatal

2. In a prosecution where a grand jury witness failed to take the required oath during her original videotaped testimony but swore to the truthfulness of that testimony in a second videotaped interview, the error in failing to administer the oath during the first testimonial recording did not, under the circumstances, meet the very precise and very high statutory standard of impairment for grand jury proceedings warranting dismissal of the indictment. The lack of an oath was not the product of a nefarious design to deliberately cause unfairness to defendant. Rather, it was an oversight that the People sought to correct by securing judicial permission to make the second videotape. The grand jury watched the second video and was instructed that the recording was made because the witness had not taken an oath during her first examination. On these facts, defendant did not establish a possibility of prejudice justifying the exceptional remedy of dismissal of the indictment.

APPEARANCES OF COUNSEL

Charles J. Hynes, District Attorney, Brooklyn (Ann Bordley and Leonard Joblove of counsel), for appellant.

Lynn W.L. Fahey, Appellate Advocates, New York City (De Nice Powell of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, the judgment of conviction reinstated, and the case remitted to the Appellate Division for consideration of the facts and issues raised but not determined on appeal to that court.

Defendant Sidney Wisdom attempted to kill a four-year-old girl and her grandmother (whom we refer to as Jane) during a residential burglary. Due to the severity of Jane's injuries, the People obtained a court order to videotape her testimony for later presentation to a grand jury. In her recorded interview, Jane unequivocally identified defendant as the assailant and stated that she knew him from prior contacts. However, she was

not administered an oath to tell the truth, an oversight that was not realized by the prosecutor until after the grand jury had viewed the video. In an attempt to rectify this omission, the court authorized a second recorded examination in which Jane swore to be truthful and declared that her prior testimony had been accurate. The grand jury was shown the second video and defendant was indicted for various crimes, including first-degree burglary and attempted second-degree murder.

Defendant moved to dismiss the indictment, claiming that Jane's failure to take the required oath during her original interview compromised the integrity of the grand jury. Supreme Court rejected that argument and a jury convicted defendant of attempting to intentionally murder Jane and the child. The Appellate Division reversed, concluding that the grand jury proceeding was defective because the People presented Jane's unsworn recorded testimony and the second videotaped examination did not cure the error (98 AD3d 241 [2d Dept 2012]). A Judge of this Court granted the People leave to appeal (19 NY3d 1106 [2012]) and we now reverse.

[1] The People initially argue that defendant's motion to dismiss was untimely under CPL 255.20 (1) because the issue regarding the oath was not raised until after the People presented their proof at trial. We disagree. Defendant timely challenged the indictment in this case because he was not aware of the operative facts until after his omnibus motion had to be filed (*see* CPL 255.20 [1], [3]) and there is support in the record for the Appellate Division's finding that he had good cause to seek dismissal after receiving the videos of Jane's interviews. Even though the jury's verdict was premised on sufficient trial evidence (*see* CPL 210.30 [6]), the issue is reviewable because defendant claims that the failure to swear Jane before her initial recorded statement caused her testimony to be legally invalid, thereby creating a fundamental defect in the grand jury proceeding (*see e.g.* CPL 210.35 [5]; *People v Pelchat*, 62 NY2d 97, 108-109 [1984]; Peter Preiser, Practice Commentaries, McKinney's Cons Laws of NY, Book 11A, CPL 210.30 at 222).

[2] The People do not dispute that an oath should have been administered to Jane during the first testimonial recording (*see e.g.* CPL 60.20 [2]; 190.32 [5] [e]; *People v Parks*, 41 NY2d 36, 45 [1976]). On these facts, however, the error does not meet the "very precise and very high" statutory standard of impairment for grand jury proceedings (*People v Darby*, 75 NY2d 449, 455 [1990]; *see e.g. People v Huston*, 88 NY2d 400, 409 [1996]). The

lack of an oath was not the product of a nefarious design to deliberately cause unfairness to defendant. Rather, it was an oversight that the People sought to correct by securing judicial permission to record a second interview in which Jane swore to be honest and verified the truth of her prior statements. The grand jury then watched the second video and was instructed that the recording was made because Jane had not taken an oath during her first examination. Based on these circumstances, defendant has not established a possibility of prejudice justifying the exceptional remedy of dismissal of the indictment (*see e.g. People v Adessa*, 89 NY2d 677, 686 [1997]; *People v Thompson*, 22 NY3d 687, 699 [2014]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order reversed, judgment of conviction reinstated, and case remitted to the Appellate Division, Second Department, for consideration of the facts and issues raised but not determined on the appeal to that court, in a memorandum.

[12 NE3d 1109, 989 NYS2d 680]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHARMELLE JOHNSON, Appellant.

Argued May 1, 2014; decided June 5, 2014

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 23, 2012. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Marcy L. Kahn, J.), convicting defendant, upon his plea of guilty, of rape in the second degree.

People v Johnson, 99 AD3d 591, reversed.

HEADNOTE

Crimes — Plea of Guilty — Withdrawal of Plea

In a prosecution in which defendant pleaded guilty to second degree rape arising out of his sexual intercourse with the victim who had become voluntarily intoxicated, defendant's motion to vacate the plea was granted where the record did not permit confidence that defendant had a clear understanding of what he was doing when he entered his plea. While it was highly unlikely that defendant actually committed the crime to which he pleaded

guilty, Penal Law § 130.30 (2), since the statute was apparently aimed primarily at rapists who use “date-rape” drugs, that in itself would not make his plea invalid. Where a defendant enters a negotiated plea to a lesser crime than one with which he is charged, no factual basis for the plea is required. Consequently, the entire plea allocution was unnecessary, and even if it were necessary there would be no requirement to prove every element of the crime charged. Here, however, defendant’s conviction seemed to be based on complete confusion by all concerned. The court and counsel mistakenly believed that it was necessary to put on the record facts showing that the victim was mentally incapacitated, and they apparently also mistakenly believed that they had done so.

APPEARANCES OF COUNSEL

Richard M. Greenberg, Office of the Appellate Defender, New York City (Lauren Stephens-Davidowitz and Sara Gurwitch of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Andrew E. Seewald and Susan Axelrod of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, defendant’s motion to vacate his plea granted, and the case remitted to Supreme Court for further proceedings in accordance with this memorandum.

Defendant was indicted on two counts of rape in the first degree and one of criminal possession of stolen property in the fifth degree. The victim did not have a recollection of the alleged rape, or of any interaction with defendant. She remembered drinking in a bar; her next recollection was of going home in a disheveled condition, without her cell phone and some other property. After arriving home, she found indications that she had been sexually assaulted. Her cell phone was traced to defendant, and semen from a rape kit matched defendant’s DNA.

The rape charges against defendant were based on the theories that he had used forcible compulsion (Penal Law § 130.35 [1]) and that his victim was incapable of consent by reason of being physically helpless (Penal Law § 130.35 [2]). On either theory, the crime was a class B felony.

After extensive plea bargaining, defendant pleaded guilty to a class D felony, rape in the second degree as defined in Penal Law § 130.30 (2), committed when a person “engages in sexual intercourse with another person who is incapable of consent by reason of being . . . mentally incapacitated.” “Mentally incapacitated,” as defined by Penal Law § 130.00 (6), “means that a

person is rendered temporarily incapable of appraising or controlling his conduct owing to the influence of a narcotic or intoxicating substance administered to him without his consent, or to any other act committed upon him without his consent.” The statute was apparently aimed primarily at rapists who use “date-rape” drugs. There is no indication in the record that this victim was incapacitated by anything other than voluntary intoxication.

Thus, it is highly unlikely that defendant actually committed the crime to which he pleaded guilty. That in itself would not make his plea invalid. Where a defendant enters a negotiated plea to a lesser crime than one with which he is charged, no factual basis for the plea is required (*People v Clairborne*, 29 NY2d 950, 951 [1972]; see also *People v Moore*, 71 NY2d 1002, 1006 [1988]). Indeed, under such circumstances defendants can even plead guilty to crimes that do not exist (*People v Foster*, 19 NY2d 150, 153 [1967] [plea to attempt to commit a crime of which intent is not an element]).

It seems, however, that at the time of defendant’s plea counsel and the court were unaware of the rule of *Clairborne*, and thought it necessary to find a basis in fact for the plea. The court led defendant through an allocution in which he admitted that he encountered the victim when she was “too drunk to really make a decision about whether she did or did not want to have sex”; that he knew that “she was mentally incapacitated apparently from drinking”; and that he “went ahead and had sexual intercourse with her anyway.” The allocution provided no support for the idea that the victim was mentally incapacitated as the Penal Law defines that term.

Before being sentenced, defendant moved to withdraw his plea, asserting among other things that he “was not fully aware of the circumstances involved” and “is not guilty of the offense(s) to which he plead [sic].” That is essentially the argument that defendant makes here, and we reject the People’s suggestion that his claim is unpreserved. Supreme Court denied the motion and sentenced defendant on his conviction. The Appellate Division affirmed the conviction and sentence (*People v Johnson*, 99 AD3d 591 [1st Dept 2012]).

We conclude that we must reverse and vacate the plea. Although the entire allocution was unnecessary, and although even if it were necessary we would not require that it prove every element of the crime charged (*People v Goldstein*, 12 NY3d 295, 301 [2009]), we simply cannot countenance a conviction

that seems to be based on complete confusion by all concerned (see *People v Worden*, 22 NY3d 982, 985 [2013] [allocation “emblematic of a general misconception”]). Apparently the court and counsel believed, mistakenly, that it was necessary to put on the record facts showing that the victim was mentally incapacitated; and they apparently also believed, equally mistakenly, that they had done so. It is impossible to have confidence, on a record like this, that defendant had a clear understanding of what he was doing when he entered his plea.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

Order reversed, defendant’s motion to vacate plea granted, and case remitted to Supreme Court, New York County, for further proceedings in accordance with the memorandum herein.

[11 NE3d 1112, 989 NYS2d 9]

JOSEPH CATALANO et al., Appellants, v LAURIE TANNER, Individually and Doing Business as DAN’S RESTAURANT, Respondent.

Decided June 5, 2014

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 27, 2013. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Erie County (James H. Dillon, J.), which had denied defendant’s motion for summary judgment dismissing the complaint, (2) granted the motion, and (3) dismissed the complaint.

Plaintiffs commenced this action seeking damages for injuries allegedly sustained when a chair at a restaurant owned by defendant collapsed as one of the plaintiffs sat on it, causing him to fall to the ground. The Appellate Division concluded that defendant met her initial burden of establishing that she neither created nor had actual or constructive notice of the allegedly defective condition of the chair and that plaintiffs had failed to raise a triable issue of fact in opposition to defendant’s summary judgment motion. The Appellate Division concluded that, in the absence of any prior complaints, incidents, accidents, or any other circumstances that should have aroused defendant’s suspicion that the chairs were defective, plaintiffs failed to raise

a triable issue of fact concerning the reasonableness of defendant's inspection practices and, thus, whether defendant had constructive notice of the alleged defective condition of the chair. The Appellate Division dissent concluded that there were issues of fact concerning the nature of the alleged defect that caused the chair to collapse and the reasonableness of defendant's pre-accident inspection practices.

Catalano v Tanner, 112 AD3d 1299, reversed.

HEADNOTE

Negligence — Maintenance of Premises — Collapse of Restaurant Chair

Defendant's motion for summary judgment was denied since she failed to establish prima facie entitlement to judgment as a matter of law concerning the reasonableness of her inspection practices.

APPEARANCES OF COUNSEL

Shaw & Shaw, P.C., Hamburg (*Jacob A. Piorkowski* of counsel), for appellants.

Barth Sullivan Behr, Buffalo (*Laurence D. Behr* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and defendant's motion for summary judgment denied. Defendant failed to establish prima facie entitlement to judgment as a matter of law concerning the reasonableness of her inspection practices.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

In the Matter of KELLY S. BOYD, Respondent, v NEW YORK STATE
DIVISION OF HOUSING AND COMMUNITY RENEWAL et al., Ap-
pellants.

Submitted May 12, 2014; decided June 5, 2014

Reported below, 110 AD3d 594.

Motion by Association for Neighborhood and Housing Development et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. A copy of the brief must be served and an original and two copies filed within seven days.

In the Matter of KELLY S. BOYD, Respondent, v NEW YORK STATE
DIVISION OF HOUSING AND COMMUNITY RENEWAL et al., Ap-
pellants.

Submitted May 12, 2014; decided June 5, 2014

Reported below, 110 AD3d 594.

Motion by CAMBA Legal Services for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. A copy of the brief must be served and an original and two copies filed within seven days.

In the Matter of KELLY S. BOYD, Respondent, v NEW YORK STATE
DIVISION OF HOUSING AND COMMUNITY RENEWAL et al., Ap-
pellants.

Submitted May 12, 2014; decided June 5, 2014

Reported below, 110 AD3d 594.

Motion by Bill Perkins et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. A copy of the brief must be served and an original and two copies filed within seven days.

In the Matter of KELLY S. BOYD, Respondent, v NEW YORK STATE
DIVISION OF HOUSING AND COMMUNITY RENEWAL et al., Ap-
pellants.

Submitted May 12, 2014; decided June 5, 2014

Reported below, 110 AD3d 594.

Motion by Letitia James et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

COOPERATIEVE CENTRALE RAIFFEISEN-BOERENLEENBANK, B.A.,
“RABOBANK INTERNATIONAL,” NEW YORK BRANCH, Respon-
dent, v FRANCISCO JAVIER HERRERA NAVARRO, Appellant, et
al., Defendant.

Submitted March 17, 2014; decided June 5, 2014

Reported below, 113 AD3d 457.

Motion to expand the record denied.

In the Matter of FREDERICK FRANKLIN, Appellant, v NEW YORK
STATE BOARD OF PAROLE APPEALS UNIT, Respondent.

Submitted April 14, 2014; decided June 5, 2014

Reported below, 111 AD3d 1053.

Motion for reargument of motion for leave to appeal denied
[see 22 NY3d 862 (2014)].

LEONARD HUTCHINSON, Appellant, v SHERIDAN HILL HOUSE
CORP., Respondent.

Submitted April 28, 2014; decided June 5, 2014

Reported below, 110 AD3d 552.

Motion to vacate this Court's March 11, 2014 dismissal order
granted [see 22 NY3d 1154 (2014)].

In the Matter of NUMRICH GUN PARTS CORPORATION, Appellant,
v PETER M. RIVERA, as Commissioner of Labor, et al.,
Respondents.

Submitted May 21, 2014; decided June 5, 2014

Reported below, 115 AD3d 1050.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD
GONZALEZ, Appellant.

Submitted May 19, 2014; decided June 5, 2014

Reported below, 112 AD3d 440.

Motion for assignment of counsel granted and Robert S. Dean,
Esq., Center for Appellate Litigation, 74 Trinity Place, 11th
Floor, New York, NY 10006 assigned as counsel to the appellant
on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE
INOA, Appellant.

Submitted June 2, 2014; decided June 5, 2014

Reported below, 109 AD3d 765.

Motion for assignment of counsel granted and John R. Lewis, Esq., 36 Hemlock Drive, Sleepy Hollow, New York 10591 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLEMON JONES, Appellant.

Submitted June 2, 2014; decided June 5, 2014

Reported below, 109 AD3d 1108.

Motion for assignment of counsel granted and John A. Cirando, Esq., care of D.J. & J.A. Cirando, Esqs., 101 South Salina Street, Syracuse, New York 13202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAFARI LAMONT, Appellant.

Submitted May 19, 2014; decided June 5, 2014

Reported below, 113 AD3d 1069.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARQUAN M., Appellant.

Submitted May 12, 2014; decided June 5, 2014

Motion by Advocates for Children of New York et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v QUADEAN MORRISON, Appellant.

Submitted June 2, 2014; decided June 5, 2014

Reported below, 106 AD3d 1201.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JULIO RIVERA, Appellant.

Submitted May 12, 2014; decided June 5, 2014

Reported below, 112 AD3d 857.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RASAUN SANDERS, Also Known as BOO CRACKS, Appellant.

Submitted May 28, 2014; decided June 5, 2014

Reported below, 112 AD3d 748.

Motion to dismiss appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HAKIM B. SCOTT, Appellant.

Submitted May 19, 2014; decided June 5, 2014

Reported below, 106 AD3d 1030.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HOWARD S. WRIGHT, Appellant.

Submitted May 12, 2014; decided June 5, 2014

Reported below, 115 AD3d 1257.

Motion for assignment of counsel granted and David M. Kaplan, Esq., 2129 Five Mile Line Road, Penfield, New York 14526 assigned as counsel to the appellant on the appeal herein.

EMILY PINES et al., Appellants, v STATE OF NEW YORK, Respondent.

Decided June 5, 2014

Reported below, 115 AD3d 80.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge LIPPMAN taking no part.

JOSEPH W. POWERS, Appellant, v 31 E 31 LLC et al., Respondents.

Submitted June 2, 2014; decided June 5, 2014

Reported below, 105 AD3d 657.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

W & W GLASS, LLC, Respondent, v 1113 YORK AVENUE REALTY COMPANY LLC et al., Appellants, and SOTA GLAZING, INC., Respondent, et al., Defendants.

Submitted April 7, 2014; decided June 5, 2014

Reported below, 113 AD3d 563.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[13 NE3d 660, 990 NYS2d 160]

GUILLERMO ROBLES, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Decided June 10, 2014

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January

14, 2014. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, New York County (Joan A. Madden, J.), which had denied defendant's motion for summary judgment dismissing the complaint, and (2) granted the motion.

In his notice of claim, plaintiff alleged that "[o]n 4/08/2008, at approximately 8:30 a.m., [he] was lawfully traversing the courtyard area located in front of 178 Avenue D, New York, New York, when [he] was caused to trip and fall on the raised concrete perimeter." Plaintiff identified a specific tree well at his General Municipal Law § 50-h hearing. Almost two years after the accident, plaintiff served a bill of particulars in which, for the first time, he identified a different tree well in another area of the courtyard as the accident site. The Appellate Division found that although an expert's report referencing the new location was allegedly prepared within weeks of the accident, plaintiff did not provide it to defendant before his bill of particulars was served. Subsequently, at his deposition, plaintiff once again identified the tree well depicted in the photographs shown to him at his section 50-h hearing as the location. At no time did plaintiff move to amend his notice of claim to revise the location of the particular tree well that allegedly caused him to fall. The Appellate Division found that Supreme Court should have granted defendant summary judgment dismissing the complaint since plaintiff failed to meet his discovery obligations, both before and after his deposition, and offered no valid excuse for his failure to do so.

Robles v New York City Hous. Auth., 113 AD3d 437, reversed.

HEADNOTE

Municipal Corporations — Notice of Claim — Sufficiency

In a personal injury action against defendant municipal corporation, the defendant's motion for summary judgment dismissing the complaint was denied as defendant failed to show that it was prejudiced by any defect in plaintiff's notice of claim (*see generally* General Municipal Law § 50-e [6]), and triable issues of fact remained.

APPEARANCES OF COUNSEL

Bragoli & Associates, P.C., Melville (*Susan R. Nudelman* of counsel), for appellant.

Cullen and Dykman LLP, New York City (*Joseph C. Fegan* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and defendant's motion for summary judgment dismissing the complaint denied. The Appellate Division improperly concluded that defendant was entitled to summary judgment, as defendant failed to show that it was prejudiced by any defect in plaintiff's notice of claim (*see generally* General Municipal Law § 50-e [6]), and triable issues of fact remain.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

JOHN L. BELL, Individually and as Shareholder of NORPCO RESTAURANT, INC. and BUTCHER BLOCK OF ALBANY, INC., Appellant, v DAVID R. WHITE et al., Respondents.

Submitted May 21, 2014; decided June 10, 2014

Reported below, 112 AD3d 1104.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROBERT BUTLER et al., Appellants, v CITY OF RYE PLANNING COMMISSION et al., Respondents.

Submitted May 28, 2014; decided June 10, 2014

Reported below, 114 AD3d 937.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Foreclosure of Tax Liens by CITY OF HUDSON. FIRST CHURCH OF GOD IN CHRIST, INC., Appellant; CITY OF HUDSON, Respondent.

Decided June 10, 2014

Reported below, 114 AD3d 1106.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

MIRIAM DELGADO, Appellant, v MARKWORT SPORTING GOODS COMPANY et al., Respondents. (And a Third-Party Action.)

Submitted May 28, 2014; decided June 10, 2014

Reported below, 39 Misc 3d 147(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]).

COLLEEN DERBY, Appellant, v FABIAN BITAN, Respondent.

Decided June 10, 2014

Reported below, 112 AD3d 881.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of MICHAEL A. GOLDSTEIN et al., Appellants, v TAX APPEALS TRIBUNAL OF THE STATE OF NEW YORK et al., Respondents.

Decided June 10, 2014

Reported below, 111 AD3d 986.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

MICHAEL KUNEY, Appellant, v ANGIE CHRISTIAN et al., Respondents.

Submitted May 28, 2014; decided June 10, 2014

Reported below, 42 Misc 3d 136(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

In the Matter of JAMES McNULTY et al., Appellants, v TAX APPEALS TRIBUNAL OF THE STATE OF NEW YORK et al., Respondents.

Decided June 10, 2014

Reported below, 111 AD3d 987.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. SCOTT MYERS, Appellant, v MICHAEL SPITZ, Respondent.

Submitted May 5, 2014; decided June 10, 2014

Reported below, 2014 NY Slip Op 61984(U).

Motion for reargument of motion for leave to appeal denied [*see* 22 NY3d 865 (2014)].

Judge ABDUS-SALAAM taking no part.

TOWN SPORTS INTERNATIONAL, LLC, Respondent, v AJILON SOLUTIONS, Appellant.

Submitted April 14, 2014; decided June 10, 2014

Reported below, 112 AD3d 409.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 16-17 [1995]).

[14 NE3d 377, 991 NYS2d 24]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMEL WALSTON, Appellant.

Argued May 7, 2014; decided June 12, 2014

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 26, 2012. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Neil Jon Firetog, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the first degree and criminal possession of a weapon in the second degree.

People v Walston, 101 AD3d 1156, modified.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — Mode of Proceedings Error — Failure to Share Contents of Jury Note with Defense Counsel

1. In a homicide prosecution, defendant was not required to preserve his argument that the trial court's handling of the jury note violated the procedure delineated in *People v O'Rama* (78 NY2d 270 [1991]), as the court's failure to share the entire contents of the note with defense counsel constituted a mode of proceedings error. Although counsel was made aware of the existence of the note, which read "Power Point - Judge[']s directions on Manslaughter/Murder in the Second Degree - (Intent)," the court merely paraphrased the note's contents for counsel and the jury and did not mention the note's "intent" language. CPL 310.30 requires that when the trial court receives a request "for further instruction or information with respect to the law," the court must give notice to the People and the defense. The trial court's core responsibilities are to provide meaningful notice to counsel of the note's content, and a meaningful response to the jury's request, and when a court fails to fulfill those responsibilities, a mode of proceedings error occurs. The record failed to show that defense counsel was apprised of the specific, substantive contents of the note, and it could not be assumed that the omission was remedied at an off-the-record conference that was not referred to in the trial transcript.

Crimes — Vacatur of Judgment of Conviction — Failure to Share Contents of Jury Note with Defense Counsel — Charges Unrelated to Contents of Note Unaffected

2. In a prosecution for homicide and illegal weapons possession, although defendant was entitled to vacatur of his conviction for first degree manslaughter because of the trial court's failure to properly deal with a jury note regarding the homicide counts sent during deliberations, defendant was not entitled to vacatur of his conviction on the weapon possession count. In his written statement, which was read to the jury and admitted in evidence, defendant confessed to possessing a loaded firearm and shooting the victim. The People also presented evidence from a witness who testified that he had given defendant the revolver that defendant used moments before the shooting. Because the jury note was addressed to an element relative to the homicide counts, and not to the weapon possession count, there was no danger of prejudice as it related to the latter count.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Kendra L. Hutchinson* of counsel), for appellant.

Kenneth P. Thompson, District Attorney, Brooklyn (Rhea A. Grob and Leonard Joblove of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified by vacating defendant's conviction of manslaughter in the first degree, with leave to the People to resubmit that charge to a grand jury, and remitting to Supreme Court for resentencing on defendant's conviction of criminal possession of a weapon in the second degree and, as so modified, affirmed.

Defendant was indicted on one count each of murder in the second degree (Penal Law § 125.25 [1] [intentional murder]) and criminal possession of a weapon in the second degree (Penal Law § 265.03 [3] [possession of a loaded firearm]), after he shot the victim five times, killing him. At the conclusion of proof at trial, the court granted defense counsel's request to charge the jury on the lesser included offense of manslaughter in the first degree (Penal Law § 125.20 [1] [intent to cause serious physical injury to another person, and causing the death of such person]). The court instructed the jury on counts of second-degree murder, first-degree manslaughter and second-degree weapon possession, and, as relevant here, gave an expanded intent charge that applied with equal force to the murder and manslaughter counts.

During deliberations, the jury sent a note that read: "Power Point - Judge['s] directions on Manslaughter/Murder in the Second Degree - (Intent)." The court apprised counsel that the jury "want[ed] the Judge's directions on manslaughter and murder in the second degree," but did not mention the note's "intent" language. After the jury entered the courtroom, the court again paraphrased the note by stating "you have asked for a read back of manslaughter and murder" and gave the standard charges for each crime. The jury acquitted defendant of murder but found him guilty on the manslaughter and weapon possession counts.

On appeal, defendant claimed that the trial court's handling of the jury note violated the procedure delineated in *People v O'Rama* (78 NY2d 270 [1991]). The Appellate Division concluded that defendant's *O'Rama* argument was unpreserved and that the claimed error did not constitute a mode of proceedings error (101 AD3d 1156, 1157-1158 [2d Dept 2012]).

CPL 310.30 requires that when the trial court receives a request "for further instruction or information with respect to

the law,” the court must give notice to the People and the defense. We explained in *O’Rama* that such notice must be “meaningful,” i.e., that the parties receive “notice of the *actual specific content* of the jurors’ request,” because “counsel cannot participate effectively or adequately protect the defendant’s rights if this specific information is not given,” nor is counsel able “to evaluate the inquiry and the proper responses in light of the defendant’s interests” absent such notice (*O’Rama*, 78 NY2d at 277 [citations omitted; emphasis supplied]). “Meaningful notice” to counsel of the note’s content, and a “meaningful response” to the jury’s request, comprise the trial court’s core responsibilities (*People v Kisoona*, 8 NY3d 129, 134 [2007]). To assist the trial court in meeting those responsibilities, we outlined a suggested procedure for the court’s handling of jury notes when it receives a substantive written jury communication: the court should mark the note as a court exhibit and read it into the record before the jury is called in (thereby ensuring adequate appellate review); afford counsel an opportunity to suggest responses to the note; inform counsel of the substance of the court’s proposed response (thereby giving counsel an opportunity to suggest appropriate modifications before the jury is returned to the courtroom); and read the note aloud in open court before the jury so that any inaccuracies may be corrected by the individual jurors (*see O’Rama*, 78 NY2d at 277-278).

[1] The Appellate Division erred in concluding that defendant was required to preserve his *O’Rama* argument. We have acknowledged that some departures from *O’Rama* procedures are subject to our rules of preservation, such as where the court reads the “entire content” of the note verbatim in open court prior to responding to the jury (*see People v Alcide*, 21 NY3d 687, 693-694 [2013]; *People v Starling*, 85 NY2d 509, 516 [1995] [court read the *entire content* of the notes in open court]; *People v DeRosario*, 81 NY2d 801, 803 [1993] [requiring application of traditional preservation rules where defense counsel was present, was given notice of the contents of the written inquiry and participated in formulating responses thereto]). In such cases, although there has been a deviation from procedure, preservation is required where it is evident from the record that the trial court fulfilled its core responsibilities. When a court fails to fulfill those responsibilities, however, a mode of proceedings error occurs and departures from the *O’Rama* procedures are not subject to preservation rules (*Kisoona*, 8 NY3d at 135; *O’Rama*, 78 NY2d at 279).

Here, the trial court failed to meet its core responsibilities with regard to the note. Although there is record evidence that defense counsel was made aware of the existence of the note, there is no indication that the entire contents of the note were shared with counsel. Rather, the record reflects that the court paraphrased the note for counsel and the jury, but in each instance it omitted any reference to the note's "intent" language, hardly "a fair substitute for defense counsel's own perusal of the communication" (*O'Rama*, 78 NY2d at 277). Although the note is ambiguous concerning whether the jury was requesting an expanded definition of the intent element or was merely asking for a read back of the homicide charges which included a definition of intent, this only substantiates defendant's argument that the court failed to meet its core responsibilities of providing defense counsel with meaningful notice and an opportunity to provide input so that the court could give the jury a meaningful response. Where the record fails to show that defense counsel was apprised of the specific, substantive contents of the note—as it is in this case—preservation is not required* (see *People v Tabb*, 13 NY3d 852, 852 [2009]). Where a trial transcript does not show compliance with *O'Rama*'s procedure as required by law, we cannot assume that the omission was remedied at an off-the-record conference that the transcript does not refer to (*id.*).

[2] That does not mean, however, that defendant is entitled to vacatur of his conviction on the weapon possession count. In his written statement, which was read to the jury and admitted in evidence, defendant confessed to possessing a loaded firearm and shooting the victim. The People also presented evidence from a witness who testified that he had given defendant the revolver that defendant used moments before the shooting. Because the note at issue was addressed to an element relative to the homicide counts, and not to the weapon possession count, there was no danger of prejudice as it related to the latter count.

SMITH, J. (concurring). I join the Court's memorandum opinion, which follows our case law in holding that an *O'Rama* error is a mode of proceedings error when a trial judge fails to disclose to counsel the full contents of a jury note. I add this concurring opinion to suggest that we should be willing to

* Defendant claims that he was deprived of the effective assistance of counsel because his attorney should have requested that the court charge the lesser included offense of manslaughter in the second degree. In light of our holding, we do not reach that issue.

consider in the future an argument, not made here, that the cases so holding, including *People v O’Rama* (78 NY2d 270, 279 [1991]) itself to the extent that it finds a mode of proceedings error, should be overruled. This idea finds support in some of our more recent jury note cases, which have taken a flexible approach to the mode of proceedings doctrine, and which may be read as eroding *O’Rama*’s force as precedent (*People v Williams*, 21 NY3d 932 [2013]; *People v Ramirez*, 15 NY3d 824 [2010]).

The term “mode of proceedings error”—more precisely an error that affects “the organization of the court or the mode of proceedings pr[e]scribed by law” (*People v Patterson*, 39 NY2d 288, 295 [1976])—is used to identify a “very narrow exception” to the rule that errors made by a trial court may not be raised on appeal unless they are preserved at trial by timely objection (*id.*). A mode of proceedings error is found where a procedure is at such “basic variance with the mandate of law” that “the entire trial is irreparably tainted” (*id.* at 296). As we said in *People v Becoats* (17 NY3d 643, 651 [2011]): “Not every procedural misstep in a criminal case is a mode of proceedings error. That term is reserved for the most fundamental flaws.”

We held in *O’Rama* that a court’s failure to disclose the full text of a jury note to counsel fits within this “very narrow” category of “fundamental” error. Our reasoning on the subject consists of the following sentence:

“As a threshold matter, we note that the court’s error in failing to disclose the contents of the note had the effect of entirely preventing defense counsel from participating meaningfully in this critical stage of the trial and thus represented a significant departure from the organization of the court or the mode of proceedings prescribed by law” (*O’Rama*, 78 NY2d at 279 [internal quotation marks and citations omitted]).

This cursory rationale does not seem very persuasive. It is not clear to me why *O’Rama* error is comparable to other errors we have identified as mode of proceedings error—e.g., trial by a jury of less than 12 (*Cancemi v People*, 18 NY 128, 135-139 [1858]), prosecution for an infamous crime in the absence of indictment by a grand jury (*People ex rel. Battista v Christian*, 249 NY 314, 318-321 [1928]), shifting the burden of proof to the defendant (*Patterson*, 39 NY2d at 296), and abdicating the judicial function to a law secretary (*People v Ahmed*, 66 NY2d 307, 310-311 [1985]).

Of course, even if *O'Rama* was wrongly decided, that alone would not be sufficient reason to overrule it. The claims of stare decisis are stronger than that. But decisions that wrongly allow defendants to complain on appeal of minor errors to which they raised no objection are more harmful than many other mistaken decisions. I am not a stickler for the rigid application of the preservation rule; but it is one thing to be relatively flexible in the application of the rule, and another to abandon it altogether in a class of cases. To do so leads—as this case illustrates—to reversals based on errors that could easily have been cured if counsel had complained. Here, if counsel had simply said “May I see the note, Your Honor?,” the judge probably would have handed it to him, and the problem we now face would not exist.

Dispensing with the preservation requirement may also invite defense counsel to manipulate the system by remaining silent while error is committed, only to complain of it later (see *Be-coats*, 17 NY3d at 651). *O'Rama*-type cases are a good illustration of this problem. When a trial judge makes the mistake of paraphrasing or summarizing a jury note, only a foolish defense lawyer will ask the judge to correct the error. The likelihood that knowing the verbatim contents of the note will enable counsel to get an acquittal or a hung jury is extremely small. But if the error remains uncorrected the lawyer has a near guarantee that any conviction will be reversed.

In general, we do not like overruling cases because the bar relies on the stability of our precedents. It is not clear to me, however, that anyone can legitimately rely on the rule that *O'Rama* error may be raised on appeal even when not objected to below. A lawyer might, as I have said, withhold an objection in reliance on *O'Rama*, in the hope of obtaining an undeserved reversal—but surely that is a kind of reliance that should not be encouraged.

The views I have just expressed can be no more than tentative. We have not had the benefit of briefing or argument on the issue of whether the mode of proceedings holding of *O'Rama* should be overruled. If the issue were briefed and argued, we would undoubtedly come to understand it more fully than we do now, and might well decide that overruling *O'Rama* is a bad idea. I raise the issue, however, in the hope that my musings will increase the likelihood that the issue will be presented to us in a future case.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur; Judge SMITH in a

separate concurring opinion in which Judge ABDUS-SALAAM concurs.

Order modified by vacating defendant's conviction of manslaughter in the first degree, with leave to the People, if they be so advised, to resubmit that charge to a grand jury, and remitting to Supreme Court, Kings County, for resentencing on the conviction of criminal possession of a weapon in the second degree and, as so modified, affirmed, in a memorandum.

[18 NE3d 377, 993 NYS2d 666]

In the Matter of THOMAS P. O'NEILL et al., Appellants-Respondents, v ANN PFAU, as Chief Administrative Judge of the Office of Court Administration, State of New York—Unified Court System, Respondent-Appellant.

Argued May 7, 2014; decided June 12, 2014

SUMMARY

CROSS APPEALS, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered December 5, 2012. The Appellate Division modified, on the law, so much of a judgment of the Supreme Court, Suffolk County (Thomas F. Whelan, J.; op 31 Misc 3d 184 [2011]), entered in a proceeding pursuant to CPLR article 78, as had granted the second amended petition to the extent of remitting the matter to the Chief Administrative Judge of the Courts of the State of New York for the purpose of recalculating the salaries of persons assigned to the New York State Court Officer title in Suffolk County due to the issuance of certain administrative orders dated January 8, 2004, and December 22, 2004. The modification consisted of deleting the provision of the judgment remitting the matter to the Chief Administrative Judge of the Courts of the State of New York for the purpose of recalculating the salaries of persons assigned to the New York State Court Officer title in Suffolk County due to the issuance of the administrative order dated January 8, 2004, and substituting therefor a provision dismissing, as time-barred, that branch of the second amended petition which sought to compel the Chief Administrative Judge of the Courts of the State of New York to pay persons assigned to the New York State Court Officer title in Suffolk County a salary increment

reflecting a continuous service credit due to the issuance of the administrative order dated January 8, 2004. The Appellate Division affirmed the judgment as modified. The following question was certified by the Appellate Division: “Was the decision and order of this Court dated December 5, 2012, properly made?”

Matter of O’Neill v Pfau, 101 AD3d 731, affirmed.

HEADNOTE

Limitation of Actions — Four-Month Statute of Limitations — Challenge to Administrative Order Reclassifying Civil Service Positions

A proceeding challenging an administrative order abolishing a Court Officer civil service position, replacing it with a new Court Officer title and treating the new title as a reclassification rather than a reallocation (*see* Judiciary Law § 37 [3], [5], [11]), thereby denying petitioners continuous service credit towards longevity increments for time worked in their former title, was time-barred where it was commenced more than four months after petitioners received their first paychecks. The order impacted petitioners when they received their first paychecks, without continuous service credit, and thus they were aggrieved on that date. Since petitioners did not commence this proceeding until more than one year after receiving their paychecks, their claim regarding the administrative order was untimely. Moreover, a subsequent administrative order increasing the salary grade of Court Officers retroactive to the date of the earlier order did not extend the four-month limitations period in which petitioners were required to challenge the earlier order. The earlier order involved respondent administrator’s decision to eliminate the distinctions between certain positions, merge certain civil service titles and create a new entry-level position. The subsequent order simply assigned a higher salary for the new title and thus did not involve the sort of fresh, complete and unlimited examination into the merits as would be necessary to extend the four-month limitations period.

APPEARANCES OF COUNSEL

Law Offices of David Schlachter, Uniondale (*David Schlachter* of counsel), for appellants-respondents.

John W. McConnell, New York State Office of Court Administration, New York City (*Lee Alan Adlerstein* and *Pedro Morales* of counsel), for respondent-appellant.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs, and the certified question answered in the affirmative.

In this proceeding pursuant to CPLR article 78, petitioners challenge certain administrative orders of the Chief Administrative Judge of the State of New York (CAJ) dated January 8, 2004 (AO/072/04) and December 22, 2004 (AO/534/04), and seek

to compel the CAJ to pay New York State Court Officers employed in Suffolk County a salary increment reflecting a continuous service credit, in accordance with those orders. The January 2004 order abolished the position of Court Officer (a salary grade of JG-16) and replaced it with the new position of New York State (NYS) Court Officer (a salary grade of JG-17). The CAJ treated the new title as a reclassification pursuant to Judiciary Law § 37 (5), rather than pursuant to section 37 (3) (c), or a reallocation pursuant to section 37 (11). As a result, petitioners did not receive the continuous service credit they would have received if the new title had been treated as a reallocation. The December 2004 order increased the salary grade of NYS Court Officer from JG-17 to JG-18, retroactive to January 8, 2004.

Petitioners allege that pursuant to Judiciary Law § 37, both orders should have been treated as reallocations, not reclassifications. They claim that the January 2004 order denied them continuous service credit towards longevity increments for time worked in their former title, and that the December 2004 order adjusting their salary grade to JG-18, which was retroactive to January 8, 2004 rather than prospective, deprived them of salary increases to which they were entitled.

Petitioners' challenge to the January 2004 order is time-barred. On April 7, 2004, employees whose title changed from Court Officer to NYS Court Officer received their first paychecks reflecting the increase to JG-17, without continuous service credit. The order impacted petitioners on that date, and thus they were aggrieved on that date (*see generally Matter of Edmead v McGuire*, 67 NY2d 714, 716 [1986]; *see also Matter of Maurer v State Emergency Mgt. Off.*, 196 Misc 2d 750 [Sup Ct, Albany County 2003], *aff'd* 13 AD3d 751 [3d Dept 2004] [receipt of paycheck without overtime pay starts running of the statute of limitations for an article 78 proceeding to challenge failure to pay overtime]). Petitioners did not commence this proceeding until July 2005, more than one year after receiving their paychecks. Therefore, their claim regarding the January 2004 order is untimely (*see CPLR 217*).

Contrary to petitioners' assertion, the December 2004 order did not extend the four-month limitations period in which they were required to challenge the earlier order. The January 2004 order involved the CAJ's decision to eliminate the distinctions between officers in lower courts and superior courts, merge the titles of Court Officer and Senior Court Officer into the new

title of NYS Court Officer, and create a new entry-level position. In contrast, the December 2004 order simply assigned a JG-18 grade for the new title of NYS Court Officer and thus “did not involve the sort of fresh, complete and unlimited examination into the merits as is necessary to extend the four-month limitations period” (*Matter of Chisholm v Martinez*, 277 AD2d 166, 167 [1st Dept 2000] [internal quotation marks omitted]).

Finally, we agree with the Appellate Division that because the record contains no explanation or rationale for the retroactive application of the December 2004 order, petitioners have demonstrated their entitlement to the relief sought as to that order.

Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur; Chief Judge LIPPMAN taking no part.

Order affirmed, without costs, and certified question answered in the affirmative, in a memorandum.

ESTELLE A. CARR, Appellant, and DENNIS BEAVER, as Executor of ROYCE K. HOFFMAN, Deceased, Respondent, v ROSE A. CAPUTO, Defendant, and HENRY ALPIZAR et al., Respondents.

Submitted April 28, 2014; decided June 12, 2014

Reported below, 114 AD3d 62.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge ABDUS-SALAAM taking no part.

BRENDA CORNELL, Respondent, v 360 WEST 51ST STREET REALTY, LLC, et al., Defendants, and 360 WEST 51ST STREET CORP., Appellant.

Submitted May 5, 2014; decided June 12, 2014

Reported below, 95 AD3d 50.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 22 NY3d 762 (2014)].

Judge ABDUS-SALAAM taking no part.

IAIN CURTIS-SHANLEY, Appellant, v BANK OF AMERICA, Respondent.

Submitted May 12, 2014; decided June 12, 2014

Reported below, 109 AD3d 634.

Motion for reargument denied [*see* 22 NY3d 1133 (2014)].

EASTERN SAVINGS BANK, FSB, Respondent, v 106 ROCKAWAY OWNERS CORP. et al., Defendants, and ANTHONY MODICA, Appellant.

Submitted April 14, 2014; decided June 12, 2014

Reported below, 2014 NY Slip Op 66620(U).

Motion for leave to appeal denied. Motion for ancillary relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion (*see* NY Const, art VI, § 3).

In the Matter of GOSPEL FAITH MISSION INTERNATIONAL, INC., Respondent, v DAVID P. WEISS, Chairman of the Board of Appeals of the Town of Hempstead, et al., Appellants.

Submitted May 5, 2014; decided June 12, 2014

Reported below, 112 AD3d 824; 2014 NY Slip Op 66659(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of KAREN MATSEOANE, Deceased.

KAREN MATSEOANE, Respondent, v SUBTLE ENGINEERING COMPANY, Appellant.

Submitted April 28, 2014; decided June 12, 2014

Reported below, 110 AD3d 607.

Motion for reargument of motion for leave to appeal denied [*see* 22 NY3d 1172 (2014)].

ERROL McDONALD, Appellant, v EDELMAN & EDELMAN, P.C., et al., Respondents.

Submitted May 5, 2014; decided June 12, 2014

Reported below, 111 AD3d 457.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JAMES L. MELCHER, Appellant, v GREENBERG TRAUIG, LLP, et al., Respondents.

Submitted May 5, 2014; decided June 12, 2014

Reported below, 102 AD3d 497.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 23 NY3d 10 (2014)].

NADER & SONS, LLC, et al., Respondents, v DAN SHAVOLIAN, Also Known as DANNY SHAVOLIAN, Appellant, et al., Defendant.

Submitted May 12, 2014; decided June 12, 2014

Reported below, 113 AD3d 432.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ONE FLINT ST., LLC, et al., Respondents, v EXXON MOBIL CORPORATION et al., Appellants, et al., Defendants.

Submitted May 5, 2014; decided June 12, 2014

Reported below, 112 AD3d 1353.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RICHARD MILLS, Appellant, v JOHN LEMPKE, Superintendent, Five Points Correctional Facility, et al., Respondents.

Submitted April 28, 2014; decided June 12, 2014

Reported below, 112 AD3d 1365.

Motion for reargument of motion for leave to appeal denied [*see* 22 NY3d 864 (2014)]. Motion for poor person relief dismissed as academic.

Judge PIGOTT taking no part.

[16 NE3d 1243, 992 NYS2d 764]

In the Matter of KELLEY S. BOYD, Respondent, v NEW YORK
STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL et
al., Appellants.

Decided June 26, 2014

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 29, 2013. The Appellate Division (1) reversed, on the law, so much of a judgment of the Supreme Court, New York County (Barbara Jaffe, J.; op 2012 NY Slip Op 31260[U] [2012]), entered in a proceeding pursuant to CPLR article 78, as had denied the petition and dismissed the proceeding to annul a determination of respondent New York State Division of Housing and Community Renewal denying petitioner's petition for administrative review of the denial of petitioner's rent overcharge complaint, (2) vacated the judgment, and (3) remanded the matter to the Division of Housing and Community Renewal for further proceedings. The following question was certified by the Appellate Division: "Was the order of this Court which reversed and vacated the judgment of the Supreme Court, properly made?"

Although petitioner filed an overcharge complaint more than four years after the building owner registered the monthly rent, she contended that the State Division of Housing and Community Renewal should not have accepted \$1,750 as the registered monthly rent on the base date, April 7, 2005, because there were substantial indicia of fraud. The owner increased the registered monthly rent from \$572 in July 2004, when a longtime tenant vacated the apartment, to \$1,750 in October 2004. More than 90% of the increase reflected an adjustment for "individual apartment improvements" under the Rent Stabilization Law of 1969 and the Rent Stabilization Code.

Matter of Boyd v New York State Div. of Hous. & Community Renewal, 110 AD3d 594, reversed.

HEADNOTE**Landlord and Tenant — Rent Regulation — Denial of Petition for Administrative Review — Failure to Set Forth Sufficient Indicia of Fraud**

New York State Division of Housing and Community Renewal's determination denying tenant's petition for administrative review was not arbitrary or capricious, as tenant failed to set forth sufficient indicia of fraud to warrant consideration of the rental history beyond the four-year statutory period.

APPEARANCES OF COUNSEL

Gary R. Connor, General Counsel, New York State Division of Housing and Community Renewal, New York City (*Jack Kuttner* of counsel), for New York State Division of Housing and Community Renewal, appellant.

Rappaport, Hertz, Cherson & Rosenthal, P.C., Forest Hills (*David I. Paul* and *Jeffrey M. Steinitz* of counsel), for 232/242 Realty Co. LLC and others, appellants.

Northern Manhattan Improvement Corporation Legal Services, New York City (*Kenneth N. Rosenfeld* and *Matthew J. Chachère* of counsel), for respondent.

South Brooklyn Legal Services, Brooklyn (*Edward Josephson* of counsel) and *Adriene Holder, The Legal Aid Society*, New York City (*Ellen Davidson* of counsel), for Association for Neighborhood and Housing Development and others, amici curiae.

Justin R. La Mort, Brooklyn, and *Madeline La Forgia*, for CAMBA Legal Services, Inc., amicus curiae.

Himmelstein, McConnell, Gribben, Donoghue & Joseph, New York City (*Ronald S. Languedoc* of counsel), for Bill Perkins and another, amici curiae.

Adele Bartlett, Deputy General Counsel, Office of Manhattan Borough President, New York City, and *Chaumtoli Huq, General Counsel for Litigation, Office of New York City Public Advocate*, for Letitia James and others, amici curiae.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, judgment of Supreme Court, New York County, reinstated, and certified question answered in the negative. New York State Division of Housing and Community Renewal's determination denying tenant's petition for administrative review was not arbitrary or capricious, as tenant failed to set forth sufficient indicia of fraud to warrant consideration

of the rental history beyond the four-year statutory period (*see Matter of Grimm v State of N.Y. Div. of Hous. & Community Renewal Off. of Rent Admin.*, 15 NY3d 358, 366-367 [2010]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

[16 NE3d 1243, 992 NYS2d 765]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JEFFREY JOHNSON, Respondent.

Decided June 26, 2014

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 27, 2013. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Bronx County (Harold Adler, J., at suppression hearing; Seth Marvin, J., at trial and sentencing), which had convicted defendant, after a nonjury trial, of attempted criminal possession of a weapon in the fourth degree, and attempted possession of ammunition, (2) granted defendant's suppression motion, and (3) dismissed the accusatory instrument.

In a New York City Housing Authority building, which the testifying officer characterized as a "drug-prone" location, the officer observed defendant descending the stairs to the lobby. Upon seeing the police, defendant "froze," "jerked back," and appeared "as if he was going to go back up the stairs," although he never retreated up the stairs. The officer asked defendant to come downstairs, and defendant complied. The officer inquired whether defendant lived in the building, and defendant replied in the affirmative, whereupon the officer asked defendant to produce identification. Defendant immediately clarified that he was visiting his girlfriend, who lived in the building, and informed the officer that his identification was located in his pocket. As defendant moved his hands to retrieve it, the officer's partner grabbed defendant's left arm and pulled his hand behind his back, revealing a handgun inside defendant's coat pocket. The officer seized the gun and placed defendant under arrest.

The Appellate Division concluded that defendant was entitled to suppression because the police action was impermissible at its inception. Presence in a high-crime or drug-prone location,

without more, does not furnish an objective credible reason for the police to approach an individual and request information, and an individual's desire to avoid contact with police—even in a high-crime neighborhood—does not constitute an objective credible reason for making a level one inquiry.

People v Johnson, 109 AD3d 449, appeal dismissed.

HEADNOTE

Crimes — Appeal — Dismissal

An appeal from an Appellate Division order, which reversed a judgment of conviction, granted defendant's suppression motion and dismissed the accusatory instrument, was dismissed upon the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]).

APPEARANCES OF COUNSEL

Robert T. Johnson, District Attorney, Bronx (*Richard J. Ramsay* of counsel), for appellant.

Seymour W. James, Jr., *The Legal Aid Society*, New York City (*Harold V. Ferguson, Jr.*, of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed upon the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

[18 NE3d 739, 994 NYS2d 39]

In the Matter of PABLO COSTELLO, Appellant, v NEW YORK STATE BOARD OF PAROLE et al., Respondents.

Argued June 5, 2014; decided June 26, 2014

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 27, 2012, in a proceeding pursuant to CPLR article 78 (transferred to the Ap-

pellate Division by order of the Supreme Court, entered in Albany County). The Appellate Division (1) confirmed a determination of the respondent New York State Board of Parole, which had rescinded petitioner's open parole release date and imposed a hold period of 24 months, and (2) dismissed the petition to review the determination.

During the course of an armed robbery of a store by petitioner and an accomplice, a New York City police officer was shot and killed by the accomplice. Petitioner was eventually convicted of felony murder and received a sentence of 25 years to life in prison on that count. He became eligible for parole in 2003 and, after three unsuccessful appearances before respondent Board of Parole, in August 2009 the Board, by a two-to-one vote, granted petitioner parole with an open release date of September 29, 2009. However, prior to his release date, petitioner's release was temporarily suspended when it was learned that the deceased officer's wife had not been notified or accorded the opportunity to make a victim impact statement. The officer's wife, his four children and other family members gave oral and written victim impact statements in October 2009. The Board ordered a rescission hearing and, following an unsuccessful CPLR article 78 proceeding by petitioner to prohibit the Board from conducting the rescission hearing, the hearing was eventually conducted in October 2010. Evidence presented by petitioner included his laudable achievements while incarcerated as well as support from, among others, a college professor and a member of the clergy. The Board nonetheless unanimously voted to rescind the release date finding that the "compelling statements" from the victim's family constituted significant new information. Petitioner's administrative appeal was unsuccessful.

Matter of Costello v New York State Bd. of Parole, 101 AD3d 1512, reversed.

HEADNOTE

Parole — Revocation — Victim Impact Statement

Petitioner's parole was reinstated and the Board of Parole's determination was annulled, notwithstanding that the Executive Law requires the Board of Parole to consider any victim impact statement in the decision to grant or deny parole release to an inmate (*see* Executive Law § 259-i [2] [c] [A]), since, under the particular circumstances, the Board improperly rescinded petitioner's parole release.

APPEARANCES OF COUNSEL

Alfred O'Connor, New York State Defenders Association, Albany, and *Norman P. Effman*, Public Defender, Warsaw, for appellant.

Eric T. Schneiderman, Attorney General, Albany (Nancy A. Spiegel, Barbara D. Underwood and Andrea Oser of counsel), for respondents.

Mayer Brown, LLP, New York City (Scott A. Chesin and Michael Rayfield of counsel), for Robert Dennison and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, the challenged determination annulled, and petitioner's parole reinstated.

The Executive Law requires the Board of Parole (the Board) to consider any victim impact statement in the decision to grant or deny parole release to an inmate (*see* Executive Law § 259-i [2] [c] [A]). Nonetheless, while it is undisputed that rescission proceedings were properly initiated here, under the particular circumstances of this case, the Board improperly rescinded petitioner's parole release, which should be reinstated.

Our resolution of this case should not be interpreted as minimizing either the importance of victim impact statements in parole board hearings generally or the powerfully presented evidence of the grief and loss experienced by the family of the victim in this case. On the contrary, we hope that our decision will impel both parole boards and district attorneys to comply fully with the letter and spirit of Executive Law § 259-i (2) (c) (A) (v) and CPL 440.50 (1), so that the effect of a crime on the victim and his or her family can be considered fully before a decision is made.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order reversed, with costs, the challenged determination annulled and petitioner's parole reinstated, in a memorandum.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS, INC., Respondent.

Submitted June 2, 2014; decided June 26, 2014

Reported below, 112 AD3d 522.

Motion by CXA-13 Corporation for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge ABDUS-SALAAM taking no part.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS,
INC., Respondent.

Submitted June 9, 2014; decided June 26, 2014

Reported below, 112 AD3d 522.

Motion by the Association of Mortgage Investors for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge ABDUS-SALAAM taking no part.

In the Matter of PAUL SHEARMAN ALLEN, an Attorney, Appel-
lant. GRIEVANCE COMMITTEE OF THE SEVENTH JUDICIAL DIS-
TRICT, Respondent.

Decided June 26, 2014

Reported below, 115 AD3d 225.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

In the Matter of JOHNNY BRIGGS, Respondent, v ANGELA
MICHELE MCKINNEY-MAYS, Appellant.

Submitted May 5, 2014; decided June 26, 2014

Reported below, 112 AD3d 622.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

JOSEPH J. CASSATA, Appellant, v STATE OF NEW YORK et al.,
Respondents, et al., Defendant.

Decided June 26, 2014

Reported below, 115 AD3d 1209.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge LIPPMAN and Judge PIGOTT taking no part.

JADWIGA DABROWSKI, as Surviving Spouse to JOZEF DABROWSKI, Deceased, Appellant, v METROPOLITAN LIFE INSURANCE COMPANY, Respondent.

Submitted April 7, 2014; decided June 26, 2014

Reported below, 113 AD3d 808.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601). Motion for leave to appeal denied.

Chief Judge LIPPMAN taking no part.

In the Matter of EVAN E., a Child Alleged to be Neglected. ULSTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; SUSAN F., Respondent. ULSTER COUNTY COURT APPOINTED SPECIAL ADVOCATES, Nonparty Appellant. (And Three Other Related Proceedings.)

Submitted May 5, 2014; decided June 26, 2014

Reported below, 114 AD3d 149.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Chief Judge LIPPMAN taking no part.

GETTY PROPERTIES CORP. et al., Respondents, v GETTY PETROLEUM MARKETING INC., Defendant, and 1314 SEDGWICK AVE. LLC et al., Appellants.

Submitted May 5, 2014; decided June 26, 2014

Reported below, 115 AD3d 616.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of KAYLA LL. and Others, Alleged to be Abused and Neglected Children. GREENE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JOSEPH NN., Appellant.

Submitted March 31, 2014; decided June 26, 2014

Reported below, 2014 NY Slip Op 66412(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of LYNIK JOMAE E., JR., an Infant. LYNIK JOMAE E., Appellant; HARLEM DOWLING CHILDREN'S SERVICES, Respondent.

Submitted May 27, 2014; decided June 26, 2014

Reported below, 112 AD3d 513.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JARROD BROWN, Respondent.

Submitted June 16, 2014; decided June 26, 2014

Reported below, 115 AD3d 155.

Motion for assignment of counsel granted and Scott A. Rosenberg, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LEE CARR, Appellant.

Submitted June 16, 2014; decided June 26, 2014

Reported below, 111 AD3d 472.

Motion for assignment of counsel granted and Scott A. Rosenberg, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH CONCEICAO, Appellant.

Submitted June 16, 2014; decided June 26, 2014

Reported below, 33 Misc 3d 132(A).

Motion for assignment of counsel granted and Scott A. Rosenberg, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAYMOND DENSON, Appellant.

Submitted June 9, 2014; decided June 26, 2014

Reported below, 114 AD3d 543.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLIFFORD GRAHAM, Appellant.

Submitted June 16, 2014; decided June 26, 2014

Reported below, 107 AD3d 1505.

Motion for assignment of counsel granted and Philip Rothchild, Esq., Hiscock Legal Aid Society, 351 South Warren Street, Syracuse, New York 13202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEVON JONES, Appellant.

Submitted June 23, 2014; decided June 26, 2014

Reported below, 114 AD3d 1080.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVEN LASHWAY, Appellant.

Submitted June 9, 2014; decided June 26, 2014

Reported below, 112 AD3d 1235.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANCE J. REED, Appellant.

Submitted April 14, 2014; decided June 26, 2014

Reported below, 97 AD3d 1142.

Motion for reargument denied [*see* 22 NY3d 530 (2014)].

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v PATRICK THOMAS, Respondent.

Submitted June 16, 2014; decided June 26, 2014

Reported below, 115 AD3d 69.

Motion for assignment of counsel granted and Scott A. Rosenberg, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RONALD JACKSON, Appellant, v YOLANDA CANTY, Warden, Respondent.

Submitted June 2, 2014; decided June 26, 2014

Reported below, 2014 NY Slip Op 63095(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

STEVEN C. RIDGE, Appellant, v ALICE GOLD et al., Defendants,
and JAY BRAYMILLER, Respondent.

Decided June 26, 2014

Reported below, 115 AD3d 1263.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

ROBERT L. SCHULZ, Appellant, v STATE OF NEW YORK EXECUTIVE
et al., Respondents. (Index No. 4115-13.)

Decided June 26, 2014

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie where the judgment appealed from does not finally determine the action within the meaning of the Constitution (*see Flushing Natl. Bank v City of New York*, 38 NY2d 999 [1976]; NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

ROBERT L. SCHULZ et al., Appellants, v NEW YORK STATE EXECUTIVE
et al., Respondents. (Index No. 1232-13.)

Decided June 26, 2014

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

ROBERT L. SCHULZ, Appellant, v SHELDON SILVER, as Speaker of
the State Assembly, Respondent.

Decided June 26, 2014

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions

other than the constitutional validity of a statutory provision are involved (NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

In the Matter of STATE OF NEW YORK, Respondent, v ENRIQUE T., Appellant.

Decided June 26, 2014

Reported below, 114 AD3d 618; 93 AD3d 158.

Appeal, insofar as it seeks review of the February 27, 2014 Appellate Division order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved. Defendant's appeal from the February 27, 2014 Appellate Division order brings up for review only the prior nonfinal Appellate Division order entered January 26, 2012 (*see* CPLR 5601 [d]; 5501 [b]; *Curiale v Ardra Ins. Co.*, 86 NY2d 774 [1995]; *Matter of Greatsinger*, 66 NY2d 680, 682-683 [1985]; *Gilroy v American Broadcasting Co.*, 46 NY2d 580, 584 [1979]).

MICHELE TREZZA, Appellant, et al., Plaintiff, v METROPOLITAN TRANSPORTATION AUTHORITY et al., Respondents, et al., Defendant.

Decided June 26, 2014

Reported below, 113 AD3d 402.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Appellate Division does not have the power to grant leave to appeal to the Court of Appeals on a certified question from an order granting a new trial (*see* CPLR 5601 [c]; 5602 [b] [1]; *Fishman v Manhattan & Bronx Surface Tr. Operating Auth.*, 78 NY2d 878 [1991]; *Maynard v Greenberg*, 82 NY2d 913, 915 [1994]), without prejudice to appellant stipulating in a timely fashion as determined by the Appellate Division to a reduced award for past pain and suffering and moving for leave to appeal at the Appellate Division pursuant to CPLR 5602 (a) (1) (ii) from the amended judgment entered on such stipulation.

WELLS FARGO BANK, Appellant, v LUCINA HODGE et al., Defendants, and JOSEPH CALLENDER, Respondent.

Submitted April 21, 2014; decided June 26, 2014

Reported below, 92 AD3d 775.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ANDREW E. WISOFF, Appellant, v CITY OF SCHENECTADY, Respondent.

Decided June 26, 2014

Reported below, 116 AD3d 1187.

Appeal, insofar as taken from that portion of the Appellate Division order that affirmed the Supreme Court order denying reconsideration, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

[16 NE3d 1252, 992 NYS2d 773]

THOMAS BOYLE et al., Appellants, v STARWOOD HOTELS & RESORTS WORLDWIDE, INC., Respondent.

Decided June 30, 2014

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered October 23, 2013. The Appellate Division modified, on the facts and in the exercise of discretion, an order of the Supreme Court, Westchester County (Sam D. Walker, J.), which had granted defendant's motion to dismiss the action on the ground of forum non conveniens. The modification consisted of adding a provision to the order conditioning the grant of defendant's motion on defendant stipulating (1) to accept service of process in a new action commenced by plaintiffs in the United Kingdom, France, or the

United Arab Emirates upon the same causes of action as those asserted in the instant complaint, or, in the alternative, at the choice of the individual plaintiffs, to accept service of process in a new action or actions commenced separately by plaintiffs in the United Kingdom, France, or the United Arab Emirates upon the same causes of action as those asserted separately on behalf of the individual plaintiffs in the instant complaint; and (2) to waive any defenses, including that of the statute of limitations, which were not available in New York at the time of the commencement of this action, all provided that the new action or actions are commenced within 90 days after service of the stipulation upon plaintiff. The Appellate Division affirmed the order as modified and further provided that in the event that defendant fails to so stipulate within 60 days after service upon it of a copy of the Appellate Division decision and order, then the order is reversed, on the facts and in the exercise of discretion, and the motion is denied. The following question was certified by the Appellate Division: “Was the decision and order of this Court dated October 23, 2013, properly made?”

Plaintiff Thomas Boyle was a resident of the United Kingdom, and plaintiff Elodie Nogues was a resident of France. The complaint alleged that Boyle and Nogues contracted Legionnaire’s disease during separate stays at a hotel located in Dubai, United Arab Emirates, which was owned by defendant. The complaint sought to recover damages under theories of breach of contract and negligence, and asserted a derivative cause of action on behalf of Thomas Boyle’s wife, plaintiff Catherine Boyle, who was also a resident of the United Kingdom. Defendant was a Maryland corporation and was alleged to have its principal place of business in White Plains, the sole connection of the case to the State of New York. The Appellate Division concluded that, under the circumstances, the Supreme Court, considering all of the relevant and appropriate factors, providently exercised its discretion in granting defendant’s motion to dismiss the action on the ground of forum non conveniens pursuant to CPLR 327 (a).

Boyle v Starwood Hotels & Resorts Worldwide, Inc., 110 AD3d 938, affirmed.

HEADNOTE

Courts — Forum Non Conveniens — Discretion of Court

It was not an abuse of discretion to grant, with conditions, defendant’s motion to dismiss the complaint on the ground of forum non conveniens (*see* CPLR 327 [a]).

APPEARANCES OF COUNSEL

Ballon Stoll Bader & Nadler, P.C., New York City (*Vano I. Haroutunian* of counsel), for appellants.

Polsinelli PC, New York City (*Jason A. Nagi* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question not answered as unnecessary. It was not an abuse of discretion to grant, with conditions, defendant's motion to dismiss the complaint on the ground of forum non conveniens (*see* CPLR 327 [a]; *Islamic Republic of Iran v Pahlavi*, 62 NY2d 474, 478 [1984]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted May 5, 2014; decided June 30, 2014

Reported below, 2014 NY Slip Op 60942(U).

Motion for reargument of motion for leave to appeal denied [*see* 22 NY3d 1171 (2014)].

BELLINSON LAW, LLC, Appellant, v ROBERT IANNUCCI, Respondent.

Submitted May 19, 2014; decided June 30, 2014

Reported below, 116 AD3d 401.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of HANNAH L. and Others, Infants. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; DWAYNE L., Appellant.

Submitted May 27, 2014; decided June 30, 2014

Reported below, 113 AD3d 1140.

Motion for reargument of motion for leave to appeal denied [*see* 22 NY3d 865 (2014)].

HSBC BANK USA, NATIONAL ASSOCIATION, as Trustee for ACE SECURITIES CORPORATION HOME EQUITY LOAN TRUST, SERIES 2006-OP2 ASSET BACKED PASS-THROUGH CERTIFICATES, Respondent, v GREGORY SAGE, Appellant, et al., Defendants.

Submitted May 19, 2014; decided June 30, 2014

Reported below, 112 AD3d 1126; 2014 NY Slip Op 68484(U).

Motion, insofar as it seeks leave to appeal from the December 2013 Appellate Division order, dismissed upon the ground that it does not lie, appellant having previously moved in the Court of Appeals for leave to appeal (22 NY3d 1172 [2014]) from the same Appellate Division order (*see Selinger v Selinger*, 90 NY2d 842 [1997]); motion for leave to appeal otherwise dismissed upon the ground that the other order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JOSEPH W. MCKAY, Respondent, v VILLAGE OF ENDICOTT, Appellant.

Submitted May 19, 2014; decided June 30, 2014

Reported below, 113 AD3d 989.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JIN CHENG LIN, Appellant.

Submitted June 2, 2014; decided June 30, 2014

Reported below, 105 AD3d 761.

Motion to vacate this Court's May 6, 2014 dismissal order granted [*see* 23 NY3d 959 (2014)].

PJ HANLEY'S CORP., Appellant, v KIWI PUB CORP., Respondent.

Submitted June 23, 2014; decided June 30, 2014

Reported below, 116 AD3d 607.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

In the Matter of VOLODYMYR I. TKACHYSHYN, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted May 19, 2014; decided June 30, 2014

Reported below, 109 AD3d 1071.

Motion for reconsideration of this Court's April 1, 2014 dismissal order denied [*see* 22 NY3d 1168 (2014)]. Motion for leave to appeal denied.

In the Matter of VOLODYMYR I. TKACHYSHYN, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted June 23, 2014; decided June 30, 2014

Reported below, 110 AD3d 1130.

Motion for reconsideration of this Court's April 1, 2014 dismissal order denied [*see* 22 NY3d 1168 (2014)]. Motion for leave to appeal denied.

In the Matter of TYRONE D., Appellant, v STATE OF NEW YORK et al., Respondents.

Submitted June 2, 2014; decided June 30, 2014

Reported below, 106 AD3d 1488, 1490.

Motion to strike portions of the brief filed by respondents granted to the extent of deeming stricken appended pages A31-A32 and references thereto in the first two sentences of the paragraph appearing at pages 14-15 of the brief; motion to strike otherwise denied.

YOUNG WOO & ASSOC., LLC, et al., Respondents, v ANDREW Y. KIM, Defendant. CHRISTINE A. RODRIGUEZ, Nonparty Appellant.

Submitted May 27, 2014; decided June 30, 2014

Reported below, 115 AD3d 534.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(June 1, 2014 through June 30, 2014)

Bank of Am., N.A. v Dudkevich	App Div, 2d Dept: 2014 NY Slip Op 65155(U)	6/27/14
Kinsella v Powerguard Specialty Ins. Servs., LLC	1st Dept: 112 AD3d 414	6/19/14

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2014 through June 30, 2014)

People v Acevedo (Hector)	3d Dept: 112 AD3d 985 (Albany)	denied 6/27/14 (Abdus-Salaam, J.)
People v Acevedo (Mark)	1st Dept: 112 AD3d 454 (NY)	denied 6/27/14 (Abdus-Salaam, J.)
People v Aikey	4th Dept: 112 AD3d 1384 (Ontario)	denied 6/27/14 (Rivera, J.)
People v Aliano	2d Dept: 116 AD3d 874 (Suffolk)	denied 6/12/14 (Lippman, Ch. J.)
People v Allen	App Div, 1st Dept: 2013 NY Slip Op 75328(U) (NY)	denied reconsideration 6/18/14 (Lippman, Ch. J.)
People v Alleyne	2d Dept: 114 AD3d 804 (Kings)	denied 6/16/14 (Read, J.)
People v Alligood	4th Dept: 115 AD3d 1346 (Monroe)	denied 6/18/14 (Read, J.)
People v Alvarez	1st Dept: 116 AD3d 454 (NY)	denied 6/12/14 (Lippman, Ch. J.)
People v Anderson	2d Dept: 115 AD3d 972 (Kings)	denied 6/25/14 (Grafteo, J.)

People v Andrews	2d Dept: 108 AD3d 727 (Kings)	denied reconsideration 6/25/14 (Rivera, J.)
People v Austin	County Ct, 12/13/13 (Genesee)	denied 6/9/14 (Read, J.)
People v Bailey (Aubrey)	4th Dept: 111 AD3d 1310 (Monroe)	denied 6/9/14 (Read, J.)
People v Bailey (Lorenzo)	1st Dept: 112 AD3d 473 (NY)	denied 6/27/14 (Abdus-Salaam, J.)
People v Beltran	2d Dept: 110 AD3d 153 (Kings)	denied 6/10/14 (Lippman, Ch. J.)
People v Bernard (Gregory)	4th Dept: 115 AD3d 1214 (Monroe)	denied 6/12/14 (Smith, J.) (Appeal No. 1)
People v Bernard (Gregory)	4th Dept: 115 AD3d 1215 (Monroe)	denied 6/12/14 (Smith, J.) (Appeal No. 2)
People v Bishop	4th Dept: 115 AD3d 1243 (Monroe)	denied 6/24/14 (Rivera, J.)
People v Breazil	App Div, 2d Dept: 2014 NY Slip Op 66183(U) (Kings)	dismissed 6/10/14 (Pigott, J.)
People v Brewer	4th Dept: 114 AD3d 1256 (Ontario)	denied 6/11/14 (Read, J.)
People v Briggs	4th Dept: 115 AD3d 1245 (Monroe)	denied 6/24/14 (Grafteo, J.)
People v Brown (DeJuan)	2d Dept: 109 AD3d 935 (Kings)	denied 6/27/14 (Abdus-Salaam, J.)
People v Brown (Larry)	1st Dept: 116 AD3d 597 (NY)	denied 6/27/14 (Pigott, J.)
People v Brown (Terence)	3d Dept: 107 AD3d 1305 (Cortland)	dismissed 6/18/14 (Lippman, Ch. J.)
People v Brown (Tyreen)	2d Dept: 113 AD3d 785 (Kings)	denied 6/11/14 (Read, J.)
People v Bruno	1st Dept: 111 AD3d 488 (Bronx)	denied 6/9/14 (Read, J.)
People v Bunch	2d Dept: 112 AD3d 958 (Kings)	denied 6/13/14 (Lippman, Ch. J.)
People v Burkett	App Div, 3d Dept: 2013 NY Slip Op 95215(U) (Rensselaer)	denied 6/11/14 (Read, J.)
People v Burr	App Div, 4th Dept: 2014 NY Slip Op 68964(U) (Erie)	dismissed 6/16/14 (Grafteo, J.)
People v Campbell	4th Dept: 111 AD3d 1253 (Erie)	denied 6/9/14 (Read, J.)
People v Cantoni	2d Dept: 112 AD3d 733 (Nassau)	denied 6/27/14 (Rivera, J.)
People v Caraway	App Div, 3d Dept, 4/15/14 (Ulster)	dismissed 6/23/14 (Read, J.)
People v Carmona	2d Dept: 115 AD3d 871 (Kings)	denied 6/24/14 (Rivera, J.)

MEMORANDA

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People v Carter	4th Dept: 107 AD3d 1570 (Monroe)	denied 6/13/14 (Lippman, Ch. J.)
People v Cates	1st Dept: 92 AD3d 553 (Bronx)	granted upon reconsideration 6/25/14 (Grafteo, J.)
People v Chandler	4th Dept: 109 AD3d 1202 (Erie)	denied 6/16/14 (Rivera, J.)
People v Cole	4th Dept: 115 AD3d 1274 (Erie)	denied 6/25/14 (Grafteo, J.)
People v Collier	2d Dept: 113 AD3d 786 (Queens)	denied 6/11/14 (Read, J.)
People v Collins	2d Dept: 109 AD3d 482 (Queens)	denied 6/27/14 (Abdus-Salaam, J.)
People v Cotton	App Div, 4th Dept: 2014 NY Slip Op 69606(U) (Erie)	dismissed 6/27/14 (Smith, J.)
People v Coutant	3d Dept: 111 AD3d 981 (Ulster)	denied 6/9/14 (Read, J.)
People v Cruz (Eulogio)	App Div, 3d Dept: 2013 NY Slip Op 81872(U) (Rensselaer)	denied reconsideration 6/10/14 (Pigott, J.)
People v Cruz (Miguel)	2d Dept: 111 AD3d 651 (Kings)	denied 6/16/14 (Rivera, J.)
People v Cruz (Nelson)	1st Dept: 112 AD3d 478 (Bronx)	denied 6/27/14 (Abdus-Salaam, J.)
People v Daniels	4th Dept: 115 AD3d 1364 (Livingston)	denied 6/27/14 (Pigott, J.)
People v Dashnaw	3d Dept: 116 AD3d 1222 (Clinton)	denied 6/25/14 (Grafteo, J.)
People v Davis	4th Dept: 115 AD3d 1167 (Onondaga)	denied 6/27/14 (Pigott, J.)
People v Deal	2d Dept: 115 AD3d 975 (Suffolk)	denied 6/12/14 (Smith, J.)
People v Deschaine	3d Dept: 116 AD3d 1303 (Warren)	denied 6/25/14 (Grafteo, J.)
People v Diaz	4th Dept: 115 AD3d 1343 (Monroe)	denied 6/18/14 (Read, J.)
People v Domin	2d Dept: 109 AD3d 553 (Dutchess)	denied 6/13/14 (Lippman, Ch. J.)
People v Dove	App Div, 2d Dept: 2014 NY Slip Op 68613(U) (Kings)	dismissed 6/12/14 (Smith, J.)
People v Drouin	4th Dept: 115 AD3d 1153 (Allegany)	denied 6/25/14 (Grafteo, J.)
People v Eccleston	2d Dept: 113 AD3d 699 (Suffolk)	denied 6/9/14 (Read, J.)
People v Ellis	2d Dept: 114 AD3d 961 (Kings)	denied 6/16/14 (Read, J.)
People v Estevez-Santos	4th Dept: 114 AD3d 1174 (Yates)	denied 6/4/14 (Lippman, Ch. J.)

People v Facen	4th Dept: 117 AD3d 1463 (Erie)	denied 6/25/14 (Grafteo, J.)
People v Farrell	1st Dept: 116 AD3d 518 (NY)	denied 6/16/14 (Grafteo, J.)
People v Felder	App Div, 1st Dept: 2014 NY Slip Op 66336(U) (NY)	denied 6/25/14 (Grafteo, J.)
People v Fields	2d Dept: 115 AD3d 673 (Kings)	denied 6/18/14 (Read, J.)
People v Fils-Aime	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 43 Misc 3d 128(A) (Queens)	denied 6/9/14 (Lippman, Ch. J.)
People v Fisher	2d Dept: 116 AD3d 968 (Queens)	denied 6/27/14 (Smith, J.)
People v Fling	3d Dept: 112 AD3d 1001 (Saratoga)	denied 6/9/14 (Read, J.)
People v Foreman	1st Dept: 117 AD3d 445 (NY)	denied 6/25/14 (Grafteo, J.)
People v Forsberg	App Term, 2d Dept, 9th & 10th Jud Dists: 40 Misc 3d 132(A) (Westchester)	denied 6/17/14 (Rivera, J.)
People v Frazier (Brent)	2d Dept: 113 AD3d 789 (Kings)	denied 6/13/14 (Read, J.)
People v Frazier (Edwin)	2d Dept: 115 AD3d 759 (Suffolk)	denied 6/10/14 (Pigott, J.)
People v Fully	2d Dept: 109 AD3d 936 (Richmond)	denied 6/27/14 (Abdus-Salaam, J.)
People v Garbez	App Div, 1st Dept: 2013 NY Slip Op 93892(U) (NY)	denied 6/11/14 (Read, J.)
People v Garcia	1st Dept: 116 AD3d 481 (NY)	denied 6/10/14 (Smith, J.)
People v Georgiou	2d Dept: 113 AD3d 875 (Suffolk)	denied 6/13/14 (Read, J.)
People v Gilbert	2d Dept: 114 AD3d 874 (Suffolk)	denied 6/16/14 (Read, J.)
People v Glusko	2d Dept: 109 AD3d 668 (Dutchess)	denied 6/27/14 (Abdus-Salaam, J.)
People v Gonzalez (Franklyn)	App Div, 1st Dept: 2013 NY Slip Op 87081(U) (NY)	denied 6/11/14 (Abdus-Salaam, J.)
People v Gonzalez (Michael)	1st Dept: 110 AD3d 515 (NY)	denied 6/30/14 (Lippman, Ch. J.)
People v Gray	County Ct, 12/20/13 (Erie)	denied 6/27/14 (Abdus-Salaam, J.)
People v Griffith	App Div, 4th Dept (Onondaga)	dismissed 6/16/14 (Grafteo, J.)
People v Grzymalski	2d Dept: 116 AD3d 712 (Suffolk)	denied 6/12/14 (Smith, J.)
People v Harris	2d Dept: 112 AD3d 738 (Kings)	denied 6/23/14 (Lippman, Ch. J.)
People v Harrison	2d Dept: 112 AD3d 967 (Kings)	denied 6/11/14 (Read, J.)

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People v Hart	App Div, 1st Dept: 2014 NY Slip Op 66336(U) (NY)	denied 6/25/14 (Grafteo, J.)
People v Hayes	2d Dept: 116 AD3d 881 (Kings)	denied 6/11/14 (Lippman, Ch. J.)
People v Henriquez	3d Dept: 112 AD3d 1060 (Chemung)	denied 6/9/14 (Read, J.)
People v Henry	4th Dept: 111 AD3d 1321 (Onondaga)	denied 6/9/14 (Read, J.)
People v Hernandez (Edras)	4th Dept: 117 AD3d 1470 (Onondaga)	denied 6/27/14 (Smith, J.)
People v Hernandez (Lizbeth)	2d Dept: 110 AD3d 919 (Westchester)	denied 6/16/14 (Rivera, J.)
People v Hernandez (Thomas)	2d Dept: 102 AD3d 983 (Queens)	denied reconsideration 6/30/14 (Lippman, Ch. J.)
People v Hidalgo	4th Dept: 114 AD3d 1244 (Erie)	denied 6/16/14 (Read, J.)
People v Hospie	2d Dept: 115 AD3d 677 (Westchester)	denied 6/12/14 (Lippman, Ch. J.)
People v Hurst	4th Dept: 113 AD3d 1119 (Livingston)	denied reconsideration 6/25/14 (Grafteo, J.)
People v Husein	County Ct, 3/27/13 (Onondaga)	denied 6/27/14 (Smith, J.)
People v Iliff	2d Dept: 115 AD3d 764 (Queens)	denied 6/10/14 (Pigott, J.)
People v Israel	1st Dept: 111 AD3d 413 (NY)	granted 6/12/14 (Lippman, Ch. J.)
People v Izurieta	2d Dept: 116 AD3d 881 (Rockland)	denied 6/25/14 (Grafteo, J.)
People v Jacobs	2d Dept: 113 AD3d 634 (Westchester)	denied 6/27/14 (Rivera, J.)
People v Johnson (Chantal)	1st Dept: 114 AD3d 534 (Bronx)	denied 6/20/14 (Pigott, J.)
People v Johnson (Eric)	County Ct, 11/25/13 (Ontario)	granted 6/23/14 (Abdus-Salaam, J.)
People v Johnson (Robert)	1st Dept: 116 AD3d 501 (NY)	denied 6/27/14 (Smith, J.)
People v Jones (Gregory)	App Div, 4th Dept, 1/16/14 (Genesee)	denied reconsideration 6/12/14 (Smith, J.)
People v Jones (Jamar)	4th Dept: 107 AD3d 1584 (Erie)	denied reconsideration 6/11/14 (Read, J.)
People v Jurgins	1st Dept: 107 AD3d 595 (Bronx)	granted 6/24/14 (Rivera, J.)
People v Khojandi	2d Dept: 116 AD3d 884 (Suffolk)	denied 6/16/14 (Grafteo, J.)

People v King (James)	4th Dept: 111 AD3d 1345 (Monroe)	denied 6/9/14 (Read, J.)
People v King (Ürselina)	2d Dept: 110 AD3d 1005 (Kings)	granted 6/27/14 (Lippman, Ch. J.)
People v Knapp	2d Dept: 108 AD3d 641 (Orange)	denied 6/9/14 (Read, J.)
People v Koehl	2d Dept: 109 AD3d 668 (Richmond)	denied 6/27/14 (Abdus-Salaam, J.)
People v Larkins	4th Dept: 108 AD3d 1210 (Cayuga)	denied 6/27/14 (Lippman, Ch. J.)
People v Leach	1st Dept: 114 AD3d 518 (NY)	denied 6/16/14 (Rivera, J.)
People v Linares (Henry)	2d Dept: 116 AD3d 792 (Westchester)	denied 6/10/14 (Pigott, J.)
People v Linares (Wilmer)	2d Dept: 113 AD3d 796 (Nassau)	denied 6/13/14 (Read, J.)
People v Linder	4th Dept: 114 AD3d 1200 (Erie)	denied 6/16/14 (Read, J.)
People v Lucas	1st Dept: 113 AD3d 425 (NY)	denied 6/11/14 (Read, J.)
People v Mackenzie	2d Dept: 115 AD3d 772 (Nassau)	denied 6/18/14 (Pigott, J.)
People v Marcoll	App Term, 1st Dept: 40 Misc 3d 141(A) (Bronx)	denied 6/26/14 (Rivera, J.)
People v Martinez (George)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 41 Misc 3d 143(A) (Queens)	denied 6/9/14 (Read, J.)
People v Martinez (Michael)	2d Dept: 113 AD3d 636 (Dutchess)	denied 6/27/14 (Lippman, Ch. J.)
People v Matthews	1st Dept: 115 AD3d 625 (Bronx)	denied 6/10/14 (Pigott, J.)
People v McCalla	4th Dept: 115 AD3d 1241 (Monroe)	denied 6/11/14 (Lippman, Ch. J.)
People v McDonald	4th Dept: 110 AD3d 1490 (Ontario)	denied 6/16/14 (Rivera, J.)
People v McGowan	2d Dept: 111 AD3d 850 (Kings)	denied 6/27/14 (Lippman, Ch. J.)
People v Messina	App Term, 2d Dept, 9th & 10th Jud Dists: 43 Misc 3d 78 (Suffolk)	denied 6/10/14 (Pigott, J.)
People v Middlebrooks	4th Dept: 117 AD3d 1445 (Erie)	granted 6/25/14 (Grafteo, J.)
People v Miller	2d Dept: 112 AD3d 856 (Kings)	denied 6/27/14 (Abdus-Salaam, J.)
People v Mitchell (Ibn)	1st Dept: 116 AD3d 415 (NY)	denied 6/10/14 (Smith, J.)
People v Mitchell (Nicholas)	3d Dept: 112 AD3d 992 (Delaware)	denied 6/27/14 (Abdus-Salaam, J.)
People v Monroe	App Div, 1st Dept: 2013 NY Slip Op 94351(U) (NY)	dismissed 6/16/14 (Grafteo, J.)

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People v Moore (Gary)	App Div, 2d Dept: 2014 NY Slip Op 70072(U) (Nassau)	dismissed 6/18/14 (Lippman, Ch. J.)
People v Moore (Kenneth)	App Term, 1st Dept: 34 Misc 3d 151(A) (NY)	granted 6/9/14 (Read, J.)
People v Morris	2d Dept: 116 AD3d 793 (Kings)	denied 6/16/14 (Grafteo, J.)
People v Morrow	4th Dept: 115 AD3d 1241 (Erie)	denied 6/12/14 (Lippman, Ch. J.)
People v Moses	1st Dept: 112 AD3d 447 (NY)	denied 6/9/14 (Read, J.)
People v Newton	4th Dept: 115 AD3d 1241 (Monroe)	denied 6/11/14 (Lippman, Ch. J.)
People v Nicholson	County Ct, 3/27/13 (Onondaga)	denied 6/27/14 (Smith, J.)
People v Nieves	1st Dept: 112 AD3d 490 (NY)	denied 6/9/14 (Read, J.)
People v Nightingale	1st Dept: 117 AD3d 585 (NY)	denied 6/30/14 (Lippman, Ch. J.)
People v O'Keefe	1st Dept: 112 AD3d 524 (NY)	denied 6/27/14 (Rivera, J.)
People v Olson	3d Dept: 110 AD3d 1373 (Ulster)	denied 6/27/14 (Abdus-Salaam, J.)
People v Ortiz	1st Dept: 116 AD3d 582 (NY)	denied 6/25/14 (Grafteo, J.)
People v Osborne	4th Dept: 112 AD3d 1384 (Niagara)	denied reconsideration 6/25/14 (Grafteo, J.)
People v Pacquette	1st Dept: 112 AD3d 405 (NY)	granted 6/5/14 (Lippman, Ch. J.)
People v Padilla (Alexis)	1st Dept: 116 AD3d 481 (NY)	denied 6/10/14 (Smith, J.)
People v Padilla (Michael)	1st Dept: 112 AD3d 490 (NY)	denied 6/27/14 (Abdus-Salaam, J.)
People v Page	4th Dept: 105 AD3d 1380 (Erie)	denied 6/16/14 (Rivera, J.)
People v Paneto	3d Dept: 112 AD3d 1230 (Albany)	denied 6/27/14 (Pigott, J.)
People v Parks	2d Dept: 116 AD3d 794 (Kings)	denied 6/25/14 (Grafteo, J.)
People v Parrilla	1st Dept: 112 AD3d 517 (NY)	denied* 6/9/14 (Read, J.)
People v Patel	App Div, 2d Dept: 2014 NY Slip Op 68616(U) (Nassau)	dismissed 6/27/14 (Pigott, J.)
People v Patterson	1st Dept: 114 AD3d 515 (NY)	denied 6/16/14 (Read, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Gonzalez* (112 AD3d 440 [2013], *lv granted* 22 NY3d 1199 [2014]).

People v Perez	1st Dept: 111 AD3d 543 (NY)	denied 6/27/14 (Abdus-Salaam, J.)
People v Phoenix	3d Dept: 115 AD3d 1058 (Albany)	denied 6/10/14 (Pigott, J.)
People v Pin	App Term, 1st Dept: 41 Misc 3d 128(A) (NY)	granted 6/5/14 (Lippman, Ch. J.)
People v Powell (Joyce)	4th Dept: 115 AD3d 1253 (Orleans)	denied 6/18/14 (Read, J.)
People v Powell (Warren)	3d Dept: 115 AD3d 998 (Columbia)	denied 6/10/14 (Smith, J.)
People v Price	1st Dept: 116 AD3d 485 (NY)	denied 6/26/14 (Smith, J.)
People v Pulvino	4th Dept: 115 AD3d 1220 (Erie)	denied 6/10/14 (Smith, J.)
People v Ramos-Medina	1st Dept: 113 AD3d 543 (Bronx)	denied 6/16/14 (Read, J.)
People v Ramsey (Kalik)	2d Dept: 116 AD3d 717 (Queens)	denied 6/25/14 (Grafteo, J.)
People v Ramsey (Michael)	4th Dept: 109 AD3d 1217 (Orleans)	denied 6/30/14 (Lippman, Ch. J.)
People v Reed (Carolyn)	1st Dept: 115 AD3d 571 (NY)	denied 6/3/14 (Lippman, Ch. J.)
People v Reed (Edward)	4th Dept: 115 AD3d 1334 (Onondaga)	denied 6/25/14 (Grafteo, J.)
People v Retallack	2d Dept: 118 AD3d 732 (Rockland)	denied 6/19/14 (Grafteo, J.)
People v Reyes	2d Dept: 116 AD3d 798 (Queens)	denied 6/23/14 (Lippman, Ch. J.)
People v Rhymes	4th Dept: 105 AD3d 1465 (Monroe)	denied 6/5/14 (Lippman, Ch. J.)
People v Ribira	1st Dept: 116 AD3d 481 (NY)	denied 6/10/14 (Smith, J.)
People v Rivera (Fernando)	4th Dept: 117 AD3d 1475 (Erie)	denied 6/27/14 (Smith, J.)
People v Rivera (Luis)	2d Dept: 116 AD3d 717 (Queens)	denied 6/12/14 (Smith, J.)
People v Rivera (Tyquan)	4th Dept: 112 AD3d 1288 (Monroe)	denied 6/11/14 (Read, J.)
People v Rodriguez (Hector)	2d Dept: 110 AD3d 929 (Kings)	denied reconsideration 6/16/14 (Read, J.)
People v Rodriguez (Jose)	App Div, 1st Dept: 2014 NY Slip Op 68551(U) (NY)	dismissed 6/18/14 (Lippman, Ch. J.)
People v Rodriguez (Juan)	2d Dept: 111 AD3d 856 (Westchester)	denied 6/27/14 (Abdus-Salaam, J.)
People v Roldan	1st Dept: 116 AD3d 560 (Bronx)	denied 6/12/14 (Smith, J.)
People v Rosario	App Term, 1st Dept: 42 Misc 3d 144(A) (NY)	denied 6/16/14 (Read, J.)

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People v Sanchez	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 42 Misc 3d 149(A) (Kings)	denied 6/24/14 (Rivera, J.)
People v Sanders	2d Dept: 117 AD3d 757 (Suffolk)	denied 6/25/14 (Grafteo, J.)
People v Santiago	4th Dept: 111 AD3d 1383 (Erie)	denied 6/9/14 (Read, J.)
People v Santos	4th Dept: 115 AD3d 1322 (Onondaga)	denied 6/12/14 (Smith, J.)
People v Schrock	4th Dept: 108 AD3d 1221 (Cattaraugus)	denied reconsideration 6/9/14 (Read, J.)
People v Scott	4th Dept: 104 AD3d 1261 (Genesee)	denied reconsideration 6/24/14 (Rivera, J.)
People v Scruggs	2d Dept: 111 AD3d 966 (Suffolk)	denied 6/27/14 (Abdus-Salaam, J.)
People v Shaia	1st Dept: 112 AD3d 453 (NY)	denied 6/27/14 (Abdus-Salaam, J.)
People v Sharma	1st Dept: 112 AD3d 494 (NY)	denied 6/27/14 (Abdus-Salaam, J.)
People v Shaw	2d Dept: 112 AD3d 974 (Dutchess)	denied 6/30/14 (Lippman, Ch. J.)
People v Shelton	4th Dept: 111 AD3d 1334 (Monroe)	denied 6/9/14 (Read, J.)
People v Simmons	1st Dept: 113 AD3d 420 (NY)	denied 6/27/14 (Abdus-Salaam, J.)
People v Sorrell	3d Dept: 108 AD3d 787 (Clinton)	denied 6/10/14 (Lippman, Ch. J.)
People v Stahl	2d Dept: 113 AD3d 640 (Suffolk)	denied 6/27/14 (Rivera, J.)
People v Stephenson	4th Dept: 104 AD3d 1277 (Cattaraugus)	denied reconsideration 6/10/14 (Smith, J.)
People v Stokes	1st Dept: 114 AD3d 499 (NY)	denied 6/11/14 (Read, J.)
People v Tackentien	4th Dept: 114 AD3d 1259 (Erie)	denied 6/18/14 (Read, J.)
People v Tarrant	2d Dept: 114 AD3d 710 (Putnam)	denied 6/30/14 (Lippman, Ch. J.)
People v Torres (Henry)	2d Dept: 116 AD3d 889 (Rockland)	denied 6/11/14 (Lippman, Ch. J.)
People v Torres (Juan)	2d Dept: 112 AD3d 760 (Queens)	denied 6/27/14 (Abdus-Salaam, J.)
People v Townsend	1st Dept: 116 AD3d 562 (NY)	denied 6/25/14 (Grafteo, J.)

People v Valderas	1st Dept: 113 AD3d 531 (NY)	denied 6/16/14 (Read, J.)
People v Vasquez-Mendez	1st Dept: 115 AD3d 593 (NY)	denied 6/25/14 (Grafteo, J.)
People v Velez	1st Dept: 112 AD3d 467 (Bronx)	denied 6/16/14 (Rivera, J.)
People v Walker	1st Dept: 117 AD3d 446 (NY)	denied 6/30/14 (Lippman, Ch. J.)
People v Wapniewski	4th Dept: 115 AD3d 1251 (Wyoming)	denied 6/27/14 (Pigott, J.)
People v Webster	4th Dept: 114 AD3d 1170 (Yates)	denied 6/16/14 (Read, J.)
People v White (Eric)	1st Dept: 116 AD3d 508 (NY)	denied 6/10/14 (Pigott, J.)
People v White (Michael)	4th Dept: 114 AD3d 1256 (Ontario)	denied 6/11/14 (Read, J.)
People v White (Robert)	App Term, 1st Dept: 40 Misc 3d 126(A) (NY)	denied reconsideration 6/27/14 (Abdus-Salaam, J.)
People v Whitted	3d Dept: 117 AD3d 1179 (Schenectady)	denied 6/25/14 (Grafteo, J.)
People v Williams (Derrick)	4th Dept: 111 AD3d 1308 (Cattaraugus)	denied 6/27/14 (Smith, J.)
People v Williams (Quandell)	2d Dept: 112 AD3d 980 (Kings)	denied 6/27/14 (Abdus-Salaam, J.)
People v Willie	1st Dept: 111 AD3d 518 (Bronx)	denied 6/27/14 (Abdus-Salaam, J.)
People v Wilson (Njera)	4th Dept: 117 AD3d 1408 (Erie)	denied 6/25/14 (Grafteo, J.)
People v Wilson (Reginald)	4th Dept: 108 AD3d 1011 (Genesee)	denied 6/9/14 (Read, J.) (Appeal No. 1)
People v Wilson (Reginald)	4th Dept: 108 AD3d 1014 (Genesee)	denied 6/9/14 (Read, J.) (Appeal No. 2)
People v Wolz	3d Dept: 112 AD3d 1150 (Franklin)	denied 6/27/14 (Abdus-Salaam, J.)
People v Woullard	3d Dept: 115 AD3d 1053 (Ulster)	denied 6/12/14 (Smith, J.)
People v Wright	4th Dept: 107 AD3d 1398 (Erie)	denied 6/12/14 (Lippman, Ch. J.)
People v Yaas	County Ct, 4/18/14 (Albany)	dismissed 6/27/14 (Smith, J.)
People v Yontz	3d Dept: 116 AD3d 1242 (Chemung)	denied 6/26/14 (Smith, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(June 1, 2014 through June 30, 2014)

People v Caza	3d Dept: 115 AD3d 1118 (Essex)	granted 6/5/14 (McCarthy, J.)
People v Mack	4th Dept: 117 AD3d 1450 (Monroe)	granted 6/30/14 (Lindley, J.)

[16 NE3d 1255, 992 NYS2d 776]

ANA VEGA, Respondent, v 103 THAYER STREET, LLC, Defendant,
and CITY OF NEW YORK, Appellant.

Decided July 1, 2014

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 2, 2013. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, New York County (Geoffrey D. Wright, J.), as had granted defendant City of New York's cross motion for summary judgment dismissing the complaint, and (2) denied the cross motion. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of Supreme Court, properly made?"

In a personal injury action, plaintiff alleged that she tripped and fell as a result of a hole in a pedestrian ramp. The Appellate Division concluded that defendant municipality failed to make a prima facie showing of entitlement to judgment as a matter of law, because the markings on the Big Apple Map it submitted in support of its cross motion raised an issue of fact as to whether it had prior written notice of the alleged defect.

Vega v 103 Thayer St., LLC, 105 AD3d 405, reversed.

HEADNOTE**Municipal Corporations — Notice of Street Defect — Markings on Map**

In a personal injury action, defendant municipality was entitled to judgment as a matter of law, as the markings on a map of defects failed to raise an issue of fact as to whether the municipality had prior written notice of the alleged defect.

* Includes only applications that were granted.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Susan Paulson* of counsel), for appellant.

Levine & Wiss, PLLC, Mineola (*Anthony A. Ferrante* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, order of Supreme Court, New York County, reinstated, and certified question answered in the negative. The City was entitled to judgment as a matter of law. The markings on the Big Apple Map failed to raise an issue of fact as to whether the City had prior written notice of the alleged defect.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

In the Matter of AGBH BEL AIR RENTAL, LLC, Respondent, v
HILARY BEST, Appellant.

Submitted May 27, 2014; decided July 1, 2014

Reported below, 39 Misc 3d 47.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion from the orders of the Appellate Term (*see* CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

DEBRA BETZ, Administratrix of the Estate of CARMELO CARBONE,
Also Known as MEL CARBONE, Deceased, Appellant, v AR-
NOLD W. BLATT et al., Respondents.

Submitted May 27, 2014; decided July 1, 2014

Reported below, 116 AD3d 813.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PATRICIA J. CURTO, Appellant, v NATIONAL FUEL CORPORATION,
Respondent. (Appeal No. 1.)

Submitted June 2, 2014; decided July 1, 2014

Reported below, 109 AD3d 1193; 112 AD3d 1385, 1386.

Motion for reargument of motion for leave to appeal denied
[see 22 NY3d 1192 (2014)].

In the Matter of DELROY S., a Person Alleged to be a Juvenile
Delinquent, Appellant.

Submitted May 19, 2014; decided July 1, 2014

Reported below, 113 AD3d 448.

Motion for leave to appeal granted. Motion for poor person
relief granted.

DEUTSCHE BANK TRUST COMPANY AMERICAS, Respondent, v
KEVIN MICHAEL SHIELDS, Appellant, et al., Defendants.

Submitted May 27, 2014; decided July 1, 2014

Reported below, 116 AD3d 653.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

HILLCREST HOMES, LLC, Appellant, v ALBION MOBILE HOMES,
INC., Doing Business as HERITAGE ESTATES, et al., Respon-
dents.

Submitted June 2, 2014; decided July 1, 2014

Reported below, 117 AD3d 1434.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

In the Matter of SUSAN KONIG et al., Appellants, v CSC HOLD-
INGS, LLC, Respondent, and WATCH CROTON, Respondent.

Submitted May 19, 2014; decided July 1, 2014

Reported below, 112 AD3d 934.

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602).

NANOMEDICON, LLC, Appellant, v RESEARCH FOUNDATION OF STATE UNIVERSITY OF NEW YORK, Respondent, et al., Defendant. (And a Third-Party Action.)

Submitted May 19, 2014; decided July 1, 2014

Reported below, 112 AD3d 594.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

ROBERT GERMAIN, SR., Respondent, v A.O. SMITH WATER PRODUCTS Co. et al., Defendants, and LIBERTY MUTUAL INSURANCE COMPANY, Appellant. (And Other Actions.)

Submitted June 9, 2014; decided July 1, 2014

Reported below, 116 AD3d 571.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of STEPHANIE CANNON O'BRIEN, Appellant, v THOMAS P. DiNAPOLI, as New York State Comptroller, et al., Respondents.

Submitted May 27, 2014; decided July 1, 2014

Reported below, 116 AD3d 1124.

Motion by the New York State Police Investigators Association for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affidavits are accepted as filed.

EUGENE PALLADINO, Appellant, v CNY CENTRO, INC., et al., Respondents.

Submitted May 19, 2014; decided July 1, 2014

Reported below, 101 AD3d 1653.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 23 NY3d 140 (2014)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STANLEY A. BROWN, Appellant.

Submitted May 19, 2014; decided July 1, 2014

Reported below, 114 AD3d 1146.

Motion for leave to appeal granted. Motion for poor person relief granted.

HUGH REYES, Appellant, v BRINKS GLOBAL SERVICES USA, INC., et al., Respondents.

Submitted May 27, 2014; decided July 1, 2014

Reported below, 112 AD3d 805.

Motion for reargument of motion for leave to appeal denied [*see* 22 NY3d 866 (2014)].

In the Matter of STATE OF NEW YORK, Respondent, v JODY J.T., Appellant.

Submitted May 27, 2014; decided July 1, 2014

Reported below, 112 AD3d 1384.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it.

UTICA MUTUAL INSURANCE COMPANY, as Subrogee of Ferro Enterprises NY LLC, Respondent, v JAMES MCCORVEY, JR., Appellant.

Submitted June 2, 2014; decided July 1, 2014

Reported below, 116 AD3d 560.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of COREY N. YAMAMURA, Appellant.
COMMISSIONER OF LABOR, Respondent.

Submitted June 2, 2014; decided July 1, 2014

Reported below, 2014 NY Slip Op 68482(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

[16 NE3d 1260, 992 NYS2d 781]

In the Matter of ROGER W. BARTO.

Decided July 16, 2014

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8) of whether the Honorable Roger W. Barto should be suspended from his office of Acting Justice of the Waterloo Village Court, Seneca County.

HEADNOTE

Judges — Suspension from Office

On the Court's own motion, an Acting Village Court Justice was suspended, with pay, effective immediately, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8).

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable Roger W. Barto is suspended, with pay, effective immediately, from the office of Acting Justice of the Waterloo Village Court, Seneca County, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(July 1, 2014 through July 31, 2014)

Cole, Matter of, v DeRosa	2d Dept: 113 AD3d 765	7/15/14
People ex rel. Huggins v Duffy	1st Dept: 2014 NY Slip Op 64791(U)	7/14/14

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APPEALS WITHDRAWN AND DISCONTINUED

(July 1, 2014 through July 31, 2014)

Floyd, Matter of, v City of New York	1st Dept: 106 AD3d 623	7/11/14
Palmateer, Matter of, v DiNapoli	3d Dept: 117 AD3d 1228	7/24/14
Sweedler, Matter of, v DSJS, Inc.	1st Dept: 111 AD3d 416	7/11/14

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(July 1, 2014 through July 31, 2014)

People v Adam O.	App Term, 1st Dept: — Misc 3d —, 2014 NY Slip Op 24109 (NY)	denied 7/14/14 (Lippman, Ch. J.)
People v Adio	2d Dept: 111 AD3d 757 (Suffolk)	denied 7/21/14 (Lippman, Ch. J.)
People v Alderson	County Ct, 2/10/14 (Schuyler)	denied 7/14/14 (Grafteo, J.)
People v Alicea	1st Dept: 117 AD3d 434 (NY)	denied 7/18/14 (Pigott, J.)
People v Allen	2d Dept: 114 AD3d 958 (Kings)	denied 7/8/14 (Read, J.)
People v Alnutt	App Div, 3d Dept: 2013 NY Slip Op 89459(U) (Fulton)	denied 7/8/14 (Read, J.)
People v Anderson (Benjamin)	1st Dept: 115 AD3d 459 (NY)	denied 7/3/14 (Read, J.)
People v Anderson (Charles)	4th Dept: 114 AD3d 1146 (Genesee)	denied reconsideration 7/14/14 (Grafteo, J.)
People v Andino	1st Dept: 110 AD3d 613 (Bronx)	denied 7/14/14 (Abdus-Salaam, J.)
People v Anthony	2d Dept: 114 AD3d 866 (Queens)	denied 7/24/14 (Rivera, J.)
People v Ariza	1st Dept: 114 AD3d 607 (Bronx)	denied 7/24/14 (Rivera, J.)
People v Atkinson	App Term, 2d Dept, 9th & 10th Jud Dists: 42 Misc 3d 139(A) (Nassau)	denied 7/24/14 (Abdus-Salaam, J.)
People v Aviles	2d Dept: 113 AD3d 784 (Kings)	denied reconsideration 7/25/14 (Smith, J.)
People v Ayala	4th Dept: 117 AD3d 1447 (Erie)	denied 7/28/14 (Smith, J.)

People v Azor	1st Dept: 114 AD3d 446 (Bronx)	denied 7/24/14 (Abdus-Salaam, J.)
People v Baksh	2d Dept: 113 AD3d 626 (Queens)	denied 7/25/14 (Lippman, Ch. J.)
People v Barksdale	1st Dept: 110 AD3d 498 (NY)	granted 7/8/14 (Read, J.)
People v Barnes	App Term, 1st Dept: 40 Misc 3d 133(A) (NY)	granted 7/8/14 (Read, J.)
People v Bastian	1st Dept: 116 AD3d 593 (NY)	denied 7/21/14 (Rivera, J.)
People v Berezny	2d Dept: 117 AD3d 748 (Suffolk)	denied 7/7/14 (Read, J.)
People v Bishop	1st Dept: 117 AD3d 430 (NY)	denied 7/25/14 (Lippman, Ch. J.)
People v Black	4th Dept: 114 AD3d 1232 (Erie)	denied 7/24/14 (Rivera, J.)
People v Boone	2d Dept: 113 AD3d 631 (Dutchess)	denied 7/21/14 (Lippman, Ch. J.)
People v Boyer	App Div, 3d Dept: 2014 NY Slip Op 68477(U) (Rensselaer)	denied 7/24/14 (Rivera, J.)
People v Brimmage	1st Dept: 111 AD3d 585 (NY)	denied 7/14/14 (Abdus-Salaam, J.)
People v Brito (Wande)	App Div, 1st Dept: 2014 NY Slip Op 64189(U) (Bronx)	denied 7/7/14 (Read, J.)
People v Brito (Wandee)	App Div, 1st Dept: 2014 NY Slip Op 64189(U) (Bronx)	denied 7/7/14 (Read, J.)
People v Brito (Wendy)	App Div, 1st Dept: 2014 NY Slip Op 64189(U) (Bronx)	denied 7/7/14 (Read, J.)
People v Bryant	4th Dept: 117 AD3d 1591 (Oneida)	denied 7/30/14 (Smith, J.)
People v Burroughs	App Div, 3d Dept: 2014 NY Slip Op 69150(U) (Greene)	denied 7/7/14 (Read, J.)
People v Calderon	1st Dept: 117 AD3d 431 (NY)	denied 7/14/14 (Graffeo, J.)
People v Camarano	App Div, 1st Dept: 2013 NY Slip Op 80476(U) (NY)	denied reconsideration 7/7/14 (Read, J.)
People v Campbell	1st Dept: 117 AD3d 421 (NY)	withdrawn 7/25/14 (Lippman, Ch. J.)
People v Cardoza (Yobany)	App Term, 2d Dept, 9th & 10th Jud Dists: 2014 NY Slip Op 72543(U) (Suffolk)	dismissed 7/29/14 (Read, J.)
People v Cardoza (Yobany)	App Term, 2d Dept, 9th & 10th Jud Dists: 2014 NY Slip Op 72544(U) (Suffolk)	dismissed 7/29/14 (Read, J.)
People v Cardoza (Yobany)	App Term, 2d Dept, 9th & 10th Jud Dists: 2014 NY Slip Op 72545(U) (Suffolk)	dismissed 7/29/14 (Read, J.)
People v Cardoza (Yobany)	App Term, 2d Dept, 9th & 10th Jud Dists: 2014 NY Slip Op 72546(U) (Suffolk)	dismissed 7/29/14 (Read, J.)

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People v Cardoza (Yobany)	App Term, 2d Dept, 9th & 10th Jud Dists: 2014 NY Slip Op 72547(U) (Suffolk)	dismissed 7/29/14 (Read, J.)
People v Carte	3d Dept: 113 AD3d 191 (Clinton)	denied 7/24/14 (Abdus-Salaam, J.)
People v Castro	1st Dept: 100 AD3d 496 (Bronx)	denied 7/8/14 (Read, J.)
People v Caswell	App Div, 4th Dept: 2013 NY Slip Op 84920(U) (Monroe)	denied reconsideration 7/24/14 (Abdus-Salaam, J.)
People v Clemons	App Div, 4th Dept, 6/23/14 (Chautauqua)	dismissed 7/31/14 (Lippman, Ch. J.)
People v Cole	2d Dept: 114 AD3d 869 (Kings)	denied 7/14/14 (Lippman, Ch. J.)
People v Conklin	1st Dept: 117 AD3d 473 (NY)	denied 7/30/14 (Smith, J.)
People v Correa	1st Dept: 116 AD3d 622 (Bronx)	denied 7/21/14 (Rivera, J.)
People v Cox	4th Dept: 111 AD3d 1310 (Monroe)	denied 7/14/14 (Abdus-Salaam, J.)
People v Crespo	4th Dept: 117 AD3d 1538 (Erie)	denied 7/21/14 (Pigott, J.)
People v Crewe	2d Dept: 102 AD3d 981 (Westchester)	denied reconsideration 7/24/14 (Rivera, J.)
People v Cross	2d Dept: 116 AD3d 708 (Kings)	denied 7/7/14 (Read, J.)
People v Cruz	2d Dept: 117 AD3d 748 (Kings)	denied 7/25/14 (Lippman, Ch. J.)
People v Custodio	App Term, 1st Dept: 42 Misc 3d 144(A) (NY)	denied 7/24/14 (Rivera, J.)
People v D'Antuono	4th Dept: 114 AD3d 1225 (Niagara)	denied 7/3/14 (Read, J.)
People v Davis (Devon)	4th Dept: 114 AD3d 1166 (Monroe)	denied 7/24/14 (Abdus-Salaam, J.)
People v Davis (Tyrone)	2d Dept: 114 AD3d 697 (Suffolk)	granted 7/28/14 (Lippman, Ch. J.)
People v Dawson	3d Dept: 110 AD3d 1350 (Albany)	denied 7/24/14 (Abdus-Salaam, J.)
People v Demagall	3d Dept: 114 AD3d 189 (Columbia)	denied 7/2/14 (Lippman, Ch. J.)
People v Dent	1st Dept: 112 AD3d 529 (Bronx)	denied 7/24/14 (Rivera, J.)
People v Desjardins	2d Dept: 113 AD3d 787 (Kings)	denied 7/15/14 (Abdus-Salaam, J.)

People v Diaz (Eddie)	App Div, 1st Dept: 2014 NY Slip Op 71554(U) (Bronx)	denied 7/25/14 (Smith, J.)
People v Diaz (Gilbert)	1st Dept: 115 AD3d 483 (NY)	denied 7/24/14 (Abdus-Salaam, J.)
People v Diaz (Jose)	1st Dept: 112 AD3d 423 (Bronx)	denied 7/24/14 (Abdus-Salaam, J.)
People v DiMassi	2d Dept: 113 AD3d 632 (Kings)	denied 7/14/14 (Lippman, Ch. J.)
People v Donaldson	4th Dept: 117 AD3d 1467 (Cattaraugus)	denied 7/25/14 (Lippman, Ch. J.)
People v Dubois	2d Dept: 116 AD3d 878 (Kings)	denied 7/1/14 (Pigott, J.)
People v Duryea	2d Dept: 116 AD3d 709 (Suffolk)	denied 7/3/14 (Read, J.)
People v Dyckman	3d Dept: 114 AD3d 994 (Ulster)	denied 7/24/14 (Rivera, J.)
People v Ennis	4th Dept: 107 AD3d 1617 (Jefferson)	denied reconsideration 7/14/14 (Abdus-Salaam, J.)
People v Faison	4th Dept: 113 AD3d 1135 (Onondaga)	denied 7/24/14 (Rivera, J.)
People v Felvus	4th Dept: 115 AD3d 1219 (Niagara)	denied 7/7/14 (Read, J.)
People v Ferguson	2d Dept: 114 AD3d 806 (Kings)	denied 7/21/14 (Lippman, Ch. J.)
People v Figueroa	2d Dept: 112 AD3d 963 (Kings)	denied 7/15/14 (Abdus-Salaam, J.)
People v Fiumara	1st Dept: 116 AD3d 421 (Bronx)	denied 7/21/14 (Rivera, J.)
People v Francis	2d Dept: 114 AD3d 699 (Kings)	denied 7/24/14 (Rivera, J.)
People v Frazier	App Term, 1st Dept: 42 Misc 3d 126(A) (NY)	denied 7/8/14 (Read, J.)
People v Frontuto	4th Dept: 114 AD3d 1271 (Erie)	denied 7/21/14 (Lippman, Ch. J.)
People v Gandolfo	2d Dept: 111 AD3d 849 (Nassau)	denied 7/14/14 (Lippman, Ch. J.)
People v Garcia	1st Dept: 115 AD3d 528 (Bronx)	denied 7/25/14 (Lippman, Ch. J.)
People v Garner	4th Dept: 111 AD3d 1421 (Oneida)	denied 7/24/14 (Rivera, J.)
People v Girard	3d Dept: 111 AD3d 1153 (Ulster)	denied 7/14/14 (Lippman, Ch. J.)
People v Glover	4th Dept: 117 AD3d 1477 (Monroe)	denied 7/14/14 (Grafteo, J.)

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People v Godoy	1st Dept: 111 AD3d 443 (NY)	denied 7/14/14 (Abdus-Salaam, J.)
People v Golo	2d Dept: 109 AD3d 623 (Queens)	granted 7/8/14 (Read, J.)
People v Graham	4th Dept: 117 AD3d 1584 (Monroe)	denied 7/24/14 (Rivera, J.)
People v Graves	3d Dept: 113 AD3d 998 (Albany)	denied 7/14/14 (Grafteo, J.)
People v Greenfield	3d Dept: 112 AD3d 1226 (Rensselaer)	denied 7/14/14 (Abdus-Salaam, J.)
People v Griffin	4th Dept: 111 AD3d 1413 (Onondaga)	denied 7/28/14 (Lippman, Ch. J.)
People v Grigger	3d Dept: 111 AD3d 974 (Albany)	denied 7/24/14 (Rivera, J.)
People v Grosskopf	4th Dept: 115 AD3d 1235 (Niagara)	denied 7/21/14 (Rivera, J.)
People v Guarneri	App Div, 3d Dept: 2014 NY Slip Op 62931(U) (Schoharie)	denied 7/21/14 (Rivera, J.)
People v Gumbs	App Term, 2d Dept, 9th & 10th Jud Dists: 42 Misc 3d 149(A) (Suffolk)	denied 7/24/14 (Abdus-Salaam, J.)
People v Guzman	2d Dept: 116 AD3d 790 (Westchester)	denied 7/14/14 (Grafteo, J.)
People v Hamilton	1st Dept: 115 AD3d 562 (Bronx)	denied 7/3/14 (Read, J.)
People v Hardy	1st Dept: 115 AD3d 511 (NY)	granted 7/28/14 (Lippman, Ch. J.)
People v Harris (Malcolm)	App Term, 1st Dept: 43 Misc 3d 136(A) (NY)	denied 7/30/14 (Smith, J.)
People v Harris (Patrick)	2d Dept: 115 AD3d 763 (Queens)	denied 7/3/14 (Read, J.)
People v Harris (Peter)	4th Dept: 114 AD3d 1156 (Cayuga)	denied 7/24/14 (Rivera, J.)
People v Harvey	2d Dept: 117 AD3d 873 (Queens)	denied 7/25/14 (Lippman, Ch. J.)
People v Henry	2d Dept: 116 AD3d 974 (Kings)	denied 7/30/14 (Smith, J.)
People v Hodges	App Div, 3d Dept: 2014 NY Slip Op 65009(U) (Warren)	denied 7/8/14 (Read, J.)
People v Hoebich	App Term, 2d Dept, 9th & 10th Jud Dists: 42 Misc 3d 128(A) (Nassau)	denied 7/15/14 (Abdus-Salaam, J.)
People v Holcombe	2d Dept: 116 AD3d 1063 (Westchester)	denied 7/25/14 (Lippman, Ch. J.)
People v Holley	1st Dept: 116 AD3d 442 (NY)	granted 7/25/14 (Lippman, Ch. J.)
People v Holloway	4th Dept: 114 AD3d 1226 (Niagara)	denied 7/24/14 (Rivera, J.)
People v Holmes (Brandon)	2d Dept: 113 AD3d 633 (Kings)	denied 7/21/14 (Lippman, Ch. J.)

People v Holmes (Michael)	4th Dept: 115 AD3d 1179 (Monroe)	denied 7/25/14 (Lippman, Ch. J.)
People v Hough	1st Dept: 116 AD3d 533 (NY)	denied 7/21/14 (Rivera, J.)
People v Hughes (Christopher)	3d Dept: 111 AD3d 1170 (Albany)	denied 7/24/14 (Abdus-Salaam, J.)
People v Hughes (Donald)	4th Dept: 112 AD3d 1380 (Oneida)	denied 7/24/14 (Abdus-Salaam, J.)
People v Hughes (Patrick)	3d Dept: 114 AD3d 1021 (Albany)	denied 7/24/14 (Rivera, J.)
People v Hunter	4th Dept: 115 AD3d 1330 (Monroe)	denied 7/7/14 (Read, J.)
People v Jabin	1st Dept: 117 AD3d 427 (NY)	denied 7/7/14 (Read, J.)
People v Jackson	4th Dept: 115 AD3d 1273 (Monroe)	denied 7/7/14 (Read, J.)
People v Jacques	2d Dept: 115 AD3d 765 (Queens)	withdrawn 7/3/14 (Read, J.)
People v Jaen	2d Dept: 116 AD3d 975 (Queens)	denied 7/24/14 (Rivera, J.)
People v James	1st Dept: 114 AD3d 476 (NY)	denied 7/24/14 (Rivera, J.)
People v Jarvis (Dale)	3d Dept: 115 AD3d 1121 (Franklin)	denied 7/7/14 (Read, J.)
People v Jarvis (Floyd)	2d Dept: 117 AD3d 969 (Kings)	denied 7/30/14 (Smith, J.)
People v John Galt Corp.	1st Dept: 113 AD3d 537 (NY)	denied 7/8/14 (Read, J.)
People v Johnson (David)	1st Dept: 117 AD3d 537 (NY)	denied 7/14/14 (Lippman, Ch. J.)
People v Johnson (Lamonte)	2d Dept: 112 AD3d 969 (Kings)	denied 7/14/14 (Lippman, Ch. J.)
People v Jones (Anthony)	1st Dept: 115 AD3d 490 (NY)	granted 7/21/14 (Pigott, J.)
People v Jones (Clement)	4th Dept: 114 AD3d 1239 (Monroe)	denied* 7/8/14 (Read, J.) (Appeal No. 1)
People v Jones (Clement)	4th Dept: 114 AD3d 1244 (Monroe)	denied 7/11/14 (Read, J.) (Appeal No. 2)
People v Jones (Clemon)	4th Dept: 114 AD3d 1239 (Monroe)	denied* 7/8/14 (Read, J.) (Appeal No. 1)
People v Jones (Clemon)	4th Dept: 114 AD3d 1244 (Monroe)	denied 7/11/14 (Read, J.) (Appeal No. 2)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Jones* (109 AD3d 1108 [2013], *lv granted* 22 NY3d 1157 [2014]).

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People v Jones (Clemont)	4th Dept: 114 AD3d 1239 (Monroe)	denied* 7/8/14 (Read, J.) (Appeal No. 1)
People v Jones (Clemont)	4th Dept: 114 AD3d 1244 (Monroe)	denied 7/11/14 (Read, J.) (Appeal No. 2)
People v Jones (Leonard)	3d Dept: 112 AD3d 991 (Warren)	denied 7/14/14 (Lippman, Ch. J.)
People v Jones (Tony)	App Div, 1st Dept: 2013 NY Slip Op 93910(U) (NY)	denied 7/24/14 (Rivera, J.)
People v Jones (William)	4th Dept: 114 AD3d 1288 (Cayuga)	denied 7/24/14 (Rivera, J.)
People v Judd	4th Dept: 111 AD3d 1421 (Orleans)	denied 7/2/14 (Lippman, Ch. J.)
People v Kidd	3d Dept: 112 AD3d 994 (St. Lawrence)	denied 7/2/14 (Lippman, Ch. J.)
People v Knudson	2d Dept: 114 AD3d 703 (Nassau)	denied 7/21/14 (Rivera, J.)
People v Lambert	2d Dept: 115 AD3d 987 (Queens)	denied 7/25/14 (Lippman, Ch. J.)
People v Lane	4th Dept: 114 AD3d 1226 (Oneida)	denied 7/24/14 (Abdus-Salaam, J.)
People v Lasso	1st Dept: 115 AD3d 563 (NY)	denied 7/14/14 (Grafteo, J.)
People v LeGrand	App Div, 1st Dept: 2013 NY Slip Op 93910(U) (NY)	denied 7/24/14 (Rivera, J.)
People v Lewis	App Div, 3d Dept: 2014 NY Slip Op 69135(U) (Rensselaer)	denied 7/14/14 (Grafteo, J.)
People v Light	3d Dept: 113 AD3d 1000 (Albany)	denied 7/15/14 (Abdus-Salaam, J.)
People v Lofton	2d Dept: 115 AD3d 989 (Nassau)	denied 7/7/14 (Read, J.)
People v Madera	2d Dept: 118 AD3d 726 (Kings)	denied 7/30/14 (Smith, J.)
People v Mangieri	1st Dept: 116 AD3d 477 (NY)	denied 7/25/14 (Lippman, Ch. J.)
People v Mantock	2d Dept: 117 AD3d 753 (Queens)	denied 7/18/14 (Pigott, J.)
People v Marco A.C.	4th Dept: 115 AD3d 1219 (Orleans)	denied 7/7/14 (Read, J.)
People v Marshall	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 42 Misc 3d 141(A) (Kings)	granted 7/21/14 (Pigott, J.)
People v Martin (Terry)	3d Dept: 116 AD3d 1166 (Albany)	denied 7/21/14 (Rivera, J.)
People v Martin (Wayne)	2d Dept: 116 AD3d 981 (Kings)	denied 7/21/14 (Rivera, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Jones* (109 AD3d 1108 [2013], *lv granted* 22 NY3d 1157 [2014]).

People v McCormick	2d Dept: 117 AD3d 754 (Queens)	denied 7/30/14 (Smith, J.)
People v McCullars	4th Dept: 117 AD3d 1480 (Onondaga)	denied 7/21/14 (Pigott, J.)
People v McCullough	4th Dept: 117 AD3d 1415 (Monroe)	denied 7/31/14 (Lippman, Ch. J.)
People v McLaughlin	1st Dept: 116 AD3d 490 (Bronx)	denied 7/25/14 (Smith, J.)
People v McPhee	2d Dept: 116 AD3d 714 (Dutchess)	denied 7/18/14 (Pigott, J.)
People v Medina-Gonzalez	1st Dept: 116 AD3d 519 (Bronx)	denied 7/25/14 (Smith, J.)
People v Melendez	1st Dept: 114 AD3d 525 (NY)	denied 7/7/14 (Read, J.)
People v Mercado	3d Dept: 113 AD3d 930 (Schenectady)	denied 7/14/14 (Abdus-Salaam, J.)
People v Michimani	1st Dept: 115 AD3d 528 (Bronx)	denied 7/25/14 (Lippman, Ch. J.)
People v Miller (Clarence)	4th Dept: 115 AD3d 1302 (Onondaga)	denied 7/21/14 (Rivera, J.)
People v Miller (Jeffrey)	3d Dept: 112 AD3d 1061 (Albany)	denied 7/24/14 (Rivera, J.)
People v Mingo	2d Dept: 112 AD3d 971 (Queens)	denied 7/21/14 (Lippman, Ch. J.)
People v Minus	App Div, 1st Dept: 2014 NY Slip Op 68796(U) (NY)	dismissed 7/24/14 (Rivera, J.)
People v Moore (Kevin)	1st Dept: 117 AD3d 491 (NY)	denied 7/25/14 (Smith, J.)
People v Moore (Patrick)	2d Dept: 115 AD3d 990 (Kings)	denied 7/21/14 (Rivera, J.)
People v Morgan (Arthur)	App Div, 3d Dept: 2014 NY Slip Op 67081(U) (Columbia)	dismissed 7/7/14 (Read, J.)
People v Morgan (Jason)	3d Dept: 114 AD3d 995 (Warren)	denied 7/24/14 (Rivera, J.)
People v Morse	3d Dept: 111 AD3d 1161 (Broome)	denied 7/25/14 (Lippman, Ch. J.)
People v Munger	3d Dept: 117 AD3d 1343 (Saratoga)	denied 7/30/14 (Smith, J.)
People v Murphy	4th Dept: 117 AD3d 1474 (Orleans)	denied 7/18/14 (Pigott, J.)
People v Myles	4th Dept: 115 AD3d 1232 (Onondaga)	denied 7/7/14 (Read, J.)
People v Nasca	App Term, 2d Dept, 9th & 10th Jud Dists: 40 Misc 3d 142(A) (Suffolk)	denied reconsideration 7/21/14 (Lippman, Ch. J.)
People v Neil	4th Dept: 112 AD3d 1335 (Steuben)	denied 7/14/14 (Abdus-Salaam, J.)

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People v Newton	3d Dept: 113 AD3d 1000 (Albany)	denied 7/15/14 (Abdus-Salaam, J.)
People v Nowell	4th Dept: 117 AD3d 1462 (Onondaga)	denied 7/18/14 (Pigott, J.)
People v Obeya	3d Dept: 110 AD3d 1382 (Albany)	denied reconsideration 7/24/14 (Rivera, J.)
People v Ohse	4th Dept: 114 AD3d 1285 (Livingston)	denied 7/24/14 (Abdus-Salaam, J.)
People v Paddyfote (Kenneth)	2d Dept: 112 AD3d 857 (Dutchess)	denied 7/15/14 (Abdus-Salaam, J.)
People v Paddyfote (Kenneth)	App Div, 2d Dept: 2014 NY Slip Op 63604(U) (Dutchess)	dismissed 7/24/14 (Abdus-Salaam, J.)
People v Payne	1st Dept: 115 AD3d 439 (NY)	denied 7/7/14 (Read, J.)
People v Perkins	1st Dept: 116 AD3d 415 (NY)	denied 7/7/14 (Read, J.)
People v Peters	1st Dept: 116 AD3d 604 (NY)	denied 7/1/14 (Pigott, J.)
People v Pettus	App Div, 1st Dept: 2014 NY Slip Op 70785(U) (NY)	denied 7/21/14 (Pigott, J.)
People v Pickering	1st Dept: 113 AD3d 572 (NY)	denied 7/14/14 (Abdus-Salaam, J.)
People v Pineras	1st Dept: 113 AD3d 489 (NY)	denied 7/25/14 (Lippman, Ch. J.)
People v Piznarski	3d Dept: 113 AD3d 166 (Madison)	denied 7/8/14 (Read, J.)
People v Pope	4th Dept: 113 AD3d 1121 (Erie)	denied 7/15/14 (Abdus-Salaam, J.)
People v Porath	App Div, 3d Dept: 2014 NY Slip Op 69146(U) (Montgomery)	dismissed 7/1/14 (Rivera, J.)
People v Puddin	4th Dept: 117 AD3d 1467 (Cattaraugus)	denied 7/25/14 (Lippman, Ch. J.)
People v Ramos	1st Dept: 116 AD3d 618 (Bronx)	denied 7/24/14 (Rivera, J.)
People v Randolph	App Term, 1st Dept: 42 Misc 3d 143(A) (NY)	denied 7/24/14 (Rivera, J.)
People v Ravenell	3d Dept: 114 AD3d 997 (Broome)	denied 7/25/14 (Lippman, Ch. J.)
People v Reid	4th Dept: 117 AD3d 1448 (Monroe)	denied 7/28/14 (Smith, J.)
People v Richardson	1st Dept: 115 AD3d 617 (NY)	denied 7/28/14 (Smith, J.)

People v Riffas	2d Dept: 114 AD3d 810 (Kings)	dismissed 7/18/14 (Pigott, J.)
People v Robinson	4th Dept: 112 AD3d 1349 (Ontario)	denied 7/21/14 (Lippman, Ch. J.)
People v Robles	3d Dept: 115 AD3d 30 (Albany)	denied reconsideration 7/14/14 (Grafteo, J.)
People v Rodriguez (Luis)	1st Dept: 116 AD3d 639 (Bronx)	denied 7/1/14 (Pigott, J.)
People v Rodriguez (Roberto)	1st Dept: 116 AD3d 557 (NY)	denied 7/7/14 (Read, J.)
People v Roig (Elvin)	4th Dept: 117 AD3d 1462 (Monroe)	denied 7/28/14 (Smith, J.) (Appeal No. 1)
People v Roig (Elvin)	4th Dept: 117 AD3d 1465 (Monroe)	denied 7/28/14 (Smith, J.) (Appeal No. 2)
People v Rosado	2d Dept: 115 AD3d 884 (Kings)	denied 7/3/14 (Read, J.)
People v Russell	4th Dept: 111 AD3d 1320 (Monroe)	denied 7/14/14 (Abdus-Salaam, J.)
People v Safran (David)	2d Dept: 113 AD3d 880 (Queens)	denied 7/24/14 (Abdus-Salaam, J.)
People v Safran (David)	2d Dept: 113 AD3d 878 (Suffolk)	denied 7/24/14 (Abdus-Salaam, J.)
People v Sans	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 40 Misc 3d 141(A) (Kings)	granted 7/8/14 (Read, J.)
People v Santana	1st Dept: 113 AD3d 504 (Bronx)	denied 7/24/14 (Rivera, J.)
People v Santos	App Term, 1st Dept: 43 Misc 3d 136(A) (NY)	denied 7/21/14 (Pigott, J.)
People v Sena	1st Dept: 114 AD3d 476 (NY)	denied 7/24/14 (Rivera, J.)
People v Sewpersaud	2d Dept: 116 AD3d 1072 (Nassau)	denied 7/3/14 (Read, J.)
People v Shan	3d Dept: 117 AD3d 1098 (Ulster)	denied 7/1/14 (Pigott, J.)
People v Shannon	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 42 Misc 3d 127(A) (Queens)	denied 7/14/14 (Lippman, Ch. J.)
People v Shearer	2d Dept: 114 AD3d 708 (Queens)	denied 7/3/14 (Read, J.)
People v Sherrod	App Div, 4th Dept: 2014 NY Slip Op 69626(U) (Erie)	dismissed 7/21/14 (Pigott, J.)
People v Shorty	4th Dept: 117 AD3d 1441 (Ontario)	denied 7/14/14 (Lippman, Ch. J.)
People v Sierra	2d Dept: 113 AD3d 880 (Queens)	denied 7/3/14 (Read, J.)

MEMORANDA

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People v Smalls	1st Dept: 111 AD3d 582 (NY)	denied 7/24/14 (Abdus-Salaam, J.)
People v Smith	App Term, 1st Dept: 42 Misc 3d 145(A) (NY)	denied 7/24/14 (Rivera, J.)
People v Sosa	2d Dept: 116 AD3d 1072 (Suffolk)	denied 7/21/14 (Pigott, J.)
People v Sparrow	4th Dept: 117 AD3d 1563 (Oneida)	denied 7/30/14 (Smith, J.)
People v Squire	1st Dept: 115 AD3d 454 (NY)	denied 7/8/14 (Read, J.)
People v Stanton	1st Dept: 117 AD3d 412 (NY)	denied 7/1/14 (Smith, J.)
People v Stevens (Clayton)	4th Dept: 109 AD3d 1204 (Onondaga)	denied 7/24/14 (Rivera, J.)
People v Stevens (Jamel)	2d Dept: 114 AD3d 969 (Kings)	denied 7/24/14 (Abdus-Salaam, J.)
People v Stewart	4th Dept: 114 AD3d 1132 (Onondaga)	denied 7/24/14 (Rivera, J.)
People v Stone (Earl)	4th Dept: 112 AD3d 1383 (Erie)	denied 7/14/14 (Lippman, Ch. J.)
People v Stone (Earl)	4th Dept: 117 AD3d 1504 (Erie)	denied 7/25/14 (Lippman, Ch. J.)
People v Swails	2d Dept: 117 AD3d 883 (Queens)	denied 7/25/14 (Lippman, Ch. J.)
People v Talley	4th Dept: 112 AD3d 1347 (Erie)	denied 7/14/14 (Abdus-Salaam, J.)
People v Taylor	3d Dept: 118 AD3d 1044 (Saratoga)	denied 7/30/14 (Smith, J.)
People v Telemaque	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 43 Misc 3d 138(A) (Kings)	withdrawn 7/14/14 (Lippman, Ch. J.)
People v Terry	2d Dept: 115 AD3d 683 (Nassau)	denied 7/24/14 (Rivera, J.)
People v Thomas (Damon)	2d Dept: 116 AD3d 1077 (Kings)	denied 7/1/14 (Smith, J.)
People v Thomas (Kamal)	1st Dept: 117 AD3d 527 (NY)	denied 7/21/14 (Pigott, J.)
People v Thomason-Rose	1st Dept: 117 AD3d 548 (NY)	denied 7/28/14 (Smith, J.)
People v Thompson	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 43 Misc 3d 137(A) (Kings)	denied 7/31/14 (Lippman, Ch. J.)
People v Tieman	2d Dept: 112 AD3d 975 (Orange)	denied 7/18/14 (Pigott, J.)
People v Tindall	1st Dept: 116 AD3d 419 (NY)	denied 7/24/14 (Rivera, J.)
People v Tolar	2d Dept: 116 AD3d 989 (Suffolk)	denied 7/1/14 (Pigott, J.)
People v Toney	1st Dept: 116 AD3d 607 (NY)	denied 7/24/14 (Rivera, J.)

People v Tony C.	2d Dept: 110 AD3d 1093 (Queens)	denied 7/14/14 (Abdus-Salaam, J.)
People v Trinidad-Ayala	4th Dept: 114 AD3d 1229 (Onondaga)	denied 7/24/14 (Abdus-Salaam, J.)
People v Vansertima	2d Dept: 113 AD3d 705 (Queens)	denied 7/8/14 (Read, J.)
People v Vasquez	2d Dept: 112 AD3d 858 (Kings)	denied 7/3/14 (Read, J.)
People v Villar	4th Dept: 115 AD3d 1361 (Niagara)	denied 7/21/14 (Rivera, J.)
People v Voorhees	App Div, 3d Dept: 2014 NY Slip Op 69123(U) (Schuyler)	denied 7/7/14 (Read, J.)
People v Wachtel	3d Dept: 117 AD3d 1203 (Schenectady)	denied 7/24/14 (Rivera, J.)
People v Walker (Anthony)	1st Dept: 106 AD3d 432 (Bronx)	denied 7/8/14 (Read, J.)
People v Walker (Calvin)	4th Dept: 114 AD3d 1257 (Monroe)	denied 7/24/14 (Rivera, J.)
People v Walker (Christopher)	4th Dept: 114 AD3d 1134 (Monroe)	granted 7/30/14 (Lippman, Ch. J.)
People v Walker (Ronald)	4th Dept: 117 AD3d 1441 (Ontario)	denied 7/14/14 (Lippman, Ch. J.)
People v Walker (Sherman)	App Div, 1st Dept: 2014 NY Slip Op 65638(U) (NY)	dismissed 7/1/14 (Rivera, J.)
People v Watts	App Div, 2d Dept: 2014 NY Slip Op 64482(U) (Kings)	dismissed 7/24/14 (Abdus-Salaam, J.)
People v Whaul	2d Dept: 116 AD3d 890 (Kings)	denied 7/24/14 (Rivera, J.)
People v White	1st Dept: 117 AD3d 425 (NY)	denied 7/1/14 (Pigott, J.)
People v Whitfield	4th Dept: 115 AD3d 1181 (Jefferson)	denied 7/21/14 (Rivera, J.)
People v Wilkins	1st Dept: 111 AD3d 451 (NY)	denied 7/8/14 (Read, J.)
People v Williams (Daniel)	2d Dept: 116 AD3d 719 (Kings)	denied 7/21/14 (Rivera, J.)
People v Williams (Kevin)	2d Dept: 115 AD3d 890 (Queens)	denied 7/28/14 (Lippman, Ch. J.)
People v Williams (Stacey)	4th Dept: 114 AD3d 1140 (Genesee)	denied 7/3/14 (Read, J.)
People v Wilson	4th Dept: 112 AD3d 1383 (Monroe)	denied 7/14/14 (Lippman, Ch. J.)
People v Wingfield	2d Dept: 113 AD3d 798 (Queens)	denied 7/3/14 (Read, J.)
People v Young (Rodney)	1st Dept: 116 AD3d 535 (NY)	denied 7/24/14 (Rivera, J.)
People v Young (Scott)	2d Dept: 110 AD3d 1107 (Kings)	denied 7/24/14 (Rivera, J.)

People v Youngblood 4th Dept: 109 AD3d 1217 (Monroe) denied
reconsideration
7/14/14
(Abdus-Salaam,
J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(July 1, 2014 through July 31, 2014)

People v Harris (Dupree) 2d Dept: 117 AD3d 847 (Kings) granted 7/8/14
(Miller, J.)
People v Roberites 4th Dept: 115 AD3d 1291 (Livingston) granted 7/17/14
(Smith, J.)

In the Matter of SHARON FUCHS et al., Respondents, v JOSEPH
ITZKOWITZ et al., Appellants, et al., Respondent.

Submitted August 27, 2014; decided August 27, 2014

Reported below, 120 AD3d 682.

Motion for leave to appeal denied. The Court of Appeals restates the rule that the denial of a motion for leave to appeal is not equivalent to an affirmance and has no precedential value (*see Matter of Marchant v Mead-Morris Mfg. Co.*, 252 NY 284, 297-298 [1929]).

In the Matter of PAUL C. VANSAVAGE, Appellant, v DENVER
JONES, Respondent, et al., Respondents. (And Another Pro-
ceeding.)

Submitted August 27, 2014; decided August 27, 2014

Reported below, 120 AD3d 887.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

* Includes only applications that were granted.

[16 NE3d 1261, 992 NYS2d 781]

In the Matter of ELAINE D. WARD, Respondent, v CITY OF NEW YORK et al., Appellants.

Decided August 28, 2014

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 14, 2013, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in New York County). The Appellate Division order, insofar as appealed from, (1) granted a petition to annul a determination of respondent New York City Department of Buildings which, after a hearing, had revoked petitioner's master plumber license upon a finding that she had engaged in conduct that violated the New York City Building Code, to the extent of annulling the penalty of license revocation, and (2) remanded the matter to the agency for imposition of a lesser penalty.

The Appellate Division concluded that substantial evidence supported respondent's determination that petitioner violated section 26-142 of the Administrative Code of the City of New York (since renumbered as section 28-408.1) when she applied for a plumbing permit for work at a property, knowing that the owner had hired her to supervise his own worker, rather than one under her direct supervision or employ as required under the Code, but that the penalty of revocation was excessive.

Matter of Ward v City of New York, 111 AD3d 498, reversed.

HEADNOTE

Licenses — Plumbers — Revocation of Master Plumber License

In a proceeding to review a determination revoking petitioner's master plumber's license, an order of the Appellate Division, which confirmed the determination to the extent that it found that petitioner had violated a local law concerning plumbing permits but annulled the penalty of revocation, was reversed and the petition dismissed in its entirety, since it could not be said that the penalty of revocation shocked the judicial conscience.

APPEARANCES OF COUNSEL

Zachary W. Carter, Corporation Counsel, New York City (*Drake A. Colley* of counsel), for appellants.

Elaine D. Ward, respondent pro se.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, reversed, with costs, and petition dismissed in its entirety. We cannot say that “the penalty of [revoking petitioner’s master plumber’s license] . . . shocks the judicial conscience” (*Matter of Kelly v Safir*, 96 NY2d 32, 40 [2001]; see generally *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 234-235 [1974]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

WALTER R. BEARDSLEE, Individually and as Cotrustee of the
DRUSILLA W. BEARDSLEE FAMILY TRUST, et al., Respondents,
v INFLECTION ENERGY, LLC, et al., Appellants.

Decided August 28, 2014

See 761 F3d 221.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

In the Matter of CHINA C. WESTCHESTER COUNTY DEPARTMENT
OF SOCIAL SERVICES, Respondent; ALEXIS C., Appellant.
(Proceeding No. 1.)

In the Matter of JULIAN V. WESTCHESTER COUNTY DEPARTMENT
OF SOCIAL SERVICES, Respondent; ALEXIS C., Appellant.
(Proceeding No. 2.)

In the Matter of JULIUS V. WESTCHESTER COUNTY DEPARTMENT
OF SOCIAL SERVICES, Respondent; ALEXIS C., Appellant.
(Proceeding No. 3.)

Submitted June 16, 2014; decided August 28, 2014

Reported below, 116 AD3d 953.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine

the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

SUSAN GATELY, Respondent, v JAMES GATELY, Appellant.

Submitted June 2, 2014; decided August 28, 2014

Reported below, 113 AD3d 1093.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MOTOROLA CREDIT CORPORATION, Appellant-Respondent, et al.,
Plaintiffs-Counter-Defendants, v STANDARD CHARTERED
BANK, Respondent-Appellant, et al., Defendants-Counter-
Claimants, et al., Defendants.

Submitted August 4, 2014; decided August 28, 2014

See 740 F3d 108.

Motion by Institute of International Bankers et al. for leave to appear amici curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

MOTOROLA CREDIT CORPORATION, Appellant-Respondent, et al.,
Plaintiffs-Counter-Defendants, v STANDARD CHARTERED
BANK, Respondent-Appellant, et al., Defendants-Counter-
Claimants, et al., Defendants.

Submitted August 4, 2014; decided August 28, 2014

See 740 F3d 108.

Motion by Government of the United Kingdom of Great Britain and Northern Ireland for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

MOTOROLA CREDIT CORPORATION, Appellant-Respondent, et al.,
Plaintiffs-Counter-Defendants, v STANDARD CHARTERED
BANK, Respondent-Appellant, et al., Defendants-Counter-
Claimants, et al., Defendants.

Submitted August 4, 2014; decided August 28, 2014

See 740 F3d 108.

Motion by Central Bank of Jordan for leave to file a brief
amicus curiae on consideration of the certified questions herein
granted and the proposed brief is accepted as filed. Three copies
of the brief must be served and an original and nine copies filed
within seven days.

MOTOROLA CREDIT CORPORATION, Appellant-Respondent, et al.,
Plaintiffs-Counter-Defendants, v STANDARD CHARTERED
BANK, Respondent-Appellant, et al., Defendants-Counter-
Claimants, et al., Defendants.

Submitted August 4, 2014; decided August 28, 2014

See 740 F3d 108.

Motion by Committee on Banking Law of the Association of
the Bar of the City of New York for leave to file a brief amicus
curiae on consideration of the certified questions herein granted
and the proposed brief is accepted as filed.

MOTOROLA CREDIT CORPORATION, Appellant-Respondent, et al.,
Plaintiffs-Counter-Defendants, v STANDARD CHARTERED
BANK, Respondent-Appellant, et al., Defendants-Counter-
Claimants, et al., Defendants.

Submitted August 4, 2014; decided August 28, 2014

See 740 F3d 108.

Motion by Securities Industry and Financial Markets Associa-
tion for leave to appear amicus curiae on consideration of the
certified questions herein granted only to the extent that the
proposed brief is accepted as filed. Three copies of the brief
must be served and an original and nine copies filed within
seven days.

In the Matter of NOEL OLMOSPerez, Appellant, v ANDREA W.
EVANS, as Chair of the Board of Parole, Respondent.

Submitted July 28, 2014; decided August 28, 2014

Reported below, 114 AD3d 1077.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AN-
THONY BARKSDALE, Appellant.

Submitted July 28, 2014; decided August 28, 2014

Reported below, 110 AD3d 498.

Motion for assignment of counsel granted and Robert S. Dean,
Esq., Center for Appellate Litigation, 120 Wall Street, 28th
Floor, New York, NY 10005 assigned as counsel to the appellant
on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS
BARNES, Appellant.

Submitted August 18, 2014; decided August 28, 2014

Reported below, 40 Misc 3d 133(A), 2013 NY Slip Op 51249(U).

Motion for assignment of counsel granted and Seymour
James, Jr., Esq., The Legal Aid Society, 199 Water Street, New
York, NY 10038 assigned as counsel to the appellant on the ap-
peal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WALTER
CATES, SR., Appellant.

Submitted July 14, 2014; decided August 28, 2014

Reported below, 92 AD3d 553.

Motion for assignment of counsel granted and Robert S. Dean,
Esq., Center for Appellate Litigation, 120 Wall Street, 28th
Floor, New York, NY 10005 assigned as counsel to the appellant
on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KAREN
M. CAZA, Appellant.

Submitted August 4, 2014; decided August 28, 2014

Reported below, 115 AD3d 1118.

Motion for assignment of counsel granted and Martin J. McGuinness, Esq., P.O. Box 1006, Saratoga Springs, New York 12866 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAN-
UEL COLON, Appellant.

Submitted August 4, 2014; decided August 28, 2014

Reported below, 2014 NY Slip Op 69322(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDRE
ENGLISH, Appellant.

Submitted August 11, 2014; decided August 28, 2014

Reported below, 118 AD3d 558.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN
GIBSON, Appellant.

Submitted August 18, 2014; decided August 28, 2014

Reported below, 117 AD3d 1317.

Motion for assignment of counsel granted and John P.M. Wap-
pett, Warren County Public Defender's Office, 1340 State Route
9, Lake George, New York 12845 assigned as counsel to the ap-
pellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALLY
GOLO, Appellant.

Submitted August 11, 2014; decided August 28, 2014

Reported below, 109 AD3d 623.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DUPREE
HARRIS, Appellant.

Submitted August 4, 2014; decided August 28, 2014

Reported below, 117 AD3d 847.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM
HENDERSON, Appellant.

Submitted August 4, 2014; decided August 28, 2014

Reported below, 110 AD3d 1353.

Motion for assignment of counsel granted and David Abbato, Jr., Esq., care of The Abbato Law Firm, PLLC, 339 East Ave., Rochester, New York 14604 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TODD
HOLLEY, Appellant.

Submitted August 25, 2014; decided August 28, 2014

Reported below, 116 AD3d 442.

Motion for assignment of counsel granted and Seymour James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL
ISRAEL, Appellant.

Submitted July 7, 2014; decided August 28, 2014

Reported below, 111 AD3d 413.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JIN
CHENG LIN, Appellant.

Submitted August 4, 2014; decided August 28, 2014

Reported below, 105 AD3d 761.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AN-
THONY JONES, Appellant.

Submitted August 11, 2014; decided August 28, 2014

Reported below, 115 AD3d 490.

Motion for assignment of counsel granted and Seymour James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLIF-
FORD JONES, Appellant.

Submitted July 28, 2014; decided August 28, 2014

Reported below, 109 AD3d 402.

Motion by Innocence Project for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v STANLEY R. KIMS, II, Respondent-Appellant.

Submitted June 30, 2014; decided August 28, 2014

Reported below, 96 AD3d 1595.

Motion for assignment of counsel granted and Mark C. Davison, Esq. care of Davison Law Office, 61 North Main Street, Suite C, PO Box 652, Canandaigua, New York 14424 assigned as counsel to the respondent-appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
URSELINA KING, Appellant.

Submitted July 28, 2014; decided August 28, 2014

Reported below, 110 AD3d 1005.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SALVATORE LETIZIA, Appellant.

Submitted August 11, 2014; decided August 28, 2014

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed upon the ground that no application for leave to appeal pursuant to CPL 460.20 will lie from an order of a single Justice of the Appellate Division denying leave to appeal to that Court pursuant to CPL 460.15.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v COLLIN F. LLOYD-DOUGLAS, Respondent.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v EUGENE POLHILL, Respondent.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JERMAINE DUNBAR, Respondent.

Submitted August 4, 2014; decided August 28, 2014

Reported below, *People v Lloyd-Douglas*, 102 AD3d 986.

Reported below, *People v Polhill*, 102 AD3d 988.

Reported below, *People v Dunbar*, 104 AD3d 198.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeals herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLEVELAND LOVETT, Appellant.

Submitted July 28, 2014; decided August 28, 2014

Reported below, 116 AD3d 428.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FABRICE LOWE, Appellant.

Submitted August 25, 2014; decided August 28, 2014

Reported below, 113 AD3d 1133.

Motion for assignment of counsel granted and Philip Rothschild, Esq., Hiscock Legal Aid Society, 351 South Warren Street, Syracuse, New York 13202 is assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v TERRANCE L. MACK, Respondent.

Submitted August 4, 2014; decided August 28, 2014

Reported below, 117 AD3d 1450.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KAITY MARSHALL, Appellant.

Submitted August 25, 2014; decided August 28, 2014

Reported below, 42 Misc 3d 141(A), 2014 NY Slip Op 50215(U).

Motion for assignment of counsel granted and Seymour James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JORGE MERCADO, Appellant.

Submitted July 28, 2014; decided August 28, 2014

Reported below, 110 AD3d 926.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM MIDDLEBROOKS, Appellant.

Submitted July 21, 2014; decided August 28, 2014

Reported below, 117 AD3d 1445.

Motion for assignment of counsel granted and David C. Schopp, Esq., The Legal Aid Bureau of Buffalo, Inc., 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENNETH MOORE, Appellant.

Submitted July 7, 2014; decided August 28, 2014

Reported below, 34 Misc 3d 151(A), 2012 NY Slip Op 50275(U).

Motion for assignment of counsel granted and Seymour James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY N. PACHERILLE, Appellant.

Submitted July 21, 2014; decided August 28, 2014

Reported below, 106 AD3d 1136.

Motion to vacate this Court's June 17, 2014 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEAN
PACQUETTE, Appellant.

Submitted July 7, 2014; decided August 28, 2014

Reported below, 112 AD3d 405.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MI-
CHAEL SANS, Appellant.

Submitted August 4, 2014; decided August 28, 2014

Reported below, 40 Misc 3d 141(A), 2013 NY Slip Op 51464(U).

Motion for assignment of counsel granted and Seymour James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MI-
CHAEL WASHINGTON, Appellant.

Submitted August 11, 2014; decided August 28, 2014

Reported below, 108 AD3d 781.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CEDRIC
J. WILLIAMS, Appellant.

Submitted July 28, 2014; decided August 28, 2014

Reported below, 117 AD3d 1462.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

In the Matter of TOWN OF NORTH HEMPSTEAD, Appellant-Respondent, v COUNTY OF NASSAU, Respondent-Appellant.

Submitted August 4, 2014; decided August 28, 2014

Reported below, 102 AD3d 800.

Motion by Association of Towns of the State of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of TOWN OF NORTH HEMPSTEAD, Appellant-Respondent, v COUNTY OF NASSAU, Respondent-Appellant.

Submitted August 18, 2014; decided August 28, 2014

Reported below, 102 AD3d 800.

Motion by Town of Huntington for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

APPEALS WITHDRAWN AND DISCONTINUED

(August 1, 2014 through August 31, 2014)

McGinley v Mystic W. Realty Corp.	1st Dept: 117 AD3d 504	8/8/14
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(August 1, 2014 through August 31, 2014)

People v Aiken	App Div, 3d Dept: 2014 NY Slip Op 66415(U) (Ulster)	denied reconsideration 8/20/14 (Smith, J.)
People v Allan	App Div, 2d Dept: 2014 NY Slip Op 70394(U) (Suffolk)	dismissed 8/4/14 (Rivera, J.)

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People v Almanzar	1st Dept: 113 AD3d 527 (Bronx)	denied 8/19/14 (Abdus-Salaam, J.)
People v Alvarez	1st Dept: 117 AD3d 411 (NY)	denied 8/21/14 (Smith, J.)
People v Ambers	2d Dept: 115 AD3d 671 (Queens)	granted 8/25/14 (Abdus-Salaam, J.)
People v Anderson	2d Dept: 115 AD3d 972 (Kings)	denied reconsideration 8/29/14 (Grafteo, J.)
People v Araus	1st Dept: 118 AD3d 420 (NY)	denied 8/12/14 (Pigott, J.)
People v Ashby	2d Dept: 118 AD3d 904 (Kings)	denied 8/19/14 (Grafteo, J.)
People v Avila	2d Dept: 117 AD3d 1071 (Queens)	denied 8/26/14 (Read, J.)
People v Barnes	2d Dept: 118 AD3d 904 (Suffolk)	denied 8/25/14 (Pigott, J.)
People v Bates	4th Dept: 115 AD3d 1226 (Cayuga)	denied 8/28/14 (Abdus-Salaam, J.)
People v Bedell	4th Dept: 114 AD3d 1153 (Monroe)	denied 8/19/14 (Abdus-Salaam, J.)
People v Benitez	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 44 Misc 3d 129(A) (Kings)	denied 8/26/14 (Grafteo, J.)
People v Benloss	2d Dept: 117 AD3d 1071 (Kings)	denied 8/21/14 (Smith, J.)
People v Bennett	2d Dept: 117 AD3d 747 (Kings)	denied 8/12/14 (Rivera, J.)
People v Biggs	1st Dept: 118 AD3d 473 (Bronx)	denied 8/26/14 (Grafteo, J.)
People v Black	3d Dept: 117 AD3d 1099 (Fulton)	denied 8/12/14 (Rivera, J.)
People v Black (Raphael)	1st Dept: 110 AD3d 569 (NY)	denied 8/12/14 (Rivera, J.)
People v Blacknell	4th Dept: 117 AD3d 1564 (Onondaga)	denied 8/12/14 (Rivera, J.)
People v Blackwood	1st Dept: 108 AD3d 163 (NY)	denied reconsideration 8/12/14 (Rivera, J.)
People v Blair	4th Dept: 117 AD3d 1505 (Monroe)	denied 8/5/14 (Grafteo, J.)
People v Blyden	2d Dept: 116 AD3d 784 (Queens)	denied 8/28/14 (Abdus-Salaam, J.)
People v Bonds	2d Dept: 118 AD3d 717 (Queens)	denied 8/29/14 (Grafteo, J.)

People v Boswell (Christopher)	4th Dept: 117 AD3d 1493 (Wayne)	denied 8/1/14 (Pigott, J.) (Appeal No. 1)
People v Boswell (Christopher)	4th Dept: 117 AD3d 1494 (Wayne)	denied 8/1/14 (Pigott, J.) (Appeal No. 2)
People v Boswell (Christopher)	4th Dept: 117 AD3d 1494 (Wayne)	denied 8/1/14 (Pigott, J.) (Appeal No. 3)
People v Bradford	4th Dept: 114 AD3d 1163 (Onondaga)	denied 8/20/14 (Abdus-Salaam, J.)
People v Briggs	1st Dept: 118 AD3d 513 (NY)	denied 8/6/14 (Lippman, Ch. J.)
People v Brizen	1st Dept: 118 AD3d 590 (NY)	denied 8/29/14 (Grafteo, J.)
People v Brown	4th Dept: 115 AD3d 1204 (Oneida)	denied 8/12/14 (Rivera, J.)
People v Browning	4th Dept: 117 AD3d 1471 (Erie)	denied 8/12/14 (Rivera, J.)
People v Bryant	1st Dept: 118 AD3d 576 (Bronx)	denied 8/21/14 (Smith, J.)
People v Bullock	App Term, 2d Dept, 9th & 10th Jud Dists: 42 Misc 3d 141(A) (Rockland)	denied 8/12/14 (Rivera, J.)
People v Burr	App Div, 4th Dept: 2014 NY Slip Op 73344(U) (Erie)	dismissed 8/13/14 (Abdus-Salaam, J.)
People v Byrdsong	1st Dept: 114 AD3d 604 (Bronx)	denied 8/19/14 (Abdus-Salaam, J.)
People v Caldavado	2d Dept: 116 AD3d 877 (Queens)	granted 8/7/14 (Grafteo, J.)
People v Calderaro	2d Dept: 116 AD3d 877 (Queens)	granted 8/7/14 (Grafteo, J.)
People v Casarrubia	2d Dept: 117 AD3d 1072 (Queens)	denied 8/12/14 (Pigott, J.)
People v Charles	2d Dept: 116 AD3d 967 (Orange)	denied 8/1/14 (Read, J.)
People v Clark	2d Dept: 118 AD3d 905 (Queens)	denied 8/26/14 (Read, J.)
People v Clarke	2d Dept: 116 AD3d 786 (Queens)	denied 8/6/14 (Smith, J.)
People v Cole	4th Dept: 115 AD3d 1274 (Erie)	denied reconsideration 8/26/14 (Grafteo, J.)
People v Colon	3d Dept: 116 AD3d 1222 (Montgomery)	denied 8/19/14 (Grafteo, J.)
People v Colvin (James)	App Div, 4th Dept, 4/15/14 (Erie)	dismissed 8/28/14 (Abdus-Salaam, J.)

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People v Colvin (James)	App Div, 4th Dept, 6/10/14 (Erie)	dismissed 8/28/14 (Abdus-Salaam, J.)
People v Conner	App Div, 4th Dept, 4/22/14 (Wayne)	dismissed 8/13/14 (Abdus-Salaam, J.)
People v Crawford	2d Dept: 115 AD3d 672 (Westchester)	denied 8/25/14 (Pigott, J.)
People v Currie	2d Dept: 117 AD3d 1074 (Kings)	denied 8/14/14 (Pigott, J.)
People v D'Antuono	4th Dept: 114 AD3d 1225 (Niagara)	denied reconsideration 8/26/14 (Read, J.)
People v Davilla	1st Dept: 117 AD3d 646 (NY)	denied 8/26/14 (Read, J.)
People v Davis-Johnson	4th Dept: 117 AD3d 1561 (Monroe)	denied 8/1/14 (Pigott, J.)
People v DeJesus	4th Dept: 118 AD3d 1340 (Erie)	denied 8/22/14 (Smith, J.)
People v Delgado	1st Dept: 116 AD3d 541 (Bronx)	denied 8/12/14 (Rivera, J.)
People v DeMarco	4th Dept: 117 AD3d 1522 (Cattaraugus)	denied 8/12/14 (Rivera, J.)
People v Demps	3d Dept: 118 AD3d 1146 (Ulster)	denied 8/11/14 (Smith, J.)
People v Denham	2d Dept: 97 AD3d 691 (Westchester)	denied 8/28/14 (Abdus-Salaam, J.)
People v Doe (John)	4th Dept: 118 AD3d 1477 (Monroe)	denied 8/26/14 (Smith, J.)
People v Downing (Naquan)	2d Dept: 114 AD3d 805 (Kings)	denied 8/19/14 (Abdus-Salaam, J.)
People v Downing (Sequan)	2d Dept: 114 AD3d 805 (Kings)	denied 8/19/14 (Abdus-Salaam, J.)
People v Dred	4th Dept: 117 AD3d 1505 (Monroe)	denied 8/5/14 (Grafteo, J.)
People v Edelman	County Ct: 45 Misc 3d 556 (Monroe)	denied 8/29/14 (Abdus-Salaam, J.)
People v Edwards	2d Dept: 118 AD3d 909 (Kings)	denied 8/29/14 (Grafteo, J.)
People v Ervine	1st Dept: 115 AD3d 446 (Bronx)	denied 8/19/14 (Smith, J.)
People v Farrare	4th Dept: 118 AD3d 1477 (Monroe)	denied 8/26/14 (Smith, J.)
People v Ferguson	2d Dept: 113 AD3d 874 (Kings)	denied 8/19/14 (Abdus-Salaam, J.)
People v Fligger	3d Dept: 117 AD3d 1343 (Saratoga)	denied 8/26/14 (Read, J.)

People v Flowers	2d Dept: 116 AD3d 710 (Queens)	denied 8/28/14 (Abdus-Salaam, J.)
People v Fulton	4th Dept: 114 AD3d 1226 (Oneida)	denied 8/19/14 (Abdus-Salaam, J.)
People v Garcia (Felix)	App Div, 1st Dept: 2014 NY Slip Op 72893(U) (NY)	denied 8/5/14 (Grafteo, J.)
People v Garcia (Felix)	1st Dept: 117 AD3d 646 (NY)	denied 8/26/14 (Read, J.)
People v Garcia (Roberto)	2d Dept: 112 AD3d 963 (Queens)	denied 8/19/14 (Abdus-Salaam, J.)
People v Gassner	3d Dept: 118 AD3d 1221 (Cortland)	denied 8/19/14 (Grafteo, J.)
People v Gayden	4th Dept: 111 AD3d 1388 (Monroe)	withdrawn 8/28/14 (Abdus-Salaam, J.) (Appeal No. 1)
People v George	2d Dept: 118 AD3d 1019 (Queens)	denied 8/22/14 (Smith, J.)
People v Gibson	3d Dept: 118 AD3d 1157 (Clinton)	denied 8/11/14 (Smith, J.)
People v Gino	4th Dept: 115 AD3d 1226 (Cayuga)	denied 8/28/14 (Abdus-Salaam, J.)
People v Glusko	2d Dept: 114 AD3d 701 (Dutchess)	denied 8/19/14 (Abdus-Salaam, J.)
People v Goodluck	1st Dept: 117 AD3d 653 (NY)	denied 8/26/14 (Grafteo, J.)
People v Green	3d Dept: 119 AD3d 23 (Sullivan)	denied 8/25/14 (Pigott, J.)
People v Grice	App Div, 3d Dept: 2014 NY Slip Op 65007(U) (Clinton)	denied 8/19/14 (Abdus-Salaam, J.)
People v Griffin	App Div, 2d Dept: 2014 NY Slip Op 65345(U) (Orange)	denied reconsideration 8/4/14 (Rivera, J.)
People v Gueye	2d Dept: 100 AD3d 922 (Queens)	denied 8/12/14 (Rivera, J.)
People v Haigler	1st Dept: 117 AD3d 478 (NY)	denied 8/5/14 (Grafteo, J.)
People v Hampton	4th Dept: 113 AD3d 1131 (Erie)	denied reconsideration 8/1/14 (Pigott, J.)
People v Harris (Davon)	2d Dept: 115 AD3d 872 (Queens)	granted 8/4/14 (Rivera, J.)
People v Harris (Fred)	2d Dept: 115 AD3d 761 (Kings)	denied 8/12/14 (Rivera, J.)

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People v Hatton	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 42 Misc 3d 141(A) (Kings)	granted 8/4/14 (Rivera, J.)
People v Hayes	App Div, 1st Dept: 2014 NY Slip Op 71553(U) (NY)	denied 8/26/14 (Read, J.)
People v Henry	App Div, 2d Dept: 2014 NY Slip Op 68212(U) (Nassau)	dismissed 8/13/14 (Abdus-Salaam, J.)
People v Hernandez	1st Dept: 118 AD3d 556 (NY)	denied 8/20/14 (Smith, J.)
People v Holmes	1st Dept: 118 AD3d 515 (NY)	denied 8/21/14 (Smith, J.)
People v Hugewe	2d Dept: 114 AD3d 702 (Queens)	denied 8/19/14 (Abdus-Salaam, J.)
People v Iacono	App Term, 2d Dept, 9th & 10th Jud Dists: 42 Misc 3d 140(A) (Nassau)	denied reconsideration 8/4/14 (Smith, J.)
People v Ingram	4th Dept: 114 AD3d 1290 (Erie)	granted 8/22/14 (Smith, J.)
People v Jackson	4th Dept: 119 AD3d 1361 (Erie)	denied 8/26/14 (Grafteo, J.)
People v Jacob	2d Dept: 117 AD3d 1079 (Nassau)	denied 8/20/14 (Smith, J.)
People v Jahman	4th Dept: 117 AD3d 1505 (Monroe)	denied 8/5/14 (Grafteo, J.)
People v Jefferies	1st Dept: 110 AD3d 646 (NY)	denied 8/28/14 (Abdus-Salaam, J.)
People v Jenkins	4th Dept: 117 AD3d 1528 (Erie)	denied 8/8/14 (Lippman, Ch. J.)
People v Jeudy	2d Dept: 115 AD3d 982 (Kings)	denied 8/28/14 (Abdus-Salaam, J.)
People v Jiminez	1st Dept: 117 AD3d 598 (NY)	denied 8/14/14 (Lippman, Ch. J.)
People v Jogie	2d Dept: 118 AD3d 1025 (Nassau)	denied 8/22/14 (Smith, J.)
People v Johnson	2d Dept: 116 AD3d 883 (Kings)	denied 8/12/14 (Rivera, J.)
People v Jones (Christopher)	2d Dept: 118 AD3d 912 (Kings)	denied 8/26/14 (Grafteo, J.)
People v Jones (Daniel)	4th Dept: 117 AD3d 1499 (Erie)	denied 8/12/14 (Rivera, J.)
People v Jones (Derek)	3d Dept: 111 AD3d 1148 (Cortland)	denied 8/25/14 (Lippman, Ch. J.)
People v Jones (Jermaine)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 44 Misc 3d 127(A) (Kings)	denied 8/12/14 (Pigott, J.)
People v Jones (Michael)	2d Dept: 117 AD3d 878 (Suffolk)	denied 8/26/14 (Read, J.)
People v Jorgensen	2d Dept: 113 AD3d 793 (Suffolk)	granted 8/5/14 (Smith, J.)

People v Kalinowski	4th Dept: 118 AD3d 1434 (Erie)	denied 8/25/14 (Pigott, J.)
People v Kelly	2d Dept: 114 AD3d 879 (Queens)	denied 8/6/14 (Lippman, Ch. J.)
People v Kernahan	1st Dept: 117 AD3d 619 (NY)	denied 8/12/14 (Pigott, J.)
People v King	2d Dept: 115 AD3d 986 (Westchester)	denied 8/28/14 (Abdus-Salaam, J.)
People v Kirzoncic	2d Dept: 112 AD3d 651 (Dutchess)	denied reconsideration 8/26/14 (Read, J.)
People v Krouth	4th Dept: 115 AD3d 1354 (Monroe)	denied 8/28/14 (Abdus-Salaam, J.)
People v Lamb	App Div, 2d Dept: 2014 NY Slip Op 71441(U) (Queens)	dismissed 8/8/14 (Lippman, Ch. J.)
People v Lapham	3d Dept: 117 AD3d 1341 (Clinton)	denied 8/12/14 (Pigott, J.)
People v LaPierre	2d Dept: 117 AD3d 879 (Nassau)	denied 8/26/14 (Read, J.)
People v Lawson	2d Dept: 114 AD3d 962 (Richmond)	denied 8/12/14 (Rivera, J.)
People v Lee	1st Dept: 116 AD3d 493 (NY)	denied 8/6/14 (Lippman, Ch. J.)
People v Lewicki (Jonathan)	4th Dept: 118 AD3d 1328 (Erie)	denied 8/22/14 (Smith, J.) (Appeal No. 1)
People v Lewicki (Jonathan)	4th Dept: 118 AD3d 1330 (Erie)	denied 8/22/14 (Smith, J.) (Appeal No. 2)
People v Lezama	2d Dept: 117 AD3d 752 (Orange)	denied 8/12/14 (Pigott, J.)
People v Llanos (Wilson)	1st Dept: 117 AD3d 652 (NY)	denied 8/5/14 (Grafteo, J.)
People v Llanos (Wilson)	App Div, 1st Dept: 2014 NY Slip Op 73662(U) (NY)	denied 8/26/14 (Grafteo, J.)
People v Lowe	4th Dept: 113 AD3d 1133 (Onondaga)	granted 8/4/14 (Rivera, J.)
People v Maldonado	2d Dept: 118 AD3d 820 (Suffolk)	denied 8/14/14 (Pigott, J.)
People v Martinez	2d Dept: 116 AD3d 983 (Queens)	denied 8/12/14 (Rivera, J.)
People v Massucco	4th Dept: 118 AD3d 1350 (Ontario)	denied 8/5/14 (Lippman, Ch. J.)
People v Mazyck	2d Dept: 117 AD3d 1084 (Dutchess)	denied 8/6/14 (Lippman, Ch. J.)
People v McCray	2d Dept: 106 AD3d 1110 (Dutchess)	denied reconsideration 8/28/14 (Abdus-Salaam, J.)

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People v McCrory	2d Dept: 114 AD3d 810 (Westchester)	denied 8/19/14 (Abdus-Salaam, J.)
People v McFarlane	2d Dept: 117 AD3d 970 (Nassau)	denied 8/26/14 (Grafteo, J.)
People v McGowan	1st Dept: 113 AD3d 449 (NY)	denied 8/19/14 (Abdus-Salaam, J.)
People v McGrew	4th Dept: 118 AD3d 1490 (Niagara)	denied 8/22/14 (Smith, J.)
People v Middlebrooks	4th Dept: 114 AD3d 1172 (Erie)	denied 8/12/14 (Rivera, J.)
People v Milford	3d Dept: 118 AD3d 1166 (Otsego)	denied 8/26/14 (Grafteo, J.)
People v Miller	App Div, 3d Dept: 2014 NY Slip Op 72995(U) (Fulton)	dismissed 8/11/14 (Grafteo, J.)
People v Mills	4th Dept: 118 AD3d 1367 (Genesee)	dismissed 8/26/14 (Read, J.)
People v Mitchell	2d Dept: 117 AD3d 970 (Queens)	denied 8/14/14 (Pigott, J.)
People v Mobley	2d Dept: 116 AD3d 1067 (Queens)	denied 8/18/14 (Lippman, Ch. J.)
People v Monk	3d Dept: 113 AD3d 999 (Montgomery)	denied 8/19/14 (Abdus-Salaam, J.)
People v Mooney	4th Dept: 117 AD3d 1470 (Monroe)	denied 8/5/14 (Grafteo, J.)
People v Morrison	3d Dept: 106 AD3d 1201 (Sullivan)	denied 8/12/14 (Rivera, J.)
People v Nailor	App Div, 3d Dept: 2014 NY Slip Op 65737(U) (Warren)	denied reconsideration 8/1/14 (Pigott, J.)
People v Nazario	App Div, 1st Dept: 2013 NY Slip Op 91229(U) (Bronx)	denied 8/26/14 (Grafteo, J.)
People v Nealon	2d Dept: 116 AD3d 886 (Queens)	granted 8/15/14 (Grafteo, J.)
People v Negron (Carlos)	1st Dept: 117 AD3d 598 (NY)	denied 8/14/14 (Lippman, Ch. J.)
People v Negron (Julio)	2d Dept: 112 AD3d 741 (Queens)	granted 8/20/14 (Smith, J.)
People v Newman	2d Dept: 107 AD3d 827 (Westchester)	denied 8/25/14 (Lippman, Ch. J.)
People v Nichols	4th Dept: 113 AD3d 1122 (Monroe)	denied 8/19/14 (Abdus-Salaam, J.)
People v Nilsen	2d Dept: 114 AD3d 706 (Suffolk)	denied 8/19/14 (Abdus-Salaam, J.)
People v Norwell	1st Dept: 116 AD3d 539 (NY)	denied 8/29/14 (Abdus-Salaam, J.)

People v Oliveira	App Div, 1st Dept: 2014 NY Slip Op 73676(U) (NY)	denied 8/20/14 (Smith, J.)
People v Olson	1st Dept: 116 AD3d 427 (NY)	denied 8/12/14 (Rivera, J.)
People v Overton	App Div, 1st Dept: 2013 NY Slip Op 81583(U) (NY)	denied 8/1/14 (Read, J.)
People v Papal	2d Dept: 117 AD3d 1087 (Queens)	denied 8/25/14 (Pigott, J.)
People v Parker	2d Dept: 114 AD3d 883 (Kings)	denied 8/5/14 (Lippman, Ch. J.)
People v Patterson	4th Dept: 115 AD3d 1174 (Oneida)	denied 8/28/14 (Abdus-Salaam, J.)
People v Peck	4th Dept: 117 AD3d 1505 (Onondaga)	denied 8/12/14 (Pigott, J.)
People v Phillips	1st Dept: 117 AD3d 544 (NY)	denied 8/26/14 (Read, J.)
People v Polk	1st Dept: 118 AD3d 564 (NY)	denied 8/29/14 (Grafteo, J.)
People v Popal (Farid)	2d Dept: 117 AD3d 1087 (Queens)	denied 8/25/14 (Pigott, J.)
People v Popal (John)	2d Dept: 117 AD3d 1087 (Queens)	denied 8/25/14 (Pigott, J.)
People v Pressley	2d Dept: 115 AD3d 991 (Kings)	denied 8/28/14 (Abdus-Salaam, J.)
People v Pugliese	4th Dept: 113 AD3d 1112 (Herkimer)	denied 8/12/14 (Rivera, J.)
People v Quezada	2d Dept: 116 AD3d 796 (Queens)	denied 8/28/14 (Abdus-Salaam, J.)
People v Randolph	3d Dept: 117 AD3d 1280 (Ulster)	denied 8/6/14 (Lippman, Ch. J.)
People v Rasheed	2d Dept: 117 AD3d 1088 (Richmond)	denied 8/5/14 (Grafteo, J.)
People v Reid	4th Dept: 115 AD3d 1245 (Erie)	denied 8/28/14 (Abdus-Salaam, J.)
People v Richardson	2d Dept: 118 AD3d 821 (Westchester)	denied 8/26/14 (Read, J.)
People v Robinson (Johnnie)	1st Dept: 114 AD3d 422 (NY)	denied 8/19/14 (Abdus-Salaam, J.)
People v Robinson (Louis)	3d Dept: 117 AD3d 1099 (Fulton)	denied 8/12/14 (Rivera, J.)
People v Robles	1st Dept: 115 AD3d 420 (Bronx)	denied 8/12/14 (Rivera, J.)
People v Rodriguez (Andrew)	1st Dept: 116 AD3d 596 (Bronx)	denied 8/12/14 (Rivera, J.)
People v Rodriguez (Bernardo)	1st Dept: 110 AD3d 456 (NY)	denied 8/12/14 (Rivera, J.)

MEMORANDA

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People v Rodriguez (Jefferson)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 42 Misc 3d 142(A) (Queens)	denied 8/4/14 (Smith, J.)
People v Rodriguez (Yenfri)	2d Dept: 115 AD3d 884 (Suffolk)	denied 8/28/14 (Abdus-Salaam, J.)
People v Rogers	2d Dept: 114 AD3d 707 (Queens)	denied 8/12/14 (Rivera, J.)
People v Roman	1st Dept: 111 AD3d 417 (Bronx)	denied 8/12/14 (Rivera, J.)
People v Ross	4th Dept: 118 AD3d 1321 (Erie)	denied 8/12/14 (Rivera, J.)
People v Salley	App Div, 1st Dept: 2014 NY Slip Op 71575(U) (NY)	dismissed 8/11/14 (Grafteo, J.)
People v Sanchez	1st Dept: 118 AD3d 549 (NY)	denied 8/29/14 (Grafteo, J.)
People v Santana	1st Dept: 114 AD3d 557 (Bronx)	denied 8/12/14 (Rivera, J.)
People v Santiago (Jose)	1st Dept: 117 AD3d 539 (Bronx)	denied 8/12/14 (Rivera, J.)
People v Santiago (Noel)	2d Dept: 117 AD3d 759 (Queens)	denied 8/12/14 (Rivera, J.)
People v Scales	4th Dept: 118 AD3d 1500 (Monroe)	denied 8/26/14 (Grafteo, J.)
People v Schlau	1st Dept: 117 AD3d 461 (Bronx)	denied 8/11/14 (Smith, J.)
People v Schmidli	4th Dept: 118 AD3d 1491 (Niagara)	denied 8/26/14 (Read, J.)
People v Schultz	4th Dept: 117 AD3d 1560 (Oneida)	denied 8/26/14 (Read, J.)
People v Shaw	1st Dept: 117 AD3d 564 (NY)	denied 8/12/14 (Rivera, J.)
People v Showers	1st Dept: 116 AD3d 589 (Bronx)	denied 8/1/14 (Read, J.)
People v Simmons (Mark)	1st Dept: 117 AD3d 555 (NY)	denied 8/12/14 (Rivera, J.)
People v Simmons (Tyrone)	App Div, 2d Dept: 2014 NY Slip Op 70943(U) (Westchester)	dismissed 8/8/14 (Lippman, Ch. J.)
People v Simon	2d Dept: 101 AD3d 908 (Suffolk)	denied 8/12/14 (Rivera, J.)
People v Singh	2d Dept: 109 AD3d 1010 (Queens)	denied 8/12/14 (Rivera, J.)
People v Small (Johnnie)	4th Dept: 118 AD3d 1349 (Erie)	denied 8/26/14 (Grafteo, J.)
People v Small (Samuel)	2d Dept: 112 AD3d 857 (Kings)	granted 8/8/14 (Smith, J.)
People v Smalls (Dennis)	1st Dept: 116 AD3d 474 (Bronx)	granted 8/11/14 (Grafteo, J.)
People v Smalls (Samuel)	2d Dept: 112 AD3d 857 (Kings)	granted 8/8/14 (Smith, J.)

People v Smart	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 43 Misc 3d 131(A) (Queens)	denied 8/28/14 (Abdus-Salaam, J.)
People v Stafford	2d Dept: 115 AD3d 683 (Dutchess)	denied 8/1/14 (Pigott, J.)
People v Stapleton	App Div, 2d Dept: 2014 NY Slip Op 67271(U) (Queens)	denied reconsideration 8/11/14 (Grafteo, J.)
People v Starr	2d Dept: 114 AD3d 813 (Orange)	denied 8/28/14 (Abdus-Salaam, J.)
People v Streeter	4th Dept: 118 AD3d 1287 (Niagara)	denied 8/29/14 (Grafteo, J.)
People v Sullivan	App Div, 4th Dept, 5/22/14 (Erie)	dismissed 8/21/14 (Smith, J.)
People v Sydlar	3d Dept: 117 AD3d 1314 (Otsego)	denied 8/5/14 (Grafteo, J.)
People v Symonds	1st Dept: 114 AD3d 456 (Bronx)	denied 8/28/14 (Abdus-Salaam, J.)
People v Tate	2d Dept: 115 AD3d 887 (Queens)	denied 8/29/14 (Abdus-Salaam, J.)
People v Taus	2d Dept: 110 AD3d 1014 (Nassau)	denied 8/1/14 (Read, J.)
People v Taylor	2d Dept: 117 AD3d 970 (Queens)	denied 8/14/14 (Pigott, J.)
People v Tlatelpa	2d Dept: 107 AD3d 1022 (Westchester)	denied 8/1/14 (Pigott, J.)
People v Totesau	2d Dept: 112 AD3d 977 (Nassau)	denied 8/28/14 (Abdus-Salaam, J.)
People v Trombley	3d Dept: 115 AD3d 1114 (Clinton)	denied 8/8/14 (Lippman, Ch. J.)
People v Turner (Michael)	1st Dept: 118 AD3d 463 (NY)	denied 8/12/14 (Pigott, J.)
People v Turner (Wani)	2d Dept: 118 AD3d 1030 (Suffolk)	denied 8/29/14 (Grafteo, J.)
People v Valle	1st Dept: 117 AD3d 602 (NY)	denied 8/26/14 (Read, J.)
People v Varenga	2d Dept: 115 AD3d 684 (Suffolk)	granted 8/6/14 (Rivera, J.)
People v Vargas	2d Dept: 117 AD3d 885 (Suffolk)	denied 8/26/14 (Grafteo, J.)
People v Vega	1st Dept: 117 AD3d 641 (NY)	denied 8/12/14 (Pigott, J.)
People v Vellon	App Div, 1st Dept: 2013 NY Slip Op 93917(U) (NY)	denied 8/1/14 (Pigott, J.)
People v Viktorow	1st Dept: 116 AD3d 414 (NY)	denied 8/28/14 (Abdus-Salaam, J.)

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People v Vosburgh	App Div, 3d Dept: 2014 NY Slip Op 71688(U) (Albany)	dismissed 8/12/14 (Pigott, J.)
People v Walcott	App Term, 2d Dept, 9th & 10th Jud Dists: 43 Misc 3d 141(A) (Westchester)	denied 8/26/14 (Read, J.)
People v Walker (Carlton)	App Div, 2d Dept: 2014 NY Slip Op 72676(U) (Queens)	dismissed 8/4/14 (Smith, J.)
People v Walker (Quincey)	4th Dept: 115 AD3d 1357 (Ontario)	denied 8/5/14 (Grafteo, J.)
People v Ward	2d Dept: 116 AD3d 989 (Nassau)	denied 8/12/14 (Rivera, J.)
People v Watkins	2d Dept: 117 AD3d 1092 (Richmond)	denied 8/14/14 (Pigott, J.)
People v Watson (Dwayne)	2d Dept: 115 AD3d 687 (Queens)	denied 8/12/14 (Rivera, J.)
People v Watson (Kashawn)	1st Dept: 113 AD3d 424 (NY)	denied 8/19/14 (Abdus-Salaam, J.)
People v Webb (Melanie)	2d Dept: 117 AD3d 762 (Queens)	denied 8/19/14 (Grafteo, J.)
People v Webb (Rashaad)	1st Dept: 117 AD3d 625 (Bronx)	denied 8/5/14 (Grafteo, J.)
People v Webb (Rashaad)	1st Dept: 117 AD3d 626 (NY)	denied 8/5/14 (Grafteo, J.)
People v Whitney	2d Dept: 117 AD3d 762 (Kings)	denied 8/14/14 (Lippman, Ch. J.)
People v Williams (Henry)	4th Dept: 115 AD3d 1245 (Onondaga)	denied 8/28/14 (Abdus-Salaam, J.)
People v Williams (Michael)	App Div, 4th Dept, 5/21/14 (Monroe)	dismissed 8/25/14 (Pigott, J.)
People v Williams (Richard)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 42 Misc 3d 149(A) (Kings)	denied 8/28/14 (Abdus-Salaam, J.)
People v Williams (Thomas)	County Ct, 5/8/14 (Erie)	denied 8/1/14 (Pigott, J.)
People v Wilson (Ariel)	1st Dept: 107 AD3d 532 (NY)	denied reconsideration 8/19/14 (Abdus-Salaam, J.)
People v Wilson (Michael)	4th Dept: 112 AD3d 1317 (Onondaga)	denied 8/19/14 (Abdus-Salaam, J.)
People v Wilson (Michael)	App Div, 4th Dept: 2014 NY Slip Op 64962(U) (Onondaga)	dismissed 8/28/14 (Abdus-Salaam, J.)
People v Witkop	4th Dept: 114 AD3d 1242 (Niagara)	denied 8/19/14 (Abdus-Salaam, J.)
People v Wood	4th Dept: 114 AD3d 1140 (Monroe)	denied 8/19/14 (Abdus-Salaam, J.)

People v Word	App Div, 1st Dept: 2014 NY Slip Op 70205(U) (NY)	denied 8/12/14 (Rivera, J.)
People v Wragg	4th Dept: 115 AD3d 1281 (Monroe)	granted 8/7/14 (Lippman, Ch. J.)
People v Wright	App Div, 1st Dept: 2014 NY Slip Op 73361(U) (NY)	denied 8/5/14 (Grafteo, J.)
People v York	2d Dept: 118 AD3d 926 (Kings)	denied 8/26/14 (Grafteo, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(August 1, 2014 through August 31, 2014)

People v Doe (John)	4th Dept: 118 AD3d 1423 (Monroe)	granted 8/12/14 (Lindley, J.) (Appeal No. 1)
People v Doe (John)	4th Dept: 118 AD3d 1428 (Monroe)	granted 8/12/14 (Lindley, J.) (Appeal No. 2)
People v Nicholson (Christopher)	4th Dept: 118 AD3d 1423 (Monroe)	granted 8/12/14 (Lindley, J.) (Appeal No. 1)
People v Nicholson (Christopher)	4th Dept: 118 AD3d 1428 (Monroe)	granted 8/12/14 (Lindley, J.) (Appeal No. 2)

* Includes only applications that were granted.

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ABUSE OF PROCESS.

See PROCESS; TORTS.

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles.

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

ADMINISTRATIVE LAW.

DELEGATION OF LEGISLATIVE POWER.

1. New York City Board of Health.—Respondent New York City Board of Health does not have legislative powers separate and apart from the New York City Council. Under the New York City Charter the City Council is the sole legislative branch of city government. The provision of the City Charter that sets out the Board's authority to add to, amend or repeal parts of the New York City Health Code; publish additional provisions for security of life and health; and confer additional powers on the Department of Health and Mental Hygiene that are not inconsistent with the NY Constitution, state law or the City Charter (NY City Charter § 558 [b]) reflects only a regulatory mandate, not legislative authority. The Charter contains no suggestion that the Board of Health has the authority to create laws. Rather, the Charter empowers the City Council to adopt local laws in order to preserve the public health (NY City Charter § 28 [a]), and restricts the Board's rulemaking to the publication of a health code. Accordingly, the Board exercised regulatory, rather than legislative, authority in adopting the "Sugary Drinks Portion Cap Rule" (NY City Health Code [24 RCNY] § 81.53) so as to restrict the size of cups and containers used by food service establishments for the provision of sugary beverages. *Matter of New York Statewide Coalition of Hispanic Chambers of Commerce v New York City Dept. of Health & Mental Hygiene*, 23 NY3d 681.

VALIDITY OF REGULATION.

2. Sugary Drinks Portion Cap Rule — Regulation Exceeded Delegated Authority.—Respondent New York City Board of Health, in adopting the "Sugary Drinks Portion Cap Rule" (NY City Health Code [24 RCNY] § 81.53) so as to restrict the size of cups and containers used by food service establishments for the provision of sugary beverages, exceeded the scope of its regulatory authority. Because a doctrine of separation of powers is delineated in the City Charter, *Boreali v Axelrod* (71 NY2d 1 [1987]) provided the appropriate analytical framework. The four coalescing circumstances in *Boreali* are overlapping, closely related factors that, taken together, support the conclusion that an agency has crossed the line into legislative territory. Here, the Board engaged in law-making beyond its regulatory authority under the first *Boreali* factor by making value judgments entailing difficult and complex choices between broad public policy ends—choices reserved to the legislative branch. As to the second *Boreali* factor, absent any legislation concerning the consumption of sugary beverages that the rule was designed to supplement, it is clear the Board wrote the rule without the benefit of legislative guidance, and did not simply fill in details guided by independent legislation. Regarding the third *Boreali* factor, the city and state legislatures had unsuccessfully attempted to target sugar sweetened beverages and the Board's rule addressed the same policy areas as the proposals rejected by the legislatures. Here, the first three factors were present, and the

ADMINISTRATIVE LAW—Cont'd

fourth *Boreali* factor, whether special expertise or technical competence was involved in the development of the rule, did not need to be addressed. By choosing among competing policy goals, without any legislative delegation or guidance, the Board engaged in law-making and thus infringed upon the legislative jurisdiction of the New York City Council. *Matter of New York Statewide Coalition of Hispanic Chambers of Commerce v New York City Dept. of Health & Mental Hygiene*, 23 NY3d 681.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS.

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT.

ALIMONY.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

ANNULMENT OF MARRIAGE.

See MARRIAGE.

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ACADEMIC AND MOOT QUESTIONS.

1. Challenge to Authority of Commission on Judicial Conduct to Request and Receive Records Sealed under CPL 160.50.—Respondent's appeal to the Appellate Division from the Supreme Court order denying his application to vacate the ex parte order releasing his sealed criminal records to petitioner New York State Commission on Judicial Conduct for use in its investigation of a judge who had been prosecuted along with respondent was not rendered moot by the judge's consent to a censure while the appeal was pending. Petitioner's written determination recommending a censure was posted, along with the agreed statement of facts which identified respondent lawyer by name and discussed the judge's apparent reliance on respondent's advice and financial payments during her election campaign, on petitioner's public government website. Where a case presents a live controversy and enduring consequences potentially flow from the order appealed from, the appeal is not moot. Petitioner's identification of respondent in its publicly available documents, and its description of his involvement in the judge's judicial election campaign, including assertions that his legal advice informed the judge's actions, adversely impacted his professional reputation and standing within the legal and greater communities, and constituted enduring consequences that flowed from the use of the sealed records. *Matter of New York State Commn. on Jud. Conduct v Rubenstein*, 23 NY3d 570.

PRESERVATION OF ISSUE FOR REVIEW.

2. Sufficiency of Objections at Trial.—In a Mental Hygiene Law article 10 proceeding seeking a determination that respondent was a detained sex offender requiring civil management, respondent failed to preserve his argument that the statements contained in the sex offender treatment evaluations about which the State's expert witness testified constituted unreliable hearsay that should have been excluded at trial. Respondent's trial counsel made only a general, pro forma objection to the witness's testimony about the treatment evaluations, and when the trial judge declined to have a side bar at that moment, counsel never pursued the objection or provided any explanation or basis for it. Counsel's general objection did not adequately alert the trial court to the hearsay arguments that respondent raised on appeal, and those claims were therefore beyond review. *Matter of State of New York v Charada T.*, 23 NY3d 355.

APPEAL—Cont'd

3. Challenge to Imposition of Points in Determining Sex Offender Risk Level.—Defendant, a convicted sex offender whose crime consisted of possessing pornographic videos and images of children, did not preserve his claim that the court determining his risk level classification under the Sex Offender Registration Act (Correction Law art 6-C [SORA]) should not have imposed points under factor 7 of the SORA Risk Assessment Guidelines based on his stranger relationship to the victims. Defendant never specifically opposed the People's request for the scoring of points under factor 7 on the theory that the assessment of such points is inappropriate in a child pornography case. *People v Gillotti*, 23 NY3d 841.

ARBITRATION.

See, also, INSURANCE.

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER.

ATTORNEY AND CLIENT.**COMPENSATION.**

1. Contingency Fee Retainer Agreement — Award of Statutory Fees under New York City Human Rights Law.—In an action in which statutory counsel fees are awarded under the New York City Human Rights Law (NYCHRL) (Administrative Code of City of NY § 8-502 [f]), but the contingency fee agreement governing the prevailing party's representation does not explicitly mention statutory fees, the attorney is entitled to the greater of either the contingency fee or the statutory award. Because the attorney fee provision of the NYCHRL is similar to the fee provisions in the federal civil rights statutes, federal case law provides helpful guidance as to the policy considerations underlying the award of counsel fees to prevailing civil rights plaintiffs. Absent a contractual provision to the contrary, the trend is to calculate the contingency fee based on the amount of the judgment exclusive of the fee award, and then credit the fee award to the client as an offset against the contingency fee owed. Such an approach comports with precedent holding that ambiguous fee arrangements should be interpreted against the drafting attorney. Deducting the court-awarded fees from the sum owed under the contract also ensures that the attorney receives, and the client pays, no more or less than they bargained for. In addition, permitting counsel to collect a statutory award that exceeds the amount due under a contingency fee agreement advances the purpose of the NYCHRL by incentivizing the private bar to represent civil rights plaintiffs even where any damage award is likely to be insubstantial. *Albunio v City of New York*, 23 NY3d 65.

2. Retainer Agreement for Trial — Calculation of Contingency Fee — Ambiguous Terms.—A retainer agreement providing that respondent attorney would receive a contingency fee equal to 33 $\frac{1}{3}$ “percent of the sum recovered, whether recovered by suit, settlement or otherwise,” which percentage was to be “computed on the net sum recovered,” for her representation of appellant clients in a lawsuit alleging violations of the New York City Human Rights Law, entitled respondent to a contingency fee equal to one third of the jury award only and did not include the value of a statutory counsel fee award as part of the “sum recovered.” The terms of the agreement did not unambiguously provide that any statutory fees were part of the “sum recovered.” While the phrase “by suit, settlement or otherwise” might support such an interpretation, a plaintiff's “recovery” ordinarily denotes the amount payable by the defendant as compensation for the plaintiff's injury. Moreover, the average client is presumably unaware of the existence of statutory fees. Attorneys who have drafted the retainer agreements have the burden to show that the contracts are fair, reasonable and fully known and understood by their clients. Here, the attorney did not meet that burden. According to her affidavit, she first discussed her proposal for distribution of the initial judgments when she asked plaintiffs to execute a new retainer agreement for the appeal. She described that one plaintiff expressed surprise at the proposed calculation. That plaintiffs failed to

ATTORNEY AND CLIENT—Cont'd

object upon learning of her intended fee calculation did not establish their understanding of that arrangement upon execution of the agreement. Moreover, neither the attorney's ambiguous email to plaintiffs stating that she was entitled to "one-third of what we recover" nor the fact that plaintiffs' agreement with their prior counsel stated that the prior counsel would receive the greater of the statutory award or 40% of the damages, established that plaintiffs understood that the "sum recovered" would encompass both damages and a statutory award. *Albunio v City of New York*, 23 NY3d 65.

3. Retainer Agreements for Appeals — Enforceability.—Retainer agreements, which covered plaintiffs' representation for appeals to the Appellate Division and Court of Appeals after plaintiffs had recovered damages for violations of the New York City Human Rights Law (NYCHRL), were enforceable as written where the agreements provided that each plaintiff would owe the attorney \$20,000, with a credit for any statutory fees awarded by the court, but if the court awarded statutory fees in excess of that amount, the attorney was entitled to those fees in their entirety. The retainers for appellate representation clearly and unambiguously dealt with the relationship between contractual fees and statutory awards. Moreover, the appellate statutory fees did not offset the contingency fee owed respondent for her trial work on the theory that an appeal is not separate, but a continuation of the underlying action for purposes of calculating statutory fees for appellate work. Attorneys and clients can negotiate a different retainer agreement for work done on appeal and where, as here, the retainer for trial work did not obligate counsel to represent the clients on appeal, the attorney was free to negotiate a different fee arrangement. Nor did anything prevent plaintiffs from rejecting the attorney's offer and retaining new counsel on appeal. That the attorney indicated the time-sensitive nature of selecting appellate counsel was not tantamount to duress and she proposed the terms of the agreement with sufficient time to retain substitute counsel. Also, because an award of statutory fees under the NYCHRL is always discretionary, it was not unreasonable for the attorney to seek a guarantee of a minimum payment for her appellate work. *Albunio v City of New York*, 23 NY3d 65.

DISCIPLINARY PROCEEDINGS.

4. Disbarment — Felony Conviction.—In an attorney disciplinary proceeding, an appeal from an order of the Appellate Division, which vacated a prior order striking appellant's name from the roll of attorneys following the reversal of his federal felony conviction, was dismissed upon the ground that the issues presented have become moot. Appellant was automatically disbarred upon his subsequent conviction of a felony (Judiciary Law § 90 [4] [a]). *Matter of Gupta*, 23 NY3d 925.

BANKS AND BANKING.

See, also, **BILLS, NOTES AND CHECKS.**

DUTY TO EXAMINE BANK STATEMENTS.

1. Failure to Discover and Report Forgeries — Bank's Provision of Forged Line-of-Credit Drawdown Requests to Customer.—In an action by plaintiff corporation and its principal to recover damages resulting from forgeries of bank documents perpetrated by plaintiffs' employee, defendant bank was not entitled to summary judgment under UCC 4-406 (4) with respect to allegedly forged requests to draw money on plaintiffs' line of credit with defendant bank. Although UCC 4-406 (4) bars a bank customer from claiming recovery on a wrongfully paid "item" when the customer fails to report an irregularity concerning the item to the bank within one year after the bank provides to the customer the relevant statement of account and a copy of the item pursuant to UCC 4-406 (1), regardless of either party's failure to exercise reasonable care, the record here did not show that defendant bank provided to plaintiffs the line-of-credit drawdown requests in accordance with UCC 4-406 (1). Banks must comply in good faith with UCC 4-406 (1) to seek the protections of UCC 4-406 (4), and a bank complies with UCC 4-406 (1) by supplying the item to the customer with the statement of account, by holding the item for the customer or by otherwise in a reasonable manner making the statement and item available. Here, the drawdown requests qualified as "items" within the meaning of UCC article 4 as

BANKS AND BANKING—Cont'd

they were written instruments formally exercising a contractual right to the payment of money from the line of credit. Absent any record evidence or discussion in the briefs about relevant banking practice or applicable regulations on the provision of line-of-credit drawdown requests to customers, defendant bank could not be held to have failed to comply with UCC 4-406 (1) as a matter of law. Nevertheless, defendant bank failed to demonstrate its compliance with the statute. *Clemente Bros. Contr. Corp. v Hafner-Milazzo*, 23 NY3d 277.

2. Failure to Discover and Report Forgeries — Modifying by Agreement UCC 4-406 (4)'s One-Year Period.—Parties may modify by agreement, as long as the modification is not manifestly unreasonable, the one-year period under UCC 4-406 (4) within which a customer must notify its bank of an improperly paid item in order to recover the payment thereon. UCC 4-103 (1) permits parties to alter the provisions of UCC article 4 by agreement as long as the parties do not disclaim a bank's responsibility for its own lack of good faith or failure to exercise ordinary care or limit the measure of damages for such lack or failure. UCC 4-103 (1) does not prohibit a bank from altering its obligation to refund payments made in good faith, and shortening UCC 4-406 (4)'s one-year period does not violate any of the prohibitions in UCC 4-103 (1). Here, in an action by plaintiff corporation and its principal to recover damages resulting from forgeries of bank documents perpetrated by plaintiffs' employee, defendant bank did not disclaim its responsibility to act with care by requiring plaintiffs, pursuant to an agreement between the parties, to notify it of an improperly paid item within 14 days of receiving the relevant account statement. While shortening UCC 4-406 (4)'s one-year period certainly affected defendant bank's liability for improperly paid items, whether paid in good faith or not, it did not exclude all liability for negligence. Nor did the modification affect the measure of damages; it merely limited the time within which plaintiffs were required to provide notice of the improper charge. *Clemente Bros. Contr. Corp. v Hafner-Milazzo*, 23 NY3d 277.

3. Failure to Discover and Report Forgeries — Modifying by Agreement UCC 4-406 (4)'s One-Year Period — 14-Day Period Not Manifestly Unreasonable.—Modification by agreement from one year to 14 days of the statutory time period under UCC 4-406 (4) within which a customer must notify its bank of an improperly paid item in order to recover the payment thereon is not manifestly unreasonable in the case of a corporate entity that either is financially sophisticated or has the resources to acquire professional guidance. Accordingly, in an action by plaintiff corporation and its principal to recover damages resulting from forgeries of bank documents perpetrated by plaintiffs' employee, an agreement by plaintiffs and defendant bank to modify UCC 4-406 (4)'s one-year period to 14 days was permissible. Plaintiff corporation had numerous employees, regularly moved hundreds of thousands of dollars in and out of its operating accounts and had the resources to make an informed decision about opening accounts at defendant bank. Moreover, plaintiff principal was fully aware of the terms of the agreement with defendant bank because plaintiff corporation passed a corporate resolution acknowledging its obligation to notify defendant bank of any irregularities within 14 days of each statement of account. It was not manifestly unreasonable to expect such a company to monitor its accounts once a month, within 14 days of each statement, particularly where it had acknowledged its responsibility to do so in a corporate resolution. Nevertheless, it could well be unreasonable for banks to use contracts of adhesion to impose an exacting 14-day limit on unsophisticated customers, small family businesses or individual consumers, including, for example, the elderly, people suffering from certain disabilities or others for whom the 14-day rule could be too unforgiving. *Clemente Bros. Contr. Corp. v Hafner-Milazzo*, 23 NY3d 277.

LINE OF CREDIT.

4. Bank's Payment of Forged Line-of-Credit Drawdown Requests — Financial Harm to Customer.—In an action by plaintiff corporation and its principal to recover damages resulting from forgeries of bank documents perpetrated by plaintiffs' employee, defendant bank's wrongful payment of allegedly forged requests to draw money on plaintiffs' line of credit with defendant bank caused plaintiffs to suffer

BANKS AND BANKING—Cont'd

financial harm. The line of credit was, in effect, a pre-approved loan upon which plaintiffs could draw at will. Plaintiffs did not possess any borrowed funds or owe anything in repayment in the absence of a drawdown request. Upon such a request, defendant bank would transfer funds to one of plaintiffs' operating accounts with defendant bank, interest immediately would begin to accrue and plaintiffs would be liable to repay the principal. *Clemente Bros. Contr. Corp. v Hafner-Milazzo*, 23 NY3d 277.

BILLS, NOTES AND CHECKS.

See, also, BANKS AND BANKING.

CASHIER'S CHECK.

1. Compelling Payment.—In an action to compel payment on a cashier's check, plaintiff demonstrated prima facie entitlement to judgment as a matter of law, and defendant, in opposition, failed to raise a triable issue of fact. A cashier's check—essentially, a check drawn by a bank on itself—is presumed to have been issued for value, and the issuance of such a check constitutes an acceptance by the issuing bank, which gives rise to an obligation to pay. When a bank has issued a cashier's check, it cannot stop payment, unless there is evidence of fraud, or the check is lost, stolen, or destroyed. *Golden v Citibank, N.A.*, 23 NY3d 935.

2. Stop Payment Order.—When a bank has issued a cashier's check, it cannot stop payment, unless there is evidence of fraud, or the check is lost, stolen, or destroyed. To the extent *Gates v Manufacturers Hanover Trust Co./Capital Region* (98 AD2d 829 [3d Dept 1983]) holds otherwise, it was wrongly decided and should not be followed. *Golden v Citibank, N.A.*, 23 NY3d 935.

BROKERS.**SECURITIES BROKERS.**

1. Commission — Distinction between Exclusive Agency and Exclusive Right to Sell.—The financial brokerage agreement between plaintiff broker and defendant owner, which provided that plaintiff would serve as a financial advisor and investment banker in the proposed sale of certain student loan assets owned by defendant but did not contain a provision expressly conferring an exclusive right of sale, gave plaintiff a standard exclusive agency, not an exclusive right to sell the assets. A contract giving rise to an exclusive right of sale must clearly and expressly provide that a commission is due upon sale by the owner or exclude the owner from independently negotiating a sale. Requiring an affirmative and unequivocal statement to establish a broker's exclusive right to sell is consistent with the general principle that an owner's freedom to dispose of his or her own property should not be infringed upon by mere implication. Such a rule applies to real estate brokerage agreements, and there is no reason to apply a different rule to brokerage contracts concerning the sale of financial instruments in the investment banking context. In both cases, the governing principles arise from the law of agency and contract, not from the law of real property. *Morpheus Capital Advisors LLC v UBS AG*, 23 NY3d 528.

2. Commission.—In an action arising from defendant owner's transfer of certain distressed student loan assets it owned to a fund created by the Swiss National Bank as part of a 2008 bailout, the complaint filed by plaintiff broker, which sought a commission under the parties' financial brokerage agreement giving plaintiff a standard exclusive agency with respect to the sale of the assets, failed to state a claim for breach of contract. The language in the brokerage agreement giving plaintiff the exclusive right to solicit counterparties for "any . . . [t]ransaction" did not mean that defendant had a corollary duty to give plaintiff a chance to seek a buyer before defendant consummated an independent sale. The "Termination of Engagement—Exclusivity" section of the agreement illustrated that plaintiff's entitlement to a commission was contingent on plaintiff introducing an investor to defendant or another broker facilitating such an introduction. Moreover, the consequence of the purported "duty to wait" would fundamentally change the nature of

BROKERS—Cont'd

the exclusive agency, wherein the owner and broker are essentially in competition with one another to locate a buyer. In the absence of language expressly varying the parties' rights under an exclusive agency, defendant had no duty to wait. Finally, it was unnecessary to conduct further discovery to shed light on the details of the bailout that included the Swiss government's assumption of the distressed student loan assets. The transfer was neither the work of a competing broker nor the result of the type of third-party introduction contemplated by the agreement, and, therefore, the bailout did not trigger defendant's obligation to pay plaintiff a commission. *Morpheus Capital Advisors LLC v UBS AG*, 23 NY3d 528.

CERTIORARI.

See PROCEEDING AGAINST BODY OR OFFICER.

CHIROPRACTORS.

See LICENSES; PHYSICIANS AND SURGEONS.

CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

CITIES.

See MUNICIPAL CORPORATIONS.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles.

PUBLIC EMPLOYMENT RELATIONS BOARD.

1. Improper Employer Practice — Remedial Order.—The remedial order issued by respondent Public Employment Relations Board (PERB) after it determined that petitioner town had committed an improper employer practice by unilaterally discontinuing the practice of permanently assigning town-owned vehicles to certain employees, which required petitioner to “[f]orthwith restore the vehicle assignments for commutation between home and work to those unit members who enjoyed the benefit prior to” a certain date, was unreasonable. A remedy fashioned by PERB for an improper practice should be upheld if reasonable, although it is for the courts to examine the reasonable application of PERB’s remedies. Here a PERB injunction was not sought to preserve the status quo ante, and petitioner sold some or all of the cars formerly permanently assigned to certain employees. Forcing petitioner to invest significant taxpayer dollars to replace those vehicles was unduly burdensome under the circumstances, and did not further the goal of reaching a fair negotiated result. Accordingly, the matter was remitted to PERB to fashion a remedy that granted commensurate, practical relief to the subject employees without requiring the purchase of new vehicles. *Matter of Town of Islip v New York State Pub. Empl. Relations Bd.*, 23 NY3d 482.

2. Improper Employer Practice.—Respondent Public Employment Relations Board’s determination that petitioner town had committed an improper employer practice by unilaterally discontinuing the practice of permanently assigning town-owned vehicles to certain employees, who were allowed to use those “take home” vehicles to commute to work, was supported by substantial evidence. Respondent has long held that employee use of an employer-owned vehicle for transportation to and from work is an economic benefit and a mandatorily negotiable term and condition of employment; therefore, a public employer may not unilaterally discontinue a past practice of providing its employees with this benefit. Accordingly, respondent reasonably applied its precedent to determine that petitioner engaged in an improper practice. Although Islip Town Code § 14-12, which governs the use of town-owned equipment or property, prohibits the use of town-owned vehicles for “personal convenience or profit,” it does not define that phrase and petitioner had never interpreted that phrase to encompass commuting to work by employees

CIVIL SERVICE—Cont'd

eligible for “take home” vehicles on account of their work duties and seniority. Accordingly, the relevant past practice was not, in fact, illegal under the local law. *Matter of Town of Islip v New York State Pub. Empl. Relations Bd.*, 23 NY3d 482.

RETIREMENT AND PENSION BENEFITS.

3. Calculation of Pension Benefit for Correction Officer in Tier 3 CO-20 Retirement Plan — Meaning of “Credited Service” under Retirement and Social Security Law § 504-a (b) (4).—Respondent New York City Employees’ Retirement System (NYCERS) properly did not consider the previous civilian service of petitioner, a retired correction officer with the New York City Department of Correction (DOC) and member of the Tier 3 CO-20 retirement plan established by Retirement and Social Security Law § 504-a and applicable to members who became correction officers after the plan’s start date, when calculating petitioner’s pension benefit. NYCERS’ interpretation of the meaning of “credited service” in section 504-a (b) (4) as reflecting the legislature’s intention to apply Tier 2 service eligibility rules, in which “credited service” has been interpreted to be limited to uniformed service only, to those Tier 3 CO-20 correction officers first employed at DOC after December 19, 1990 is entitled to deference. Petitioner’s pension was defined in its entirety by Retirement and Social Security Law § 504-a (c) (2), which sets forth the benefit calculation formula for the Tier 3 CO-20 plan without including a component to reflect any previous civilian service, and does not incorporate the benefit calculation formula in Administrative Code of the City of New York § 13-155 (a) (3) (c), which permits consideration of non-uniformed service in the calculation of a Tier 2 correction officer’s pension. NYCERS’ explanation of how section 504-a (b) (4) applies and fits into the overall statutory design was coherent and reasonable. By contrast, petitioner’s pick-and-choose approach—claiming a benefit for previous non-uniformed service under section 13-155 (a) (3) (c) but electing to apply the more advantageous formula set forth in section 504-a (c) (2) to compute the amount owed him for such additional service—would maximize petitioner’s pension but not create a harmonious whole. *Matter of Kaslow v City of New York*, 23 NY3d 78.

4. Increased-Take-Home-Pay Benefit for Certain Police and Firefighters — Members of Tier 3 Retirement System.—Retirement and Social Security Law § 480 (b) did not require defendant/respondent City of New York to make “Increased-Take-Home-Pay” (ITHP) pension contributions on behalf of New York City police officers and firefighters appointed on or after July 1, 2009. Those public employees were tier 3 members of the New York City Police Pension Fund and the New York City Fire Department Pension Fund, and the City properly deducted 3% from their gross annual wages as mandatory employee pension contributions. Section 480 (b) only encompasses temporary programs in place as of 1974 for tier 1 and 2 members of a public employee retirement system; it does not obligate a public employer to pay any portion of a tier 3 public employee’s statutorily required pension contribution. Although section 480 (b) does not identify, and therefore does not on its face limit, the tier of the members of the state and local public retirement systems who benefit from the temporary programs that it encompasses, the legislative history that exists reflects a common understanding that ITHP is a benefit available only to tier 1 and 2 employees. Moreover, such an interpretation of section 480 (b) is consistent with the overall design of New York’s tiered public employee pension systems and the series of pension reforms implemented to reduce public employers’ pension costs. *Lynch v City of New York*, 23 NY3d 757.

CLUBS.

See ASSOCIATIONS.

CONDEMNATION.

See EMINENT DOMAIN.

CONFLICT OF LAWS.**WHAT LAW GOVERNS.**

1. Statute of Limitations — Applicability of New York’s Savings Statute Following Application of New York’s Borrowing Statute.—In litigation concerning a foreign

CONFLICT OF LAWS—Cont'd

oil field, an action refiled in state court pursuant to New York's "savings" statute, CPLR 205 (a), following the non-merits dismissal of the nonresident plaintiff's prior New York federal court action, was not time-barred by CPLR 202 as the federal court action was timely commenced under the laws of Alberta, Canada, where plaintiff's claims accrued, notwithstanding that the state court action was untimely under Alberta law. CPLR 205 (a) requires that refiled state court claims arise from the same transaction as the federal action and are filed within six months of the federal action's non-merits termination. When a claim accrues outside New York and the plaintiff is a nonresident, CPLR 202 provides for "borrowing" the statute of limitations of the jurisdiction where the claim arose, if it is shorter than New York's, to measure the lawsuit's timeliness. Once plaintiff timely commenced its federal court action in New York, CPLR 202's purpose to prevent forum shopping was fulfilled. Because plaintiff's "prior" federal court action was timely under the borrowing statute, its "new" state court action brought pursuant to the savings statute "would have been timely commenced at the time of commencement of the prior action" (CPLR 205 [a]). Although, in borrowing a foreign statute, all the extensions and tolls applied in the foreign state must be imported with the foreign statutory period, it was irrelevant here that Alberta law did not have a savings statute similar to CPLR 205 (a) because the borrowing statute's requirements had already been met at the point in time when plaintiff filed its state court action. *Norex Petroleum Ltd. v Blavatnik*, 23 NY3d 665.

CONSTITUTIONAL LAW.**FREEDOM OF SPEECH.**

1. Picketing by Teachers in Front of School.—In related proceedings to vacate arbitration awards finding petitioner teachers guilty of misconduct related to a teachers' union picketing demonstration that took place on a public street in front of a school, the demonstration, which consisted of petitioners and others displaying picketing signs from their cars parked where parents were dropping their children off at school, was a form of "speech" protected by the First Amendment. As a general matter, peaceful picketing is an expressive activity involving speech protected by the First Amendment. The evidence at the arbitration hearings provided a rational basis for the affirmed finding of fact by the arbitrators that, on the morning in question, petitioners engaged in picketing from their cars parked on the street in front of the school. Although the arbitrators also determined that petitioners intended to create a disruption by parking in the student drop-off area, that finding did not, under the circumstances here, deprive petitioners' picketing activity of its status as speech. *Matter of Santer v Board of Educ. of E. Meadow Union Free Sch. Dist.*, 23 NY3d 251.

VALIDITY OF STATUTE.

2. Aggravated Harassment in Second Degree.—Penal Law § 240.30 (1), which criminalizes any communication that has the intent to annoy, is unconstitutionally vague and overbroad under both the State and Federal Constitutions. Any proscription of pure speech must be sharply limited to words which, by their utterance alone, inflict injury or tend naturally to evoke immediate violence. No fair reading of the statute's unqualified terms supports or even suggests the constitutionally necessary limitations on its scope. Accordingly, defendant's conviction of three counts of aggravated harassment in the second degree in violation of Penal Law § 240.30 (1) were vacated. *People v Golb*, 23 NY3d 455.

CONTEMPT.**CRIMINAL CONTEMPT.**

1. In a prosecution arising out of defendant's violation of an order of protection by making telephone calls to his former girlfriend, the evidence, viewed in the light most favorable to the People, was legally insufficient to establish a conviction for criminal contempt in the first degree. *People v Webb*, 23 NY3d 937.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

CONTRACTS—Cont'd**BREACH OR PERFORMANCE OF CONTRACT.**

1. **Breach of Duty to Negotiate in Good Faith.**—In an action arising out of continued, unsuccessful attempts by parties to a failed joint venture to negotiate, pursuant to a settlement agreement, additional agreements by which defendants were to provide plaintiffs with an “indefeasible right of use” of certain fiber optic capacity on a planned undersea cable system, plaintiffs’ complaint did not sufficiently allege any breach of defendants’ obligation to negotiate in good faith. Even assuming that defendants’ obligation under the settlement agreement to negotiate additional agreements in good faith still existed following the dismissal of a prior action alleging defendants’ breach of that obligation, it was clear on the record in the current action that the parties had reached an impasse, and none of the specific details of the negotiations contained in plaintiffs’ complaint supported an inference that defendants failed to negotiate in good faith. Parties may enter into a binding contract under which their obligations are conditioned on the negotiation of future agreements, in which case the parties are obliged to negotiate in good faith. However, the parties are not bound to negotiate forever, and the obligation to negotiate in good faith can come to an end without a breach by either party. Here, a pleading filed after more than a decade of back and forth between the parties should have contained some specific facts supporting the claim of bad faith—not just the bald conclusions, contradicted by the only relevant document referred to, that defendants insisted on terms that conflicted with the settlement agreement and made a definitive and final communication of their intent to violate their obligations thereunder. Although plaintiffs relied heavily on defendants’ repeated insistence, while continuing to negotiate with plaintiffs, that they were not bound by the settlement agreement to do so, the mere statement of defendants’ legal position, whether or not it was meritorious, was not in itself a refusal to negotiate. *IDT Corp. v Tyco Group, S.A.R.L.*, 23 NY3d 497.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS.

COURT OF CLAIMS.

See STATE.

COURTS.**FORUM NON CONVENIENS.**

1. **Application of New York Law to International Banking Transaction.**—In an action arising from a fraudulent foreign exchange transaction involving a foreign national and several foreign entities, the Appellate Division erred in reversing Supreme Court’s dismissal of the third-party complaint on forum non conveniens grounds by concluding that the allegations in the third-party complaint, taken as true, would require the application of New York law to the third-party claims. Under New York’s “interest analysis” approach, courts seek to effect the law of the jurisdiction having the greatest interest in resolving the particular issue. Here, the third-party claims arose in a suit by a Saudi Arabian company against its employee, a Saudi citizen, who allegedly committed fraudulent acts in Saudi Arabia. Although the parties used New York banks to facilitate the dollar transfers underlying the transaction, no party was a New York resident and no relevant conduct apart from the execution of fund transfers occurred in New York. *Mashreqbank PSC v Ahmed Hamad Al Gosaibi & Bros. Co.*, 23 NY3d 129.

2. **Corrective Action for Erroneous Reversal of Forum Non Conveniens Dismissals.**—In an action arising from a fraudulent foreign exchange transaction involving a foreign national and several foreign entities, where Supreme Court was correct as a matter of law in dismissing both the complaint and the third-party complaint on forum non conveniens grounds and the Appellate Division erred in reversing the dismissals, the appropriate corrective action was to reinstate Supreme Court’s judgment dismissing the complaints. Although remittal to the Appellate Division for

COURTS—Cont'd

reconsideration under the correct legal principles would be appropriate in a case in which either result could be reached in a sound exercise of discretion, dismissal on forum non conveniens grounds was required as a matter of law here as, apart from the use of New York banks to facilitate the dollar transfers underlying the transaction, there was nothing to justify resort to a New York forum. No party was a New York resident; no relevant conduct apart from the execution of fund transfers occurred in New York; no party had identified any important New York witnesses or New York documents; New York law did not apply; no property related to the dispute was located in New York; no related litigation was pending in New York; and no other circumstance supported an argument that New York was an appropriate forum. Moreover, alternatives to a New York forum were available given that the parties' briefs referred to a number of related investigations or litigations pending in several foreign countries. *Mashreqbank PSC v Ahmed Hamad Al Gosaibi & Bros. Co.*, 23 NY3d 129.

3. New York's Interest in International Banking Transaction.—In an action arising from a fraudulent foreign exchange transaction involving a foreign national and several foreign entities, the Appellate Division erred in reversing Supreme Court's dismissal of the third-party complaint on forum non conveniens grounds by giving great weight to the use of New York banks to accomplish the dollar transfers underlying the transaction. Any passage of funds through New York banks does not automatically implicate New York's compelling interest in the protection of its banking system thereby providing a weighty argument against a forum non conveniens dismissal. While New York's interest in the integrity of its banks is compelling, that interest is not significantly threatened every time one foreign national, effecting what is alleged to be a fraudulent transaction, moves dollars through a bank in New York. Not every party aggrieved by the outcome of an international financial transaction may bring its grievance to the New York courts. *Mashreqbank PSC v Ahmed Hamad Al Gosaibi & Bros. Co.*, 23 NY3d 129.

4. Propriety of Dismissal of Main Action on Court's Own Motion Following Dismissal of Third-Party Action.—In an action arising from a fraudulent foreign exchange transaction involving a foreign national and several foreign entities, Supreme Court, having granted third-party defendant's motion to dismiss the third-party action on forum non conveniens grounds, was not barred from dismissing the main action because of the inconvenience of the forum where the issue was briefed and argued before the motion court though no party formally moved to dismiss plaintiff's complaint on that ground. CPLR 327 (a) permits a court, on the motion of any party, to stay or dismiss an action in whole or in part on any conditions that may be just when the court finds that in the interest of substantial justice the action should be heard in another forum. Under the statute, a court does not have the authority to invoke the doctrine of forum non conveniens on its own motion, but only upon the motion of a party, as there is an obvious potential for unfairness when a case is dismissed on the basis of an issue that no party has raised or addressed. Nevertheless, where, as here, Supreme Court gave the parties a full opportunity to address the issue, no reason existed to read CPLR 327 (a) as prohibiting a forum non conveniens dismissal of the main action where only the formality of a document labeled "notice of motion" was lacking and where defendant, the only party opposed to dismissal, neither objected to nor was prejudiced by the omission of that formality. *Mashreqbank PSC v Ahmed Hamad Al Gosaibi & Bros. Co.*, 23 NY3d 129.

5. Discretion of Court.—It was not an abuse of discretion to grant, with conditions, defendant's motion to dismiss the complaint on the ground of forum non conveniens (*see* CPLR 327 [a]). *Boyle v Starwood Hotels & Resorts Worldwide, Inc.*, 23 NY3d 1012.

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

CRIMES—Cont'd**ACCOMPLICES.**

1. Testifying Witness — Accomplice in Fact Instruction.—In the prosecution of defendant arising from a fatal beating, wherein the prosecution called as its key witness a man who was at the scene and claimed to have not participated, but admitted to punching the victim twice in self-defense, the trial court erred in failing to charge the jury with an “accomplice in fact” instruction, since the evidence created a factual issue as to whether the witness was an accomplice. Where a court determines on the evidence that a witness qualifies as an accomplice within the meaning of CPL 60.22 (2), the court must instruct the jury that the witness is an accomplice and that defendant may not be convicted upon that witness’s testimony if it is unsupported by corroborative evidence tending to connect defendant with the commission of the charged offense (CPL 60.22 [1]). If a factual dispute exists as to whether the witness is an accomplice, the court must instruct the jury to apply the corroboration requirement only if the jury makes a factual finding that the witness is an accomplice in fact. Here, there was ample evidence from which it could have been reasonably inferred that the witness participated in the victim’s murder or an “offense based upon the same or some of the same facts or conduct” which constituted the murder (CPL 60.22 [2]). The witness admitted to his presence before, during and after the fatal attack. In addition, the forensic pathologist’s testimony that one blow could have caused a subarachnoid hemorrhage, which was at least one cause of death, supported the argument that the witness’s punches to the victim’s head and neck could have caused or contributed to the fatal injuries. Moreover, the witness’s acts in helping move the victim, going to defendant’s house after allegedly seeing defendant beat the victim with a mop handle, removing and bagging his blood-stained clothes, and delaying in speaking with the police or his parents provided a basis for the jury to infer his involvement in the crime. *People v Sage*, 23 NY3d 16.

ACCUSATORY INSTRUMENT.

2. Waiver of Right to Prosecution by Misdemeanor Information.—Defendant waived his right to prosecution by information when, in response to the court’s question of whether defendant waived prosecution by information during his plea allocation for the crime of obstructing governmental administration, his counsel replied, “So waive.” A defendant may knowingly and intelligently waive prosecution by misdemeanor information, as demonstrated by an affirmative act. Defense counsel’s statement communicated, in no uncertain terms, defendant’s choice to waive his right. Although the People charged and arraigned defendant by information, a defendant’s knowing and voluntary waiver is valid regardless of whether the criminal action commences by information or complaint. CPL 170.65 specifically allows a defendant to waive prosecution by information, which necessarily entails forgoing the statutory protections required of an information and submitting to prosecution by complaint. Accordingly, the accusatory instrument was subject to the legal standards applicable to a misdemeanor complaint, rather than a misdemeanor information. *People v Dumay*, 23 NY3d 518.

APPEAL.

3. Preservation of Issue for Review.—Where a defendant has unsuccessfully argued before trial that the facts alleged by the People do not constitute the crime charged, and the court has rejected the argument, the defendant need not specifically repeat the argument in a trial motion to dismiss in order to preserve the point for appeal. Defendant, who was arrested on three separate occasions for trespassing at a federally-subsidized apartment complex despite being an invited guest of one of the tenants and charged with resisting arrest on the third occasion, preserved for appeal his argument, made unsuccessfully at arraignment in City Court on one of the criminal trespass charges, that the arresting officer lacked probable cause to arrest him for trespass because the officer knew that the tenant had invited defendant to be on the premises. City Court ruled definitively on the legal argument that defendant made on appeal, and having received an adverse ruling, defendant did not need to specifically urge the same theory again in support of his motion to dismiss for insufficiency of the evidence at trial. Although a challenge to the suffi-

CRIMES—Cont'd

ciency of the accusatory instrument at arraignment is conceptually different from a challenge based on the proof at trial, and often an issue decided in one proceeding will not be the same as the issue presented in another, here the issue was the same. Moreover, although defendant's initial argument was addressed to a trespass count and not the probable cause element of the resisting arrest count, once the court held that an invited guest whose license has been withdrawn by management is a trespasser, it necessarily followed that the officer did not lack probable cause to arrest defendant for trespass on the ground that he was an invited guest. *People v Finch*, 23 NY3d 408.

4. Dismissal of Appeal — Abuse of Discretion.—The Appellate Division did not abuse its discretion when it dismissed defendant's appeal following a 19-year delay between the filing of defendant's notice of appeal by his sentencing attorney and the motion by his new counsel to be appointed as appellate counsel. The delay was extremely long, and defendant did not have a good excuse for it. Having served his original sentence, defendant continued to ignore his pending appeal until after he was adjudicated a predicate felon—and then sought counsel to challenge the long-ago conviction. The facts permitted an inference that defendant did not simply neglect his appellate rights, but consciously chose not to exercise them until he acquired a reason to do so, particularly since his earlier conviction was based on his guilty plea. Even assuming that the People could show no specific prejudice from the delay, the Appellate Division was not required as a matter of law to permit the appeal to proceed. *People v Perez*, 23 NY3d 89.

5. Dismissal of Appeal — Abuse of Discretion.—The Appellate Division did not abuse its discretion when it dismissed defendant's appeal following a 22-year delay between the filing of defendant's notice of appeal by his trial and sentencing attorney and defendant's pro se motion in the Appellate Division for poor person relief on the appeal. The delay was extremely long, and defendant did not have a good excuse for it. Having served his original sentence, defendant continued to ignore his pending appeal until after he was adjudicated a predicate felon—and then sought counsel to challenge the long-ago conviction. The facts permitted an inference that defendant did not simply neglect his appellate rights, but consciously chose not to exercise them until he acquired a reason to do so. Even assuming that the People could show no specific prejudice from the delay, the Appellate Division was not required as a matter of law to permit the appeal to proceed. *People v Perez*, 23 NY3d 89.

6. Dismissal of Appeal — Abuse of Discretion.—The Appellate Division did not abuse its discretion when it dismissed defendant's appeal following a 16-year delay between the filing of defendant's notice of appeal and the motion for an extension of time to perfect the appeal filed by the counsel defendant hired nine years after he was notified that his first attorney had been admonished for neglecting his appeal. The delay was extremely long, and defendant did not have a good excuse for it. Defendant's unfortunate choice of lawyer did not entitle defendant, as a matter of law, to perfect his appeal 16 years after it was taken, where nine of those years elapsed after the lawyer's failure had been made the subject of a formal sanction, and where no reasonable excuse for that nine-year delay was offered. Even assuming that the People could show no specific prejudice from the delay, the Appellate Division was not required as a matter of law to permit the appeal to proceed. *People v Perez*, 23 NY3d 89.

7. Dismissal of Appeal — Constitutional Right to Fair Appellate Procedure.—The dismissal of defendant's appeal following a 19-year delay between the filing of defendant's notice of appeal by his sentencing attorney and the motion by his new counsel to be appointed as appellate counsel did not violate defendant's constitutional right to a fair appellate process. Defendant was given clear notice of how to obtain a lawyer at state expense, but failed year after year to ask for one, and, accordingly, suffered no constitutional deprivation when none was appointed. *People v Perez*, 23 NY3d 89.

8. Dismissal of Appeal — Constitutional Right to Fair Appellate Procedure.—The dismissal of defendant's appeal following a 22-year delay between the filing of de-

CRIMES—Cont'd

defendant's notice of appeal by his trial and sentencing attorney and defendant's pro se motion in the Appellate Division for poor person relief on the appeal did not violate his constitutional right to a fair appellate process. Defendant was given clear notice of how to obtain a lawyer at state expense, but failed year after year to ask for one, and, accordingly, suffered no constitutional deprivation when none was appointed. Although defendant was only 16 when he first failed to request the assignment of counsel to represent him on appeal, the failure continued until defendant was 38. Even assuming that youthful defendants are constitutionally entitled to some relaxation of the rule that defendants who want to obtain appellate counsel must follow the simple instructions given them for requesting that relief, they are not entitled to 22 years of indulgence. Defendant was an adult during the great majority of the time in which he failed to seek counsel to pursue his appeal, and his situation was not constitutionally distinct from that of other adults. The State did nothing to prevent defendant from pursuing his appeal until the People moved to dismiss it in response to defendant's application for poor person relief. *People v Perez*, 23 NY3d 89.

9. Dismissal of Appeal — Constitutional Right to Fair Appellate Procedure.—The dismissal of defendant's appeal following a 16-year delay between the filing of defendant's notice of appeal and the motion for an extension of time to perfect the appeal filed by the counsel defendant retained nine years after he was notified that his first attorney had been admonished for neglecting his appeal, did not violate defendant's constitutional right to a fair appellate process. The long delay between the filing of the notice of appeal and the motion for an extension of time could not be attributed solely to the first attorney's ineffectiveness. Defendant knew at least by the time his first attorney was admonished by the Departmental Disciplinary Committee that his lawyer was neglecting his case, and he could have obtained another lawyer at any time in the following nine years before he retained new counsel. His new counsel said in an affirmation that defendant was "without funds to retain another attorney," but defendant offered no explanation of why he failed to seek assigned counsel. It is not unconstitutional to require a defendant to take some minimal initiative to assure adequate representation on appeal. *People v Perez*, 23 NY3d 89.

10. Dismissal of Appeal — Premature Dismissal.—The Appellate Division should not have dismissed defendant's appeal, following a 13-year delay between the filing of defendant's notice of appeal by his trial attorney and the motion by his assigned counsel to be appointed as appellate counsel for his conviction rather than his resentencing, before assigning defendant counsel on that appeal and giving counsel a chance to review the record. Defendant had failed to appear for his trial, had been tried and convicted in absentia, and had remained a fugitive for approximately 11 years. Although defendant's trial attorney filed a notice of appeal on his behalf, the appeal remained dormant until defendant was returned to court, resentenced, and assigned counsel to represent him on appeal from the resentencing. His assigned counsel had not reviewed, or even seen, the record of his trial at the time counsel sought to be appointed appellate counsel for the conviction and opposed the People's motion to dismiss the appeal from the conviction for failure to prosecute. A right to the assistance of appellate counsel has not been honored where counsel has not looked at the record. *People v Perez*, 23 NY3d 89.

11. Preservation of Issue for Review — Challenge to Installation of Global Positioning System on Vehicle without Warrant.—Defendant's objection to law enforcement's warrantless installation of a global positioning system (GPS) tracking device on his vehicle was adequately preserved for appellate review at trial as the record indicated that Supreme Court was on notice of defendant's argument under *People v Weaver* (52 AD3d 138 [3d Dept 2008], *rev'd* 12 NY3d 433 [2009]), which was pending before the Court of Appeals during defendant's trial, and tacitly denied it. Prior to trial, the People disclosed surveillance reports that, for the first time, indicated that investigators had attached the GPS device to defendant's car and used it to track defendant on a number of occasions. Defendant apprised the court, through counsel, that upon reviewing the surveillance reports he discovered that the GPS device had been attached to his car and asked if the court would consider a

CRIMES—Cont'd

motion concerning its use. The court, believing that the request was one to suppress the GPS technology relative to an eavesdropping warrant dealing with information obtained from defendant's cell phones, stated that it was "likely" that the court had issued a ruling already. Defendant twice asserted correctly that the court had not made a ruling concerning the use of the GPS device attached to his car, but the court refused to consider defendant's argument. Thereafter, prior to summations, defendant, referring to *Weaver*, asked the court if it was "aware of the Court of Appeals case currently pending with respect to the usability of tracking devices." Although the court responded that it was aware of the case, when defense counsel attempted to make a motion with regard to that issue, the court interrupted him and summoned the jury. *People v Lewis*, 23 NY3d 179.

12. Dismissal of Appeal — Involuntarily Deported Defendant.—Defendant's appeal from the Appellate Division order denying his application for a writ of error coram nobis seeking leave to file a late notice of appeal from a judgment which had convicted him, upon his plea of guilty, of criminal sale of a controlled substance was not dismissed notwithstanding defendant's involuntary removal from the United States. Defendant's removal by federal authorities on the basis of the underlying conviction occurred after defendant was granted leave to appeal by the Court of Appeals and despite apparent assurances that removal would not occur while the appeal was pending. *People v Andrews*, 23 NY3d 605.

13. Leave to File Late Criminal Leave Application — Writ of Error Coram Nobis.—Defendant's application for a writ of error coram nobis seeking leave to file a late criminal leave application for discretionary review by the Court of Appeals of an Appellate Division order affirming the judgment which had convicted defendant, upon his plea of guilty, of burglary in the first degree was properly rejected by the Appellate Division. Defendant claimed that his lawyer agreed to file the criminal leave application but had neglected to do so. Unlike an appeal as of right, there is no federal constitutional entitlement to legal representation on a discretionary application for an appeal to a state's highest court. Thus, the failure to file a criminal leave application, standing alone, did not necessarily establish that defendant was deprived of effective assistance of counsel or due process of law. He was therefore not entitled to coram nobis relief. *People v Andrews*, 23 NY3d 605.

14. Leave to File Late Notice of Appeal — Writ of Error Coram Nobis.—Defendant's application for a writ of error coram nobis seeking leave to file a late notice of appeal from a judgment which had convicted him, upon his plea of guilty, of possessing a sexual performance by a child on the ground that his attorney had been ineffective for failing to file a notice of direct appeal following the conviction should not have been granted by the Appellate Division, as defendant had moved, unsuccessfully, for leave to file a late notice of direct appeal pursuant to CPL 460.30 before the statutory one-year grace period elapsed. The writ of error coram nobis used by courts to correct errors for which no other avenue of judicial relief is apparent includes claims premised on the loss of the right to an appeal caused by deficient legal performance. CPL 460.30 permits a defendant to seek permission to file a late notice of direct appeal in certain circumstances, and requires the motion to be made within one year after the time for taking the appeal has expired. An exception is warranted for a defendant who does not invoke CPL 460.30 within the one-year grace period because defense counsel inexcusably failed to comply with a timely request to file a notice of appeal. Defendant, however, realized that a notice of appeal had not been filed within 30 days of sentencing and moved for CPL 460.30 relief before the one-year grace period elapsed. By invoking that procedure, he could not later seek similar relief in a coram nobis proceeding. *People v Andrews*, 23 NY3d 605.

15. Leave to File Late Notice of Appeal — Writ of Error Coram Nobis.—Defendant's application for a writ of error coram nobis seeking leave to file a late notice of appeal from a judgment which had convicted defendant, upon his plea of guilty, of criminal sale of a controlled substance was properly rejected by the Appellate Division, as it did not provide sufficient factual allegations to demonstrate that defendant's appellate rights were lost as a result of ineffective assistance of counsel. Defendant made only perfunctory claims that he asked his lawyer to file a timely

CRIMES—Cont'd

notice of appeal and that it was impossible to discover the omission with reasonable diligence within the statutory one-year grace period provided for in CPL 460.30. Defense counsel stated that she had discussions regarding the possibility of an appeal with defendant and he decided not to pursue that route because he wanted to accept a sentence of time served and end his case. Those statements were consistent with defendant's execution of a written waiver of his right to appeal in the presence of the judge who presided at the guilty plea proceeding, which presumptively demonstrated a desire not to seek appellate review. Defense counsel further recalled that it was the court's usual practice to provide defendants with written notice of the right to appeal. Nothing defendant offered countered those assertions—he did not claim that his attorney or the court failed to inform him about the appellate process, or that he asked for a notice of appeal to be filed. Nor did defendant attempt to explain why he waited more than two years to seek coram nobis relief after he obtained an attorney to represent him on collateral review. *People v Andrews*, 23 NY3d 605.

16. Matters Reviewable.—In a prosecution in which defendant was convicted of second-degree murder, despite his claim that his confession was false and coerced, and was later denied vacatur of the conviction based on the People's alleged *Brady* violation in failing to disclose that a federal civil action alleging police misconduct in an unrelated case had been brought against a detective that interrogated defendant, the fact that the trial court did not expressly state whether the contents of the civil complaint were material for purposes of determining a *Brady* violation did not bar the Court of Appeals from deciding the materiality of that information. The Court of Appeals is precluded from reviewing an entirely distinct alternative ground for affirmance which the court of first instance did not decide adversely to the appellant. However, a court's finding that the prosecution did not constructively possess or suppress potential *Brady* information and a court's finding that the information is not material are not separate alternative grounds for decision as neither finding is clearly separate and analytically distinct from the court's determination that the information does not satisfy the multipronged *Brady* standard. Thus, the Court was not prevented from reviewing all preserved aspects of the *Brady* issue simply because the *nisi prius* court neglected to mention an element of the multifactor *Brady* test. *People v Garrett*, 23 NY3d 878.

17. Preservation of Issue for Review — Mode of Proceedings Error — Failure to Share Contents of Jury Note with Defense Counsel.—In a homicide prosecution, defendant was not required to preserve his argument that the trial court's handling of the jury note violated the procedure delineated in *People v O'Rama* (78 NY2d 270 [1991]), as the court's failure to share the entire contents of the note with defense counsel constituted a mode of proceedings error. Although counsel was made aware of the existence of the note, which read "Power Point - Judge[']s directions on Manslaughter/Murder in the Second Degree - (Intent)," the court merely paraphrased the note's contents for counsel and the jury and did not mention the note's "intent" language. CPL 310.30 requires that when the trial court receives a request "for further instruction or information with respect to the law," the court must give notice to the People and the defense. The trial court's core responsibilities are to provide meaningful notice to counsel of the note's content, and a meaningful response to the jury's request, and when a court fails to fulfill those responsibilities, a mode of proceedings error occurs. The record failed to show that defense counsel was apprised of the specific, substantive contents of the note, and it could not be assumed that the omission was remedied at an off-the-record conference that was not referred to in the trial transcript. *People v Walston*, 23 NY3d 986.

18. Dismissal.—An appeal from an Appellate Division order, which reversed a judgment of conviction, granted defendant's suppression motion and dismissed the accusatory instrument, was dismissed upon the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]). *People v Johnson*, 23 NY3d 1001.

ASSAULT.

19. Sufficiency of Evidence.—There was legally sufficient evidence to support defendant's conviction for assault in the second degree (*see* Penal Law § 120.05 [2]),

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where defendant, while attempting to escape security personnel who suspected her of stealing merchandise from a mall department store, intentionally swerved her vehicle in the direction of a store employee and hit him after the employee, who had observed an altercation between the security personnel and defendant in the parking lot, stood in front of defendant's vehicle in an attempt to stop her departure. The testimony from the employee and several eyewitnesses that defendant swerved into the employee, and the employee's testimony as to the physical injuries he incurred, were more than enough to sustain the jury's guilty verdict. *People v Gordon*, 23 NY3d 643.

BURGLARY.

20. Burglary of Dwelling — Intrusion into Nonresidential Part of Large Building Containing Dwellings.—A burglary committed in the nonresidential part of a building used partly for residential purposes is a burglary of a "dwelling" under the burglary in the second degree statute (Penal Law §§ 140.25 [2]; 140.00 [2], [3]) except where the building is large and the crime is committed in a place so remote and inaccessible from the living quarters that the special dangers inherent in the burglary of a dwelling do not exist. An intrusion into a home, or an overnight lodging, is more frightening and more likely to end in violence than other burglaries. These dangers are created in significant degree when the crime is committed in close contiguity with a place of repose even though the place of the burglary and the sleeping quarters are not instantly accessible to each other. The legislature, in 1967, specifically amended the definition of "building" in Penal Law § 140.00 (2) to provide that "[w]here a building consists of two or more units separately secured or occupied, each unit shall be deemed both a separate building in itself and a part of the main building." The 1967 legislation should not be interpreted as rejecting the exception established by prior case law pertaining to a robbery committed in a large building in a place remote and inaccessible from living quarters. *People v McCray*, 23 NY3d 621.

21. Burglary of Dwelling — Intrusion into Nonresidential Part of Building Containing Hotel Rooms.—In a criminal prosecution arising from defendant's intrusion into a hotel employee locker room in a large building that contained the hotel along with a number of different businesses separate from the hotel, the evidence supported defendant's conviction of second degree burglary as a burglary of a dwelling under Penal Law § 140.25 (2). A burglary committed in only the nonresidential part of a partly residential building, including a building occupied by a person lodging overnight, is a burglary of a dwelling (Penal Law §§ 140.25 [2]; 140.00 [2], [3]), except where the building is large and the crime is committed in a place so remote and inaccessible from the living quarters that the special dangers inherent in the burglary of a dwelling do not exist. The hotel locker room was accessible by entering a stairway from the hotel's 14th floor lobby. On video surveillance, defendant was seen entering the locker room with a sweater over his head, after which he broke into a locker, then promptly left when a hotel employee entered. Thereafter, defendant was seen in another stairway on the other side of the building and there was evidence that defendant must have gone to the 16th floor conference level to cross. The hotel's guest rooms were on the 17th floor and above. While defendant was not in the immediate neighborhood of the rooms where guests slept, he used two stairways which provided a means of reaching all floors of the hotel and also passed through a floor adjacent to the guest room floors. Thus, the risks inherent in the burglary of a dwelling, i.e., that it is more frightening and more likely to end in violence than other burglaries, were present where defendant came near to rooms in which people were sleeping. *People v McCray*, 23 NY3d 621.

22. Burglary of Dwelling — Intrusion into Nonresidential Part of Building Containing Hotel Rooms.—In a criminal prosecution arising from defendant's unlawful presence in a wax museum located on the street level and lower floors of a large building which also housed a number of different businesses, including a hotel on the upper floors, the evidence supported defendant's conviction of second degree burglary as a burglary of a dwelling under Penal Law § 140.25 (2). A burglary committed in only the nonresidential part of a partly residential building, including a

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building occupied by a person lodging overnight, is a burglary of a dwelling (Penal Law §§ 140.25 [2]; 140.00 [2], [3]), except where the building is large and the crime is committed in a place so remote and inaccessible from the living quarters that the special dangers inherent in the burglary of a dwelling do not exist. Several hours after defendant was seen on video surveillance in a hotel employee locker room and in two stairways which provided a means of reaching all floors of the hotel, he was seen in a number of video images from security cameras inside the wax museum, sliding a box along the floor and putting things into it. While the museum was separate and remote from the sleeping rooms, and a burglar who entered the museum from the street level and never entered the stairway it shared with the hotel may be found to have committed only third degree burglary, the jury here could have found that defendant entered the wax museum by coming down the stairway shared with the hotel, as he had been seen in that stairway earlier in the night. The jury could also have found that defendant could easily have returned by that route and reentered the hotel at its 14th floor lobby since there was evidence that the door between the stairway and the lobby was not locked from either side. Though the burglary was not physically close to the guest rooms of the hotel, the ease of access from one place to another is at least equally important. *People v McCray*, 23 NY3d 621.

CRIMINAL IMPERSONATION.

23. Creation of Email Account in Another's Name.—In a prosecution arising from defendant's Internet campaign to attack the integrity and harm the reputation of certain Dead Sea Scrolls academics and scholars while promoting the views of his father, another Dead Sea Scrolls scholar, defendant's creation of email accounts in the names of four other people, in contrast to the use of those accounts to send emails, did not constitute criminal conduct under Penal Law § 190.25 and was insufficient to support defendant's conviction for criminal impersonation in the second degree (Penal Law § 190.25). The mere creation of email accounts that are not used does no substantial harm to anyone. *People v Golb*, 23 NY3d 455.

24. Email Sent in Another's Name.—In a prosecution arising from defendant's Internet campaign to attack the integrity and harm the reputation of certain Dead Sea Scrolls academics and scholars while promoting the views of his father, another Dead Sea Scrolls scholar, an email defendant sent in another person's name to a curator of a Scrolls exhibit asking her opinion on the differing theories about the Scrolls and whether she was planning to answer a critique of the exhibit by defendant's father was insufficient to support defendant's conviction for criminal impersonation in the second degree (Penal Law § 190.25). Unlike other emails sent by defendant, the email sent to the curator did not prove the requisite intent to cause injury, either to reputation or otherwise. *People v Golb*, 23 NY3d 455.

25. Injury to Reputation.—A person may be found guilty of criminal impersonation in the second degree (Penal Law § 190.25) if he or she impersonates someone with the intent to harm the reputation of another. The terms "injure" and "benefit" as used in Penal Law § 190.25 cannot be construed to apply to any injury or benefit, no matter how slight, but injury to reputation is within the "injury" contemplated by Penal Law § 190.25. Many people, particularly those with a career in academia, value their reputations at least as much as their property. Accordingly, in a prosecution arising from defendant's Internet campaign to attack the integrity and harm the reputation of certain Dead Sea Scrolls academics and scholars while promoting the views of his father, another Dead Sea Scrolls scholar, there was sufficient evidence supporting the jury's finding that defendant's emails impersonating three different professors as part of the campaign were more than a prank intended to cause temporary embarrassment or discomfiture, and that defendant acted with intent to do real harm, thereby committing criminal impersonation in the second degree. *People v Golb*, 23 NY3d 455.

DISCLOSURE.

26. Mental Health Records of Complainant in Rape Prosecution — Materiality.—In a rape prosecution in which complainant testified that defendant beat and raped her and defendant testified that consensual sex was followed by a struggle,

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the trial court, in response to defendant's request for disclosure of complainant's mental health records, did not abuse its discretion in deciding, after in camera review, to disclose 28 pages of the thousands of documents submitted by the People. A defendant is entitled to the disclosure of material evidence favorable to his or her case. Where a defendant has made a specific request for evidence, materiality is based on whether there is a reasonable possibility that the verdict would have been different if the evidence had been disclosed. The disclosed records showed that the complainant had significant mental health problems, including multiple disorders, that she visualized dead people, was occasionally explosive and sometimes failed to take her medication. While the undisclosed documents contained other examples of possible distorted perceptions, they were no clearer or more dramatic than the ones disclosed and the trial court could reasonably conclude that they would add little force to the credibility attacks. Moreover, it would be difficult for a juror to attribute the undisclosed references of complainant's tendency to misremember or misunderstand events to this rape claim, which was made immediately after the encounter. Most of the undisclosed evidence of prior sexual abuse complaints were not complaints that anyone violently forced sex on her and nothing suggested that they were untrue. The details of her sexual experiences were no more than marginally relevant given that the jury knew of complainant's hypersexuality and that evidence would likely be excluded under CPL 60.42. Finally, an undisclosed report made by the complainant during treatment that her father had sexually assaulted her, which was deemed "unfounded," was quite different from the accusation made against defendant five years later immediately after the event. *People v McCray*, 23 NY3d 193.

27. Failure to Disclose Exculpatory Material — Civil Complaint Alleging Police Misconduct in Unrelated Case.—In a murder prosecution in which defendant claimed that his confession was false and coerced, the People did not commit a violation under *Brady v Maryland* (373 US 83 [1963]) by failing to disclose that a federal civil action alleging police misconduct in an unrelated case had been brought against a detective that interrogated defendant. Although the civil allegations were favorable to defendant as impeachment evidence, defendant did not prove that the People suppressed that information or that he was prejudiced by its nondisclosure. The People's duty to disclose exculpatory or impeaching evidence within their custody, possession, or control reaches beyond evidence in the prosecutor's actual possession; it encompasses evidence known only to police and investigators. However, a police officer's secret knowledge of his or her own prior illegal conduct in an unrelated case will not be imputed to the prosecution where the People had no knowledge of the officer's bad acts until after trial. Nor do the People have a duty to conduct inquiries into the conduct of every officer working the case or to search court dockets for complaints against their police witnesses. Here, the People had no constructive knowledge of the civil allegations. Defendant's claim also failed the materiality component of *Brady* as there was no reasonable probability that disclosure would have changed the result of defendant's proceedings. *People v Garrett*, 23 NY3d 878.

ENTERPRISE CORRUPTION.

28. Participation in Criminal Enterprise — Sufficiency of Evidence — Proper Legal Standard.—In the prosecution of defendants, the president and a vice-president of a materials testing company who allegedly committed or allowed employees to engage in illegal acts involving falsification of test results, improper inspections of construction projects and double-billing, the Appellate Division did not apply the proper legal standards when it reviewed the sufficiency of defendants' enterprise corruption convictions. Penal Law article 460 outlaws participation in a "criminal enterprise," defined as "a group of persons sharing a common purpose of engaging in criminal conduct, associated in an ascertainable structure distinct from a pattern of criminal activity, and with a continuity of existence, structure and criminal purpose beyond the scope of individual criminal incidents" (§ 460.10 [3]). Enterprise corruption requires a showing of patterns of conduct demonstrably designed to achieve the purposes and promote the interests of organized, structurally distinct criminal entities and demands proof of an association possessing

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constancy and capacity exceeding the individual crimes committed under the association's auspices or for its purposes. Direct proof of communications, planning or concerted activity between the actors is not essential to a legally sufficient case of enterprise corruption. Here, the Appellate Division concluded that the People failed to introduce evidence of a leadership structure, overall planning of the criminal enterprise, or any communications between the defendants and any of the company's employees in furtherance of the criminal purpose. Those determinations were erroneous as a matter of law. *People v Kancharla*, 23 NY3d 294.

29. Participation in Criminal Enterprise — Sufficiency of Evidence.—In the prosecution of defendants, the president and a vice-president of a materials testing company who allegedly committed or allowed employees to engage in illegal acts involving falsification of test results, improper inspections of construction projects and double-billing, the evidence was legally sufficient to support the convictions for enterprise corruption. Penal Law article 460 outlaws participation in a "criminal enterprise," defined as "a group of persons sharing a common purpose of engaging in criminal conduct, associated in an ascertainable structure distinct from a pattern of criminal activity, and with a continuity of existence, structure and criminal purpose beyond the scope of individual criminal incidents" (§ 460.10 [3]). Enterprise corruption requires patterns of conduct demonstrably designed to achieve the purposes and promote the interests of organized, structurally distinct criminal entities and demands proof of an association possessing constancy and capacity exceeding the individual crimes committed under the association's auspices or for its purposes. Officers and employees of a legitimate business can fall within the ambit of article 460. Here, the company had a distinct hierarchical apparatus. The offenses were perpetrated within the company's operations in conjunction with five interrelated illegal schemes covering hundreds of construction projects. Defendants could reasonably be viewed as engaging in the offenses with the common purpose of promoting the company's status as a major laboratory and to increase profits, even if the ill-gotten gains were only a small portion of overall revenue. While direct proof of communications, planning or concerted activity between the actors was not essential, the president's admission that he provided signed and stamped reports to be fraudulently certified by an employee and proof of the vice-president's altering of test results or directing others to do so allowed the jury to infer that defendants were aware of, participated in and directed others to commit crimes in furtherance of the company's objectives. *People v Kancharla*, 23 NY3d 294.

30. Participation in Criminal Enterprise — Weight of Evidence — Proper Legal Standard.—In the prosecution of defendants, the president and a vice-president of a materials testing company who allegedly committed or allowed employees to engage in illegal acts involving falsification of test results, improper inspections of construction projects and double-billing, the Appellate Division did not apply the proper legal standards when it concluded that, based on its review of the "law and the facts," defendants' enterprise corruption convictions were against the weight of the evidence. Penal Law article 460 outlaws participation in a "criminal enterprise," defined as "a group of persons sharing a common purpose of engaging in criminal conduct, associated in an ascertainable structure distinct from a pattern of criminal activity, and with a continuity of existence, structure and criminal purpose beyond the scope of individual criminal incidents" (§ 460.10 [3]). Enterprise corruption requires a showing of patterns of conduct demonstrably designed to achieve the purposes and promote the interests of organized, structurally distinct criminal entities and demands proof of an association possessing constancy and capacity exceeding the individual crimes committed under the association's auspices or for its purposes. Direct proof of communications, planning or concerted activity between the actors is not essential to a legally sufficient case of enterprise corruption. Here, the Appellate Division concluded that the People failed to introduce evidence of a leadership structure, overall planning of the criminal enterprise, or any communications between the defendants and any of the company's employees in furtherance of the criminal purpose. Those determinations were erroneous as a matter of law and the Appellate Division should reassess its weight of the evidence determination under the applicable statutory standards. *People v Kancharla*, 23 NY3d 294.

CRIMES—Cont'd**EVIDENCE.**

31. Best Evidence Rule — Grand Larceny and Money Laundering Prosecution — Testimony Regarding Source of Stolen Funds.—In the prosecution of defendant for grand larceny and money laundering based on allegations that he defrauded a political candidate out of \$750,000 that originated from a trust, defendant's claim that the admission of the testimony of the trust's principal draftsperson regarding the candidate's ownership of the trust funds without admission of the trust document was a violation of the best evidence rule lacked merit. The best evidence rule requires the production of an original writing where its contents are in dispute and sought to be proved. The rule protects against fraud, perjury, and inaccurate recollection by allowing the jury to judge a document by its own literal terms. Here, however, by the time defendant raised his best evidence objection, the candidate himself and several other witnesses had already provided testimony that tended to prove the candidate's ownership of the funds, which testimony was admitted without objection. *People v Haggerty*, 23 NY3d 871.

FAIR TRIAL.

32. Grand Larceny and Money Laundering Prosecution — Testimony Regarding Source of Stolen Funds.—In the prosecution of defendant for grand larceny and money laundering based on allegations that he defrauded a political candidate out of \$750,000 that originated from a trust, the trial court's admission of the trust's draftsperson's testimony regarding the source of the stolen funds without admission of the trust document, which was challenged as a violation of the best evidence rule, was not so prejudicial as to deny defendant a fair trial. The political candidate testified that his personal funds were transferred to his political party for the purpose of implementing a ballot security operation organized by defendant, that defendant was the campaign's representative to the political party for purposes of establishing the operation and he failed to provide the services as promised and paid for. While the candidate did not know the specifics of the funds transfers, he consistently testified that his money went to pay for the fraudulent ballot security operation. In addition, the candidate's campaign staff and wealth managers testified to the details of the actual transfer of the candidate's trust money to the political party and a political party representative described how the party had paid defendant or his company on invoices for operation expenditures. Finally, the People's financial investigator described the transfer of money from the trust to the political party to bank accounts belonging to defendant and his company. Based on the trial record, there was no significant probability that the jury would have failed to convict, even without the trust draftsperson's testimony or admission of the trust document. *People v Haggerty*, 23 NY3d 871.

FORGERY.

33. Email Sent in Another's Name.—In a prosecution arising from defendant's Internet campaign to attack the integrity and harm the reputation of certain Dead Sea Scrolls academics and scholars while promoting the views of his father, another Dead Sea Scrolls scholar, there was sufficient evidence to show that defendant deceived people by sending emails from accounts in the names of three professors, in support of defendant's conviction for forgery in the third degree (Penal Law § 170.05). *People v Golb*, 23 NY3d 455.

HARMLESS AND PREJUDICIAL ERROR.

34. Failure to Charge Jury with Accomplice in Fact Instruction.—In the prosecution of defendant arising from a fatal beating, wherein the prosecution's key witness was at the scene and claimed to have not participated, but admitted to punching the victim twice in self-defense, the trial court's error in failing to charge the jury with an "accomplice in fact" instruction was not harmless. An accomplice in fact instruction informs the jury that defendant may not be convicted upon an accomplice's testimony if it is unsupported by corroborative evidence tending to connect defendant with the commission of the charged offense. The corroborative evidence, when read with the accomplice's testimony, must make it more likely that the defendant committed the offense. Here, only the witness identified defendant as

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having participated in the beating in the apartment, but his written statement lacked any reference to defendant hitting the victim there. Defendant stated that he was present, but did not admit to striking the victim in the apartment. The witness's testimony that, after the victim was moved outside, defendant struck him with a mop handle was corroborated by evidence of bruises on the body, mop pieces and defendant's fingerprint on the mop handle. However, the parties contested the inferences to be drawn from that evidence, with defendant claiming that he had merely poked the victim with the handle. The fingerprint confirmed that defendant held the handle, but did not compel a finding that defendant swung or struck the victim with it. Nor could the witness be excluded based on the fingerprint evidence as someone who may have held the mop. Moreover, the pathologist could not say which blow was the cause of death and the witness did not know if the victim was breathing or had a pulse when he and defendant put him on a porch. If properly charged, the jury could have discounted the witness's version and decided that the remaining evidence was insufficient to find defendant's guilt beyond a reasonable doubt. *People v Sage*, 23 NY3d 16.

IDENTITY THEFT.

35. Falsifying Business Records.—In a prosecution arising from defendant's Internet campaign to attack the integrity and harm the reputation of certain Dead Sea Scrolls academics and scholars while promoting the views of his father, another Dead Sea Scrolls scholar, there was insufficient evidence to support defendant's conviction for identity theft in the second degree (Penal Law § 190.79 [3]). A person commits identity theft in the second degree in violation of section 190.79 (3) "when he or she knowingly and with intent to defraud assumes the identity of another person by presenting himself or herself as that other person, or by acting as that other person or by using personal identifying information of that other person, and thereby" "commits or attempts to commit a felony" (Penal Law § 190.79 [3]). Defendant's alleged attempted felony was first-degree falsifying of business records, a crime that is committed when a person "commits the crime of falsifying business records in the second degree, and when his intent to defraud includes an intent to commit another crime or to aid or conceal the commission thereof" (Penal Law § 175.10). Although defendant sent damning emails in the name of a professor at a particular university to university addresses, that did not constitute the creation or falsification of a university business record that was "kept or maintained by an enterprise for the purpose of evidencing or reflecting its condition or activity" as defined in Penal Law § 175.00 (2), and the People did not point to any proof that defendant falsified any such records. *People v Golb*, 23 NY3d 455.

INDICTMENT.

36. Timeliness of Motion to Dismiss.—In a prosecution where a grand jury witness failed to take the required oath during her original videotaped testimony but swore to the truthfulness of that testimony in a second videotaped interview, defendant's motion to dismiss the indictment on the ground that the witness's initial unsworn testimony compromised the integrity of the grand jury, raised after the People presented their proof at trial, was not untimely under CPL 255.20 (1). Defendant timely challenged the indictment because he was not aware of the operative facts until after his omnibus motion had to be filed (*see* CPL 255.20 [1], [3]) and there was support in the record that he had good cause to seek dismissal after receiving the witness's videos. Even though the jury's verdict was premised on sufficient trial evidence (*see* CPL 210.30 [6]), the issue was reviewable on appeal because defendant claimed that the failure to swear the witness before her initial recorded statement caused her testimony to be legally invalid, thereby creating a fundamental defect in the grand jury proceeding. *People v Wisdom*, 23 NY3d 970.

INSTRUCTIONS.

37. Verdict Sheet — Annotations Listing Stores Where Credit Card Frauds Occurred and Banks That Issued Credit Cards.—In a prosecution for grand larceny and other crimes arising from a sophisticated scheme by which defendant and two codefendants acquired credit card numbers from legitimate accounts of cardholders

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and placed the stolen information on forged credit cards that they used to make purchases at several stores, Supreme Court's submission to the jury of a verdict sheet containing annotations that listed, in addition to the date of the alleged offense, either the name of the store where the alleged offense occurred or the name of the bank that issued the credit card did not run afoul of CPL 310.20 (2). Section 310.20 (2) permits jurors to take with them to deliberations a written list prepared by the court containing, whenever two or more counts charging offenses set forth in the same article of law are submitted, "the dates, names of complainants or specific statutory language, without defining the terms, by which the counts may be distinguished." Given the large number of counts, coupled with the fact that the offenses occurred at different locations at different times (and, in some instances, on different dates), the court appropriately included the annotations so that the jury could distinguish the submitted counts, and, under the circumstances, the names of the stores clearly fell within the term "complainant" delineated in section 310.20 (2). The annotations could not have been interpreted by the jury as being intended for any purpose other than identifying the individual stores defendant and his codefendants were alleged to have frequented or the banks relative to certain identity theft counts. Affording section 310.20 (2) a narrow interpretation would unnecessarily restrict trial courts from providing clarification on a verdict sheet in cases where, as here, there are multiple counts of identical offenses alleging similar conduct over a period of time. *People v Lewis*, 23 NY3d 179.

LESSER INCLUDED OFFENSE.

38. Reckless Manslaughter.—Defendant, who was charged with second-degree murder for the stabbing death of a man who witnesses saw defendant strike in the left shoulder or upper chest area multiple times during a barroom brawl, was not entitled to a jury charge of second-degree manslaughter as a lesser included offense in addition to the first-degree manslaughter charge provided by the trial court. In seeking to have a lesser included offense charged, a defendant is required to show that there is a reasonable view of the evidence in the particular case that would support a finding that he or she committed the lesser included offense but not the greater (CPL 300.50 [1]). Second-degree murder and first-degree manslaughter require intent to cause death or intent to cause serious physical injury, respectively. Second-degree manslaughter only requires a reckless state of mind. Thus, to obtain a second-degree manslaughter instruction, defendant needed to show that a reasonable view of the evidence supported the finding that he recklessly caused the victim's death without intending to cause serious physical injury. Here, notwithstanding defendant's pretrial statements that he recklessly waved a knife around in self-defense during the melee, the record did not reasonably support that he acted with mere recklessness. The forensic pathologist testified that there were three penetrating stab wounds to the same victim, who—according to defendant—picked a fight with him, with the fatal wound delivered forcefully enough to plunge five inches deep into the victim's chest, piercing his left lung and cutting through a rib. There was no identifiable, rational basis on which the jury could have rejected the pathologist's testimony and the evidence of the nature and depth of the victim's wounds. *People v Rivera*, 23 NY3d 112.

OBSTRUCTING GOVERNMENTAL ADMINISTRATION.

39. Sufficiency of Accusatory Instrument — Intent.—The accusatory instrument charging defendant with obstructing governmental administration in the second degree (Penal Law § 195.05), which stated that defendant committed the crime when he slammed the trunk of a police officer's patrol vehicle with his open hand and prevented the officer from patrolling the neighborhood by standing behind the police car, provided enough facts to support the intent element of the crime under the applicable standard required of misdemeanor complaints. A misdemeanor complaint's factual allegations must establish reasonable cause to believe that the defendant committed the charged offense. While a bare assertion that defendant was merely standing behind the police vehicle would be insufficient to establish reasonable cause to believe he was intending to prevent the officer from patrolling the neighborhood, the accusatory instrument asserted more. The fact that defendant

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struck a “radio mounted patrol vehicle”—i.e., a marked police car—showed his awareness that the vehicle was used for official governmental business. He intentionally struck the vehicle with that awareness. Further, the allegation that defendant was “standing behind” the police vehicle indicated that defendant intentionally stood stationary behind the car and did not merely walk past it or innocently cross between it and other parked cars. The accusatory instrument did not need to specifically state that defendant knew the officer was trying to patrol the neighborhood. Intent may be inferred from the act itself, and a reasonable person could infer from the facts alleged that defendant struck the vehicle’s trunk and blocked its backward movements in order to stop the officer from backing up. *People v Dumay*, 23 NY3d 518.

40. Sufficiency of Accusatory Instrument — Obstruction Element.—The accusatory instrument charging defendant with obstructing governmental administration in the second degree (Penal Law § 195.05), which stated that defendant committed the crime when he slammed the trunk of a police officer’s patrol vehicle with his open hand and prevented the officer from patrolling the neighborhood by standing behind the police car, provided enough facts to support the obstruction element of the crime under the applicable standard required of misdemeanor complaints. A misdemeanor complaint’s factual allegations must establish reasonable cause to believe that the defendant committed the charged offense. It was not necessary for the accusatory instrument to make clear that the vehicle’s only possible egress was to back up. Such a requirement would necessitate that the accusatory instrument negate every possible way by which the police officer could have moved the vehicle in order to patrol. The CPL only requires the People to show reasonable cause to believe that the defendant committed the crime charged, not allege facts sufficient for conviction after trial. *People v Dumay*, 23 NY3d 518.

41. Sufficiency of Complaint.—The accusatory instrument charging defendant with obstructing governmental administration in the second degree (Penal Law § 195.05), which provided the date, time, and location of the offense, and stated that defendant committed the crime when he slammed the trunk of a police officer’s patrol vehicle with his open hand and prevented the officer from patrolling the neighborhood by standing behind the police car, provided enough information to put defendant on notice of the crime charged. The obvious implication of the factual recitation was that when defendant stood behind the police vehicle, he blocked the police from moving it, and, thus, he prevented the police officer from patrolling. The accusatory instrument stated the time, date, and location of those events, and that information was sufficient to prevent defendant from facing double jeopardy on the same charges. *People v Dumay*, 23 NY3d 518.

PLEA OF GUILTY.

42. Withdrawal of Plea.—In a prosecution in which defendant pleaded guilty to second degree rape arising out of his sexual intercourse with the victim who had become voluntarily intoxicated, defendant’s motion to vacate the plea was granted where the record did not permit confidence that defendant had a clear understanding of what he was doing when he entered his plea. While it was highly unlikely that defendant actually committed the crime to which he pleaded guilty, Penal Law § 130.30 (2), since the statute was apparently aimed primarily at rapists who use “date-rape” drugs, that in itself would not make his plea invalid. Where a defendant enters a negotiated plea to a lesser crime than one with which he is charged, no factual basis for the plea is required. Consequently, the entire plea allocation was unnecessary, and even if it were necessary there would be no requirement to prove every element of the crime charged. Here, however, defendant’s conviction seemed to be based on complete confusion by all concerned. The court and counsel mistakenly believed that it was necessary to put on the record facts showing that the victim was mentally incapacitated, and they apparently also mistakenly believed that they had done so. *People v Johnson*, 23 NY3d 973.

POSSESSION OF WEAPON.

43. Intent to Use Weapon Unlawfully against Another — Statutory Presumption — Sufficiency of Evidence.—In the prosecution of defendant arising from an incident

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in which he shot his cousin in the leg, the evidence that defendant possessed a loaded firearm, together with the statutory presumption of intent arising from such possession, was legally sufficient to support defendant's conviction for criminal possession of a weapon in the second degree under Penal Law § 265.03 (1) (b). A person is guilty under section 265.03 (1) (b) when he or she possesses a loaded firearm "with intent to use the same unlawfully against another." Penal Law § 265.15 (4) provides that the possession by any person of any weapon is presumptive evidence of intent to use it unlawfully against another. This permissive presumption allows the trier of fact to determine the existence of an element of the crime from the existence of one or more evidentiary or basic facts. Before the presumption may apply, the People must establish beyond a reasonable doubt the predicate fact or facts that the statute requires be proved. Given the testimony that defendant admitted shooting his cousin, a rational jury could have concluded that defendant's possession of a loaded firearm was proved beyond a reasonable doubt. With this fact established, the jury was entitled to infer that defendant intended to use the weapon unlawfully, and its acceptance of the presumption was reasonable. There was no proof that defendant possessed the gun for a lawful purpose, and the evidence that he disposed of the gun, initially lied about the shooting and urged his cousin not to go to court supported the inference of unlawful intent. While evidence may have suggested that defendant shot his cousin accidentally, the People were not required to prove that he intended to use the gun unlawfully against any particular person. *People v Galindo*, 23 NY3d 719.

RESISTING ARREST.

44. Probable Cause for Arrest.—In defendant's prosecution for resisting arrest following his third arrest for trespassing while he was an invited guest of a tenant at a federally-subsidized apartment complex, the evidence was insufficient for a jury to find, beyond a reasonable doubt, that the arresting officer had probable cause to believe defendant guilty of trespass. A person commits resisting arrest when he "intentionally prevents or attempts to prevent a police officer . . . from effecting an authorized arrest" (Penal Law § 205.30), and an arrest is only authorized if it was premised on probable cause. At the time of the first trespassing arrest—a month before the third arrest—defendant's status as the tenant's guest, and his and the tenant's claim that he was therefore entitled to enter the property, were forcefully brought to the arresting officer's attention by the tenant, as reflected in a video recording made by the tenant. The officer did not recall being told at the time of the first arrest that defendant claimed to be the tenant's guest, though he admitted that defendant claimed to be watching his son two weeks later, at the time of the second arrest—a clear indication that he claimed to be there with the approval of the child's mother. Accordingly, a jury could not have found, beyond a reasonable doubt, that the officer did not know at the time of the first arrest that defendant was present with the tenant's consent, and if he knew that on that occasion, he could readily have inferred that the same was true when he arrested defendant again on the third occasion. Thus the third arrest lacked probable cause. *People v Finch*, 23 NY3d 408.

RIGHT TO BE PRESENT AT TRIAL.

45. Supplemental Jury Instruction to Single Juror — Mode of Proceedings Error.—In the prosecution of defendant for intentional murder and weapon possession, the trial court committed a mode of proceedings error requiring a new trial when it conducted an on-the-record discussion with one juror about the justification defense instruction in the court's robing room outside the presence of defendant and counsel, notwithstanding that defense counsel agreed to the procedure and neither counsel objected after the court summarized the discussion in defendant's presence and indicated that the transcript was available for review. A defendant's fundamental constitutional right to be present at all material stages of a trial encompasses a right to be present during the court's charge, admonishments and instructions to the jury. Under CPL 310.30, when a deliberating jury requests further instruction or clarification on the law, trial evidence, or any other matter relevant to its consideration of the case, "the court must direct that the jury be returned

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to the courtroom and, after notice to both the people and counsel for the defendant, and in the presence of the defendant,” the court must give such information or instruction as it deems proper. Defendant’s absence during nonministerial instructions affects the mode of proceedings prescribed by law and presents an error of law for review by the Court of Appeals—even absent an objection or where defense counsel has consented to the procedures used. Whether defendant’s presence may have had an impact on the court’s colloquy with a deliberating juror is irrelevant. Here, the juror’s request for guidance regarding when someone could be considered in imminent danger was a request for further substantive instruction on a primary issue in the case. The court then proceeded to tell the juror “to work it out . . . and come to a determination” by evaluating the evidence. The exchange between the juror and the court was not ministerial. *People v Rivera*, 23 NY3d 827.

RIGHT TO COUNSEL.

46. Effective Representation — Failure to Advise of Immigration Consequences of Guilty Plea — Retroactive Application of *Padilla v Kentucky*.—*Padilla v Kentucky* (559 US 356 [2010]), holding that the Sixth Amendment requires criminal defense counsel to advise their noncitizen clients about the risk of deportation arising from a guilty plea, did not set forth a watershed rule of federal constitutional criminal procedure such that it may be applied retroactively in state court postconviction proceedings. Under federal retroactivity principles, a new rule of federal constitutional criminal procedure does not apply retroactively to cases that had become final on direct review before the rule was announced. An exception exists, however, for watershed rules of criminal procedure. To qualify for the exception, the rule must be necessary to prevent an impermissibly large risk of an inaccurate conviction and must itself constitute a previously unrecognized bedrock procedural element that is essential to the fairness of a proceeding. That a plea bargain may turn out to be far less advantageous than a defendant anticipated does not pose an impermissibly large risk of an inaccurate conviction, and the *Padilla* holding did not constitute a bedrock principle as it imposed a relatively modest duty on counsel. Although state courts may interpret federal retroactivity principles more broadly in the context of state collateral review, such interpretation was not justified here. If every federal constitutional criminal procedure based on a bedrock principle of federal constitutional criminal law was deemed a watershed rule, then the exception would swallow the rule, and any semblance of finality would vanish. Moreover, the *Padilla* holding was not central to an accurate determination of guilt or innocence, nor did it safeguard the fundamental fairness of a trial. *People v Baret*, 23 NY3d 777.

47. Effective Representation — Failure to Advise of Immigration Consequences of Guilty Plea — Retroactive Application of *Padilla v Kentucky*.—*Padilla v Kentucky* (559 US 356 [2010]), holding that the Sixth Amendment requires criminal defense counsel to advise their noncitizen clients about the risk of deportation arising from a guilty plea, created a new rule of federal constitutional criminal procedure in New York—as opposed to simply applying the existing federal standard for ineffective assistance of counsel to a new set of facts—and therefore does not apply retroactively in CPL 440.10 proceedings. Under federal retroactivity principles, a new rule of federal constitutional criminal procedure does not apply retroactively to cases that had become final on direct review before the new rule was announced, and a case announces a new rule when it breaks new ground or imposes a new obligation on the states or the federal government. In *Chaidez v United States* (568 US —, 133 S Ct 1103 [2013]), the United States Supreme Court held that *Padilla* announced a new rule and thus does not apply retroactively in federal collateral review, reasoning that *Padilla* was the first case to reject the categorical approach adopted almost uniformly by lower federal and state appellate courts excluding advice about the immigration consequences of a guilty plea from the scope of the Sixth Amendment’s right to effective assistance of counsel. Although state courts may interpret federal retroactivity principles more broadly in the context of state collateral review, the *Chaidez* logic was compelling as *Padilla* flatly contradicted and supplanted prior New York case law holding that the failure of counsel to warn a defendant of the possibility of deportation did not constitute ineffective assistance. *People v Baret*, 23 NY3d 777.

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48. Effective Representation — Failure to Advise of Immigration Consequences of Guilty Plea — Retroactive Application of *Padilla v Kentucky*.—Consideration of the factors weighed by New York courts to determine whether a new precedent operates retroactively in state court postconviction proceedings disfavored retroactive application of *Padilla v Kentucky* (559 US 356 [2010]), which held that the Sixth Amendment requires criminal defense counsel to advise their noncitizen clients about the risk of deportation arising from a guilty plea. In determining retroactivity, New York courts consider the purpose to be served by the new standard, the extent of the reliance by law enforcement authorities on the old standard and the effect on the administration of justice of a retroactive application of the new standard. Under the first factor, current constitutional standards that go to the heart of a reliable determination of guilt or innocence will be applied retroactively, but decisions that are only collateral to or relatively far removed from the fact-finding process at trial apply prospectively only. *Padilla* had nothing to do with a reliable determination of guilt or innocence but rather assured that noncitizen defendants appreciate the immigration risks that inhere in guilty pleas to crimes they acknowledge during the plea allocution to having committed. As to the remaining factors, New York case law previously held that the failure of counsel to warn a defendant of the possibility of deportation did not constitute ineffective assistance. As a result, many defense attorneys were likely reluctant to volunteer advice in an often complex area of law outside their legal specialty, and those who did had no reason to create or maintain records to memorialize conversations with their clients on the topic. Retroactive application of *Padilla* would thus require courts to make factual findings based on off-the-record conversations years after a plea and faded memories. *People v Baret*, 23 NY3d 777.

ROBBERY.

49. Proof of Forcible Stealing of Property — Use of Force to Escape — No Stolen Property Found in Defendant's Possession.—The People's failure to recover stolen property from defendant did not forestall their ability to establish that her conscious objective in threatening or using physical force was to prevent or overcome resistance to the taking or retention of that stolen property. Forcible stealing occurs when, during the commission of a larceny, a person uses or threatens the immediate use of physical force upon another for the purpose of preventing or overcoming resistance to the taking of the property or to the retention thereof immediately after the taking (Penal Law § 160.00 [1]). The culpability standard—intent—requires evidence that, in using or threatening physical force, the defendant's conscious objective was to prevent or overcome resistance to the taking or retention of the property. Whether a defendant had the intent to forcibly steal property is a question for the trier of fact and failure to recover the property from the defendant is a fact for the jury to consider in determining whether the People have established the requisite intent. Defendant, while visiting a department store, secreted pairs of earrings on her person, removed the backings from the earrings, acted in a violent manner when approached by security guards, including swiping at the guards with pens, and swerved her car into a store employee in the parking lot. As here, where the property was small, easily disposed of, and difficult to find, recovery may be next to impossible. Moreover, defendant's extreme reaction to the guards allowed for an inference that her actions were intended to ensure her retention of the stolen property. Defendant's convictions for first and second degree robbery (Penal Law §§ 160.10, 160.15) were supported by ample evidence that she stole merchandise and threatened or used force to prevent or overcome resistance to her possession of that stolen property and thus had the intent to forcibly steal it notwithstanding that no merchandise was recovered from her or her companions. *People v Gordon*, 23 NY3d 643.

SEX OFFENDERS.

50. Civil Commitment or Supervision — Admission of Hearsay Evidence.—In a Mental Hygiene Law article 10 proceeding seeking a determination that respondent was a detained sex offender requiring civil management, Supreme Court did not abuse its discretion by permitting hearsay basis testimony by expert witnesses

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about the 1968 robbery and rape charges against respondent which resulted in convictions that were subsequently vacated on mental incompetency grounds. A court may admit hearsay evidence when it serves as the underlying basis for an expert's opinion in an article 10 proceeding if the hearsay is reliable and the probative value in helping the jury evaluate the expert's opinion substantially outweighs its prejudicial effect. The 1968 charges never resulted in a valid adjudication of guilt necessary for the hearsay evidence to be considered inherently reliable, and there was no independently reliable evidence in the record showing that respondent admitted to committing any of those offenses. However respondent was never acquitted of the 1968 charges, as his convictions were vacated due to mental incompetency at the time of his guilty plea. Here, the trial court satisfied the standard for the proper admission of basis testimony based on its close scrutiny of the evidence, weighing reliability considerations and reasonably concluding that the hearsay's probative value to the jury in evaluating the experts' opinions substantially outweighed its prejudicial effect. The charges were based on complaints from five different victims attacked within a certain area and within a 32-day time period, and each attack involved a strikingly similar pattern. Moreover, respondent was indicted for all five incidents and pleaded guilty to one count each of rape and robbery in satisfaction of all indicted counts. The evidence underlying the indictments had never been called into question. *Matter of State of New York v John S.*, 23 NY3d 326.

51. Civil Commitment or Supervision — Admission of Hearsay Evidence.—In a Mental Hygiene Law article 10 proceeding seeking a determination that respondent was a detained sex offender requiring civil management, Supreme Court abused its discretion by permitting hearsay basis testimony by expert witnesses about a 1978 rape for which defendant was arrested but never charged. A court may admit hearsay evidence when it serves as the underlying basis for an expert's opinion in an article 10 proceeding if the hearsay is reliable and the probative value in helping the jury evaluate the expert's opinion substantially outweighs its prejudicial effect. Information about the uncharged rape was culled from a presentence report prepared in connection with an earlier rape for which defendant was convicted. Although hearsay information found in presentence reports is inherently reliable for purposes of determining the appropriate risk level of a sex offender under the Sex Offender Registration Act, that rule does not extend to article 10 proceedings, where the liberty interests at stake are greater and the factfinders are often not judges but juries. Therefore, while the hearsay information contained in a presentence report bears certain indicia of reliability that, if supported by other reliable evidence at an article 10 trial, may warrant the admission of basis testimony about uncharged crimes, hearsay related to uncharged crimes must be excluded if its only basis for reliability is that it came from a presentence report. Here the allegations contained in the presentence report were not supported by any other reliable evidence, and respondent steadfastly denied he committed the second rape. The State pointed to the factual similarities between the first rape and the uncharged rape as evidence of corroboration, as well as the indication in the presentence report that the police were able to connect respondent to the first rape based on information they received from the second victim. It was improper to assume, however, that the report's description of both the uncharged rape and the police's subsequent investigation was reliable in the absence of supporting evidence or an admission from respondent. *Matter of State of New York v John S.*, 23 NY3d 326.

52. Civil Commitment or Supervision — Admission of Hearsay Evidence.—In a Mental Hygiene Law article 10 proceeding seeking a determination that respondent was a detained sex offender requiring civil management, Supreme Court's error in permitting hearsay basis testimony by expert witnesses about the 1978 rape for which defendant was arrested but never charged was harmless. The State's case against respondent rested primarily on admissible evidence; particularly, expert basis testimony about the 1968 robbery and rape charges against respondent which resulted in convictions that were subsequently vacated on mental incompetency grounds, his two convictions for rape, his assault on a female correction officer, and his refusal to participate in sex offender treatment while in prison. The jury also

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heard testimony from a parole officer that respondent admitted to committing one of the 1968 rapes for which he was charged. This evidence, without reference to the uncharged 1978 rape, provided a sufficient basis for the jury to conclude that respondent suffered from a mental abnormality, and there was no reasonable possibility that the jury could have reached another verdict had it not heard basis testimony about that uncharged crime. *Matter of State of New York v John S.*, 23 NY3d 326.

53. Civil Commitment or Supervision — Mental Abnormality.—In a Mental Hygiene Law article 10 proceeding seeking a determination that respondent was a detained sex offender requiring civil management, the evidence at trial was sufficient to support the jury's verdict that respondent, who was diagnosed by both parties' experts as suffering from antisocial personality disorder, suffered from a mental abnormality qualifying him for civil management. During their testimony, the State's experts explained how respondent's sex crimes were not simply isolated incidents, but a result of his antisocial personality disorder, and that the traits that account for this disorder—such as his impulsivity, aggression, disregard for social norms, and indifference to harming others—resulted in respondent's pathological sense of entitlement and serious difficulty controlling his sexual conduct. The jury was entitled to credit that expert testimony, which was supported not only by respondent's history of sex offending, but also by his prison disciplinary record, denial of his crimes, and failure to partake in prison sex offender treatment, among other things. Moreover, the evidence indicating that respondent had raped women at three separate periods over a span of decades, notwithstanding serious sanctions, could have led a rational jury to conclude that respondent suffered from the serious lack of control over his conduct required for a mental abnormality finding. Although respondent's expert testified that respondent was unlikely to reoffend based on his age, the jury could have reasonably rejected that assertion in light of competing testimony from the State's experts. *Matter of State of New York v John S.*, 23 NY3d 326.

54. Civil Commitment or Supervision — Unsealed Records.—In a Mental Hygiene Law article 10 proceeding seeking a determination that respondent was a detained sex offender requiring civil management, records related to certain rape and robbery charges against defendant in 1968 that were previously sealed pursuant to CPL 160.50 were properly unsealed pursuant to Mental Hygiene Law § 10.08 (c) and disclosed to the State. Mental Hygiene Law § 10.08 (c) contemplates broad disclosure of records relating to a respondent's commission or alleged commission of a sex offense as well as any information relevant to the civil management determination, and authorizes disclosure “[n]otwithstanding any other provision of law” that might otherwise prohibit it. The meaning of the statute's “notwithstanding” clause is plainly understood and supersedes any inconsistent provisions of state law, including the sealing procedures set forth in CPL 160.50. The unsealed indictments, presentence reports, police reports, and victim's statements, among other documents in the possession of official entities, were the types of records the legislature contemplated the State would have access to in an article 10 proceeding (*see* Mental Hygiene Law § 10.08 [c]). Respondent pleaded guilty in satisfaction of the 1968 indictments, and although his convictions were later vacated on mental incompetency grounds, the fact remained that respondent was charged and indicted for those crimes. Mental Hygiene Law § 10.08 (c), by authorizing disclosure of records relating to the “alleged commission of a sex offense,” necessarily contemplates the release of records which document sex offenses that did not result in valid adjudications of guilt. The 1968 records also qualified for disclosure under the statute's catch-all provision because they contained “information relevant to a determination” of whether respondent required civil management under article 10 (Mental Hygiene Law § 10.08 [c]). *Matter of State of New York v John S.*, 23 NY3d 326.

55. Civil Commitment or Supervision — Unsealed Records.—In a Mental Hygiene Law article 10 proceeding seeking a determination that respondent was a detained sex offender requiring civil management, CPL 160.60 did not bar disclosure under Mental Hygiene Law § 10.08 (c) of records related to certain rape and robbery charges against defendant in 1968 that were previously sealed pursuant to CPL 160.50 when defendant's convictions were vacated on mental incompetency grounds.

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CPL 160.60 provides, in pertinent part, that once a criminal action or proceeding has terminated in favor of the accused, “the arrest and prosecution shall be deemed a nullity,” and the information about that arrest or prosecution may not be disclosed “[e]xcept where specifically required or permitted by statute or upon specific authorization of a superior court.” The statute states by its plain terms that its provisions may be superseded by another statute, such as Mental Hygiene Law § 10.08 (c), that permits disclosure of the sealed information. Although an arrest or prosecution terminated in a defendant’s favor must generally be “deemed a nullity” under CPL 160.60, that statute does not bar the disclosure of records that, for the purposes of Mental Hygiene Law article 10, relate to a respondent’s alleged commission of a sex offense. Moreover, to the extent respondent was concerned that a “stigma” might result from the disclosure of his unsealed records, Mental Hygiene Law § 10.08 (c) already provides that “confidential materials” obtained pursuant to that statute “shall not be further disseminated or otherwise used except for [article 10] purposes.” *Matter of State of New York v John S.*, 23 NY3d 326.

56. Civil Commitment or Supervision — Admission of Hearsay Evidence.—In a Mental Hygiene Law article 10 proceeding seeking a determination that respondent was a detained sex offender requiring civil management, Supreme Court erred by permitting the State’s expert witness to introduce hearsay testimony about a rape respondent was never charged with committing. Expert witnesses may introduce hearsay evidence to explain the basis of their opinions at an article 10 trial if two criteria are satisfied: the proponent must demonstrate through evidence that the hearsay is reliable, and the court must determine that the probative value in helping the jury evaluate the expert’s opinion substantially outweighs its prejudicial effect. Hearsay evidence about uncharged crimes fails to meet the reliability prong of that test and must be excluded unless the underlying allegations are supported by an admission from the respondent or extrinsic evidence. The expert based his testimony about the alleged rape on hearsay information from a presentence report, which indicated that the allegations were based on a sworn statement made by a police detective who investigated respondent’s offenses and spoke to the victim. The allegations in the presentence report, however, were not supported by any other evidence and respondent never admitted that he committed the uncharged rape. Hearsay information from a presentence report is not so inherently reliable that it, alone, can sustain the admission of such testimony. That the hearsay may have been derived from a sworn statement was also not enough to independently support its admission at trial. *Matter of State of New York v Charada T.*, 23 NY3d 355.

57. Civil Commitment or Supervision — Admission of Hearsay Evidence — Harmless Error.—In a Mental Hygiene Law article 10 proceeding seeking a determination that respondent was a detained sex offender requiring civil management, Supreme Court’s error in permitting the State’s expert witness to introduce hearsay testimony about a rape respondent was never charged with committing was harmless under the circumstances. The witness presented limited testimony about the uncharged rape, and he stated that respondent had never admitted committing that crime, a point Supreme Court reiterated during its jury instructions. The State’s case instead focused primarily on three violent rapes respondent was convicted of committing, his extensive disciplinary record, and failure to complete sex offender treatment, among other factors that, in the witness’s opinion, demonstrated that respondent suffered from a mental abnormality. The witness’s statements about the uncharged rape also did not discredit the testimony of respondent’s expert witness, which placed less emphasis on respondent’s offenses and more on his “progress” in sex offender treatment. In sum, notwithstanding the hearsay testimony about the uncharged rape, the jury had sufficient admissible evidence before it upon which to find that respondent suffered from a mental abnormality, and there was no reasonable possibility that, had that testimony been excluded, the jury would have reached a different verdict. *Matter of State of New York v Charada T.*, 23 NY3d 355.

58. Sex Offender Registration Act — Application of “Number of Victims” Risk Factor to Possessor of Child Pornography.—Defendants, convicted sex offenders whose crimes consisted of possessing pornographic videos and images of children, were properly assessed points under risk factor 3 of the Sex Offender Registration

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Act (SORA) Risk Assessment Guidelines based on the number of victims. Children depicted in child pornography are necessarily counted as victims under factor 3, and nothing in that factor's plain terms suggests otherwise. The Board of Examiners of Sex Offenders' official commentary to the Risk Assessment Guidelines explains that factor 3 "focuses upon the number of people whom the offender victimized," and that the "existence of multiple victims is indicative of compulsive behavior and is, therefore, a significant factor in assessing the offender's risk of reoffense and dangerousness." Given that factor 3 draws no distinction between victims of child pornography offenses and victims of other sex crimes, the plain language of that factor and its associated commentary permit a SORA court to score points against an offender based on the number of different children featured in his or her child pornography files, and the courts here properly assessed those points. While a departure may be warranted in a variety of child pornography cases, scoring under factor 3 does not necessarily overestimate a child pornography offender's risk of further exploiting children. *People v Gillotti*, 23 NY3d 841.

59. Sex Offender Registration Act — Application of "Relationship between Offender and Victim" Risk Factor to Possessor of Child Pornography.—The court determining the appropriate risk level assignment for defendant, a convicted sex offender whose crime consisted of possessing pornographic videos and images of children, was authorized to assess points under risk factor 7 of the Sex Offender Registration Act: Risk Assessment Guidelines and Commentary based on defendant's stranger relationship to the victims. The plain terms of factor 7 authorize the assessment of points based on a child pornography offender's stranger relationship with the children featured in his or her child pornography files. *People v Gillotti*, 23 NY3d 841.

60. Sex Offender Registration Act — Downward Departure — Burden of Proof.—In reviewing the Sex Offender Registration Act (SORA) hearing court's rejection of defendant's request for a downward departure from his risk level three classification as indicated by SORA Risk Assessment Guidelines score, the Appellate Division erred by reviewing the SORA court's departure decision under a clear and convincing evidence standard of proof. The Appellate Division should have determined whether defendant proved the existence of the alleged mitigating factors underlying his departure request by a preponderance of the evidence. Because Correction Law § 168-n (3) compels the People to prove the existence of facts supporting a defendant's overall risk level classification by clear and convincing evidence, the People cannot obtain an upward departure pursuant to the guidelines unless they prove the existence of certain aggravating circumstances by clear and convincing evidence. By contrast, neither the guidelines nor Correction Law § 168-n (3) assigns any particular burden of proof to a defendant who asks for a downward departure. However, a SORA defendant asking for a downward departure essentially occupies the same position as a defendant raising an affirmative defense or attempting to rebut a presumption in any other civil proceeding; each type of defendant basically concedes that the plaintiff has met its burden of proof with respect to the essential elements of the cause of action, but each nonetheless seeks to prevent the plaintiff from obtaining an entirely favorable judgment by proving an additional circumstance that weighs against the granting of such relief. Given that a defendant interposing an affirmative defense may prevail on that defense by a mere preponderance of the evidence in most civil cases, a SORA defendant should be allowed to obtain a downward departure by presenting the same quantum of proof. Moreover, a defendant's statutorily protected interest in being free from excessive government monitoring and stigmatization weighs decisively in favor of applying the preponderance of the evidence standard to a defendant's request for a downward departure. *People v Gillotti*, 23 NY3d 841.

61. Sex Offender Registration Act — Scoring of Child Pornography Defendants.—The Board of Examiners of Sex Offenders' position statement on the evaluation of child pornography cases under the Sex Offender Registration Act (SORA) does not bar the assignment of points under risk factor 3 (number of victims) and risk factor 7 (relationship between offender and victim) of the Risk Assessment Guidelines in the determination of the appropriate risk level for child pornography offenders. The

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position statement is not on the same footing as the guidelines because SORA neither mentions a “position statement” nor attributes any legal significance to that document. Rather, SORA requires a court to “apply[] the guidelines” to determine an offender’s risk level classification (Correction Law § 168-n [2]). The position statement does not state that it is an actual or constructive amendment to the guidelines, and the Board has not otherwise proclaimed the document to be an amendment to the guidelines. To the extent that the position statement indicates that the Board is skeptical of scoring points under factors 3 and 7 in child pornography cases, the Board did not translate that skepticism into a bright-line rule or an amendment to the guidelines categorically forbidding point assessments under factors 3 and 7 in such cases. Moreover, to the extent the Board maintains a practice of declining to assess points against child pornography offenders pursuant to factors 3 and 7, a SORA court is not bound by that practice, for Correction Law § 168-n (3) expressly authorizes the court to classify an offender at a higher risk level than the one recommended by the Board. *People v Gillotti*, 23 NY3d 841.

UNAUTHORIZED USE OF COMPUTER.

62. What Constitutes.—In a prosecution arising from defendant’s Internet campaign to attack the integrity and harm the reputation of certain Dead Sea Scrolls academics and scholars while promoting the views of his father, another Dead Sea Scrolls scholar, the People did not sustain their burden of proof that defendant was guilty of unauthorized use of the computers at the university he had attended and from which he had sent some emails in connection with his campaign. Under Penal Law § 156.05, “[a] person is guilty of unauthorized use of a computer when he or she knowingly uses, causes to be used, or accesses a computer, computer service, or computer network without authorization.” The term “without authorization” is defined as “to access a computer . . . without the permission of the owner . . . or after actual notice to such person that such use or access was without permission” (Penal Law § 156.00 [8]). Defendant asserted that he had permission to access the university computers as an alumnus who joined a certain library program. The definitions and wording of the statute and the legislative history indicate that the statute was intended to reach a person who accesses a computer system without permission (i.e., a hacker) and the language does not appear to encompass defendant’s conduct here. *People v Golb*, 23 NY3d 455.

UNLAWFUL SEARCH AND SEIZURE.

63. Installation of Global Positioning System on Vehicle without Warrant.—Where law enforcement installed, without a warrant, a global positioning system (GPS) tracking device on defendant’s vehicle, the Appellate Division erroneously concluded that law enforcement’s “very limited GPS surveillance . . . was permissible” under *People v Weaver* (12 NY3d 433 [2009]). Without considering whether the facts sufficed to distinguish *Weaver*, the attachment of the GPS device to defendant’s vehicle was unquestionably a search within the meaning of the Fourth Amendment under the United States Supreme Court’s subsequent holding in *United States v Jones* (565 US —, 132 S Ct 945 [2012]). Under *Weaver* and *Jones*, the use of a GPS device to monitor a vehicle’s movements constitutes a search under the State and Federal Constitutions. Thus, when the police want to place a GPS device on a suspect’s automobile, they must obtain a warrant first. Although *Weaver* and *Jones* had not yet been decided at the time of defendant’s trial, cases on direct appeal are generally decided in accordance with the law as it exists at the time the appellate decision is made. *People v Lewis*, 23 NY3d 179.

64. Installation of Global Positioning System on Vehicle without Warrant — Harmless Error.—In a prosecution for grand larceny and other crimes arising from a sophisticated scheme by which defendant and two codefendants acquired credit card numbers from legitimate accounts of cardholders and placed the stolen information on forged credit cards that they used to make purchases at several stores, law enforcement’s warrantless installation of a global positioning system (GPS) tracking device on defendant’s vehicle, although amounting to a constitutional violation, was harmless beyond a reasonable doubt because there was no reasonable possibility that the error might have contributed to defendant’s conviction. Al-

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though there was one date on which the use of the GPS device allegedly led to evidence of defendant's criminal activity, the use of the GPS device on that date provided information redundant to that which investigators had already obtained legally from another source—a wiretap of defendant's cell phones that was carried out pursuant to an eavesdropping warrant. Notwithstanding that the GPS device was attached to defendant's car on that date, investigators learned from the wiretapped phone calls that defendant and his codefendants were headed toward a particular store at a specific location. Once investigators located defendant and his cohorts at the store, they conducted visual surveillance as defendant and/or his codefendants made purchases at two stores. The People also presented overwhelming evidence of defendant's guilt in the form of surveillance video, sales receipts, visual observations by investigators of codefendants making purchases at certain stores, interviews of store employees conducted by investigators and recorded conversations obtained via the eavesdropping warrant. *People v Lewis*, 23 NY3d 179.

VACATUR OF JUDGMENT OF CONVICTION.

65. Failure to Share Contents of Jury Note with Defense Counsel — Charges Unrelated to Contents of Note Unaffected.—In a prosecution for homicide and illegal weapons possession, although defendant was entitled to vacatur of his conviction for first degree manslaughter because of the trial court's failure to properly deal with a jury note regarding the homicide counts sent during deliberations, defendant was not entitled to vacatur of his conviction on the weapon possession count. In his written statement, which was read to the jury and admitted in evidence, defendant confessed to possessing a loaded firearm and shooting the victim. The People also presented evidence from a witness who testified that he had given defendant the revolver that defendant used moments before the shooting. Because the jury note was addressed to an element relative to the homicide counts, and not to the weapon possession count, there was no danger of prejudice as it related to the latter count. *People v Walston*, 23 NY3d 986.

WITNESSES.

66. Unavailability of Witness — Admissibility of Grand Jury Testimony of Witness Whose Unavailability Procured by Defendant.—The trial court in defendant's burglary prosecution properly ruled that defendant, by his wrongdoing, had forfeited his right to preclude the admission of the grand jury testimony of his girlfriend, who was with defendant at the time of the burglary and had initially cooperated with authorities but then absconded and could not be located by the prosecution until she returned to police custody on the second day of the *Sirois* hearing and announced, through her attorney, her intention not to testify at defendant's trial on Fifth Amendment grounds. Investigators testified at the hearing about the extensive efforts they made to obtain the witness's appearance at trial from the time she absconded until the start of the hearing approximately two weeks later. The People also put into evidence recordings of defendant's jailhouse telephone conversations, during which defendant threatened the witness with violence in response to her avowed willingness to testify, encouraged her to disappear, and repeatedly urged his mother to remove the witness from the state so that she could not testify against him. The People proved by clear and convincing evidence that defendant committed misconduct, and the court drew a permissible record-based inference that defendant's wrongful actions were designed to prevent the witness from testifying at trial. Although defendant told the witness at one point to turn herself in and eventually expressed resignation to the fact that she would appear in court after his mother lost track of her, those statements merely reflected defendant's recognition that the witness was cooperating with the police and that therefore his efforts to convince her not to testify might prove futile. Moreover, when viewed in the context of defendant's successful efforts to keep the witness out of court up until the middle of the hearing, the witness's decision not to testify on Fifth Amendment grounds was plainly caused in part by defendant's malfeasance. *People v Smart*, 23 NY3d 213.

DAMAGES.**FUTURE DAMAGES.**

1. Liability for Withdrawal from Self-Insurance Fund — Discounting to Present Value.—In a breach of contract claim alleging plaintiff Village's failure to pay a

DAMAGES—Cont'd

required fee upon effectively withdrawing from a workers' compensation self-insurance plan administered by defendant County after the County had terminated the plan and created an abandonment plan for the outstanding claims, which gave member municipalities the option to either remain as participants or withdraw from the plan by paying a lump sum withdrawal fee reflecting the withdrawing member's equitable share of the outstanding liabilities according to the final annual estimate prior to abandonment, the withdrawal fee owed by plaintiff reflected benefits to be paid in the future and should have been discounted to its current value as of the date it was due. Discounting future damages to their value at some point in the past is appropriate because it takes into account the time value of money. In a case involving the value of workers' compensation benefits to be paid out over the life of a disability claim, some or all of the losses will be incurred in the future. Here, the abandonment plan was a contract between the County, as plan administrator, and the municipalities, as participants. The purpose of the withdrawal fee was to provide the County with sufficient funds to dole out future benefits to outstanding claim beneficiaries, to be dispersed over 30 or more years. Thus, the actuarial estimate of each municipality's withdrawal liability represented its aggregate future liability for existing claims. To require the Village to pay an undiscounted amount would give the County an impermissible windfall. Uncertainty in the assessment or the infeasibility of investment given the plan's insolvency did not alter the terms of the contract. Further, any ambiguity in the abandonment plan with regard to withdrawal liability should be construed against the County, as the drafter. The County could have chosen to expressly define the withdrawal liability as an undiscounted, gross sum. *Village of Ilion v County of Herkimer*, 23 NY3d 812.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

DEPOSITIONS.

See DISCLOSURE.

DISCLOSURE.**EXAMINATION BEFORE TRIAL.**

1. Nonparty Witness.—A party seeking discovery from a nonparty pursuant to CPLR 3101 (a) (4) by service of a subpoena must sufficiently state the “circumstances or reasons” underlying the subpoena, either on the face of the subpoena itself or in a notice accompanying it, and a witness who moves to quash the subpoena must establish either that the discovery sought is “utterly irrelevant” to the action or that the “futility of the process to uncover anything legitimate is inevitable or obvious.” Should the witness meet that burden, the subpoenaing party must then establish that the discovery sought is “material and necessary” to the prosecution or defense of an action. The subpoenaing party is not required to demonstrate that it cannot obtain the requested disclosure from any other source. So long as the disclosure sought is relevant to the prosecution or defense of an action, it must be provided by the nonparty. The subpoenas served upon petitioners, nonparties to actions that respondent had commenced in New York and California arising from the sale of allegedly counterfeit wine, satisfied the notice requirement, as they not only

DISCLOSURE—Cont'd

included the date, time and location of the depositions, but also affixed copies of the amended complaint in the California action detailing the relationship between petitioners' employer and the defendant in the California action. It was then petitioners' burden to establish that they were entitled to prevail on the motion to quash, and the trial court did not abuse its discretion in denying petitioners' motion on the ground that they failed to meet their burden of establishing that their deposition testimonies were irrelevant to the California action. *Matter of Kapon v Koch*, 23 NY3d 32.

MEDICAL RECORDS AND REPORTS.

2. Exposure to Lead-Based Paint — Required Contents of Reports.—In two personal injury actions in which the plaintiffs alleged physical and mental injuries as a result of exposure to lead-based paint in rental apartments during childhood, Supreme Court abused its discretion in requiring plaintiffs to produce, prior to the defense medical examinations, medical reports detailing a diagnosis of each injury allegedly caused by exposure to lead-based paint or otherwise be precluded from offering evidence of that injury at trial. Upon receiving notice "to submit to a physical, mental or blood examination by a designated physician" (CPLR 3121 [a]), a party whose mental or physical condition is in issue must deliver copies of medical reports of providers who have previously treated or examined him or her (22 NYCRR 202.17 [b] [1]). The reports must recite the injuries and conditions as to which testimony will be offered at trial, identify X-ray and technicians' reports that will be offered at trial, and include a description of the injuries, a diagnosis and a prognosis. As here, where many of the injuries alleged by plaintiffs may never have been diagnosed or treated, requiring a plaintiff to hire a medical professional to draft a report to satisfy section 202.17 (b) (1) could make it prohibitively expensive for some plaintiffs to bring legitimate suits. Thus, plaintiffs need only produce reports from medical providers who have "previously treated or examined" them. However, plaintiffs cannot avoid disclosure simply because their treating or examining physician had not drafted any reports within the meaning of the rule. If their medical reports do not contain the required information, then plaintiffs must have the medical providers draft reports setting forth that information, or, if that is not possible, they must seek relief from disclosure and explain why they cannot comply. *Hamilton v Miller*, 23 NY3d 592.

3. Exposure to Lead-Based Paint — Required Contents of Reports.—In two personal injury actions in which the plaintiffs alleged physical and mental injuries as a result of exposure to lead-based paint in rental apartments during childhood, Supreme Court erred by requiring plaintiffs to produce, prior to the defense examination, medical reports causally relating plaintiffs' injuries to lead paint exposure or be precluded from offering proof of such injuries at trial. Under 22 NYCRR 202.17 (b) (1), upon receiving notice "to submit to a physical, mental or blood examination by a designated physician" (CPLR 3121 [a]), a party whose mental or physical condition is in issue must deliver copies of medical reports of providers that have previously treated or examined him or her. The reports must recite the injuries and conditions as to which testimony will be offered at trial, identify X-ray and technicians' reports that will be offered at trial, and include a description of the injuries, a diagnosis and a prognosis. Inasmuch as there is no requirement in section 202.17 (b) (1) that medical providers causally relate the injury to defendant's negligence or, in this case, to lead paint exposure, Supreme Court granted relief beyond that contemplated by the rule. *Hamilton v Miller*, 23 NY3d 592.

PENALTY FOR FAILURE TO DISCLOSE.

4. Striking Pleadings and Entering Default Judgment as Sanction for Committing Fraud on Court.—In litigation seeking to recover payment on a loan agreement, in which plaintiff bank alleged that defendants father and son conspired to avoid repayment by denying ownership and control over entities used to conceal the converted funds, the courts below did not err in striking defendants' answers and entering a default judgment against defendants father, son, the former chief executive officer of the company that entered into the agreement, and an officer of a corporation to which funds were diverted, based on findings that they committed a

DISCLOSURE—Cont'd

fraud on the court. A court that finds, by clear and convincing evidence, conduct that constitutes a fraud on the court may impose sanctions, including striking pleadings and entering default judgment against the offending parties to ensure the continuing integrity of the judicial system. Here, the record revealed numerous instances of perjury, subornation of perjury, witness tampering and falsification of documents by defendants, all in furtherance of hiding the father's and son's connections to the alleged theft and concealing the location of funds. Particularly, the father and son provided witnesses with scripts with false answers to give at their depositions. The scripts revealed that the former chief executive officer lied about his role in the company and his relationship with the father, and that the corporate officer testified about individuals she knew were fictitious. Other testimony and documents showed that defendants forged promissory notes and fabricated corporate records and shareholder affidavits. The sanction was supported by findings that the father and son intentionally sought to deceive the court and plaintiff, that plaintiff was prejudiced by its inability to obtain true discovery and the excessive money and time spent to prove its case, that the conduct was not isolated and that defendants did not attempt to correct their misconduct. The courts also concluded that the deception would continue if the lawsuit was allowed to proceed. *CDR Créances S.A.S. v Cohen*, 23 NY3d 307.

5. Striking Pleadings and Entering Default Judgment as Sanction for Committing Fraud on Court.—In litigation seeking to recover payment on a loan agreement, wherein a default judgment was properly entered against defendants father and son and two corporate officers who were found to have committed a fraud on the court in furtherance of hiding the father's and son's connections to an alleged conspiracy to avoid repayment by denying ownership and control over entities used to conceal funds, the evidence was insufficient to justify a default judgment against the wife of defendant father. A court that finds, by clear and convincing evidence, conduct that constitutes a fraud on the court may impose sanctions, including striking pleadings and entering default judgment against the offending parties to ensure the continuing integrity of the judicial system. A court must be persuaded that the fraudulent conduct concerns issues that are central to the truth-finding process. While the record established that defendant wife denied knowing the manager of a shop she operated, and that she was a signatory on at least one corporate bank account controlled by the father and son, her statements and denials were not equivalent to the actions of the other defendants, who lied about ownership and management of business entities used to siphon funds. Moreover, no direct evidence established that she participated in a meeting regarding the submission of false deposition testimony. Although she was not innocent of misconduct, her statements and denials were not central to the success of the scheme to hide information from the court and plaintiff. *CDR Créances S.A.S. v Cohen*, 23 NY3d 307.

6. Striking Pleadings and Entering Default Judgment — Fraud on Court — Evidentiary Standard.—Where a court finds, by clear and convincing evidence, conduct that constitutes fraud on the court, the court may impose sanctions, including striking pleadings and entering default judgment against the offending parties to ensure the continuing integrity of the judicial system. If the credibility of court orders and the integrity of the judicial system are to be maintained, a litigant cannot ignore court orders with impunity. A trial court has discretion to strike pleadings under CPLR 3126 when a party's repeated noncompliance with court orders for disclosure is dilatory, evasive, obstructive and ultimately contumacious. In addition, a court has inherent power to address actions which are meant to undermine the truth-seeking function or the integrity of the judicial system. Fraud on the court involves wilful conduct that is deceitful and obstructionist, which injects misrepresentations and false information into the judicial process so serious that it undermines the integrity of the proceeding. In order to demonstrate fraud on the court, the nonoffending party must establish by clear and convincing evidence that the offending party has acted knowingly in an attempt to hinder the factfinder's fair adjudication of the case and his or her adversary's defense of the action. A court must be persuaded that the fraudulent conduct, which may include proof of fabrication of evidence, perjury, and falsification of documents, concerns issues that are central to

DISCLOSURE—Cont'd

the truth-finding process. In such a case, it can fairly be said that the offending party has forfeited the right to have the claim decided on the merits. However, dismissal is not appropriate where the fraud is not central to the substantive issues in the case or where the court is presented with an isolated instance of perjury which fails to constitute a fraud upon the court. Where a court finds that a party has committed fraud on the court warranting dismissal, the court should note why lesser sanctions would not suffice to correct the offending behavior. *CDR Créances S.A.S. v Cohen*, 23 NY3d 307.

DISCONTINUANCE.

See DISMISSAL AND NONSUIT.

DISCOVERY AND INSPECTION.

See DISCLOSURE.

DISTRICT AND PROSECUTING ATTORNEYS.**DISQUALIFICATION.**

1. District Attorney Seeking His Own Disqualification — Reasonable Grounds.—A district attorney seeking to disqualify himself or herself may do so upon a good faith application containing reasonable grounds for the belief that he or she is so disqualified. Where there is a legitimate doubt as to whether a district attorney and his office may proceed with a case, the district attorney is not barred from resolving that doubt by choosing to step aside. It is desirable for all concerned to know, as promptly as possible, whether the person investigating or prosecuting a case is lawfully entitled to do so. That interest is served by allowing a district attorney who has reasonable grounds for thinking that he and his office may be disqualified to seek the appointment of a special prosecutor. Here, respondent Richmond County District Attorney had a good faith, reasonable basis for his view that he was disqualified under County Law § 701 (1) from pursuing an investigation into possible violations in connection with a 2009 City Council election in Staten Island. *Matter of Working Families Party v Fisher*, 23 NY3d 539.

SPECIAL PROSECUTOR.

2. Appointment — Procedural Flaws — Nullification of Appointment Not Warranted.—In a proceeding in which petitioner political party challenged an order issued by respondent Deputy Chief Administrative Judge (DCAJ) for the New York City Courts relieving a district attorney at his own request and appointing a special district attorney to conduct an investigation into possible violations in connection with a 2009 election, the flaws in the procedure respondent followed in making the appointment did not warrant its nullification. Uniform Rules for the New York State Trial Courts (22 NYCRR) § 200.15 requires that upon an appropriate application for a special prosecutor under County Law § 701 (1), the Chief Administrator of the Courts, in consultation with the Presiding Justice of the appropriate Appellate Division, shall designate a superior court judge to consider the application. Here, respondent appointed herself, an elected Supreme Court Justice, to decide whether to appoint a special prosecutor and whom to appoint. While respondent was free to appoint herself, she should have documented in a separate order the fact that she did so. Respondent should have also consulted with, and obtained the approval of, the Presiding Justice and should have recited in her order that she had done so. However, the procedural irregularities did not justify nullifying the appointment and creating the undesirable situation of an investigation that goes on for years before determining the authority of the person investigating the case. No party could claim to be prejudiced by the fact that respondent signed one document when she should have signed two. Moreover, consultation with the Presiding Justice may be of secondary importance in a case where the DCAJ chooses to appoint herself since the apparent purpose of consultation with the Presiding Justice is to be sure that the chosen judge is available and suitable for the task. *Matter of Working Families Party v Fisher*, 23 NY3d 539.

DIVORCE.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

DOUBLE JEOPARDY.

See CRIMES.

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

EQUITY.

LACHES.

1. Continuing Wrong Doctrine.—The doctrine of laches could not bar plaintiffs' action challenging defendants' use of a portion of a village park for the storage of highway materials and supplies as an unlawful use of parkland in violation of the public trust doctrine, as plaintiffs alleged a continuing wrong with respect to the ongoing use of the parkland. *Capruso v Village of Kings Point*, 23 NY3d 631.

2. State Acting in Governmental Capacity to Enforce Public Right or Protect Public Interest.—The equitable doctrine of laches could not, as a matter of law, bar plaintiff State's action challenging defendant Village's proposed construction of a 12,000-square-foot Department of Public Works facility within a village park as an unlawful use of parkland in violation of the public trust doctrine. Laches may not be interposed as a defense against the State when acting in a governmental capacity to enforce a public right or protect a public interest, and here the State was acting in a governmental capacity to protect a public interest. *Capruso v Village of Kings Point*, 23 NY3d 631.

3. Use of Parkland in Violation of Public Trust Doctrine.—In an action by plaintiff individuals challenging defendants' proposed construction of a 12,000-square-foot Department of Public Works facility within a village park as an unlawful use of parkland in violation of the public trust doctrine, Supreme Court did not abuse its discretion in ruling that laches did not apply. *Capruso v Village of Kings Point*, 23 NY3d 631.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

JUDICIAL NOTICE.

1. Action for Damages Resulting from Lead-Based Paint Exposure — Congressional Findings Codified in Statute.—In a personal injury action in which plaintiff alleged physical and mental injuries as a result of exposure to lead-based paint in rental apartments during childhood, Supreme Court properly denied plaintiff's motion to take judicial notice of 42 USC § 4851, which contains Congress's findings justifying legislation aimed at reducing lead. CPLR 4511 allows a court to take judicial notice of federal and foreign state laws, not facts, relevant to a proceeding. The congressional findings in support of legislation seeking to reduce the amounts of lead in homes, though codified in a federal statute, are not "law" that is relevant to plaintiff's case. Plaintiff wanted Supreme Court to take judicial notice of the fact that exposure to lead paint can cause injury. While a court may take judicial notice of facts which are capable of immediate and accurate determination by resort to easily accessible sources of indisputable accuracy, general causation in scientifically complex cases is not such a fact. Plaintiff must prove, through scientific evidence, that exposure to lead-based paint can cause the injuries of which he complains. He

EVIDENCE—Cont'd

cannot avoid that burden simply because Congress, in statutory preambles, had opined on the dangers of lead-based paints. *Hamilton v Miller*, 23 NY3d 592.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE.

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

FORMER ADJUDICATION.

See JUDGMENTS.

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY).

FRATERNAL ORDERS.

See ASSOCIATIONS.

GAS AND OIL.

See, also, PUBLIC UTILITIES.

LOCAL REGULATION.

1. Hydrofracking.—Town zoning laws banning oil and gas production activities, including hydrofracking, were valid and were not preempted by the supersession clause in the statewide Oil, Gas and Solution Mining Law (OGSML) (ECL 23-0303 [2]). In light of its plain language, its place within the OGSML's framework and the legislative background, the supersession clause does not evince a clear expression of preemptive intent. ECL 23-0303 (2), which states that the OGSML "shall supersede all local laws or ordinances relating to the regulation of the oil, gas and solution mining industries," is most naturally read as preempting only local laws that purport to regulate the actual operations of oil and gas activities, not zoning ordinances that restrict or prohibit certain land uses within town boundaries. In addition, the OGSML is concerned with the Department of Environmental Conservation's regulation and authority regarding the safety, technical and operational aspects of oil and gas activities across the state, and the supersession clause fits comfortably within that legislative framework since it invalidates local laws that would intrude on the Department's regulatory oversight of the industry's operations, thereby ensuring uniform exploratory and extraction processes related to oil and gas production. Moreover, the legislative history of the OGSML and its predecessor makes clear that the state legislature's primary concern was with preventing wasteful oil and gas practices and ensuring that the Department had the means to regulate the technical operations of the industry. Accordingly, the towns appropriately acted within their home rule authority in adopting the challenged zoning laws. *Matter of Wallach v Town of Dryden*, 23 NY3d 728.

GRAND JURY.**DEFECTIVE PROCEEDING.**

1. Failure to Administer Oath to Witness Not Fatal.—In a prosecution where a grand jury witness failed to take the required oath during her original videotaped testimony but swore to the truthfulness of that testimony in a second videotaped interview, the error in failing to administer the oath during the first testimonial recording did not, under the circumstances, meet the very precise and very high statutory standard of impairment for grand jury proceedings warranting dismissal of the indictment. The lack of an oath was not the product of a nefarious design to deliberately cause unfairness to defendant. Rather, it was an oversight that the People sought to correct by securing judicial permission to make the second videotape. The grand jury watched the second video and was instructed that the recording was made because the witness had not taken an oath during her first exam-

GRAND JURY—Cont'd

ination. On these facts, defendant did not establish a possibility of prejudice justifying the exceptional remedy of dismissal of the indictment. *People v Wisdom*, 23 NY3d 970.

GUARANTEE.

See SURETYSHIP AND GUARANTEE.

HOSPITALS.

MALPRACTICE.

1. In a medical malpractice action, the Appellate Division, which set aside a verdict in favor of plaintiff and dismissed the complaint, correctly determined that plaintiff failed to submit sufficient evidence to support a finding of liability against defendant hospital. *Bustos v Lenox Hill Hosp.*, 23 NY3d 926.

HOTELS.

See INNKEEPERS.

HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

IMMIGRATION.

See ALIENS.

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles.

JUVENILE DELINQUENTS.

1. Person in Need of Supervision Adjudicated as Juvenile Delinquent.—In a juvenile delinquency proceeding arising from the actions of respondent, a person in need of supervision (PINS) who had absconded from her nonsecure detention facility, in failing to comply with the directions of the probation officers executing a PINS warrant for her return, the Appellate Division's factual findings that respondent's conduct was consistent with PINS behavior, not juvenile delinquency, more nearly comported with the weight of the evidence than the Family Court's factual findings that respondent had committed acts which, if committed by an adult, would have constituted the crimes of resisting arrest and obstructing governmental administration. Respondent acknowledged that she refused to get out of bed, attempted to run away down the hallway, and attempted to avoid being handcuffed. The crime of resisting arrest requires that a person intentionally prevent "an authorized arrest" (Penal Law § 205.30), but the restraint of a PINS pursuant to Family Court Act § 718 is not the same as a criminal arrest. With respect to the crime of obstructing governmental administration in the second degree (Penal Law § 195.05), respondent admitted that she wanted to "make it hard" for the probation officers to handcuff and take her to the nonsecure facility. On the other hand, the legislature has defined a PINS to include someone who is "habitually disobedient and beyond the lawful control of . . . lawful authority" (Family Ct Act § 712 [a]). Thus, a PINS's disobedience and obstruction of "lawful authority" is not necessarily the same as an adult's. Respondent's fractious behavior arguably posed a danger to herself, the probation officers and/or her family, even though Family Court found that she did not attempt to assault or menace the officers. But the Appellate Division, contrary to Family Court, found that her resistance fell within the bounds of acting "beyond the lawful control of . . . lawful authority" rather than Penal Law § 195.05. *Matter of Gabriela A.*, 23 NY3d 155.

2. Sufficiency of Petition — Unlawful Possession of Weapons by Persons under 16 — Machete as Dangerous Knife.—A juvenile delinquency petition charging the 15-

INFANTS—Cont'd

year-old respondent with unlawful possession of weapons by persons under sixteen (Penal Law § 265.05) based on allegations in the arresting officer's sworn statement that he recovered from respondent at 11:23 p.m. in Brooklyn "a dangerous instrument or deadly . . . weapon," i.e., a machete with a blade approximately 14 inches long, which respondent possessed "with the intent to use . . . unlawfully against another," was facially sufficient. Penal Law § 265.05 makes it unlawful for any person under the age of sixteen to possess "any dangerous knife." While the statute does not define "dangerous knife," the term has been held to connote a knife which may be characterized as a weapon. A knife designed and primarily intended for use as a utilitarian utensil can fall within the definition of a "dangerous knife" if it is converted into a weapon or if the circumstances of its possession permit a finding that on the occasion of its possession it was essentially a weapon rather than a utensil. A machete is generally defined as a large, heavy knife used for cutting plants and as a weapon. While a machete has utilitarian purposes, the officer's statement that the machete was being carried by respondent late at night on a street in Brooklyn adequately stated the circumstances of possession to support the charge that respondent was carrying a weapon. It would be unreasonable to infer from the officer's statement that the machete was being used for cutting plants. *Matter of Antwaine T.*, 23 NY3d 512.

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

DISCLAIMER OF COVERAGE.

1. Waiver of Right to Disclaim Coverage — Delay in Giving Notice.—In an insurance coverage dispute in which the assignee of a company insured by defendants under excess policies, sought a declaration that defendants had a duty to defend and indemnify it for liabilities associated with the investigation and remediation of environmental damage at manufactured gas plant sites formerly owned or operated by the assignor, the Appellate Division erred when it held that defendants had a duty to disclaim coverage "as soon as reasonably possible" after first learning of grounds for disclaimer of liability. Insurance Law § 3420 (d) (2) requires an insurer seeking to "disclaim liability or deny coverage for death or bodily injury arising out of a motor vehicle accident or any other type of accident occurring within" New York to "give written notice as soon as is reasonably possible of such disclaimer of liability or denial of coverage." By its terms, the statute applies only in cases involving death or bodily injury claims arising out of a New York accident and brought under a New York liability policy. Where, as here, the underlying claim does not arise out of an accident involving bodily injury or death, the provisions in section 3420 (d) (2) are inapplicable and the insurer will not be barred from disclaiming coverage simply as a result of the passage of time. Instead, the delay in giving notice of disclaimer should be considered under common-law waiver and estoppel principles. While defendants notified the assignor that they were reserving all rights and coverage defenses after initial notification of environmental concerns at the sites, defendants later failed to respond to the assignor's notice of formal agency action. The Appellate Division must consider if, under common-law principles, triable issues of fact exist whether defendants clearly manifested an intent to abandon their late-notice defense. *KeySpan Gas E. Corp. v Munich Reins. Am., Inc.*, 23 NY3d 583.

2. Waiver of Right to Disclaim Coverage — Delay in Giving Notice.—To the extent *Estee Lauder Inc. v OneBeacon Ins. Group, LLC* (62 AD3d 33 [1st Dept 2009]) and other Appellate Division cases hold that Insurance Law § 3420 (d) (2) applies to claims not based on death and bodily injury (*see Hotel des Artistes, Inc. v General Acc. Ins. Co. of Am.*, 9 AD3d 181, 193 [1st Dept 2004], *lv dismissed* 4 NY3d 739 [2004]; *Malca Amit N.Y. v Excess Ins. Co.*, 258 AD2d 282, 282 [1st Dept 1999]), those cases were wrongly decided and should not be followed. *KeySpan Gas E. Corp. v Munich Reins. Am., Inc.*, 23 NY3d 583.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

INTEREST.**PREJUDGMENT INTEREST.**

1. Date from Which Computed.—In a breach of contract claim alleging plaintiff Village’s failure to pay a required withdrawal fee upon effectively withdrawing from a workers’ compensation self-insurance plan administered by defendant County, after the County had terminated the plan, effective December 31, 2005, and created an abandonment plan for the outstanding claims, the courts below properly concluded that the County’s claim accrued on December 31, 2005 for purposes of calculating preverdict interest (CPLR 5001 [b]). Generally, a claim for breach of contract exists on the date of the breach. For purposes of the abandonment plan contract, the date was ascertainable from the plan and Workers’ Compensation Law § 65 (1), which provides that, upon withdrawal from a self-insured workers’ compensation plan, a “participant shall pay . . . an equitable share of the outstanding liabilities of the plan as of the date of withdrawal.” While the Village’s undiscounted liability was not calculated until June 2006, the liability existed as of the date of withdrawal. During the intervening six months, the County was paying the Village’s share of the workers’ compensation benefits, while the Village withheld funds owed. Nor was January 2008, when the County asserted its claims for breach of contract, an appropriate date for calculating interest. The principle that interest on an accrued claim against a municipality is payable only from the time payment is demanded was inapplicable since the County, by waiting to assert its counterclaim, was not delaying demand of payment from an unwitting municipality to allow interest from the debt maturity date to afford a safe and profitable investment. Here, the Village was aware of the maturity date, having anticipated its withdrawal liability in its October 2005 complaint. *Village of Ilion v County of Herkimer*, 23 NY3d 812.

INTERVENTION.

See PARTIES.

JUDGES.**COMMISSION ON JUDICIAL CONDUCT.**

1. Authority of Commission on Judicial Conduct to Request and Receive Records Sealed under CPL 160.50.—Petitioner New York State Commission on Judicial Conduct acted within the scope of its authority in obtaining and using respondent’s sealed criminal records in its investigation of a judge who had been prosecuted along with respondent on charges of violations of the Campaign Finance Law. Given the Commission’s broad powers under the Judiciary Law, specifically its authority under Judiciary Law § 42 (3) to request and receive a wide range of records and data, and its constitutional duties and obligations to ensure the integrity of the judicial system by investigating and sanctioning judicial misconduct, the Commission may obtain documents sealed pursuant to CPL 160.50. The Commission’s authority to request and receive sealed records for use in its investigations, provided the records are reasonably related to a judicial misconduct inquiry, extends to the sealed records of an individual other than the judge under investigation. *Matter of New York State Commn. on Jud. Conduct v Rubenstein*, 23 NY3d 570.

REMOVAL FROM OFFICE.

2. Presiding over Matters Involving Lawyers Who Were Close Friends and Personal Representatives.—A determination of the State Commission on Judicial Conduct that petitioner Surrogate should be removed from office was accepted. Petitioner presided over four uncontested matters in which the parties’ attorney was petitioner’s very close friend, prior personal attorney and a frequent visitor to her chambers; she took judicial action in four estates involving an attorney who was heavily involved in petitioner’s judicial election campaigns; and she presided over an estate matter submitted by an attorney who had represented petitioner less than two years earlier in a proceeding before the Commission in which she was censured for misleading and evasive testimony given during an investigation of her aforementioned close friend. At the relevant time, ethics opinions clearly provided

JUDGES—Cont’d

that a Surrogate should recuse himself or herself from routine, uncontested or administrative matters involving attorneys with whom he or she has a relationship that could give rise to an appearance of impropriety or raise a question as to the judge’s impartiality. To the extent that petitioner believed that recusal was unnecessary under existing precedent and that there could be no appearance of impropriety or favoritism in her presiding over uncontested matters, her behavior reflected exceedingly poor judgment and an inability to recognize impropriety. The sanction of removal was appropriate notwithstanding that there was no indication of personal gain and the matters represented only a small fraction of the proceedings she handled during the relevant time period. The censure petitioner received less than a year before the events at issue was based on her relationship with one of the same individuals and was a significant aggravating factor. *Matter of Doyle (State Commn. on Jud. Conduct)*, 23 NY3d 656.

SUSPENSION FROM OFFICE.

3. On the Court’s own motion, an Acting Village Court Justice was suspended, with pay, effective immediately, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8). *Matter of Barto*, 23 NY3d 1032.

JUDGMENTS.

See, also, EXECUTION, and other specific titles.

COLLATERAL ESTOPPEL.

1. Res Judicata — Breach of Duty to Negotiate in Good Faith and Breach of Contract.—In an action arising out of continued, unsuccessful attempts by parties to a failed joint venture to negotiate, pursuant to a settlement agreement, additional agreements by which defendants were to provide plaintiffs with an “indefeasible right of use” of certain fiber optic capacity on a planned undersea cable system, a statement by the Court of Appeals in a prior action alleging breach of defendants’ obligation to negotiate in good faith that, after adverse developments in the marketplace, negotiations “flagged” and “finally came to an end” before the commencement of the prior action did not bind plaintiffs as a matter of res judicata or collateral estoppel in the current action alleging defendant’s failure to negotiate in good faith after the earlier decision. Whether the negotiations had “finally” ended before the commencement of the prior action—such that defendants’ obligation under the settlement agreement to negotiate additional agreements in good faith no longer existed—was not directly in issue in the earlier case. *IDT Corp. v Tyco Group, S.A.R.L.*, 23 NY3d 497.

JUDICIAL NOTICE.

See EVIDENCE.

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS’ COMPENSATION, and other specific titles.

WHISTLEBLOWER LAW.

1. Claim for Violation of Labor Law § 740 (2) — Pleading Requirements.—There is no requirement that a complaint asserting a claim for a violation of Labor Law § 740 (2) identify the specific “law, rule or regulation” allegedly violated by the employer. Section 740 (2) (a) provides that “[a]n employer shall not take any retaliatory personnel action against an employee because such employee . . . discloses, or threatens to disclose to a supervisor or to a public body an activity, policy or practice of the employer that is in violation of law, rule or regulation” that either “creates and presents a substantial and specific danger to the public health or safety, or . . . constitutes health care fraud.” Nothing in the plain language of the statute imposes any requirement that a plaintiff identify the specific “law, rule or regulation” violated as part of a section 740 claim. In order to recover under a section 740 claim, plaintiff must show that he or she reported or threatened to report

LABOR—Cont'd

the employer's "activity, policy or practice," but need not claim that he or she cited any particular "law, rule or regulation" at that time. Just as an employee need not cite the actual law, rule or regulation violated when the complaint is made, the pleading is, correspondingly, not required to identify the law, rule or regulation violated. The pleading, however, must identify the particular activities, policies or practices in which the employer allegedly engaged, so that the complaint provides the employer with notice of the alleged complained-of conduct. *Webb-Weber v Community Action for Human Servs., Inc.*, 23 NY3d 448.

2. Claim for Violation of Labor Law § 740 (2) — Pleading Requirements.—To the extent that Appellate Division authority, such as *Deshpande v TJH Med. Servs., PC.* (52 AD3d 648, 650 [2d Dept 2008]), *Blumenrich v North Shore Health Sys.* (287 AD2d 529, 530 [2d Dept 2001]) and *Connolly v Macklowe Real Estate Co.* (161 AD2d 520, 522-523 [1st Dept 1990]), can be read as requiring a plaintiff, in a complaint asserting a claim for a violation of Labor Law § 740 (2), to plead the actual law, rule or regulation the employer violated, it should no longer be followed for that proposition. *Webb-Weber v Community Action for Human Servs., Inc.*, 23 NY3d 448.

3. Claim for Violation of Labor Law § 740 (2) — Sufficiency of Pleading.—A complaint by plaintiff, the former chief operating officer for defendant employer, alleging that she had been terminated for registering complaints with public agencies concerning policies and practices of the employer, was sufficient to state a cause of action under Labor Law § 740, notwithstanding that plaintiff failed to identify the specific "law, rule or regulation" allegedly violated by the employer. Section 740 (2) (a) provides that "[a]n employer shall not take any retaliatory personnel action against an employee because such employee . . . discloses, or threatens to disclose to a supervisor or to a public body an activity, policy or practice of the employer that is in violation of law, rule or regulation" that either "creates and presents a substantial and specific danger to the public health or safety, or . . . constitutes health care fraud." There is no requirement that a complaint asserting a claim for a violation of Labor Law § 740 (2) identify the specific "law, rule or regulation" allegedly violated. According to plaintiff's complaint, she apprised defendant chief executive officer and other employer representatives about issues she claimed endangered the welfare and safety of the patients served by the employer, including falsification of patient medication and treatment records, inadequate fire safety, mistreatment of resident patients, and deficiencies in patient care and in the facility itself. When those conditions continued unabated, plaintiff notified public agencies, which issued sanctions and violations based on surveys of the premises. Thus, the substantive allegations in the complaint, particularly those that asserted that sanctions and violations were issued allegedly as a result of plaintiff's complaints, sufficiently supported plaintiff's allegation that defendants violated various laws. *Webb-Weber v Community Action for Human Servs., Inc.*, 23 NY3d 448.

4. Claim for Violation of Labor Law § 740 (2) — Sufficiency of Pleading.—A complaint by plaintiff, the former chief operating officer for defendant employer, alleging that she had been terminated for registering complaints with public agencies concerning policies and practices of the employer, was sufficient to state a cause of action under Labor Law § 740, notwithstanding that plaintiff failed to plead that the alleged violations created and presented "a substantial and specific danger to the public health or safety" or constituted health care fraud. Section 740 (2) (a) provides that "[a]n employer shall not take any retaliatory personnel action against an employee because such employee . . . discloses, or threatens to disclose to a supervisor or to a public body an activity, policy or practice of the employer that is in violation of law, rule or regulation" that either "creates and presents a substantial and specific danger to the public health or safety, or . . . constitutes health care fraud." According to plaintiff's complaint, she apprised defendant chief executive officer and other employer representatives about issues she claimed endangered the welfare and safety of the patients served by the employer, including falsification of patient medication and treatment records, inadequate fire safety, mistreatment of resident patients, and deficiencies in patient care and in the facility itself. When those conditions continued unabated, plaintiff notified public agencies, which issued sanctions and violations based on surveys of the premises. Under the circumstances

LABOR—Cont'd

of this case, the complaint adequately met the pleading requirements. *Webb-Weber v Community Action for Human Servs., Inc.*, 23 NY3d 448.

LABOR UNIONS.**ACTION AGAINST UNION.**

1. Failure to Plead Authorization or Ratification by Union Membership.—In a consolidated action by plaintiff union member seeking damages from defendant union for breach of the duty of fair representation after the union's executive board twice voted unanimously against submitting to arbitration plaintiff's grievances relating to the imposition of discipline on him and eventual termination of his employment, the rule governing lawsuits against voluntary unincorporated associations such as labor unions—requiring the plaintiff to plead and prove that each member of the union authorized or ratified the alleged wrongful conduct in order to maintain the action—applied. Thus, as plaintiff failed to allege that the union's conduct was ratified by "every single member" of the association, the action was properly dismissed. The narrow exception to the rule applicable to a suit by a union member against a union arising from wrongful expulsion that was effected through a vote by the membership did not apply here as there was no evidence that the union membership voted on whether to submit plaintiff's grievances to arbitration or took any similar action. *Palladino v CNY Centro, Inc.*, 23 NY3d 140.

2. Failure to Plead Authorization or Ratification by Union Membership.—*Martin v Curran* (303 NY 276 [1951]), which held that, in order to maintain an action against a voluntary unincorporated association, such as a labor union, the plaintiff must plead and prove that each member of the union authorized or ratified the alleged wrongful conduct, was not overruled, pursuant to the doctrine of stare decisis, despite questions regarding the continued utility or wisdom of its holding. Precedents involving statutory interpretation are entitled to great stability, and, if they have misinterpreted the legislative intention, the legislature's competency to correct the misinterpretation is readily at hand. Overruling *Martin* would require the Court to abandon its prior interpretation of General Associations Law § 13, which governs actions or proceedings against unincorporated associations. Moreover, although the *Martin* rule has been criticized as essentially granting unions complete immunity from suit in state court and has been abandoned by the federal courts and the majority of states by statute or decisional law, the legislature amended General Associations Law § 13 since *Martin* but did not take that opportunity to clarify or correct the Court's interpretation of the statute. *Palladino v CNY Centro, Inc.*, 23 NY3d 140.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES).

RENT REGULATION.

1. Denial of Petition for Administrative Review — Failure to Set Forth Sufficient Indicia of Fraud.—New York State Division of Housing and Community Renewal's determination denying tenant's petition for administrative review was not arbitrary or capricious, as tenant failed to set forth sufficient indicia of fraud to warrant consideration of the rental history beyond the four-year statutory period. *Matter of Boyd v New York State Div. of Hous. & Community Renewal*, 23 NY3d 999.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles.

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

PLUMBERS.

1. Revocation of Master Plumber License.—In a proceeding to review a determination revoking petitioner's master plumber's license, an order of the Appellate

LICENSES—Cont'd

Division, which confirmed the determination to the extent that it found that petitioner had violated a local law concerning plumbing permits but annulled the penalty of revocation, was reversed and the petition dismissed in its entirety, since it could not be said that the penalty of revocation shocked the judicial conscience. *Matter of Ward v City of New York*, 23 NY3d 1046.

LIMITATION OF ACTIONS.**FOUR-MONTH STATUTE OF LIMITATIONS.**

1. Challenge to Administrative Order Reclassifying Civil Service Positions.—A proceeding challenging an administrative order abolishing a Court Officer civil service position, replacing it with a new Court Officer title and treating the new title as a reclassification rather than a reallocation (*see* Judiciary Law § 37 [3], [5], [11]), thereby denying petitioners continuous service credit towards longevity increments for time worked in their former title, was time-barred where it was commenced more than four months after petitioners received their first paychecks. The order impacted petitioners when they received their first paychecks, without continuous service credit, and thus they were aggrieved on that date. Since petitioners did not commence this proceeding until more than one year after receiving their paychecks, their claim regarding the administrative order was untimely. Moreover, a subsequent administrative order increasing the salary grade of Court Officers retroactive to the date of the earlier order did not extend the four-month limitations period in which petitioners were required to challenge the earlier order. The earlier order involved respondent administrator's decision to eliminate the distinctions between certain positions, merge certain civil service titles and create a new entry-level position. The subsequent order simply assigned a higher salary for the new title and thus did not involve the sort of fresh, complete and unlimited examination into the merits as would be necessary to extend the four-month limitations period. *Matter of O'Neill v Pfau*, 23 NY3d 993.

WHAT STATUTE GOVERNS.

2. Attorney Deceit.—Claims for attorney deceit under Judiciary Law § 487 are subject to the six-year statute of limitations in CPLR 213 (1), which governs actions for which no limitation is specifically prescribed by law. While section 487 does not derive from common-law fraud, but instead descended from the first Statute of Westminster adopted in England in 1275, an action for attorney deceit is not necessarily an action to recover under a statute and subject to a three-year statute of limitations (CPLR 214 [2]). English statutory and common law became New York common law as part of the Colonial-era incorporation or reception of English law into New York law. A cause of action for attorney deceit therefore existed as part of New York's common law before the first New York statute governing attorney deceit was enacted in 1787. The 1787 statute enhanced the penalties for attorney deceit by adding an award for treble damages, but did not create the cause of action. *Melcher v Greenberg Traurig, LLP*, 23 NY3d 10.

3. Attorney Deceit.—The holdings in *Guardian Life Ins. Co. of Am. v Handel* (190 AD2d 57 [1st Dept 1993]) and *New York City Tr. Auth. v Morris J. Eisen, P.C.* (276 AD2d 78 [1st Dept 2000]) that a claim for attorney deceit was governed by the six-year statute of limitations applicable to common-law fraud (CPLR 213 [8]) were rendered invalid by *Amalfitano v Rosenberg* (12 NY3d 8 [2009]), which observed that Judiciary Law § 487 was not a codification of and did not derive from common-law fraud. *Melcher v Greenberg Traurig, LLP*, 23 NY3d 10.

WHEN CAUSE OF ACTION ACCRUES.

4. Continuing Wrong Doctrine — Use of Parkland in Violation of Public Trust Doctrine.—A cause of action to enjoin defendants' use of a portion of a village park for the storage of highway materials and supplies as an unlawful use of parkland in violation of the public trust doctrine was not time-barred, as the continuing wrong doctrine applied to toll the running of the applicable six-year statute of limitations (CPLR 213 [1]). The continuing wrong doctrine, which has been applied in certain cases such as nuisance or continuing trespass where the harm sustained by the

LIMITATION OF ACTIONS—Cont’d

complaining party is not exclusively traced to the day when the original objectionable act was committed, applied here to ongoing use of parkland alleged to violate the public trust doctrine. The harm sustained by the public when structures having no connection with park purposes encroach upon parkland without legislative authority plainly conferred cannot be traced exclusively to the day when the illegal encroachment began. A municipality’s ongoing failure to comply with the law and seek legislative authorization for nonpark use of parkland amounts to a continuous or recurring wrong. *Capruso v Village of Kings Point*, 23 NY3d 631.

5. Use of Parkland in Violation of Public Trust Doctrine.—The causes of action in related actions challenging, as an unlawful use of parkland in violation of the public trust doctrine, defendant Village’s proposed construction of a 12,000-square-foot Department of Public Works (DPW) facility within an area of a village park that had been used for more than six years to store highway materials and supplies but consisted mostly of undisturbed mature woodland were not barred by the applicable six-year statute of limitations (CPLR 213 [1]). Plaintiffs were not required to challenge nonpark use within six years of the 1946 addendum to defendant’s lease with the park district, in which defendant excluded a certain area of the park for its own use, or, at the latest, within six years of the date when defendant began to store highway materials and supplies in that area of the park. The proposed facility included a diesel-truck garage, a road-sign shop, administrative offices, and crew quarters, and would be enclosed by a chain-link fence. The difference in scale between the current use of the property—which included a garage and a 1,700-square-foot Quonset hut for the storage of road salt—and the proposed facility was substantial. A project involving the construction of a 12,000-square-foot DPW facility, regrading, paving of access roads, destruction of numerous mature trees, and removal of hiking trails was not merely a change in the nature and scope of a road salt storage facility. *Capruso v Village of Kings Point*, 23 NY3d 631.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER.

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS.

MEDICAL REPORTS.

See DISCLOSURE.

MENTAL HEALTH.

PERSON ACQUITTED OF CRIME BY REASON OF INSANITY.

1. Procedure Following Verdict or Plea — Order of Conditions — Effective-Evaluation Provision.—CPL 330.20 does not prohibit a supervising court from including in an order of conditions a provision allowing the New York State Office of Mental Health (OMH) to seek judicial approval of a mandatory psychiatric evaluation in a secure facility when a defendant found not responsible by reason of mental disease or defect fails to comply with the conditions of his or her release and refuses to undergo voluntary examination. When a judge finds that an individual found not responsible for criminal acts by reason of mental disease or defect, who was initially committed as a track-one defendant suffering from a dangerous mental disorder, no longer suffers from a dangerous mental disorder and is not mentally ill, the judge must issue a release order, along with an order of conditions that incorporates a written service plan and contains any conditions that “the court determines to be reasonably necessary or appropriate” (CPL 330.20 [1] [o]; [12]). The orders may be extended for good cause. Section 330.20 allows the court to

MENTAL HEALTH—Cont'd

fashion orders of conditions in whatever way most effectively protects the public while serving the defendant's interest in remaining in the least restrictive environment possible. OMH has the responsibility to determine that defendant receives the specified services and complies with the conditions. While CPL 330.20 (14) provides a procedure for recommitment that includes notice and a hearing when the defendant again exhibits a dangerous mental disorder, nothing suggests that the legislature intended that procedure to displace a court's ability to fashion more limited remedies to detect or redress the deterioration of a track-one defendant's mental health. *Matter of Allen B. v Sproat*, 23 NY3d 364.

2. Procedure Following Verdict or Plea — Order of Conditions — Effective-Evaluation Provision — Due Process.—The due process rights of petitioners, individuals found not responsible for criminal acts by reason of mental disease or defect, who were initially committed as track-one defendants suffering from dangerous mental disorders, then released from confinement after a finding that they no longer suffered from dangerous mental disorders and were not mentally ill, were not violated by the inclusion of a provision, in a supervising court's order of conditions, allowing the New York State Office of Mental Health (OMH) to seek judicial approval of a mandatory psychiatric evaluation in a secure facility when petitioners fail to comply with the release conditions and refuse to undergo voluntary examination. The language of the "effective-evaluation provision" did not suggest that the court would issue an examination order *ex parte* or without notice or a hearing. Rather, the provision allows OMH to make an application to the supervising judge, who retains discretion to require whatever procedures he or she deems necessary to protect a track-one defendant's rights and properly decide the application. Moreover, the provision was limited and targeted; it contemplated temporary removal to an OMH facility, and only after the court found that the defendant both neglected to comply with court-ordered conditions and refused to be evaluated. The State has a strong interest in immediately removing from the streets noncompliant patients who have previously committed violent crimes and remain at risk of doing so again if their mental health worsens. *Matter of Allen B. v Sproat*, 23 NY3d 364.

MOTELS.

See INNKEEPERS.

MOTOR VEHICLES.**CHEMICAL TESTS.**

1. Limited Statutory Right to Legal Consultation.—The limited, statutory right to request legal consultation, which arises based on the procedure set forth in Vehicle and Traffic Law § 1194 (2) (b) to warn a person suspected of alcohol-related driving offenses that refusal to submit to a chemical test to determine his or her blood alcohol content will result in revocation of his or her driver's license, applies when an attorney contacts the police on the suspect's behalf before the chemical test is performed and the police must alert the suspect to the presence of counsel, whether the contact is made by the attorney in person or telephonically. Thus, a breathalyzer test performed on defendant following her arrest for driving while intoxicated was administered in violation of that statutorily-based right. An attorney contacted the police at defendant's family's behest at the same time that defendant agreed to undergo chemical testing, yet the police made no effort to advise defendant about the lawyer's communication prior to administration of the test, and the People did not demonstrate that a notification of that nature would have been unreasonable under the circumstances. Law enforcement officials may not, without justification, prevent access between the criminal accused and the lawyer, available in person or by immediate telephone communication, if such access does not interfere unduly with the timely administration of the chemical test. Here, the police should have informed defendant of the attorney's telephone call on her behalf since the testing had not yet begun. Defendant could then have decided if she wished to discuss her situation with counsel. That defendant consented to the test about the same time that the attorney was communicating with the police was not dispositive since de-

MOTOR VEHICLES—Cont'd

defendant, after conferring with counsel, could have revoked her consent prior to administration of the test. *People v Washington*, 23 NY3d 228.

OPERATING VEHICLE WHILE UNDER INFLUENCE OF ALCOHOL OR DRUGS.

2. Blood Alcohol Content Evidence — Jury Instructions.—In a prosecution involving either common law driving while intoxicated or driving while ability impaired, wherein a defendant presents expert testimony that his or her blood alcohol content (BAC) was below statutory thresholds at the time of the stop, the defendant is entitled, upon request, to an instruction that if the jury finds that the BAC was as the expert testified, it may find that the defendant was not intoxicated or impaired. In Vehicle and Traffic Law §§ 1192 (2) and 1195 (2), the legislature made judgments about the significance of certain statistical thresholds—i.e., that a BAC of .08% or more justifies an inference of intoxication; that a BAC below .08% justifies an inference of non-intoxication; that a BAC of .07% or more justifies an inference of impairment; and that a BAC equal to or less than .05% justifies an inference that the driver was neither intoxicated nor impaired. There is no reason why juries should remain unaware of the legislative judgments, and the charge allows the jury to evaluate the evidence for itself, but instructs it as to the inferences it may draw after it has determined whether or not to believe the expert. *People v Fratangelo*, 23 NY3d 506.

3. Blood Alcohol Content Evidence — Prima Facie Evidence Instruction.—In the prosecution of defendant for driving while intoxicated under both the per se and common law theories (Vehicle and Traffic Law § 1192 [2], [3]) in which a breath test administered to defendant an hour and 20 minutes after she was stopped revealed that she had a blood alcohol content (BAC) of .09%, the testimony of an expert witness, who opined that defendant's BAC at the time she was stopped was between .03% and .04%, did not constitute prima facie evidence that defendant was not intoxicated, and thus, defendant was not entitled to the "prima facie evidence" jury instruction she sought. As indicated by Vehicle and Traffic Law § 1195 (2), evidence that a defendant's BAC was less than .08% constitutes prima facie evidence that defendant was not in an intoxicated condition. Section 1195 (2) is expressly limited to evidence of BAC "as determined by" tests administered pursuant to section 1194, which are chemical tests of "breath, blood, urine, or saliva" (§ 1194 [2] [a]). Since the evidence of defendant's BAC was not determined by a chemical test, but was contained in the opinion of a defense expert, that evidence did not have the prima facie effect specified by the statute. *People v Fratangelo*, 23 NY3d 506.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles.

NOTICE OF CLAIM.

1. Sufficiency.—In a personal injury action against defendant municipal corporation, the defendant's motion for summary judgment dismissing the complaint was denied as defendant failed to show that it was prejudiced by any defect in plaintiff's notice of claim (*see generally* General Municipal Law § 50-e [6]), and triable issues of fact remained. *Robles v New York City Hous. Auth.*, 23 NY3d 982.

NOTICE OF STREET DEFECT.

2. Markings on Map.—In a personal injury action, defendant municipality was entitled to judgment as a matter of law, as the markings on a map of defects failed to raise an issue of fact as to whether the municipality had prior written notice of the alleged defect. *Vega v 103 Thayer St., LLC*, 23 NY3d 1027.

TORT LIABILITY.

3. Governmental or Proprietary Function — Closing Transverse to Vehicular Traffic in Preparation for Road Repair.—In an action to recover for injuries that plaintiff sustained when she fell from her bicycle after hitting one of a series of deep

MUNICIPAL CORPORATIONS—Cont'd

roadway depressions in a dark underpass tunnel on a park transverse, a supervisor with defendant City's Department of Transportation, who had arrived at the transverse with a crew to repair the road defect and was in the process of closing the transverse to vehicular traffic, was engaged in a proprietary function when he allowed plaintiff to proceed onto the transverse without warning her of the conditions. Thus, the jury properly evaluated the City's actions under ordinary negligence principles. A governmental entity undertakes a proprietary role when its activities essentially substitute for or supplement traditionally private enterprises. A municipality engaged in a proprietary function is subject to suit under the ordinary rules of negligence applicable to nongovernmental parties. Historically, the maintenance of roads was performed by both private entities and local governments, with each subject to the ordinary rules of negligence. Although liability can and has been limited by prior written notice laws, the nature of the road maintenance function remains proprietary when performed by highway maintenance personnel. Here, the supervisor was in the park specifically to oversee the road maintenance project. Although the maintenance work had not yet begun at the time he failed to warn plaintiff, the supervisor and his crew could not have repaired the roadway without having closed the road to traffic. The act of closing the roadway was integral to the repair job—a proprietary function. *Wittorf v City of New York*, 23 NY3d 473.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

MAINTENANCE OF PREMISES.

1. Collapse of Restaurant Chair.—Defendant's motion for summary judgment was denied since she failed to establish prima facie entitlement to judgment as a matter of law concerning the reasonableness of her inspection practices. *Catalano v Tanner*, 23 NY3d 976.

NEGOTIABLE INSTRUMENTS.

See BILLS, NOTES AND CHECKS.

NEWSPAPERS.

See, also, LIBEL AND SLANDER, and other specific titles.

OPTICIANS.

See LICENSES; PHYSICIANS AND SURGEONS.

OPTOMETRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PARENT, CHILD AND FAMILY.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES, and other specific titles.

PAROLE.**REVOCATION.**

1. Victim Impact Statement.—Petitioner's parole was reinstated and the Board of Parole's determination was annulled, notwithstanding that the Executive Law requires the Board of Parole to consider any victim impact statement in the decision to grant or deny parole release to an inmate (*see* Executive Law § 259-i [2] [c] [A]), since, under the particular circumstances, the Board improperly rescinded petitioner's parole release. *Matter of Costello v New York State Bd. of Parole*, 23 NY3d 1002.

PARTIES.**STANDING.**

1. Owners of Property Where Possible Endangered or Threatened Species Located — Challenge to Incidental Take Permit Regulations.—Petitioners, governmental entities titled to land for the purpose of redevelopment, whose property was subject to the 2010 amendments to 6 NYCRR part 182 pertaining to the protection of endangered and threatened species, had standing to maintain three causes of action alleging procedural violations concerning the failure of respondent Department of Environmental Conservation to comply with certain provisions of the Environmental Conservation Law and State Administrative Procedure Act. The amendments established a formal process through which individuals could obtain a permit to allow for the incidental taking of endangered or threatened species. The allegations made by petitioners, whose property was the habitat of at least two endangered or threatened species, included failure to refer the proposed amendments to the State Environmental Board, failure to hold public hearings and failure to properly evaluate and analyze the potential regulatory impacts. Petitioners asserted a concrete interest in the matter respondent was regulating, and a concrete injury from respondent's failure to follow procedure. Moreover, in connection with petitioners' prior proposal to subdivide the land, respondent provided them with an outline for a comprehensive habitat protection plan and indicated its intention to serve as lead agency for the purposes of State Environmental Quality Review Act review. Petitioners' allegations were sufficient to satisfy the requirements that they have an actual stake in the litigation and suffer a harm that is different from that of the public at large. *Matter of Association for a Better Long Is., Inc. v New York State Dept. of Envtl. Conservation*, 23 NY3d 1.

2. Owners of Property Where Possible Endangered or Threatened Species Located — Challenge to Incidental Take Permit Regulations.—Petitioners, governmental entities titled to land for the purpose of redevelopment, whose property was subject to the 2010 amendments to 6 NYCRR part 182 pertaining to the protection of endangered and threatened species, did not have standing to maintain a cause of action alleging that respondent Department of Environmental Conservation issued a negative declaration without taking the necessary hard look under the State Environmental Quality Review Act (SEQRA), as petitioners failed to allege any environmental harm. The amendments established a formal process through which individuals could obtain a permit to allow for the incidental taking of endangered or threatened species. As amended, the regulations provided that individuals seeking an incidental take permit must submit a mitigation plan for minimizing the impact to endangered or threatened species, which must result in a net conservation benefit to the subject species (*see* 6 NYCRR 182.11 [a]). Petitioners asserted that the regulations would impede their ability to develop the property and cause them to incur substantial costs, but economic injury alone does not confer standing to sue under SEQRA since it is not within the zone of interests sought to be protected by the statute. *Matter of Association for a Better Long Is., Inc. v New York State Dept. of Envtl. Conservation*, 23 NY3d 1.

3. Owners of Property Where Possible Endangered or Threatened Species Located — Challenge to Incidental Take Permit Regulations.—Petitioners, governmental entities titled to land for the purpose of redevelopment, whose property was subject to the 2010 amendments to 6 NYCRR part 182 pertaining to the protection of endangered and threatened species, did not have standing to maintain substantive causes of action alleging that the amendments were ultra vires, constituted an impermissible regulatory taking and were irrational, arbitrary and capricious. The amendments established a formal process through which individuals could obtain a permit to allow for the incidental taking of endangered or threatened species. As amended, the regulations provided that individuals seeking an incidental take permit must submit a mitigation plan for minimizing the impact to endangered or threatened species, which must result in a net conservation benefit to the subject species (*see* 6 NYCRR 182.11 [a]). Petitioners' substantive claims were not ripe for judicial review as there had been no final agency action inflicting concrete harm. Until petitioners submitted a permit application and respondent Department of

PARTIES—Cont'd

Environmental Conservation imposed the requirements of the amended regulations to their detriment, allegations that they were affected by those requirements through an encumbrance on their property or the imposition of costs were too speculative. Relatedly, the lack of standing finding as to the substantive claims did not create an “impenetrable barrier” to review, since the statute of limitations does not start to run until the agency issues a determination of a permit application. *Matter of Association for a Better Long Is., Inc. v New York State Dept. of Envtl. Conservation*, 23 NY3d 1.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

PHYSICAL EXAMINATIONS.

See DISCLOSURE.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

POLITICAL PARTIES.

See ELECTIONS.

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles.

PROCEEDING AGAINST BODY OR OFFICER.**PROHIBITION.**

1. When Remedy Appropriate — Appointment of Special District Attorney.—A CPLR article 78 proceeding in the nature of prohibition was an appropriate remedy in a case in which petitioner political party challenged an order issued by respondent Deputy Chief Administrative Judge for the New York City Courts relieving a district attorney at his own request and appointing a special district attorney to conduct an investigation into possible violations in connection with a 2009 City Council election. Prohibition is an appropriate remedy to void the improper appointment of a special prosecutor when made by a court. When the validity of the appointment of a prosecutor is in question, the question should, where possible, be given a prompt and definitive answer. It is not in the public interest to allow a prosecutor to carry out a lengthy investigation when there is doubt that his or her appointment is valid. Here, the special district attorney was appointed in 2012 to investigate events occurring in 2009. If the validity of his appointment was not decided in this proceeding, the investigation could continue for years under a cloud that would not be removed until or unless the special district attorney obtained an indictment and the person indicted moved to dismiss it on the ground that the prosecutor was never validly appointed. *Matter of Working Families Party v Fisher*, 23 NY3d 539.

PRODUCTS LIABILITY.**DEFECTIVELY DESIGNED PRODUCT.**

1. Tractor-Driven Post Hole Digger.—In a products liability action to recover damages for injuries plaintiff sustained when she was caught and dragged into the rotating driveline of a tractor-driven post hole digger distributed and sold by defendants, the evidence, considered as a whole, supported the jury’s determinations that the digger was defectively designed because it incorporated a protruding nut and bolt and/or a plastic shield, and that either or both of these design defects were a substantial factor in causing plaintiff’s injuries. There was also a valid line of reasoning to support the jury’s finding that, although the owner of the post hole digger, who had removed a plastic safety shield from the machine after years of use had left the shield damaged beyond repair, was negligent, his removal and failure to replace

PRODUCTS LIABILITY—Cont'd

the shield did not absolve defendants of liability based on substantial modification. *Hoover v New Holland N. Am., Inc.*, 23 NY3d 41.

SUBSTANTIAL ALTERATION OF PRODUCT.

2. Jury Instruction.—In a products liability action to recover damages for injuries plaintiff sustained when she was caught and dragged into the rotating driveline of a tractor-driven post hole digger distributed and sold by defendants, the trial court's jury instruction on substantial modification was appropriate, particularly when considered in the context of the charge as a whole. Defendants had asserted a substantial modification defense predicated on the owner's post-sale removal of a plastic safety shield from the post hole digger after years of use had left the shield damaged beyond repair. The trial court charged the jury on substantial modification, stating that if they found that the owner's removal of the shield and failure to replace it resulted in a substantial modification of the digger that was a substantial factor in causing plaintiff's injuries, then they must "consider that in determining whether [defendants] are liable." *Hoover v New Holland N. Am., Inc.*, 23 NY3d 41.

3. Removal of Safety Shield.—In a products liability action to recover damages for injuries plaintiff sustained when she was caught and dragged into the rotating driveline of a tractor-driven post hole digger distributed and sold by defendants, plaintiff established the existence of material issues of fact sufficient to overcome defendants' substantial modification defense predicated on the owner's post-sale removal of a plastic safety shield from the machine after years of use had left the shield damaged beyond repair. The owner testified that the shield he removed had been destroyed by years of "wear and tear," would no longer stay attached to the digger, and, essentially, had ceased to provide protection from the rotating components near the gearbox. The owner did not modify the digger in order to circumvent the utility of the shield or to adapt the digger to suit his own needs. Rather, he removed the shield because its functional utility had already been destroyed, and his testimony raised a question of fact whether removal of the broken shield was to blame for plaintiff's injuries. Plaintiff also proffered an affidavit in which an engineer averred that the shield was "not reasonably safe" because it was not "designed to last the life" of the digger, and that defendants' failure to incorporate a safer yet feasible alternative design, such as an integral guard or metal shield, was "a substantial factor" in causing plaintiff's injuries. Although it is not necessarily true that no safety device is reasonably safe unless it is designed to last the lifetime of the product on which it is installed, defendants did not adequately refute plaintiff's assertions that the plastic shield failed prematurely under the circumstances presented here. *Hoover v New Holland N. Am., Inc.*, 23 NY3d 41.

4. Removal of Safety Shield.—In a products liability action to recover damages for injuries plaintiff sustained when she was caught and dragged into the rotating driveline of a tractor-driven post hole digger distributed and sold by defendants, plaintiff established the existence of material issues of fact sufficient to overcome defendants' substantial modification defense predicated on the owner's post-sale removal of a plastic safety shield from the machine after years of use had left the shield damaged beyond repair. Although defendants claimed that the shield was not defectively designed but was damaged when the owner misused the digger by allowing it to contact the ground during drilling, they did not demonstrate that the owner's alleged misuse was unforeseeable as a matter of law. Plaintiff presented sufficient evidence to rebut that claim and bring it before the jury. Plaintiff's engineering expert stated in his affidavit that contact with the ground was "foreseeable" during "normal use," and that more robust durability testing would have revealed that a plastic shield would not hold up under these circumstances. Moreover, the record indicates that the shield underwent limited durability testing, none of which included contact with the ground. The digger's manufacturer was aware that the shield could hit the ground during drilling and still declined to test the shield for durability under those or any other circumstances. *Hoover v New Holland N. Am., Inc.*, 23 NY3d 41.

5. Removal of Safety Shield.—In a products liability action to recover damages for injuries plaintiff sustained when she was caught and dragged into the rotating

PRODUCTS LIABILITY—Cont'd

driveline of a tractor-driven post hole digger distributed and sold by defendants, plaintiff established the existence of material issues of fact sufficient to overcome defendants' substantial modification defense predicated on the owner's post-sale removal of a plastic safety shield from the machine after years of use had left the shield damaged beyond repair. Although plaintiff would not have been injured if an intact shield had been in place on the date of the accident, defendants did not demonstrate their entitlement to summary judgment based on the owner's failure to replace the broken safety shield. Where, as here, the plaintiff raises questions of fact whether the machine incorporated a defective safety device, the manufacturer or others in the distribution chain cannot automatically avoid liability on the basis that the safety device was removed post sale and not replaced. The expert evidence raised a question whether the owner's failure to replace the shield alone caused plaintiff's injuries, or whether his failure pointed to a failure on defendants' part in selling and distributing the digger with a defectively designed shield. Moreover, the owner testified that he did not replace the shield before the accident because it was "only going to get bent up, broke up, and tore off again." That testimony was sufficient to raise a question whether, because of its allegedly defective design, the shield would have repeatedly broken and required replacement by the owner, and defendants failed to adequately refute that material issue. *Hoover v New Holland N. Am., Inc.*, 23 NY3d 41.

6. Summary Judgment.—A defendant in a products liability action moving for summary judgment based on the substantial modification defense must show that the product was not defective at the time it was manufactured and sold, and demonstrate that a post-sale modification rendered the otherwise safe product defective and that the modification was the proximate cause of the plaintiff's injuries. If the defendant establishes prima facie entitlement to summary judgment based on substantial modification, the burden shifts to the plaintiff to come forward with evidentiary proof in admissible form demonstrating the existence of material issues of fact which require a trial of the action. The plaintiff may overcome a substantial modification defense by demonstrating that the post-sale modification did not render a safe product defective because the product incorporated a defectively designed safety feature at the time of sale. The substantial modification defense is intended to insulate manufacturers and others in the distribution chain from liability for injuries that would never have arisen but for the post-sale modification of a safety feature on an otherwise safe product. Summary disposal of cases is not mandated where the plaintiff raises a colorable claim that the product was dangerous because of a defectively designed safety feature and notwithstanding the modification by the third party. *Hoover v New Holland N. Am., Inc.*, 23 NY3d 41.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER.

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

RAILROADS.

See, also, CARRIERS.

REAL ESTATE BROKERS.

See BROKERS.

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

RECORDS.

FREEDOM OF INFORMATION LAW.

1. Names of Retirees in Public Retirement System — Invasion of Privacy.— Respondents, the New York State Teachers' Retirement System and the Teachers' Retirement System of the City of New York, were not entitled to denial of petitioner's Freedom of Information Law request for disclosure of the names of respondents' retired members as an "unwarranted invasion of personal privacy" (Public Officers Law § 87 [2] [b]). Notwithstanding the possibility that the use of modern technology might allow someone with a list of the names of retirees to find most, if not all, of their home addresses, thus frustrating the purpose of Public Officers Law § 89 (7) and exposing the retirees to intrusive communications, on the record, the idea that anyone's privacy would be invaded is speculative. Petitioner, an entity whose purpose is to inform voters and policymakers about issues including pension reform, was not interested in sending membership solicitations to retirees (see Public Officers Law § 89 [2] [b] [iii]). *Matter of Empire Ctr. for N.Y. State Policy v New York State Teachers' Retirement Sys.*, 22 NY3d 438.

2. Names of Retirees in Public Retirement System.—Public Officers Law § 89 (7) exempts from the Freedom of Information Law only the home addresses, not the names, of retirees who receive benefits from public employees' retirement systems. Under the language of section 89 (7), only "the home address . . . of a retiree" is exempt. By contrast, the statute exempts both the name and home address of "a beneficiary of a public employee's retirement system." Given the more limited exemption for a "retiree," a beneficiary, as used in the statute, is a family member of an employee or retiree who is entitled to benefits after the employee's or retiree's death. Here, the courts below read *Matter of New York Veteran Police Assn. v New York City Police Dept. Art. I Pension Fund* (61 NY2d 659 [1983]), too broadly in determining that it compelled denial of petitioner's request for disclosure of the names of retired members of the New York State Teachers' Retirement System and the Teachers' Retirement System of the City of New York. In *Veteran Police*, an organization's request for access to names and addresses of all retirees of the New York City Police Department receiving pensions for the purpose of soliciting new members was denied in its entirety based on section 89 (7). While the Court stated that the provisions of the statute "foreclose[d] relief to petitioner," partial relief in the form of disclosure of only the names of the retirees was never an issue. That decision should not have been read as deciding a question not considered. *Matter of Empire Ctr. for N.Y. State Policy v New York State Teachers' Retirement Sys.*, 22 NY3d 438.

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

RESIDENCE.

See DOMICILE.

RES JUDICATA.

See JUDGMENTS.

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

TEACHERS.

1. Disciplinary Proceedings — Teachers Engaging in Constitutionally Protected Activity.—In related proceedings to vacate arbitration awards finding petitioner teachers guilty of misconduct related to a teachers' union picketing demonstration that took place on a public street in front of a school, respondent school district satisfied its burden under *Pickering v Board of Ed. of Township High School Dist. 205, Will Cty.* (391 US 563 [1968]) of proving that the discipline imposed on petitioners was justified. Although petitioners' speech as embodied in the parking demonstration, which consisted of petitioners and others displaying picketing signs from their cars parked where parents were dropping their children off at school, was protected by the First Amendment, petitioners' interests in engaging in that constitutionally protected speech in a manner that interfered with the safety of students were outweighed by respondent school district's interests in maintaining an orderly, safe school. Under the two-part *Pickering* test, a court must determine whether the speech which led to an employee's discipline related to a matter of public concern, and whether the public employer met its burden of demonstrating that the discipline arising out of the employee's protected activity was justified. Petitioners' speech was on a matter of public concern, but respondent met its burden of proving that petitioners' speech was disruptive enough to justify the imposition of discipline. Respondent's interests in ensuring the safety of its students and maintaining orderly operations at the school were legitimate, and the evidence adduced at the hearings showed that the parking demonstration created dangerous traffic conditions in front of the school that could have injured a student and that caused actual disruption to the school's operations. The evidence was sufficient to justify respondent's discipline of petitioners, and respondent was not required to prove that a student was actually injured for the *Pickering* balance to tip in respondent's favor. *Matter of Santer v Board of Educ. of E. Meadow Union Free Sch. Dist.*, 23 NY3d 251.

TRANSPORTATION OF PUPILS.

2. Duty to Safely Transport Student to School — Student Struck by Vehicle in Attempt to Catch Bus — Injuries Occurring during "Act of Busing."—In a personal injury action commenced after plaintiff's daughter, a 12-year-old sixth-grade student with mental disabilities, was struck by a car while crossing a busy highway in front of her home to catch a school bus that had passed her bus stop but turned around to pick her up, the existence of a common-law duty of care owed by defendant school district to the child was not supported by the theory that her injury occurred "during the act of busing itself, broadly construed." A school may be held liable when a child is injured, even after having technically been discharged from a bus, because the injury occurred "during the act of busing itself, broadly construed," or from the violation of a specific statutory duty to see the child safely across the street at which the bus is stopped. However, the school's duty is of a limited spatial and temporal nature. Plaintiff's daughter, who walked onto the highway and was injured while the bus was still moving in traffic, was never within defendant's physical custody or any time-and-space-limited area of implied custody and control. Thus, her injuries did not occur during the act of busing itself, broadly construed. *Williams v Weatherstone*, 23 NY3d 384.

3. Duty to Safely Transport Student to School — Student Struck by Vehicle in Attempt to Catch Bus — Creation of Hazardous Setting.—In a personal injury action commenced after plaintiff's daughter, a 12-year-old sixth-grade student with mental disabilities, was struck by a car while crossing a busy highway in front of her home to catch a school bus that had passed her bus stop but turned around to pick her up, defendant school district did not owe a common-law duty of care to the child based on a theory that it "placed" her in a foreseeably hazardous setting of its own making. Even if the bus driver was negligent in missing the child's designated bus stop and then turning around down the road and traveling back toward the stop, thereby "confusing" the child into attempting to cross the highway on her own, negligence does not create duty, and the exception to the general rule that a

SCHOOLS—Cont'd

school's duty of care does not extend beyond school premises is limited to injury that occurs shortly after school hours upon the student's departure from school. Under those circumstances, the school is in a position to determine the timing, place and conditions for sending the child home, and the school is under a duty to release the child from its physical custody in a safe and anticipated manner. Accordingly, a school's duty of care requires continued exercise of control and supervision in the event that release of the child poses a foreseeable risk of harm. Here, plaintiff's daughter was not injured while going home from school and was never in defendant's physical custody, so defendant was never in a position to "place" or release her into a hazardous setting at any time. Instead, the child was in plaintiff's custody while she waited near a dumpster in her front yard for the school bus, and, by setting specific "guidelines," "boundaries" and rules designed to keep the child away from the busy highway when she was outside by herself, plaintiff implicitly acknowledged her responsibility for the child's safety during those times. *Williams v Weatherstone*, 23 NY3d 384.

4. Duty to Safely Transport Student to School — Student Struck by Vehicle in Attempt to Catch Bus — Signaling.—In a personal injury action commenced after plaintiff's daughter, a 12-year-old sixth-grade student with mental disabilities, was struck by a car while crossing a busy highway in front of her home to catch a school bus that had passed her bus stop but turned around to pick her up, defendant school district did not owe a common-law duty of care to the child on the basis that a motorist, having assumed a duty to guide a pedestrian to safety by some intentional hand motion or gesture, must exercise reasonable care in doing so. Here, neither the bus driver nor the bus monitor waved at or signaled the child as the bus missed her designated bus stop, and, after turning around, they did not even see her before the accident. They made no gestures at all, much less any gesture that a jury might conclude intentionally summoned her to cross the highway. Moreover, there was no basis in the case law to support a novel theory that the act of turning the bus around and driving back toward the child was the functional equivalent of a hand signal given the child's age and mental capacity. In any event, whatever the child might have thought when she saw the bus turn around, there was no reason to suppose from the record that the bus driver intended by driving back toward the child to signal her to leave the safety of her designated bus stop and cross the highway. *Williams v Weatherstone*, 23 NY3d 384.

5. Duty to Safely Transport Student to School — Student Struck by Vehicle in Attempt to Catch Bus — Special Duty Created by Individualized Education Plan.—In a personal injury action commenced after the plaintiff's daughter, a 12-year-old sixth-grade student with mental disabilities, was struck by a car while crossing a busy highway in front of her home to catch a school bus that had passed her bus stop but turned around to pick her up, defendant school district did not owe a special duty of care to the child as a result of a special relationship created by her Individualized Education Plan (IEP). An agency of government may be liable for the negligent performance of a governmental function when there exists a special duty to the injured person, in contrast to a general duty owed to the public. Here, however, the child's IEP only directed defendant to transport her to and from school even though she lived within walking distance, and the IEP did not call for an aide or escort to wait with her at her designated bus stop. Thus, defendant undertook in the IEP to provide the same busing for the child required of it for all children in grades kindergarten through eight who live more than two miles from the school (*see* Education Law § 3635 [1] [a]), although the child was furnished portal-to-portal busing (*see* Education Law § 3635 [1] [a], [d]). The child's IEP, which did not specify any "special busing services" and required only regular bus transportation, belied the argument that busing a special needs child requires extra care and therefore imposed additional transportation-related obligations on defendant. *Williams v Weatherstone*, 23 NY3d 384.

6. Duty to Safely Transport Student to School — Student Struck by Vehicle in Attempt to Catch Bus.—*Pratt v Robinson* (39 NY2d 554 [1976]) and *Ernest v Red Cr. Cent. School Dist.* (93 NY2d 664 [1999]), to the extent those cases identified limited situations where a school might be liable for injuries to a child in the

SCHOOLS—Cont'd

absence of physical custody of the child, were not limited or modified for the purpose of imposing liability on defendant school district in a personal injury action commenced after plaintiff's daughter, a 12-year-old sixth-grade student with mental disabilities, was struck by a car while crossing a busy highway in front of her home to catch a school bus that had passed her bus stop but turned around to pick her up. The concept of in loco parentis is the fountainhead of the duty of care owed by a school to its students, and that duty derives from the simple fact that a school, in assuming physical custody and control over its students, effectively takes the place of parents and guardians. The efficacy and fairness of defining a school's common-law duty to supervise or transport students in terms of physical custody has been repeatedly endorsed, and, in the circumstances described in *Pratt* and *Ernest*, the school still exercised control over the time, place and conditions of a child's release from its physical custody to the protection of a parent or guardian. Here, the child never left plaintiff's custody and control on the morning of the accident, and plaintiff trusted the child to wait at her designated bus stop independently. Because the accident did not happen while the child was within defendant's custody and control, defendant was not liable for the child's injuries. *Williams v Weatherstone*, 23 NY3d 384.

SECURED TRANSACTIONS.**SECURITY AGREEMENTS.**

1. Trust Indenture — Claims Arising Outside Scope of Indenture Not Barred by "No-Action" Clause.—A "no-action" clause in a trust indenture agreement governing a securities issuance that by its language applies to rights and remedies under the provisions of the indenture, but makes no mention of individual suits on the securities, does not preclude enforcement of a securityholder's independent common-law or statutory rights. Accordingly, in an action for alleged wrongdoing related to notes purchased by plaintiff from defendant issuer, the "no-action" clause contained in the governing trust indenture providing that no securityholder "shall have any right by virtue or by availing of any provision of this Indenture" to institute any action or proceeding "upon or under or with respect to this Indenture"—in contrast to a no-action provision referring specifically to claims arising under the indenture and the securities—on its face was limited to the contract rights recognized by the indenture itself and thus, when strictly construed and afforded its plain meaning, did not apply to claims arising outside the indenture's scope. Such interpretation did not frustrate the clause's purpose of preventing minority securityholders from pursuing litigation against the issuer, in favor of a single action initiated by a Trustee appointed to administer the issuance upon request of a majority of the securityholders. The clause's sole textual reference to "securities" appeared in the provision permitting a Trustee-initiated suit after notice of a continuing "default in respect of the series of Securities" and upon approval by a majority of securityholders. The clause thus applied when the Trustee was authorized to decide whether to act but did not serve as an outright prohibition on a securityholder-filed suit where the Trustee was without authorization to act. Such interpretation also did not upset the parties' expectations. The indenture defined "indenture" and "securities" separately, recognizing them as distinct, and the parties could not have expected a different interpretation, given the clause's plain language. *Quadrant Structured Prods. Co., Ltd. v Vertin*, 23 NY3d 549.

2. Trust Indenture — Claims Arising Outside Scope of Indenture Not Barred by "No-Action" Clause.—In an action alleging wrongdoing related to senior subordinated notes purchased by plaintiff from defendant issuer as part of a securities issuance, the Delaware Chancery Court correctly concluded that the governing trust indenture's "no-action" clause, which referred only to claims "upon or under or with respect to this Indenture," applied to the contractual claims arising under the indenture but did not bar its remaining individual and derivative claims seeking damages and injunctive relief for breaches of fiduciary duty, fraudulent transfer and conspiracy. The "no-action" clause made no reference to claims arising under the securities and did not apply to plaintiff's common-law and statutory claims. In addi-

SECURED TRANSACTIONS—Cont'd

tion, the “no-action” clause permitted a Trustee-initiated suit only after notice of a continuing “default in respect of the series of Securities” and upon approval by a majority of securityholders. In its complaint, plaintiff claimed that defendant issuer’s board, installed and controlled by defendant holder of junior notes acquired as part of the issuance, acted pursuant to a scheme that ensured that junior securityholders were paid, despite their inferior status vis-à-vis plaintiff’s senior notes, and, as a consequence, payment of the senior securities was imperiled. Plaintiff described defendant issuer’s actions as an effort to siphon off capital for the benefit of defendant junior securityholders. Thus understood, the Trustee could not address plaintiff’s claims as they were not based on any default on the securities. *Quadrant Structured Prods. Co., Ltd. v Vertin*, 23 NY3d 549.

SEPARATION.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

SLANDER.

See LIBEL AND SLANDER.

SPORTING EVENTS.

See THEATRES AND SHOWS.

STATE.**COMPTROLLER.**

1. Authority to Conduct Audits of Medical Services Providers’ Billing Records.—The New York Constitution does not limit the State Comptroller’s authority to review the billing records of private companies that provide health care to beneficiaries of a state insurance program. Article V, § 1 of the Constitution requires the Comptroller to audit state payments and receipts and protects the independent character of the Comptroller’s audit function. The Comptroller must also ensure proper billing and payment for the Empire Plan, New York’s primary health benefit plan (*see* Civil Service Law § 167 [7]; State Finance Law § 9). To accomplish its legally mandated duties, the Comptroller must perform both pre- and post-audit review of Empire Plan payments. While New York pays Empire Plan claims through a third party, the connection between the state funds and the billing practices of health care providers is not severed. Providers receive state insurance funds in exchange for services rendered to state insurance beneficiaries. Reviewing a provider’s billing records is the only way to ensure that the provider has been collecting the required co-payment. The Comptroller cannot, however, conduct performance audits of an entity that is not a political subdivision of the State, perform administrative duties of another state agency, or oversee activities that have no impact on the state fisc. Here, the Comptroller reviewed billing records of two non-participating providers and found that they had routinely waived Empire Plan members’ co-payments, thereby inflating the cost of the claims and adversely impacting the State’s fisc. The audits were not designed to evaluate petitioners’ health care practices. While the audits may have revealed information that could provide the basis for investigation into fraudulent conduct, a duty of the State Insurance Department, it did not make the audits unlawful. The Comptroller’s limited examination of petitioners’ billing records amounted to a post-audit of state payments and was permitted by the Constitution. *Matter of Martin H. Handler, M.D., PC. v DiNapoli*, 23 NY3d 239.

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF.

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS.

SUBPOENA.

See WITNESSES.

SUMMONS.

See PROCESS.

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

TAXATION.**ASSESSMENT.**

1. Presumption of Validity.—In an RPTL article 7 proceeding challenging the tax assessment for petitioner condominium board of managers' residential complex, petitioner failed to rebut the presumption of validity that attached to the tax assessment of its real property, as its proof failed to provide the factual and statistical information needed to substantiate its calculations. A rebuttable presumption of validity attaches to the valuation of property made by the taxing authority, and a taxpayer challenging the accuracy of an assessment bears the initial burden of coming forward with substantial evidence that the property was overvalued by the assessor. The substantial evidence standard is not a heavy one, but the documentary and testimonial evidence proffered by the taxpayer must be based on sound theory and objective data. Petitioner's appraiser applied an income capitalization method to establish the market value of the complex, treating each condominium unit as if it were an income-producing rental. The appraisal identified four comparable apartment complexes used to calculate the capitalization rate, setting forth the sale price, gross income, expenses and net operating income for each of the rental properties. But other than referencing "forecast financials," the appraiser did not provide the sources of the income or expense figures related to each comparable. More importantly, the hearing testimony of petitioner's appraiser revealed that he had little to no confirmable data to support the income and expense numbers he employed to derive the capitalization rate. An appraisal should be disregarded when a party violates 22 NYCRR 202.59 (g) (2), which prescribes the basic requirements for written appraisals, by failing to adequately set forth the facts, figures and calculations supporting the appraiser's conclusions. *Matter of Board of Mgrs. of French Oaks Condominium v Town of Amherst*, 23 NY3d 168.

TOWNS.

See MUNICIPAL CORPORATIONS.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION.

VILLAGES.

See MUNICIPAL CORPORATIONS.

WELFARE.

See SOCIAL SERVICES.

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

ZONING.

See MUNICIPAL CORPORATIONS.

TABLE OF STATUTES AND RULES CONSTRUED

CIVIL PRACTICE LAW AND RULES.

- 202 (Limitations of time; cause of action accruing without state). *Norex Petroleum Ltd. v Blavatnik*, 23 NY3d 665.
- 205 (a) (Limitations of time; termination of action; new action by plaintiff). *Norex Petroleum Ltd. v Blavatnik*, 23 NY3d 665.
- 213 (1) (Actions to be commenced within six years; action for which no limitation specifically prescribed by law). *Melcher v Greenberg Traurig, LLP*, 23 NY3d 10.
- 214 (2) (Actions to be commenced within three years; for penalty created by statute). *Melcher v Greenberg Traurig, LLP*, 23 NY3d 10.
- 327 (a) (Inconvenient forum; dismissal of action). *Mashreqbank PSC v Ahmed Hamad Al Gosaibi & Bros. Co.*, 23 NY3d 129; *Boyle v Starwood Hotels & Resorts Worldwide, Inc.*, 23 NY3d 1012.
- 3101 (a) (4) (Scope of disclosure; generally; by any other person, upon notice stating circumstances or reasons disclosure sought or required). *Matter of Kapon v Koch*, 23 NY3d 32.
- 3121 (a) (Physical or mental examination; notice of examination). *Hamilton v Miller*, 23 NY3d 592.
- 3126 (3) (Penalties for refusal to comply with order or to disclose). *CDR Créances S.A.S. v Cohen*, 23 NY3d 307.
- 4511 (Judicial notice of law). *Hamilton v Miller*, 23 NY3d 592.
- 5001 (b) (Interest to verdict, report or decision; date from which computed). *Village of Ilion v County of Herkimer*, 23 NY3d 812.
- 5501 (b) (Appeals; scope of review of Court of Appeals). *Matter of State of New York v Enrique T.*, 23 NY3d 1011.
- 5511 (Permissible appellant and respondent). *Harris v Pitts*, 23 NY3d 943.
- 5513 (b) (Time to move for permission to appeal). *Matter of Jasiah T.-V.S.J. (Joshua W.)*, 23 NY3d 939; *People ex rel. Roache v Sawyer*, 23 NY3d 949; *Matter of Lynik Jomae E., Jr. (Lynik Jomae E.)*, 23 NY3d 1007.
- 5601 (Appeals to Court of Appeals as of right). *People v Nieves*, 23 NY3d 948; *Matter of Pollack v Kiernan*, 23 NY3d 950; *Matter of Murphy v City of New York*, 23 NY3d 956; *Matter of Allen*, 23 NY3d 1005; *Dabrowski v Metropolitan Life Ins. Co.*, 23 NY3d 1006.
- 5601 (b) (2) (Appeals to Court of Appeals as of right; constitutional grounds). *Schulz v New York State Exec.*, 23 NY3d 1010; *Schulz v Silver*, 23 NY3d 1010; *Schulz v State of N.Y. Exec.*, 23 NY3d 1010.
- 5601 (c) (Appeals to Court of Appeals as of right; from order granting new trial or hearing, upon stipulation for judgment absolute). *Trezza v Metropolitan Transp. Auth.*, 23 NY3d 1011.
- 5601 (d) (Appeals to Court of Appeals as of right; based upon nonfinal determination of Appellate Division). *Matter of State of New York v Enrique T.*, 23 NY3d 1011.
- 5602 (Appeals to Court of Appeals by permission). *People ex rel. Williams v O'Flynn*, 23 NY3d 933; *Matter of Murphy v City of New York*, 23 NY3d 956; *Kuney v Christian*, 23 NY3d 985; *Matter of Konig v CSC Holdings, LLC*, 23 NY3d 1029.
- 5602 (a) (Appeals to Court of Appeals by permission; permission of Appellate Division or Court of Appeals). *Matter of Arc on 4th St. Inc. v Quesada*, 23 NY3d 953; *Delgado v Markwort Sporting Goods Co.*, 23 NY3d 985; *Matter of AGBH Bel Air Rental, LLC v Best*, 23 NY3d 1028.

CIVIL PRACTICE LAW AND RULES—Continued

- 5602 (a) (1) (ii) (Appeals to Court of Appeals by permission; final judgment; order on prior appeal). *Trezza v Metropolitan Transp. Auth.*, 23 NY3d 1011.
- 5602 (a) (2) (Appeals to Court of Appeals by permission). *Matter of McKay v Village of Endicott*, 23 NY3d 1015.
- 5602 (b) (1) (Appeals to Court of Appeals by permission; permission of Appellate Division). *Trezza v Metropolitan Transp. Auth.*, 23 NY3d 1011.
- 5602 (b) (2) (Appeals to Court of Appeals as of right; constitutional grounds). *Matter of Walker v New York State Commn. on Jud. Conduct*, 23 NY3d 959.
- 5611 (When Appellate Division order deemed final). *Nicholson v Incorporated Vil. of Garden City*, 23 NY3d 947.

CIVIL SERVICE LAW.

- § 167 (7) (Health benefits for state and retired state employees; contributions). *Matter of Martin H. Handler, M.D., P.C. v DiNapoli*, 23 NY3d 239.

CORRECTION LAW.

- § 168-n (2) (Sex Offender Registration Act; judicial determination; level of notification). *People v Gillotti*, 23 NY3d 841.
- § 168-n (3) (Sex Offender Registration Act; judicial determination; burden of proof). *People v Gillotti*, 23 NY3d 841.

COUNTY LAW.

- § 701 (1) (Appointment of special district attorney). *Matter of Working Families Party v Fisher*, 23 NY3d 539.

CRIMINAL PROCEDURE LAW.

- 60.22 (1) (Rules of evidence; corroboration of accomplice testimony). *People v Sage*, 23 NY3d 16.
- 60.22 (2) (Rules of evidence; corroboration of accomplice testimony; “accomplice” defined). *People v Sage*, 23 NY3d 16.
- 60.42 (Rules of evidence; admissibility of evidence of victim’s sexual conduct in sex offense cases). *People v McCray*, 23 NY3d 193.
- 160.50 (Order upon termination of criminal action in favor of accused). *Matter of State of New York v John S.*, 23 NY3d 326; *Matter of New York State Commn. on Jud. Conduct v Rubenstein*, 23 NY3d 570.
- 160.60 (Effect of termination of criminal actions in favor of accused). *Matter of State of New York v John S.*, 23 NY3d 326.
- 170.65 (Replacement of misdemeanor complaint by information and waiver thereof). *People v Dumay*, 23 NY3d 518.
- 210.30 (6) (Motion to dismiss or reduce indictment on ground of insufficiency of grand jury evidence; motion to inspect grand jury minutes; validity of order denying motion not reviewable on appeal from ensuing judgment based upon legally sufficient trial evidence). *People v Wisdom*, 23 NY3d 970.
- 255.20 (1) (Pretrial motions; procedure; timeliness of motions). *People v Wisdom*, 23 NY3d 970.
- 255.20 (3) (Pretrial motions; procedure; timeliness of motions; exceptions). *People v Wisdom*, 23 NY3d 970.
- 300.50 (1) (Court’s charge; submission of lesser included offenses). *People v Rivera*, 23 NY3d 112.
- 310.20 (2) (Jury deliberation; use of exhibits and other material). *People v Lewis*, 23 NY3d 179.
- 310.30 (Jury deliberation; request for information). *People v Rivera*, 23 NY3d 827; *People v Walston*, 23 NY3d 986.
- 330.20 (Procedure following verdict or plea of not responsible by reason of mental disease or defect). *Matter of Allen B. v Sproat*, 23 NY3d 364.
- 440.10 (Motion to vacate judgment). *Lynch v City of New York*, 23 NY3d 757.
- 450.90 (Appeal to Court of Appeals from order of intermediate appellate court; in what cases authorized). *People v Nieves*, 23 NY3d 948.
- 450.90 (2) (a) (Appeal to Court of Appeals from order of intermediate appellate court; appellate court’s determination of reversal or modification on law alone or upon law and such facts which, but for determination of law, would not have led to reversal or modification). *People v Johnson*, 23 NY3d 1001.

CRIMINAL PROCEDURE LAW—Continued

- 460.15 (Certificate granting leave to appeal to intermediate appellate court). *People v Letizia*, 23 NY3d 1054.
- 460.20 (Certificate granting leave to appeal to Court of Appeals). *People v Morrison*, 23 NY3d 980; *People v Rivera*, 23 NY3d 981; *People v Jones*, 23 NY3d 1008; *People v Colon*, 23 NY3d 1051; *People v English*, 23 NY3d 1051; *People v Letizia*, 23 NY3d 1054; *People v Mercado*, 23 NY3d 1056; *People v Washington*, 23 NY3d 1057.
- 470.05 (2) (Determination of appeals; preservation of issue for review). *People v Sage*, 23 NY3d 16.

ENVIRONMENTAL CONSERVATION LAW.

- 23-0303 (2) (Oil, Gas and Solution Mining Law; administration of article; supersedure). *Matter of Wallach v Town of Dryden*, 23 NY3d 728.

EXECUTIVE LAW.

- § 259-i (2) (c) (A) (Procedures for conduct of work of State Board of Parole; factors to be considered in making parole release decisions; victim impact statement). *Matter of Costello v New York State Bd. of Parole*, 23 NY3d 1002.

FAMILY COURT ACT.

- § 712 (a) (Proceedings concerning whether person is in need of supervision; “person in need of supervision” defined). *Matter of Gabriela A.*, 23 NY3d 155.
- § 718 (Proceedings concerning whether person is in need of supervision; return of runaway). *Matter of Gabriela A.*, 23 NY3d 155.

GENERAL ASSOCIATIONS LAW.

- § 13 (Action or proceeding against unincorporated association). *Palladino v CNY Centro, Inc.*, 23 NY3d 140.

GENERAL MUNICIPAL LAW.

- § 50-e (6) (Notice of claim; mistake, omission, irregularity or defect). *Robles v New York City Hous. Auth.*, 23 NY3d 982.

INSURANCE LAW.

- § 3420 (d) (2) (Liability insurance; disclaimer of coverage). *KeySpan Gas E. Corp. v Munich Reins. Am., Inc.*, 23 NY3d 583.

JUDICIARY LAW.

- § 42 (3) (State Commission on Judicial Conduct; functions; powers and duties). *Matter of New York State Commn. on Jud. Conduct v Rubenstein*, 23 NY3d 570.
- § 44 (8) (Suspension of judges). *Matter of Barto*, 23 NY3d 1032.
- § 90 (4) (a) (Removal of attorneys from practice by Appellate Division; conviction of felony). *Matter of Gupta*, 23 NY3d 925.
- § 487 (Misconduct by attorneys). *Melcher v Greenberg Traurig, LLP*, 23 NY3d 10.

LABOR LAW.

- § 740 (2) (a) (Retaliatory personnel action by employers; prohibition). *Webb-Weber v Community Action for Human Servs., Inc.*, 23 NY3d 448.

MENTAL HYGIENE LAW.

- § 10.08 (c) (Sex offenders requiring civil commitment or supervision; procedures under article 10; access to records and reports). *Matter of State of New York v John S.*, 23 NY3d 326.

NEW YORK CITY ADMINISTRATIVE CODE.

- § 8-502 (f) (Civil rights; civil action by persons aggrieved by unlawful discriminatory practices; attorney’s fees). *Albunio v City of New York*, 23 NY3d 65.
- § 13-155 (a) (3) (c) (New York City Employees’ Retirement System; optional retirement after 20 or 25 years of allowable service rendered in uniformed correction force; calculation of benefit). *Matter of Kaslow v City of New York*, 23 NY3d 78.

NEW YORK CITY CHARTER.

- § 558 (b) (Department of Health and Mental Hygiene; health code; authority to amend health code). *Matter of New York Statewide Coalition of Hispanic Chambers of Commerce v New York City Dept. of Health & Mental Hygiene*, 23 NY3d 681.

NEW YORK CONSTITUTION.

- Art V, § 1 (Comptroller and Attorney-General, election, qualifications and duties; payment of state moneys without audit void). *Matter of Martin H. Handler, M.D., P.C. v DiNapoli*, 23 NY3d 239.
- Art VI, § 3 (Jurisdiction of Court of Appeals). *Kuney v Christian*, 23 NY3d 985; *Eastern Sav. Bank, FSB v 106 Rockaway Owners Corp.*, 23 NY3d 997.
- Art VI, § 3 (b) (Jurisdiction of Court of Appeals). *People ex rel. Williams v O'Flynn*, 23 NY3d 933; *People v Nieves*, 23 NY3d 948; *Matter of Pollack v Kiernan*, 23 NY3d 950.
- Art VI, § 3 (b) (2) (Jurisdiction of Court of Appeals). *Matter of Walker v New York State Commn. on Jud. Conduct*, 23 NY3d 959; *Schulz v New York State Exec.*, 23 NY3d 1010; *Schulz v Silver*, 23 NY3d 1010; *Schulz v State of N.Y. Exec.*, 23 NY3d 1010.
- Art VI, § 3 (b) (7) (Jurisdiction of Court of Appeals). *Matter of Arc on 4th St. Inc. v Quesada*, 23 NY3d 953.
- Art VI, § 5 (b) (Power of appellate courts upon appeal from judgment or order; transfer of appeals taken to improper appellate court). *Matter of Walker v New York State Commn. on Jud. Conduct*, 23 NY3d 959; *Schulz v New York State Exec.*, 23 NY3d 1010; *Schulz v Silver*, 23 NY3d 1010; *Schulz v State of N.Y. Exec.*, 23 NY3d 1010.
- Art VI, § 22 (Commission on Judicial Conduct; membership; organization and procedure; review by Court of Appeals; discipline of judges). *Matter of Barto*, 23 NY3d 1032.

PENAL LAW.

- Art 460 (Enterprise corruption). *People v Kancharla*, 23 NY3d 294.
- § 120.05 (2) (Assault, second degree; use of deadly weapon or dangerous instrument). *People v Gordon*, 23 NY3d 643.
- § 140.00 (2) (Criminal trespass and burglary; “building” defined). *People v McCray*, 23 NY3d 621.
- § 140.00 (3) (Criminal trespass and burglary; “dwelling” defined). *People v McCray*, 23 NY3d 621.
- § 140.25 (2) (Burglary, second degree; dwelling element). *People v McCray*, 23 NY3d 621.
- § 156.00 (8) (Offenses involving computers; “without authorization” defined). *People v Golb*, 23 NY3d 455.
- § 156.05 (Unauthorized use of computer). *People v Golb*, 23 NY3d 455.
- § 160.00 (1) (“Robbery” defined; forcible stealing). *People v Gordon*, 23 NY3d 643.
- § 160.10 (Robbery, second degree). *People v Gordon*, 23 NY3d 643.
- § 160.15 (Robbery, first degree). *People v Gordon*, 23 NY3d 643.
- § 170.05 (Forgery, third degree). *People v Golb*, 23 NY3d 455.
- § 175.00 (2) (Offenses involving false written statements; “business record” defined). *People v Golb*, 23 NY3d 455.
- § 175.10 (Falsifying business records, first degree). *People v Golb*, 23 NY3d 455.
- § 190.25 (Criminal impersonation, second degree). *People v Golb*, 23 NY3d 455.
- § 190.79 (3) (Identity theft, second degree; commits or attempts to commit felony). *People v Golb*, 23 NY3d 455.
- § 195.05 (Obstructing governmental administration, second degree). *Matter of Gabriela A.*, 23 NY3d 155; *People v Dumay*, 23 NY3d 518.
- § 205.30 (Resisting arrest). *Matter of Gabriela A.*, 23 NY3d 155; *People v Finch*, 23 NY3d 408.
- § 240.30 (1) (Aggravated harassment, second degree). *People v Golb*, 23 NY3d 455.
- § 265.03 (1) (b) (Criminal possession of weapon, second degree). *People v Galindo*, 23 NY3d 719.
- § 265.05 (Unlawful possession of weapons by persons under age of 16). *Matter of Antwaine T.*, 23 NY3d 512.
- § 265.15 (4) (Firearms and other dangerous weapons; presumptions of possession, unlawful intent and defacement). *People v Galindo*, 23 NY3d 719.

PENAL LAW—Continued

§ 460.10 (3) (Enterprise corruption; “criminal enterprise” defined). *People v Kancharla*, 23 NY3d 294.

PUBLIC OFFICERS LAW.

§ 87 (2) (b) (Denial of access to agency records; unwarranted invasion of personal privacy). *Matter of Empire Ctr. for N.Y. State Policy v New York State Teachers’ Retirement Sys.*, 22 NY3d 438.

§ 89 (2) (b) (iii) (Freedom of Information Law; access to records; invasion of personal privacy). *Matter of Empire Ctr. for N.Y. State Policy v New York State Teachers’ Retirement Sys.*, 22 NY3d 438.

§ 89 (7) (Freedom of Information Law; access to records). *Matter of Empire Ctr. for N.Y. State Policy v New York State Teachers’ Retirement Sys.*, 22 NY3d 438.

REGULATIONS OF DEPARTMENT OF ENVIRONMENTAL CONSERVATION.

6 NYCRR part 182 (Endangered and threatened species of fish and wildlife; species of special concern; incidental take permits). *Matter of Association for a Better Long Is., Inc. v New York State Dept. of Envtl. Conservation*, 23 NY3d 1.

6 NYCRR 182.11 (a) (Endangered and threatened species of fish and wildlife; species of special concern; incidental take permit; specific application requirements). *Matter of Association for a Better Long Is., Inc. v New York State Dept. of Envtl. Conservation*, 23 NY3d 1.

RETIREMENT AND SOCIAL SECURITY LAW.

§ 480 (b) (Extension of temporary benefits and supplementation programs). *Lynch v City of New York*, 23 NY3d 757.

§ 504-a (Twenty-year retirement program for New York City correction members below rank of captain). *Matter of Kaslow v City of New York*, 23 NY3d 78.

§ 504-a (b) (4) (Twenty-year retirement program for New York City correction members below rank of captain; participation in program; application of term “credited service”). *Matter of Kaslow v City of New York*, 23 NY3d 78.

§ 504-a (c) (2) (Twenty-year retirement program for New York City correction members below rank of captain; service retirement benefits; calculation of benefit). *Matter of Kaslow v City of New York*, 23 NY3d 78.

RULES OF CITY OF NEW YORK.

24 RCNY 81.53 (Health Code; maximum beverage size). *Matter of New York Statewide Coalition of Hispanic Chambers of Commerce v New York City Dept. of Health & Mental Hygiene*, 23 NY3d 681.

RULES OF COURT OF APPEALS.

22 NYCRR 500.27 (Discretionary proceedings to review certified questions from federal courts and other courts of last resort). *Schoenefeld v State of New York*, 23 NY3d 941; *Matter of Santiago-Monteverde*, 23 NY3d 958; *Beardslee v Inflection Energy, LLC*, 23 NY3d 1047.

STATE FINANCE LAW.

§ 9 (General fiscal provisions; subpoenas; oaths). *Matter of Martin H. Handler, M.D., P.C. v DiNapoli*, 23 NY3d 239.

UNIFORM COMMERCIAL CODE.

Art 4 (Bank deposits and collections). *Clemente Bros. Constr. Corp. v Hafner-Milazzo*, 23 NY3d 277.

§ 4-103 (1) (Bank deposits and collections; variation by agreement). *Clemente Bros. Constr. Corp. v Hafner-Milazzo*, 23 NY3d 277.

§ 4-406 (1) (Bank customer’s duty to discover and report unauthorized signature or alteration; bank’s provision to customer of statements of account and items paid). *Clemente Bros. Constr. Corp. v Hafner-Milazzo*, 23 NY3d 277.

§ 4-406 (4) (Bank customer’s duty to discover and report unauthorized signature or alteration; one-year period to discover and report). *Clemente Bros. Constr. Corp. v Hafner-Milazzo*, 23 NY3d 277.

UNIFORM RULES FOR TRIAL COURTS.

22 NYCRR 200.15 (Uniform rules for courts exercising criminal jurisdiction; rules applicable to superior courts; appointment of special district attorney). *Matter of Working Families Party v Fisher*, 23 NY3d 539.

UNIFORM RULES FOR TRIAL COURTS—Continued

22 NYCRR 202.17 (b) (1) (Uniform Civil Rules for Supreme Court and County Court; exchange of medical reports in personal injury and wrongful death actions). *Hamilton v Miller*, 23 NY3d 592.

22 NYCRR 202.59 (g) (2) (Tax assessment review proceedings in counties outside City of New York; special rules; exchange and filing of appraisal reports; what reports shall contain). *Matter of Board of Mgrs. of French Oaks Condominium v Town of Amherst*, 23 NY3d 168.

UNITED STATES CODE.

42 USC § 4851 (Lead-based paint hazard reduction; findings). *Hamilton v Miller*, 23 NY3d 592.

UNITED STATES CONSTITUTION.

1st Amend (Freedom of religion; freedom of speech and press; peaceful assemblage). *Matter of Santer v Board of Educ. of E. Meadow Union Free Sch. Dist.*, 23 NY3d 251.

VEHICLE AND TRAFFIC LAW.

§ 1192 (2) (Operating motor vehicle while under influence of alcohol or drugs; driving while intoxicated; per se). *People v Fratangelo*, 23 NY3d 506.

§ 1192 (3) (Operating motor vehicle while under influence of alcohol or drugs; driving while intoxicated). *People v Fratangelo*, 23 NY3d 506.

§ 1194 (2) (a) (Alcohol and drug-related offenses; arrest and testing). *People v Fratangelo*, 23 NY3d 506.

§ 1194 (2) (b) (Alcohol and drug-related offenses; arrest and testing; chemical tests; report of refusal). *People v Washington*, 23 NY3d 228.

§ 1195 (2) (Operating motor vehicle while under influence of alcohol or drugs; chemical test evidence; probative value). *People v Fratangelo*, 23 NY3d 506.

WORKERS' COMPENSATION LAW.

§ 65 (1) (County self-insurance plan; rules and regulations). *Village of Ilion v County of Herkimer*, 23 NY3d 812.

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

- | | |
|--|--|
| 1. 19 NY2d 159 (Thrasher v United States Liab. Ins. Co.) | At 19 NY2d 168, line 4 from the bottom of the page, change insurer's to insured's. |
| 2. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 3. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 4. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change constructive to constructive. |
| 5. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 6. 54 NY2d 137 (People v Baldi) | At 53 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 7. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 8. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |
| 9. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 10. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |

11. **80 NY2d 1030** (People v Sallito) Change the title entry from Salito to Sallito.

12. **85 NY2d 139** (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) At 85 NY2d 146, second paragraph, line 13, change lead to led.

13. **88 NY2d 41** (Town of Orangetown v Magee) At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733.

14. **88 NY2d 400** (People v Huston) At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c].

15. **93 NY2d 382** (BDO Seidman v Hirshberg) At 93 NY2d 391, line 25, change former employer to former employee.

16. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).

17. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).

18. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.

19. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).

20. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.

Errata

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|---|--|
| 21. 6 NY3d 427 (People v Boyer) | At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922. |
| 22. 7 NY3d 703 (Matter of Park v Kapica) | Change the page number of the reported below citation from 802 to 801. |
| 23. 8 NY3d 944 (People v Charriez) | In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U). |
| 24. 9 NY3d 923 (People v Jacobs) | In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868. |
| 25. 11 NY3d 875 (People v Ford) | On line 5 of the Summary, change Bronx County to New York County. |
| 26. 13 NY3d 511 (Matter of Goldstein v New York Urban Dev. Corp.) | At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition]. |
| 27. 21 NY3d 1043 (People v Mackey-Meggs) | Change defendant's name in title from Mackey-Meggs to Marquan M. |
| 28. 22 NY3d 648 (Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation) | At 22 NY3d 654, eighth line of third paragraph, change 22,000 acres to 22,000 square feet. |